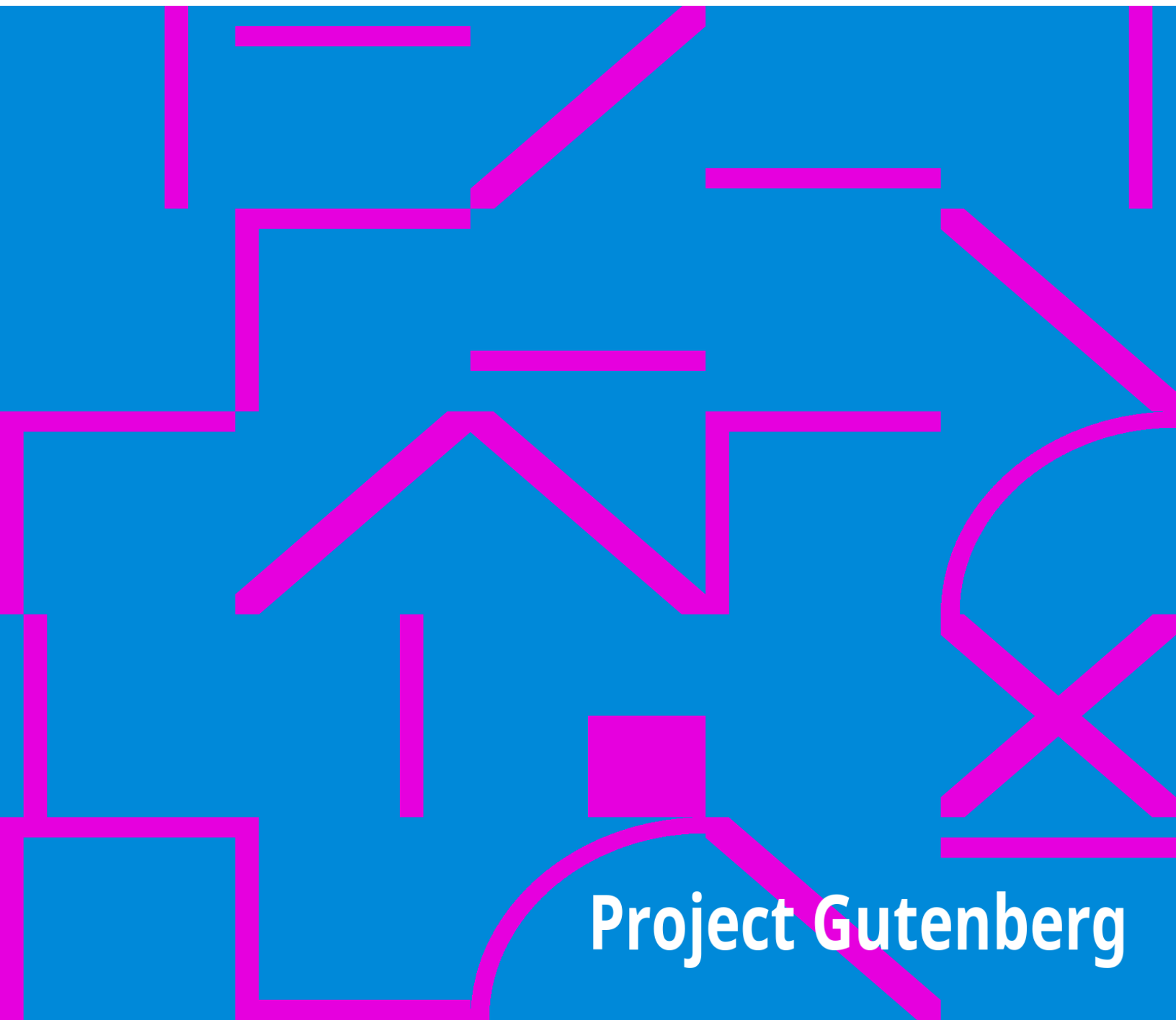


Henry of Monmouth, Volume 2

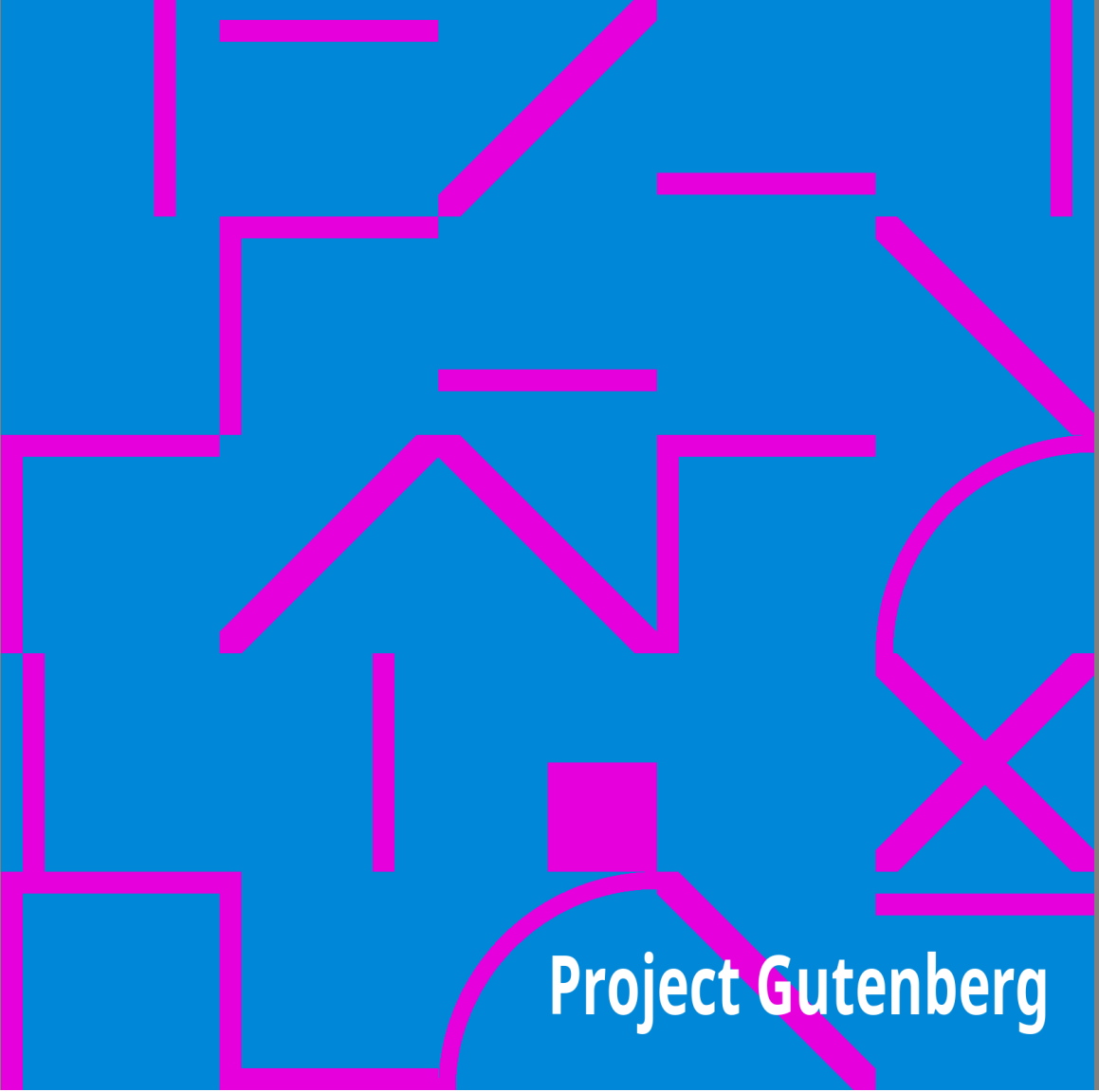
James Endell Tyler

The background of the lower half of the image is a solid blue color. Overlaid on this is a complex, abstract pattern of thick magenta lines. These lines form various geometric shapes, including rectangles, squares, triangles, and a large 'X' shape. Some lines are straight, while others are curved, creating a dynamic and modern visual effect.

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Henry of Monmouth, Volume 2

James Endell Tyler



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[Transcriber's note: Obvious printer's errors have been corrected. The original spelling has been retained.]

Different spelling as been kept, e.g.:

- Ruisseauville and Ruissauville
- Azincour and Azincourt, etc ...

Some words on page 94 were partly unclear / illegible.

- Page 249: ii. vol. changed to vol. ii.
- Page 412: The anchor for the footnote 305 was missing and has been added.]



Great seal of Owen Glyndwr as Prince of Wales

HENRY OF MONMOUTH:

OR,

MEMOIRS

OF THE LIFE AND CHARACTER OF

HENRY THE FIFTH,

AS

PRINCE OF WALES AND KING OF ENGLAND.

BY J. ENDELL TYLER, B.D.

RECTOR OF ST. GILES IN THE FIELDS.

**"Go, call up Cheshire and Lancashire,
And Derby hills, that are so free;
But neither married man, nor widow's son;
No widow's curse shall go with me."**

IN TWO VOLUMES.

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1413-1414.

HENRY, KING.

Henry IV. died at Westminster on Monday, March 20, 1413, and Henry of Monmouth's proclamation bears date on the morrow, March 21.^[1] Never perhaps was the accession of any prince to the throne of a kingdom hailed with a more general or enthusiastic welcome. If serious minds had entertained forebodings of evil from his reign, (as we believe they had not,) all feelings seem to have been absorbed in one burst of gladness. Both houses of parliament offered to swear allegiance to him before he was crowned: a testimony of confidence and affection never (it is said) before tendered to any English monarch.^[2] This prevalence of joyous anticipations from the accession of their young King could not have sprung from any change of conduct or of principle then first made known. Those who charge Henry most unsparingly represent his conversion as having begun only at his father's hour of dissolution. But, before that father breathed his last, the people of England were ready to welcome most heartily his son, such as he was then, without, as it should seem, either hearing of, or wishing for, any change. His principles and his conduct as a ruler had been put to the test during the time he had presided at the council-

board; and the people only desired in their new King a continuance of the same wisdom, valour, justice, integrity, and kind-heartedness, which had so much endeared him to the nation as their Prince. In his subjects there appears to have been room for nothing but exultation; in the new King himself widely different feelings prevailed. Ever, as it should seem, under an awful practical sense, as well of the Almighty's presence and providence and majesty, as of his own responsibility and unworthiness, Henry seems to have been suddenly oppressed by the increased solemnity and weight of the new duties which he found himself now called upon to discharge. The scene of his father's death-bed, (carried off, as that monarch was, in the very meridian of life, by a lingering loathsome disease,) and the dying injunctions of that father, may doubtless have added much to the acuteness and the depth of his feelings at that time. And whether he be deemed to have been the licentious, reckless rioter which some writers have been anxious to describe, or whether we regard him as a sincere believer, comparing his past life (though neither licentious nor reckless) with the perfectness of the divine law, the retrospect might well depress him with a consciousness of his own unworthiness, and of his total inability to perform the work which he saw before him, without the strength and guidance of divine grace. For that strength and that guidance, we are assured, he prayed, and laboured, and watched with all the intenseness and perseverance of an humble faithful Christian. Those who are familiar with the expressions of a contrite soul, will fully understand the sentiments recorded of Henry of Monmouth at this season of his self-humiliation, and the dedication of himself to God, and may yet be far from discovering in them conclusive arguments in proof of his having passed his youth in habits of gross violation of religious and moral principle. We have already quoted the assertions of his biographer, that day and night he sought pardon for the past, and grace for the future, to enable him to bend his heart in faith and obedience to the Sovereign of all. And even during the splendour and rejoicings of his coronation he appeared to withdraw his mind entirely from the greatness of his worldly state, thus forced upon him, and to fix his thoughts on the King of kings.[\[3\]](#)

But he never seems for a day to have been drawn aside by his private devotions from the full discharge of the practical duties of his new station. On the Wednesday he issued summonses for a parliament to meet within

three weeks of Easter. On Friday the 7th of April, he was conducted to the Tower by a large body of men of London, who went on horseback to attend him. The next day he was accompanied back to Westminster, with every demonstration of loyalty and devotedness to his person, by a great concourse of lords and knights, many of whom he had created on the preceding evening. On the following morning, being Passion Sunday, April 9th,^[4] he was crowned with much^[5] magnificence in Westminster Abbey.^[6]

One of the first acts of a sovereign in England at that time was to re-appoint the judges who were in office at the demise of his predecessor, or to constitute new ones in their stead. Among other changes, we find Hankford appointed as Chief Justice in the room of Gascoyne, at least within ten days of the King's accession. For any observation which this fact may suggest, so contrary to those histories which repeat tales instead of seeking for the truth in ancient records, we must refer to the chapter in which we have already examined the credibility of the alleged insult offered by Prince Henry to a Judge on the bench of justice.^[7]

The first parliament of Henry V. met in the Painted Chamber at Westminster, on Monday, 15th of May. The King was on his throne; but the Bishop of Winchester, his uncle, then Chancellor of England, opened the business of the session. On this, as on many similar occasions, the chancellor, generally a prelate, addressed the assembled states in an oration, half speech and half sermon, upon a passage of Scripture selected as a text. On the opening of this parliament, the chancellor informed the peers and the commons that the King's purpose in calling them together as the Great Council of the nation was threefold:—First, he was desirous of supporting the throne,—“his high and royal estate;” secondly, he was bent on maintaining the law and good government within his realm; and thirdly, he desired to cherish the friends and to resist the enemies of his kingdom. It is remarkable that no mention is made in this parliament at all on the part of the King, or his chancellor, of either heresy or Lollardism. The speaker refers to some tumults, especially at Cirencester, where the populace appear to have attacked the abbey; complaints also were made against the conduct of ordinaries, and some strong enactments were passed against the usurpations of Rome, to which reference will again be made: but not a word

in answer to these complaints would lead to the inference that the spirit of persecution was then in the ascendant. It was not till the last day of April 1414, after the affair of St. Giles' Field, that the statute against the Lollards was passed at Leicester.^[8] The chancellor at that subsequent period speaks of their treasonable designs to destroy the King having been lately discovered and discomfited; and the record expressly declares that the ordinance was made with the consent and at the prayer of the commons.

But though neither the King nor his council gave any indication, in his first parliament, of a desire to interfere with men's consciences in matters of religion, the churchmen were by no means slumbering at their post. Arundel, Archbishop of Canterbury, convened a council of the bishops and clergy, who met by adjournment, in full numbers, at St. Paul's, on the 26th of June 1413;^[9] and adopted most rigorous measures for the extirpation of heresy, levelled professedly with a more especial aim against the ringleader of Lollardism, as he was called, the valiant and unfortunate Lord Cobham. On these proceedings we purpose to dwell separately in another part of this work; and, in addition to what we shall there allege, little needs be observed here by way of anticipation. In leaving the subject, however, as far as Henry V.'s character is concerned, it may not be out of place to remark, that historical facts, so far from stamping on him the mark of a religious persecutor, prove that it required all the united efforts of the clergy and laity to induce him to put the existing laws in force against those who were bold enough to dissent from the Romish faith. So far from his "having watched the Lollards as his greatest enemies," so far from "having listened to every calumny which the zeal and hatred of the hierarchy could invent or propagate against the unfortunate followers of Wickliff," (the conduct and disposition ascribed to him by Milner,) we have sufficient proof of the dissatisfaction of the church with him in this respect; and their repeated attempts to excite him to more vigorous measures against the rising and spreading sect. By a minute of council, May 27, 1415, we find that, whilst preparing for his expedition to France, he is reminded to instruct the archbishops and bishops to take measures, each within his respective diocese, to resist the malice of the Lollards. The King merely answered, that he had given the subject in charge to his chancellor; and we are assured that Dr. Thomas Walden,^[10] one of the most learned and powerful divines of the day, but very violent in his opposition to the new doctrines, openly

inveighed against Henry *for his great negligence in regard to the duty of punishing heretics*.[\[11\]](#) To his religious sentiments we must again refer in the sequel, and also as the course of events may successively suggest any observations on that head.

When Henry IV. ascended the throne, parliament prayed that the Prince might not leave the realm, but remain in England as the anchor of the people's hopes; and, soon after his own accession,[\[12\]](#) Henry V. is advised by his council to remain near London, that he might receive prompt intelligence of whatever might arise in any quarter, and be able to take immediate steps for the safety of the commonweal. He seems to have carried with him even from his earliest youth, wherever he went, a peculiar talent of exciting confidence in every one. Whether in the field of battle, or the chamber of council,—whether as the young Prince, just initiated in affairs of war and government, or as the experienced captain and statesman,—his contemporaries looked to him as a kind of guardian spirit, to protect them from harm, and lead them onward to good success. No despondency, nor even misgivings, show themselves in the agents of any enterprise in which he was personally engaged. The prodigious effects of these feelings in the English towards their prince were displayed in their full strength, perhaps, at the battle of Agincourt; but similar results are equally, though not so strikingly, visible in many other passages of his life.

Among the various causes to which historians have been accustomed to attribute the general anticipations of good from Henry's reign, which pervaded all classes, is the appointment of Gascoyne to the high station of Chief Justice immediately upon his ascending the throne. But we have already seen that, however gladly an eulogist would seize on such an exalted instance of magnanimity and noble generosity, the truth of history forbids our even admitting its probability in this place. Henry certainly did not re-appoint Gascoyne. But, whilst we cannot admit the tradition which would mark the true character of Henry's mind by his behaviour to the Chief Justice, there is not wanting many an authentic record which would amply account for his almost unprecedented popularity at the very commencement of his reign. Among these we must not omit to notice the resolution which he put in practice of retiring for an hour or more every day, after his early dinner, to receive petitions from any of his subjects,

however humble,[13] who would appeal to him for his royal interposition; to examine and consider the several cases patiently; and to redress real grievances. Indeed, numberless little occurrences meet us on every side, which seem to indicate very clearly that he loved the right and hated iniquity; and that he was never more happy than whilst engaged in deeds of justice, mercy, and charity. He seems to have received the golden law for his rule, "See that they who are in need and necessity have right;" and to have rejoiced in keeping that law himself, and compelling all within the sphere of his authority and influence to observe it also.

Another incident recorded of Henry of Monmouth at this period, strongly marking the kindness and generosity and nobleness of his mind, was the removal of the remains of Richard II. from Langley to Westminster. Without implying any consciousness, or even suspicion of guilt, on the part of his father as to Richard's death, we may easily suppose Henry to have regarded the deposition of that monarch as an act of violence, justifiable only on the ground of extreme necessity: he might have considered him as an injured man, by whose fall his father and himself had been raised to the throne. Instead of allowing his name and his mortal remains to be buried in oblivion, (with the chance moreover of raising again in men's minds fresh doubts and surmises of his own title to the throne, for he was not Richard's right heir,) Henry resolved to pay all the respect in his power to the memory of the friend of his youth, and by the only means at his command to make a sort of reparation for the indignities to which the royal corpse had been exposed. He caused the body to be brought in solemn funeral state to Westminster, and there to be buried,[14] with all the honour and circumstance accustomed to be paid to the earthly remains of royalty, by the side of his former Queen, Anne, in the tomb prepared by Richard for her and for himself. The diligent investigator will discover many such incidents recorded of Henry V; some of a more public and important nature than others, but all combining to stamp on his name in broad and indelible letters the character of a truly high-minded, generous, grateful, warm-hearted man.

Another instance of the same feeling, carried, perhaps, in one point a step further in generosity and Christian principle, was evinced in his conduct towards the son of Sir Henry Percy, Hotspur, the former antagonist of his house. This young nobleman had been carried by his friends into Scotland,

for safe keeping, on the breaking out of his grandfather's (Northumberland's) rebellion; and was detained there, as some say, in concealment, till Henry V. made known his determination to restore him to his title and estates. The Scots, who were in possession of his person, kept him as a prisoner and hostage; and although Henry might have considered a foreign land the best home for the son of the enemy of his family, yet so bent was he on effecting the noble design of reinstating him in all which his father's and his grandfather's treason had forfeited, that he consented to exchange for him a noble Scot, who had been detained in England for thirteen years. Mordak of Fife, son and heir of the Duke of Albany, had been taken prisoner at the battle of Homildon Hill, in 1402, (it is curious to remark,) by Hotspur, and his father Northumberland; and now Henry V. exchanges this personage for Hotspur's son, the heir of Northumberland. This youth was only an infant when his father fell at the battle of Shrewsbury; his mother was Elizabeth, eldest daughter of Edmund Mortimer,[\[15\]](#) Earl of March: and thus a king, under the circumstances of Henry, but with a less noble mind, might have regarded him with jealousy on both sides of his parentage, and been glad (without exposing himself to the charge of any positive act of harshness) to allow him to remain in a foreign country deprived of his honours and his estates. But Henry's spirit soared above these considerations; and, in the orphan of a generous rival, he saw only a fit object on whom to exercise his generosity and Christian charity. A negotiation was carried on between Henry and some who represented young Percy; care being taken to ascertain the identity of the person who should be offered in exchange for Mordak. After certain prescribed oaths were taken, and pledges given, and the payment of a stipulated sum, 10,000*l.*, the young man was invited to come to Henry's court with all speed.

There seems to have intervened some considerable impediment to this proposed exchange.[\[16\]](#) The commission to John Hull and William Chancellor to convey Mordak to the north bears date 21st of May; and yet instructions for a negotiation with his father, the Duke of Albany, then Regent of Scotland, for the exchange, were issued to Sir Ralph Evre and others, as late as the 10th of the following December. At the parliament, however, held March 16, 1416, Henry Percy, in the presence of the King himself, does homage for his lands and honours. And, before Henry's death,

the Pell Rolls record payments to this Earl of Northumberland, appointed guardian of Berwick and the East March, as regularly as, in the early part of Henry IV.'s reign, issues had been made to his father Hotspur, and his grandfather, the aged Earl, for the execution of the same duties. The lands of the Percies, on their attainder, were confiscated, and given to the King's brother, the Duke of Bedford; to whom, on restoring his lands and honours to the young Earl, Henry made an annual compensation in part at least for the loss.[\[17\]](#)

Another example of generous behaviour in the young King towards those whom he had in his power, and of whom less noble minds would have entertained suspicion and jealousy, is seen in his conduct towards the Earl of March.[\[18\]](#) This young nobleman, by the law of primogeniture, was rightful heir to the throne; being descended from Lionel Duke of Clarence, third son of Edward III. And so much was he a cause of apprehension and uneasiness to Henry IV. and his council, that it was thought necessary to keep him in close custody, and also near the person of the King, whenever the court removed towards the borders of the kingdom. It was in the name of this young man that his uncle Edmund Mortimer excited all his tenantry and dependents to join Owyn Glyndowr in rebellion against Henry IV; and on all occasions the malcontents of the whole country, supposing Richard to be dead, held forth the Earl of March as their liege sovereign. Henry V. could not have been charged with unwarrantable suspicions or severity, had he continued the same system of watchfulness over this formidable personage, which had been observed under the reign of his predecessor. Provided only that he treated him with kindness, few would have wondered or complained if he had still kept him as a prisoner on parole.[\[19\]](#) But Henry, to whose guardianship, whilst Prince of Wales, the young Earl had been intrusted, was no sooner seated on the throne, than he admitted this young man into a full share of his confidence; not with the suspicion of a rival, nor with the fear of an enemy, but with the openness of an acknowledged and kind master towards a trustworthy and devoted servant. The references to him which are found in the authentic records of that time (and they are not a few) all tend to establish this point.[\[20\]](#) Henry immediately gave him, on his coming of age, full and free possession of all his manors, castles, lands, advowsons, and honours; and seems to have had him continually in his retinue as a companion and friend. On one occasion

we may suppose that Henry's suspicions and apprehensions of danger from the young Earl must have been roused; and yet we find him still continued in his confidence, and still left without any restraint or estrangement. When the conspiracy against Henry was discovered at Southampton, the Earl of Cambridge, (as we shall see more in detail hereafter,) in his letter of confession, declares it to have been the intention of the conspirators to carry the Earl of March into Wales, and to proclaim him as their lawful king. How far the young Earl was privy to this conspiracy, or to what extent he was "art and part" in it, does not distinctly appear. An expression, indeed, in the early part of the Earl of Cambridge's letter, "Having the Earl of March by his own consent, and by the assent of myself," should seem to imply that he was by no means ignorant of the plans of the conspirators, nor averse to them. How far, moreover, Henry thought him guilty, is matter of doubt; but certain it is, that he deemed it necessary to have the King's pardon regularly signed in the usual manner for all treasons, felonies, and misdemeanors. The instrument bears date August 7, 1415, at Southampton. This document, however, by no means proves his guilt: on many occasions such patents of pardon were granted to prevent malicious and vexatious prosecutions. Nevertheless, at all events, it shows that Henry's thoughts must have been especially drawn to the relative circumstances under which himself and the Earl of March were placed; and yet he continued to behave towards him with the same confidence and friendship as before. Two years afterwards, Henry appointed him his lieutenant at sea, with full powers; yet so as not to supersede the privileges and authority of the high admiral, the Duke of Exeter.[\[21\]](#) The following year, in the summer, he was made lieutenant and guardian-general of all Normandy; and in the December of the same year he was commissioned to receive the homage and oaths of all in that country who owed suit and service to the King. He fought side by side with Henry at the field of Agincourt; and there seems to have grown stronger and ripper between them a spirit of friendship and mutual confidence.[\[22\]](#)

These are a few among the many examples upon record of the generous and noble spirit of Henry; whilst history may be challenged to bring forward any instances of cruelty or oppression to neutralize them. Sir Matthew Hale confessed that he could never discover any act of public injustice and tyranny during the Lancastrian sway; and the inquirer into Henry of Monmouth's character may be emboldened to declare, that he can discover

no act of wanton severity, or cruelty, or unkindness in his life. The case of the prisoners in the day and on the field of Agincourt, the fate of Lord Cobham, and the wars in France, require each a separate examination; and in our inquiry we must not forget the kind, and gentle, and compassionate spirit which appears to breathe so naturally and uniformly from his heart: on the other hand, we must not suffer ourselves to be betrayed into such a full reliance on his character for mercy, as would lead us to give a blind implicit sanction to all his deeds of arms. In our estimate of his character, moreover, as indicated by his conduct previously to his first invasion of France, and during his struggles and conquests there, it is quite as necessary for us to bear in mind the tone, and temper, and standard of political and moral government which prevailed in his age, as it is essential for us, when we would estimate his religious character, to recollect what were in that age throughout Christendom the acknowledged principles of the church in communion with the see of Rome.

On Monday, April 30, 1414, Henry met his parliament at Leicester.^[23] Why it was not held at Westminster, we have no positive reasons assigned in history;^[24] and the suggestion of some, that the enactments there made against the Lollards were too hateful to be passed at the metropolis, is scarcely reasonable.^[25] The Bishop of Winchester, as Chancellor, set forth in very strong language the treasonable practices lately discovered and discomfited; and the parliament enacted a very severe law against all disturbers of the peace of the realm and of the unity of the church. It is generally said that the reading of the Bible in English was forbidden in this session under very severe penalties; but no such enactment seems to have been recorded. The prelates, however, were the judges of what heresy was; and to study the Holy Scriptures in the vernacular language might well have seemed to them a very dangerous practice; to be checked, therefore, with a strong hand. The judges, and other state officers, were directed to take an oath to exert themselves for the suppression of Lollardism.

Again and again are we reminded, through the few years of Henry's reign, that the cause of liberty was progressive; and any encroachments of the royal prerogative upon the liberties of the Commons were restrained and corrected, with the free consent and full approbation of the King. A petition in English, presented to him in this parliament, in many respects a curious

document, with the King's answer, bears testimony to the same point. "Our sovereign lord,—your humble and true lieges that been come for the commons of your land, beseech unto your right righteousness, that so as it hath ever been their liberty and freedom that there should be no statute nor law made otherwise than they gave their assent thereto, considering that the commons of your land (the which is and ever hath been a member of your parliament) been as well assenters as petitioners, that from this time forward, by complaint of the commons of any mischief asking remedy by mouth of their Speaker, or else by petition written, that there never be no law made thereupon, and engrossed as statute and law, neither by addition, neither by diminution, by no manner of term or terms, the which should change the sentence and the intent asked by the Speaker's mouth, or the petitions before said, given up in writing without assent of the aforesaid commons." To this petition the following answer was made: "The King, of his grace especial, granteth, that from henceforth nothing be enacted to the petitions of his commons that be contrary to their asking, whereby they should be bound without their assent; saving alway to our liege lord his real prerogative to grant or deny what him lust of their petitions and askings aforesaid."

This parliament was adjourned from Leicester, and re-assembled at Westminster on the Octaves of St. Martin, 18th November 1414. The most gratifying record of this great council of the realm is that which informs us of the restoration of Henry Percy to his estates and honours. The most important subject to which the thoughts of the peers and commons were drawn was the King's determination to recover his rights in the realm of France.

The motives which influenced Henry to undertake this extraordinary step can be known only to the Searcher of hearts. Some writers, in their excessive zeal for Protestantism, anxiously bent on stamping upon Henry the character of an ambitious tyrant and a religious persecutor, employ no measured language in their condemnation of his designs against France. Milner thus gives his summary of the proceedings of this reign at home and abroad. "Henry Chicheley, now Archbishop of Canterbury, continued at the head of that see from February 1414, to April 1443. This man deserves to be called the firebrand of the age in which he lived. To subserve the purposes

of his own pride and tyranny, he engaged King Henry in his famous contest with France, by which a prodigious carnage was made of the human race, and the most dreadful miseries were brought upon both kingdoms. But Henry was a soldier, and understood the art of war, though perfectly ignorant of religion; and that ardour of spirit, which in youth[26] had spent itself in vicious indulgences, was now employed under the management of Chicheley in desolating France by one of the most unjust wars ever waged by ambition, and in furnishing for vulgar minds matter of declamation on the valour of the English nation. While this scene was carrying on in France, the Archbishop at home, partly by exile, partly by forced abjurations, and partly by the flames, domineered over the Lollards, and almost effaced the vestiges of godliness in the kingdom."

These are very hard words, much more readily written than justified. Such sentences of condemnation require a much clearer insight into the workings of the human heart than falls to the lot of any human being to possess, when he would examine into the motives of a fellow-mortal. It is very easy by one sweeping clause to denounce the war as unjust, and to ascribe it to the ambition of Henry, reckless of human suffering. But truth requires us to weigh the whole matter far more patiently, and to substitute evidence in the place of assumptions, and argument instead of declamation. And it is impossible for the biographer of Henry V. to carry his reader with him through the scenes of his preparation for the struggle with France, and his conduct in the several campaigns which chiefly engaged from this time till his death all the energies of his mind and body, without recalling somewhat in detail the circumstances of Henry's position at this time. This, however, will require also a brief review of the state of France through some previous years of her internal discords and misery. Reserving them for another chapter, there are some circumstances of a more private and domestic character which it might be well for us first to mention in this place.

That Henry was habitually under the influence of strong religious feelings, though his views of Christian doctrine partook much of the general superstition of the age, is evident; and one of the first acts of his government was to satisfy his own conscience, and to give full testimony to the church of his piety, and zeal, and devotedness, by founding three religious houses. When, exactly a century later, Richard Fox, Bishop of

Winchester, communicated to his friend, Hugh Oldham, Bishop of Exeter, his intention of founding a monastery, his friend, instead of giving him encouragement to proceed with his plan, remonstrated with him on the folly of building houses, and providing a maintenance for monks, who would live in idleness, unprofitable to themselves and to society;[\[27\]](#) urging him at the same time rather to found a college for the encouragement of sound learning: and the College of Corpus Christi in Oxford owes its existence, humanly speaking, to that sound admonition. Perhaps, had Henry V. been fortunate enough to meet with so able and honest an adviser, Oxford might have had within its walls now another nursery of religion and learning,—a monument of his piety and of his love for whatever was commendable and of good report. Our Oxford chronicles record his expressed intention both to reform the statutes of the University, and also to found an establishment within the castle walls, annexing to it all the alien priories in England for its endowment, in which efficient provision should be made for the instruction of youth in all the best literature of the age.[\[28\]](#) Had he first resolved to found his college, and reserved his religious houses for later years, his work might still have been flourishing at this day, and might have yet continued to flourish till the hand of spoliation and refined barbarism shall be strong and bold enough (should ever such a calamity visit our native land) to wrest these seminaries of Christian principles and sound learning from the friends of religion, and order, and peace. As it is, Henry's establishments survived him little more than a century; and the lands which he had destined to support them passed away into other hands, and were alienated from religious purposes altogether.

The sites which Henry selected for his establishments were, one at Shene, in Surrey; the other at Sion, in the manor of Isleworth, on the Thames.

The terms of the foundation-charters of these religious houses, their rules, and circumstances, and possessions, it does not fall within the plan of this work to specify in detail. The brothers and sisters admitted into these asylums appear to have been bound by very strict rules of self-denial and poverty.

The monastery at Shene, built on the site of Richard II.'s palace, which he never would enter after the loss of his wife Anne, who died there, and

which on that account he utterly destroyed, was called "The House of Jesus of Bethlehem," and was dedicated "to the honour, and glory, and exaltation of the name of Jesus most dear;" Henry expressing in the foundation-charter, among sentiments less worthy of an enlightened Christian, and savouring of the superstition of those days, that he founded the institution in pious gratitude for the blessings of time and of eternity, which flow only from HIM.

The house of Sion in Isleworth, or Mount Sion, as it is called in the Pope's bull of confirmation, was dedicated "to the honour, praise, and glory of the Trinity most High, of the Virgin Mary, of the Disciples and Apostles of God, of all Saints, and especially of the most holy Bridget." This house was suppressed by Henry VIII; when the nuns fled from their native country, and took refuge, first in Zealand, then at Mechlin, whence they removed to Rouen; at last, fifteen reached Lisbon in 1594. The history of this little company of sisters is very remarkable and interesting. In Lisbon they were well received, and were afterwards supported by royal bounty, as well as by the benevolence of individuals. They seem to have settled there peaceably, and to have lived in their own house, and to have had their own church, for more than fifty years. In 1651 their house and church were both burnt to the ground; but, through the beneficence of the pious, they had the happiness of seeing them restored. In 1755 this little community suffered in common with the other unfortunate inhabitants of Lisbon, and seem to have lost their all in the earthquake. In their distress they cast their eyes to the land of their fathers, and applied for the charity of their countrymen. There is something very affecting in the language of the petition by which our countrywomen in their calamity sought to excite the sympathy, and obtain the benevolent aid, of their fellow-Christians at home.

We, the underwritten, and company, having on the 1st of November last suffered such irreparable losses and damage by the dreadful earthquake and fire which destroyed this city and other parts of the kingdom, that we have neither house nor sanctuary left us wherein to retire; nor even the necessaries of life, it being out of the power of our friends and benefactors here to relieve us, they all having undergone the same misfortune and disaster. So that we see no other means of establishing ourselves than by applying to the nobility, ladies, and gentlemen of our dear country, humbly imploring your tender compassion and pious charity; that, so being assisted and succoured from your bountiful hands, we may for the present subsist under our deplorable misfortune, and in time retrieve so much of our losses as to be able to continue always to pray for the prosperity and conservation of our benefactors.

Augustus

Sulyard,

Peter

Willcock.

Eliz. Hodgeskin,

Frances Huddleston,
Cath. Baldwin,
Winifred Hill.

*Sion House, Lisbon,
May 25, 1756.*

Through another fifty years, the little band, still keeping up the succession by novices from England, remained in the land of their refuge; till, in 1810, nine of them, the majority, it is said, of the survivors, fled from the horrors of war to their native island; and their convent, whose founder was Henry, the greatest general of his age, became the barracks of English soldiers under Wellington, the greatest general of the present day. On their first return they lived in a small house in Walworth; and in 1825, the remainder, now advanced in years and reduced to two or three in number, were still living in the vicinity of the Potteries in Staffordshire,—the last remnant of an English convent dissolved in the time of Henry VIII. There are at this time mulberry-trees growing at Sion House, one of the Duke of Northumberland's[\[29\]](#) mansions, which are believed, not only to have been living, but to have borne fruit, in the time of the monastery.[\[30\]](#)

Henry seems to have had much at heart the intellectual, moral, and religious improvement of those who might be admitted to a share of his bounty in these establishments. The Pell Rolls record a payment "of 100*l.* part only of a larger sum, to the prior and convent of Mount Grace, for books and other things to be supplied by them to his new foundation at Sion."[\[31\]](#) Whether the prior and brethren of Mount Grace had duplicates, or were mere agents, or parted with their own stock to meet the wishes of their King, the record does not tell.

CHAPTER XVIII.

STATE OF THE CHURCH. — HENRY A SINCERE CHRISTIAN, BUT NO BIGOT. — DEGRADED STATE OF RELIGION. — COUNCIL OF CONSTANCE. — HENRY'S REPRESENTATIVES ZEALOUS PROMOTERS OF REFORM. — HALLAM, BISHOP OF SALISBURY, AVOWED ENEMY OF THE POPEDOM. — RICHARD ULLESTON: PRIMITIVE VIEWS OF CLERICAL DUTIES. — WALDEN, HIS OWN CHAPLAIN, ACCUSES HENRY OF REMISSNESS IN THE EXTIRPATION OF HERESY. — FORESTER'S LETTER TO THE KING. — HENRY BEAUFORT'S UNHAPPY INTERFERENCE. — PETITION FROM OXFORD. — HENRY'S PERSONAL EXERTIONS IN THE BUSINESS OF REFORM. — REFLECTIONS ON THE THEN APPARENT DAWN OF THE REFORMATION.

1414-1417.

Some writers, (taking a very narrow and prejudiced view of the affairs of the age to which our thoughts are directed in these Memoirs, and of the agents employed in those transactions,) when they tell us, that Henry was so devotedly attached to the church, and so zealous a friend of her ministers, that he was called the Prince of Priests, would have us believe that he "entirely resigned his understanding to the guidance of the clergy." But his principles and his conduct in ecclesiastical matters have been misunderstood, and very unfairly exaggerated and distorted. That Henry was a sincere believer in the religion of the Cross is unquestionable; and that, in common with the large body of believers through Christendom, he had been bred up in the baneful error of identifying the Catholic church of Christ with the see of Rome, is in some points of view equally evident: but that he was a supporter of the Pope against the rights of the church in England and other his dominions, or was an upholder of the abuses which had then overspread the whole garden of Christ's heritage, so far from being established by evidence, is inconsistent with the testimony of facts. The usurpations of the Romish see called for resistance,[\[32\]](#) and Henry to a certain extent resisted them. The abuses in the church needed reformation,

and Henry showed that he possessed the spirit of a real reformer, bent on the correction of what was wrong, but uncompromising in his maintenance of the religion which he embraced in his heart. He gave proof of a spirit more Catholic than Roman, more Apostolic than Papal.

In his very first parliament strong enactments were passed forbidding ecclesiastics to receive bishoprics and benefices from Rome, on pain of forfeiture and exile. And on complaints being made against the ordinaries, Henry's answer is very characteristic of his principles of church reform: "I will direct the bishops to remedy these evils themselves; and, if they fail, then I will myself take the matter into my own hands."

He had been little more than half a year on the throne,[\[33\]](#) when he sent a peremptory mandate to the bishops of Aquitain, that they should on no account obey any provision from the court of Rome, by which preferment would be given to an enemy of England. And in the following month, Dec. 11, 1413, Henry issued a prohibition, forbidding John Bremore, clerk, whom the Pope had recommended to him when Prince of Wales, to return to the court of Rome for the purpose of carrying on mischievous designs against the King and his people, under a penalty of 100*l*. And among his own bishops, countenanced and confidentially employed by himself, were found men who protested honestly and decidedly against the tyranny and corruption of Rome, and were as zealously bent on restoring the church to the purity of its better days, as were those martyrs to the truth who in the middle of the next century sealed their testimony by their blood. To what extent Henry V. must be regarded as having given a fair promise that, had he lived, he would have devoted the energies of his mind to work out such an effective reformation as would have satisfied the majority of the people in England, and left little in that way for his successors to do, every one must determine for himself. In forming our judgment, however, we must take into account, not only what he actually did, but also whatever the tone, and temper, and turn of his mind (from such intimations as we may be enabled to glean scattered up and down through his life) might seem to have justified persons in anticipating. It would be vain to build any theory on what might have happened had the course of Providence in Henry's destinies been different: and yet we may without presumption express a belief that, had his life been spared, and had he found himself seated in

peace and security on the united throne of England and France, instead of exhausting his resources, his powers of body and mind, and his time, in a fruitless crusade to the Holy Land, (by which he certainly once purposed to vindicate the honour of his Redeemer's name,) he might have concentrated all his vast energies on the internal reformation of the church itself. Instead of leaving her then large possessions for the hand of the future spoiler, he might have effectually provided for their full employment in the religious education of the whole people, and in the maintenance of a well-educated, pious, and zealous body of clergy, restored to their pastoral duties and devoted to the ministry. That the church needed a vigorous and thorough, but honest and friendly reform,—not the confiscation of her property to personal aggrandizement and secular purposes, but the re-adjustment of what had degenerated from its original intention,—is proved by evidence most painfully conclusive. Indeed, the enormities which had grown up, and which were defended and cherished by the agents of Rome, far exceed both in number and magnitude the present general opinion with regard to those times. The Conventual system^[34] had well nigh destroyed the efficiency of parochial ministrations: what was intended for the support of the pastor, was withdrawn to uphold the dignity and luxury of the monastery; parsonage houses were left to fall to decay, and hirelings of a very inferior class were employed on a miserable pittance to discharge their perfunctory duties as they might. "Provisions" from Rome had exempted so large a proportion of the spirituality from episcopal jurisdiction, that, even had all the bishops been appointed on the principle of professional excellence, their power of restoring discipline would have been lamentably deficient. But in their appointment was evinced the most reckless prostitution of their sacred order. Not only was the selection of bishops made without reference to personal merit and individual fitness, whilst regard was had chiefly to high connexions and the interests of the Papacy; but even children were made bishops, and the richest dignities of the church were heaped upon them: foreigners unacquainted with the language of the people were thrust into offices, for the due discharge of the duties of which a knowledge of the vernacular language was absolutely necessary. The courts ecclesiastical ground down the clergy by shameless extortions; whilst appeals to Rome put a complete bar against any suit for justice. Their luxury and excesses, their pride and overbearing presumption, their devotedness to secular pursuits, the rapacious aggrandizement of themselves and their connexions,

and the total abandonment of their spiritual duties in the cure of souls, coupled with an ignorance almost incredible, had brought the large body of the clergy into great disrepute, and had filled sincere Christians (whether lay or clerical, for there were many exceptions among the clergy themselves) with an ardent longing for a thorough and efficient reformation. It is true that their indignation was chiefly roused by the prostitution of the property of the church, and its alienation from the holy purposes for which the church was endowed; and that gross neglect of discipline rather than errors in doctrine called into life the spirit of reformation: but even in points of faith we perceive in many clear signs of a genuine love of Evangelical and Catholic truth; among whom we are not without evidence sufficient to justify us in numbering the subject of these Memoirs. Henry of Monmouth, whilst he adhered constantly to the faith of his fathers, yet manifested a sincere desire to become more perfectly acquainted with the truth of the Gospel; and spared no pains, even during his career of war and victory, in providing himself with the assistance of those teachers who had the reputation of preaching the Gospel most sincerely and efficiently. Henry's, indeed, was not the religion which would substitute in the scale of Christian duties punctuality of attendance on frequent preaching for the higher and nobler exercises of adoration. Many an unobtrusive incident intimates that his soul took chief delight in communing with God by acts of confession, and prayer, and praise. He seems to have imbibed the same spirit which in a brother-monarch once gave utterance to expressions no less valuable in the matter of sound theology, than exquisitely beautiful in their conception:[\[35\]](#) "I had rather pass an hour in conversation with my friend than hear twenty discourses in his praise." And yet Henry delighted also in hearing Heaven's message of reconciliation faithfully expounded, and enforced home.

Whilst, for example, he was pursuing his conquests in Normandy, the report no sooner reached him of a preacher named Vincentius, (who was labouring zealously in the cause of Christ in various parts of Brittany, and who was said by his earnest and affectionate preaching to have converted many to the Lord their God,) than Henry sent for him, and took great delight in hearing his faithful expositions of the word of truth and life. And we have good reason for believing that the consolations of the pure doctrines of the Gospel, as a guardian angel ministering the cup of Heaven, attended him through life and in death.

There is no intimation dropped by historians, nor is it intended in these Memoirs to intimate, that Henry's eyes were opened to the doctrinal errors of the church of Rome. But there are circumstances well worthy of consideration before we pronounce definitively on that point. When we bear in mind that, in those days, prayers and vows were habitually made to the Virgin for success, and, after any prosperous issue of the supplicants' exertions in war or peace, offerings of thanksgiving were addressed to her as the giver of victory and of every blessing; and whilst, at the same time, we find in Henry of Monmouth's letters and words no acknowledgment of any help but God's only; the question may be fairly entertained, whether he had not imbibed some portion of the pure light of Gospel truth on this very important article of Christian faith. The Author is well aware of the words at the close of his Will, referred to hereafter; and is very far from saying that he should be surprised to find other instances of a similar character. Still Henry's silence as to the power and assistance of the Virgin, the absence of prayer to her in his devotions, many of which are especially recorded; the absence of praise to her after victory and success, though he was very far from taking praise to himself, always ascribing it to God Almighty only, may seem to justify the suggestion of an inquiry into this point.

For a knowledge of the degraded state to which the church had sunk, and her inefficiency as the guardian and dispenser of religious truth, we are not left to the vague representations of declaimers, or the heated exaggerations of those by whom everything savouring of Rome is held in abomination. The preambles of the laws which were intended to cure the evils, bear the most direct and full evidence of their existence and extent. One parliamentary document, after prefacing that "Benefices were founded for the honour of God, the good of the founders, the government and relief of the parishioners, and the advancement of the clergy," then states "that the spiritual patrons, the regular clergy throughout the whole realm, mischievously appropriate to themselves the said benefices, and lamentably cast to the ground the houses and buildings, and cruelly take away and destroy divine service, hospitality, and other works of charity, which used to be performed in the said benefices to the poor and distressed; that they exclude and ever debar the clergymen from promotion, and privately convey the treasure of the realm in great sums to the court of Rome,—to the confusion of their own souls, the grievous desolation of the parishioners[36]

and the whole country, the ultimate ruin of the clergy, the great impoverishment of the realm, and the irrecoverable ruin of the holy church of England." [37]

A case argued before the judges in the time of Henry IV, very interesting in itself, and closely connected in many points with the subject of this chapter, is recorded in the Year Books. The argument arose on a writ of Quare impedit, directed against Halomm (Hallam) Bishop of Salisbury and Chichel (Chicheley) Bishop of St. David's, afterwards Archbishop of Canterbury. The question at issue regarded the voidance of a prebend in the church of Salisbury, caused by Chicheley being created Bishop of St. David's, who held that prebend, to which he had been presented by Richard Medford, a former Bishop of Sarum. Against the King's claim of right of presentation to the void prebend, the defendants answered that the Pope had granted to Chicheley licence to enjoy all the preferments which he held before, together with his bishopric. For the King's right it was pleaded, that the creation of Chicheley took place whilst the temporalities of Sarum were in the hands of the King, on the translation of Hallam from York to Sarum; [38] but the question at length turned virtually upon the power of the see of Rome to dispense with the laws of England.

In the first sitting (Mich. 11 Henry IV.—*i.e.* 1409), Horton for the defendants alleged, "We continued in possession of the prebend after Richard Hallam had received the temporalities from the hands of the King. Subsequently to which, and before we were created Bishop of St. David's, our Saint Peter the Apostle, reciting by his bulls that we were elected Bishop of St. David's, granted us licence to enjoy all our other benefices." On which, Thirning, Justice, observed, "The grant of the Apostle in this case cannot change the law of the land." To which Hankford (who proved himself throughout the most zealous supporter of the omnipotence of the Popedom) merely replied, "The Pope can do all things;" his use of the Latin words evidently showing that he was quoting a dictum,—"*Papa omnia potest.*" After some discussion, and a reference to former precedents chiefly alleged by Hankford, Thirning rejoins very significantly, "That was in ancient times, and I will not raise the question as to the power of the Apostle; but I cannot see how he by his bulls can change the law of England." [39] In the third deliberation, Culpeper says, "The intention of the

statute is now to be considered; and I conceive that it was made to protect the King and other patrons in their rights, and to restrain the encroachment of the Apostle which he makes against the law." On the third discussion, Till argued, "Since by the law of the land the creation of a bishop causes a voidance in fact of a benefice before held, and by such voidance the title of presentation or collation accrues to the patron, I say that the Apostle can by no grant beforehand oust the patron of his right, and restrain the title which ought to accrue to him upon such creation: for if so, he ought to restrain and change the course of inheritance by the law of the land; and that he cannot do, no more than if the King wished to give or grant to a man that he should hold his lands after he has entered upon a monastic life, and professed; for such grant would be contrary to the common law of the land, and therefore would be altogether void. So also in this case." To this argument Horton replied, among other points, "I take it that the Apostle may grant to a man to hold three bishoprics at a time;" in which Hankford agreed, "provided it were with the consent of the patrons." On which Skeene observed, "If the Pope made such a grant, the King might retain the temporalities in his own hands, if he wished it." To this observation, Hankford, among many other things, said, "The Apostle can in many cases change the course of the law of the land, and prevent the occurrence of that which ought to follow." The same judge, pressing again the argument on which he had before relied, asks, "What say ye? suppose the Apostle, before a man becomes a professed monk, grants him a dispensation to hold his benefices after his profession?"—"I say," replied Hill, "that in such a case he cannot deprive me of my right of patronage."

The question at issue was found to be so difficult of solution, and the judges viewed the law of the case in such opposite lights, that it was argued and debated between them by adjournment in four several terms; at length the advocates of the Pope's omnipotence gave way, and judgment was given for the Crown.[\[40\]](#)

Among many memorable facts recorded by the Year Book during the progress of this cause, most persons probably will regard with interest the resistance made by the Crown, at this period, against the encroachments of the Pope,—the boundless power, ecclesiastical and political, assumed and exercised by the pontiff, and conceded to him in England,—and, at the

same time, the spirit which shows itself on the part of some of our judges to vindicate the supremacy of the law of England over the alleged omnipotence of the court of Rome. The great difference of opinion also as to the power of the Pope, expressed by the members of the judicial bench, cannot fail to interest every Englishman, whether lawyer or not; whilst the terms in which some of the judges speak of the encroachments of the Apostolic see, against which the legislature of England had deemed it necessary to enact some stringent laws, are not a little remarkable. But to Protestants of the present day, perhaps the most surprising feature of all may appear to be the title ascribed to the Pope by the judges, whilst publicly and solemnly dispensing the laws of the country. They do not speak of him as the Pope, except once in the citation of a Latin dictum; nor do they refer to him as a sovereign pontiff exercising the delegated authority of the chief Apostle, and representing him in the church militant on earth: they do not give him the title of "successor to St. Peter," or "our father filling the Apostolic chair:"—they speak of him throughout in direct terms as "the Apostle;" and in some passages they even call him "Saint Peter," and "our Saint Peter" the Apostle.[\[41\]](#) It is however very curious, in tracing the argument in this cause, to lay the strong terms employed by the advocates of the Pope's paramount authority side by side with the striking expressions used by others of those high functionaries on the supremacy of the English law, and the inability of the Apostolic see in the plenitude of its power to change or dispense with the common or statute law of the realm.

Abuses such as we have referred to in the previous sections of this chapter prevailed everywhere, and called loudly for vigorous measures to rectify them. At the same period the church through Christendom was distracted and torn by contending factions, each supporting a pontiff of its own.

To put an end to these disgraceful and unhappy feuds, as destructive of the peace of Europe as they were hurtful to the cause of true religion, and to effect a full reformation in the church, the Council of Constance was professedly convened. That synod was summoned nominally by Pope John XXIII, but in reality by the united voice of the sovereigns of Europe, especially at the instance of the Emperor Sigismund himself. It falls not within the province of these Memoirs to record the proceedings of that council, either in extinguishing the flame of discord within the pale of the

church, or in kindling the sadder flame of persecution^[42] against all who dared to think for themselves in a matter peculiarly their own, or in its lamentable forgetfulness of the abuses for the correction of which it was mainly convened. The records of the Council of Constance, however, abound in matters of interest in connection with the immediate and professed object of this work. We infer from them that Henry V. was then taking a lead in religious matters, and, whilst he was anxious to resist the overbearing tyranny of Rome, he was at the same time bent on making the religious establishment within his own kingdom an efficient means of conveying to all his subjects the blessings of the Gospel; he was an honest reformer of abuses, but, at the same time, the conscientious and uncompromising supporter of the religion of his fathers.

It was on the 20th of October 1414, that Robert Hallam, Bishop of Salisbury, the Bishops of Bath and Hereford, the Abbot of Westminster, the Prior of Worcester, Lord Warwick, and others, were commissioned by Henry to proceed to Constance, and as his representatives^[43] to treat about the reformation of the universal church; or, as the Pell Rolls speak, "for the salvation of Christian souls." Another body of commissioners was subsequently sent, when not less than four hundred Englishmen went in company of the embassy, among whom were reckoned two archbishops, seven bishops, and many other lords and gentlemen. Of those who were first commissioned by Henry, Robert Hallam (or Allam) was most strenuous in urging the work of reformation before and above all other matters with which they had to do. The Cardinals were equally urgent to have the election of Pope first settled, and then to proceed afterwards to the question of reformation. The Bishop of Salisbury, acting, doubtless, with the full approbation, it may be at the immediate suggestion of Henry, was instant, in season and out of season, in forcing the work of reformation on the Council. He was called the Emperor's right hand, so entirely did he and Sigismund co-operate for this purpose. Indeed, the English generally appear at first to have been among the principal promoters of reform, and, as long as Hallam lived, to have pursued it zealously; but on his death^[44] they were much less noted for the same zeal. Previously, however, to that event, a great schism arose among the English at Constance, and the authority of the bishops was much disregarded. To remedy these disorders, Henry wrote a

peremptory letter (18 July 1417), commanding all his people to be obedient to the bishops, and to abstain from all factious conduct; enjoining them, on pain of forfeiting their goods, either to behave in a manner becoming his subjects, or to return home; directing also, that, in all differences of opinion, the minority should conform to the decision of the majority.

Bishop Hallam entertained a most rooted antipathy to the Pope and the Popedom; and he once gave expression to his sentiments so freely and unreservedly to the Pope himself, that his Holiness complained grievously of him to the Emperor: but Sigismund was himself too heartily bent on reforming the abuses of the Popedom to chide the zeal and freedom of the English prelate. On one occasion the Bishop maintained that a General Council was superior to the Pope (a doctrine subsequently recognised, but then, as it should seem, new and bold); on another he is reported to have gone so far as to affirm that the Pope, for his enormities, deserved to be burnt alive. Bishop Hallam^[45] was by no means singular either in the sentiments which he entertained with regard to the corruptions of the Romish Church "*in its head and its members*," and the imperative necessity of an universal reform, or in the unreserved boldness and plainness with which he published those sentiments. The whole of Christendom rang with loud and bitter complaints against the avarice, the sensuality, the overreaching and overbearing tyranny, the total degeneracy and worthlessness of the Popes, the Cardinals, and the religious orders; but in no place were the protests against such deplorable corruptions more unsparingly uttered than at the Council of Constance itself: and among those who willingly offered themselves to testify, in their Saviour's name, against such a prostitution of his blessed Gospel to the purposes of worldly ambition, such gross depravity and total neglect of duty, the names of many of our own countrymen are recorded. These pillars of the church, these lights in the midst of darkness, seem indeed to have entertained sentiments, as to the duties and responsibilities of the Christian priesthood, worthy of the purest age. Some of their recorded doctrines are truly edifying, and find a response in some of the best episcopal charges and admonitions of the Protestant church at the present day.

Among these excellent men, Dr. Richard Ullerston, of Oxford, seems to have taken a most primitive view of the duties of a Christian bishop. He

wrote a treatise in 1408, by way of memorial for Bishop Hallam, his friend, who urged him to the work, when that uncompromising reformer went to the Council of Pisa. At the close of a long and powerful exhortation to provide for the due execution by the Popes of their own ministerial duties, and for the restoration of discipline in the church, he thus expresses himself: "Things being thus restored to their right order, and all abuses being cut away, the Pope will employ himself, agreeably to the duties of his charge, in procuring peace for Christians, not only by praying, but by preaching the Gospel himself, and sending everywhere good preachers, who by their doctrine and example might urge on princes and people throughout the world their several duties, and who might make a holy war upon the passions of mankind, rooting up those sensual desires which, according to St. James, are the source of wars and divisions in the church and in the state." This treatise was published in Germany about the year 1700, from a manuscript in Trinity College, Cambridge; and may be found at the end of Van der Hardt's work on the Council of Constance. It consists chiefly of petitions for the remedy of abuses, and is full from beginning to end of the true spirit of genuine evangelical religion. Dr. Ullerston remained in uninterrupted and perfect communion with the church of Rome; and yet no Protestant, who ever suffered at the stake for his opposition to her, could have more faithfully exposed the practical grievances under which Christendom then mourned in consequence of her dereliction of duty, whilst she assumed to herself all supreme authority, and paralyzed the efforts of national churches to remedy the crying evils of the time. The heads of Ullerston's petitions abound with salutary suggestions; by many of the items we are apprised of the grievances then chiefly complained of, or the departments in which those grievances were found.

1. On the election of a Pope.
2. On the suppression of simony.
3. On the exaltation of the law of Christ above all human authority.
4. Against appropriations, *i. e.* assigning the proceeds of parochial cures to monasteries.
5. On appointing only fit persons to ecclesiastical stations.

6. Against exemptions of monasteries and individuals from episcopal jurisdiction.
7. Against dispensations,—those, among others, by which benefices and bishoprics were given to children.
8. Against pluralities.
9. Against appeals to Rome.
10. Against the abuse of privileges.
11. Against the clergy devoting themselves to secular affairs.
12. Against the prerogatives of chanters[\[46\]](#) and other officers in the houses of the great.
13. Generally against extortions.
14. Against excessive expenses in the persons and the families of the clergy.
15. For a provision for more efficient divine service in parishes.
16. For the restoration of peace through Christendom.

In his reflections on these points there is so much sound sense and genuine affection for true religion, such an ardent desire pervades them of promoting the ends for which alone an establishment can be justified on warrant of Scripture, or is in itself desirable,—the salvation of souls through Christ for ever,—that, had it not been out of place, the Author would have gladly transcribed a great part of Dr. Ullerston's sentiments into these pages. His suggestions savour throughout of genuine piety and true practical wisdom.

To Ullerston must be added Walter Dysse, who was commissioned by Pope Boniface IX. to proceed to Spain, Portugal, and Aquitain, to preach a crusade against the infidels. He was a most deadly enemy to the followers of Wicliffe, and a devoted friend to the court of Rome; yet he could not pass

over in silence the cause of the divisions and corruptions of the church, nor the means of their effectual reformation.

But, perhaps, among all those whom the history of this Council records as zealous promoters of a real reformation within the church itself, our more immediate object in these Memoirs would require us to make especial mention of Thomas Walden, because he was one of Henry of Monmouth's own chaplains,[47] and was employed by him not only in domestic concerns, but in foreign embassies.[48] He was called the Netter, from the expertness and success with which he caught and mastered his antagonists in argument. He was present at the Council of Pisa as well as of Constance. He proved himself throughout a most bitter persecutor of heretics; and (as Van der Hardt expresses himself) the less imbued he was with any affection towards the disciples of Huss, or influenced by it, so much the more sincere a censor was he of the ecclesiastical corruptions of his time. He was bent on reforming the abuses of the church with a strong hand, and so far the wishes of his royal master coincided with his own; but he could not prevail upon the King to go hand-in-hand with him in persecuting the heretics. Walden was bold enough, in his mistaken zeal, to charge Henry with a culpable remissness in what was then too generally supposed to be the duty of a Christian sovereign.[49]

A communication made personally to Henry from Constance, in the beginning of the year 1417,[50] deserves in this place our especial attention. The letter, written by John Forester,[51] may perhaps be considered a fair specimen of correspondence between Englishmen of education at that period. As a vehicle of information on the real state of feeling in England with regard to the church of Rome, it is very interesting. It is, moreover, impossible to read it without inferring that, in the opinion of the writer at least, and of those in whose behalf he wrote, Henry's earnest desire was to reform the abuses of the church, and to render churchmen zealous servants of the Gospel.

JOHN FORESTER'S LETTER FROM CONSTANCE TO HENRY V.

"My sovereign liege Lord, and most redoubted Prince Christian to me on earth. I recommend me unto your high royal and imperial Majesty with all manner [of] honours, worships, grace, and goodnesses. My most glorious Lord, liketh you to wit, that the Wednesday, the third hour

after noon, or near thereto, the seven and twentieth day of January, your brother[']s gracious person the King of Rome entered the city of Constance with your livery of the Collar about his neck,—a glad sight for all your liege men to see,—with a solemn procession of all estates, both of Cardinals of all nations, and your Lords in their best array with all your nation. He received your Lords graciously, with right good cheer. Of all the worshipful men of your nation he touched their hands, [and theirs] only, in all the great press. And then went my Lord of Salisbury [Hallam] before heartily to the place of the general Council, where that royal King should rest; and he entered into the pulpit where the Cardinal Candace,[\[52\]](#) chief of the nation of France, and your especial enemy also, had purposed to have made the first collation[\[53\]](#) before the King,[\[54\]](#) in worship of the French nation. But my Lord of Salisbury kept possession, in worship of you and your nation; and he made there a right good collation that pleased the King right well: and forasmuch as the King was fasting at that hour, then would no man occupy him more that day; but on the morn (my liege Lord) liketh you to wit, that at nine of the bell all your ambassadors, with all your nation in their best array, went to worship him in his palace, and that he gave them glad and gracious audience. There my Lord of Chester, the president of your nation, had his words to him in such a wise that it was worship to him and all our nation; and soon after this they took their leave of him. And on the morrow he sends after them again at ten of the clock. There he received them again every man by hand. Then he made a collation to our nation, and he thanked them especially that they had been so loving, trusty, and true to his nation in his absence. Also, he rehearsed there how the brotherhood [friendship] began between him and my Lord your father; and how it is now so continued and knit for you and your successors, with the grace of God, for ever. And he told them so great worship of your royal person, and such of all my Lords your brethren; and then of the governance of holy church, divine service, ornaments, and all state thereof, kept as though it were in Paradise, in comparison with any place that he ever came in before; so that from the highest unto the lowest he commended your glorious and gracious person, your realm, and your good governance. And then my Lord of Chester, our president, in the name of all our nation (as belongeth to his office) rehearsed compendiously, and in a gentle wise, all that ever the Emperor had said; and gave him an answer to every point so good and so reasonable, in so short avisement, that he has got him the thanks of your nation for ever. And also, sovereign liege Lord, as I may understand, my Lords of Salisbury and Chester are fully disposed, by the consent of all your other ambassadors, to suive [pursue] the reformation in the church, in the head and the members, having no regard to no benefices[\[55\]](#) that they have, rather than it should be left undone. And of this I doubt me nought that these two lords will abide hard and nigh, always by the good advice and deliberation of your brother the King of Rome. Moreover, liketh you to wit, that on Sunday, the last day of January, your brother, the King of Rome, wore the gown of the Garters, with your collar, openly at the high mass; and he was lereth [learned] that the Duke of Beyer and the borough-grave should eat with my Lord of London the same day, and he said he would eat with them. Other tidings be there none, but, as it is said, the ambassadors of Spain should be here in Constance within a few days. And, on Candlemas eve, came letters from the French King, commanding to his nation to put out the ambassadors of the Duke of Burgundy from their nation; also, as it is said openly, that the foresaid French King hath sent to the city of Genoa, and forwarded a great sum of gold to [hire[\[56\]](#)] wage great ships and galleys, to destroy your ordinance and your navy of England. And further, the day of making this letter, Master Philip Moyar entered Constance in good health, thanked be God! The which God, of his gracious goodness, keep your high, honourable, and gracious person in his pleasance, and send you sovereignty and victory of all your enemies. Written at Constance, the second day of February,

"By your poor, true, and continual

"Orator,[\[57\]](#)

"JOHN FORESTER."

It is curious to remark that, on the very Sunday before this letter was written, the English bishops caused a sort of pious comedy to be acted in the presence of the Emperor Sigismund. It was one of those mysteries, as they were called, which had so long mingled religious instruction (of a very questionable character) with amusement. The fruits of these exhibitions were probably very equivocal in that age in England, as they are on the Continent at this day. The Germans consider this play, which was the representation of the Nativity,^[58] the Massacre of the Innocents, and the Visit of the Magi, as the first introduction of that sort of dramatic performance into their country. The English had caused a rehearsal to be performed before the authorities of the place three or four times previously, in order to make the actors perfect for their imperial audience.

About half a year after the date of this letter to Henry, his uncle, Henry Beaufort, Bishop of Winchester, reached Constance in the garb of a pilgrim, on his journey to the Holy Land. His safe-conduct is dated July 21, 1417. His arrival at Constance was very prejudicial to the cause of the reform of the church. The struggle then was between the imperial party (to which the English were closely attached) and the Cardinals, whether the Pope should be first elected, or whether the reformations in the church should take precedence of his election. Henry Beaufort, to whom all parties seem to have paid the utmost deference, suggested the expediency of first electing the Pope; the Cardinals pledging themselves, that done, to proceed forthwith to the reformation. His advice was followed, and the result must have been a disappointment to all sincere Christians: a death-blow was given to the hopes which had been entertained of a reform in ecclesiastical affairs to be effected by that Council. No sooner was Pope Martin V. elected, than both himself and the Cardinals frustrated every attempt to secure a sound reformation; and, after sitting three years and six months, the Council was dissolved.

The records of this Council of Constance bear incidentally most valuable evidence to the warm interest taken by Henry in everything over which he had any control, and in which he could beneficially employ his power and influence. They prove, moreover, that whilst he was a sincere promoter of a sound and wholesome reformation, and most zealously attached to the religion in which he had been brought up, and in which he was a

conscientious believer, he was no persecutor. Though our souls are harrowed up by the unchristian proceedings against John Huss and Jerome of Prague, (and, could truth allow it, we would gladly wipe away so black a stain from the annals of ages and nations called Christian,) it is a source of great satisfaction to find that the name of Henry of Monmouth is not at all mixed up with those deeds of blood: we find him neither encouraging nor approving them. Not one shadow of suspicion is suggested that the persecuting spirit, which in that Council displayed itself so outrageously and inhumanly, found any thoughts in his breast responsive to its cruel aspirations. We know, indeed, that Thomas Walden, his priest and chaplain, was actuated by the spirit of persecution towards the Lollards; but we are equally assured that, so far from being countenanced and encouraged by his master in acts of persecuting bigotry, he did not scruple openly in public, and solemnly in a sermon, to charge him with a want of zeal in extirpating the enemies of the church. From such a witness the testimony so borne to the charity and moderation of Henry of Monmouth is very valuable and satisfactory; abundantly outweighing all the declamation of modern enthusiastic censors. Henry was a reformer,—he could not be persuaded to become a persecutor.[\[59\]](#)

Henry's reputation for having at heart the correction of all abuses in the church, encouraged the University of Oxford to present to him a petition, setting forth a multitude of corrupt practices which were a disgrace to the Christian religion in England; and praying him, since God had raised him up to such an exalted place in the church, to put forth his power in effecting a reformation.[\[60\]](#) This document, preserved in Corpus Christi College in Oxford, abounds in topics of deep and lively interest; it marks the fearful extent to which the corrupt practices in the church had been fostered by Rome, the ardent desire entertained in England for a reformation so early as the commencement of the fifteenth century, and Henry's anxiety to bring about such a reform in the discipline of the church as might safely be adopted without giving countenance and encouragement to the Lollards, against whom the University seems at this time to have been decidedly hostile.

The points to which Oxford then solicited Henry to direct his especial care, were partly such as are no longer of general interest among us, (excepting

so far as they remind us of the mass of evils from which the Reformation rescued us,) and partly such as must be interesting to Christians of every age.

Among the former grievances were reckoned the Pope's unlimited creation of cardinals, all to be supported out of the revenues of the church; the excessive grants of indulgences, by which persons were encouraged in licentiousness; the privileges and exemptions and scandalous immorality of the monks. The petitioners complained bitterly that though the church of England would not admit persons into sacred orders who were unfit and unworthy, yet the court of Rome would repeatedly recognise such as lawful ministers.

Among the latter evils were the non-residence of incumbents, the inadequacy of the stipends of curates, and the commendams of bishops. The petitioners prayed, that whereas a great number both of regulars and seculars who were presumptuous and ignorant were ordained, a decree might be passed that all before ordination should be strictly examined; and that a remedy should be provided against simony.^[61] They petitioned, also, that foreigners who could not speak English should have no cures in England; and they complained of the practice of patrons exacting from the priests whom they nominated to a benefice a pledge that they would not sue for an augmentation of their stipend, were it never so small. They closed their petition by praying that all bishops who were remiss in punishing heresy, and extirpating Lollardy, might be deposed; and that all magistrates and officers should be bound by their oath to aid in its extirpation.^[62]

Henry, deeply lamenting the gross abuses referred to in this petition, implored the Pope to suffer them to be redressed. His Holiness agreed to certain constitutions, by which, if fully acted upon, most of the evils complained of would have been rectified. The Pope, however, begged Henry in return to abrogate all the laws which had been enacted in England to the prejudice of Rome; but the King declared his inability to meet the wishes of his Holiness.

The extent to which the abuse of the Pope's^[63] authority had been connived at in this country,—a state of things which naturally indisposed him towards any change for the better,—may be inferred from two facts:

that he (in defiance of the statutes of Edward III. and Richard II.) had by his own authority created thirteen bishops in the province of Canterbury in two years; and had appointed his nephew, Prospero Colonna, a boy of only fourteen years of age, Archdeacon of Canterbury, with fourteen benefices in England.

Before we leave this subject, we cannot but record an instance (mentioned by Walsingham) of Henry's personal exertions in reforming abuses. He had received complaints against the Benedictine monks of certain grievous corruptions; and, attended only by four persons, he went into the midst of a full assembly of that order. The meeting consisted of sixty abbots and priors of convents, and more than three hundred monks, who were all assembled in the Chapter-house of Westminster. After a speech from the Bishop of Exeter, (one of those who accompanied him,) Henry himself addressed them at great length. He reminded them of the ancient piety of the monks, and the devotion of his predecessors and others in founding and endowing monasteries; he expatiated on the negligence and remissness in the discharge of their sacred duties, which, he said, had become notorious in their times; and he then exhibited certain articles according to which he required them to reform themselves; earnestly entreating them to recover the ancient spirit of religion which they had lost, and habitually to pray for the King, the country, and the church; assuring them that, if they followed his directions, they needed fear none of their enemies.

That Henry V, though earnestly desirous of a sound reform in the discipline of the church, and the lives and ministrations of the clergy, did never lay the axe to the root of the evil, cannot be denied. Perhaps he was disheartened by the total failure of the united efforts of himself and Sigismund, with their honest and zealous adherents, at Constance. Perhaps he resolved to wait till, at the close of his continental campaigns, in the enjoyment of peace at home and abroad, he might be able to devote his concentrated exertions to an object of such paramount importance. Perhaps the ambition of his uncle Henry Beaufort, who evidently was looking for personal aggrandizement in wealth and dignity, and who had given so decided and unhappy a turn in the council of Constance in favour of the Pope's party, might have devised some means for seducing his nephew's ardent thoughts into another

channel. To whatever cause we may be disposed to attribute it, the reality is, that Henry V, when he died, had not effected reform on any comprehensive scale in his own realm; nor had he given any decided blow to the dominion and the corruptions of the church of Rome. His short life was a career of wars and victories.

It pleased the Almighty, in his inscrutable wisdom, to bring about the reformation of the church in his own way, by his own means, and at his own appointed time. We recognise his hand in the blessing which we have inherited, and are thankful.

CHAPTER XIX.

WARS WITH FRANCE. — CAUSES WHICH INFLUENCED HENRY. — SUMMARY OF THE AFFAIRS OF FRANCE FROM THE TIME OF EDWARD III. — REFLECTIONS ON HENRY'S TITLE. — AFFAIRS OF FRANCE FROM HENRY'S RESOLUTION TO CLAIM HIS "DORMANT RIGHTS," AND "RIGHTFUL HERITAGE," TO HIS INVASION OF NORMANDY. — NEGOCIATIONS. — HIS RIGHT DENIED BY THE FRENCH. — PARLIAMENT VOTES HIM SUPPLIES.

1414.

WARS WITH FRANCE.

It falls not within the province of these Memoirs to justify the proceedings of Henry of Monmouth with regard to France, by an examination into the soundness of his claims, and the abstract principles on which he and his subjects and advisers rested them. But it is incumbent on any one who would estimate his character uprightly, to weigh the considerations by which he was influenced in the undertaking, neither according to our present standard, nor independently of all the circumstances of the age in which he lived, and the sentiments then generally prevalent among men of education and reputed probity.

Historians have generally represented it as an established fact that the clergy, especially the Archbishop of Canterbury, alarmed at the bold and urgent call of the Commons upon the King to seize the church patrimony, and from its proceeds apply whatever was required by the exigencies of the state, hit upon the expedient of stimulating him to claim France as his inheritance; thus withdrawing his mind from a measure so fatal to their interests. Though the evidence on which such a tradition rests is by no means satisfactory, we may perhaps receive it as probable. That the

Commons were clamorous for the confiscation of the ecclesiastical revenues, and that the clergy voluntarily voted a very large subsidy to aid the King in prosecuting his alleged rights on the Continent, are matters of historical certainty. That the ecclesiastics, moreover, originally suggested to him the design of reviving his dormant claim to an inheritance in the fair realm of France, and then fostered the thought, and justified the undertaking by argument, and pledged their priestly word for the righteousness of his cause, is doubtless no unreasonable supposition. Still the clergy do not appear to have been in the least more eager in the scheme, or more anxious to protect themselves and their revenues from spoliation by such a scheme, than were the laity enthusiastically bent on a harvest of national glory and aggrandizement from its success.[\[64\]](#) In a word, the King himself, the nobles, and the people, all seem to have been equally determined to engage in the enterprise, and to support each other in the resolution that it was not only practicable, but most fully justifiable by the laws of God and man.

That Henry's high spirit predisposed him to listen with readiness and satisfaction to the suggestions of his subjects in this behalf, we may well believe; but that he would have been driven by a dominant ambition to engage in a war of conquest against the acknowledged principles of justice, his character, firmly established by undeniable proofs of a private as well as a public nature, forbids us to admit. It must never be forgotten that those persons who were then universally regarded as the best and safest interpreters of law, human and divine, assured him, on his solemn appeal to them for their judgment,[\[65\]](#) that the cause in which he was embarking was just; and, as many incidents in the sequel establish, he did embark in it without any doubts or misgivings, without the slightest scruple of conscience; on the contrary, with a full confidence in the entire righteousness of his cause, and a most unbounded reliance on the arm of the God of Justice for success.

The facts which laid the groundwork for his enterprising spirit to build upon are very interesting; and, though they may perhaps belong rather to general history than to Memoirs of Henry of Monmouth, yet a brief review of them might seem altogether indispensable in this place.

"The preference given by the States-General to Philip of Valois above Edward III, when he laid claim to the crown of France, led to that disastrous war, the prominent incidents of which are familiar to every one at all acquainted with the history of that time. Edward gained a naval victory over the French, and conquered Philip at Cressy, and possessed himself of Calais, which gave him an entrance into France at all times. After some interval, Edward the Black Prince, his son, gained the famous battle of Poitiers; where King John, son and successor of Philip of Valois, was taken prisoner. Whilst that monarch was a captive in England, Edward entered France at the head of one hundred thousand men, and marched to the very gates of Paris. This successful invasion led to the treaty of Bretigny. By the terms of that peace, Edward recovered all those ancient dependencies of Guienne which had been wrested from his ancestors. These provinces had fallen to the Kings of England by the marriage of Eleanor, heiress of Guienne, with Henry II; but, from the time of John (Lackland) and Henry III, Philip Augustus and St. Lewis, Kings of France, had so shorn that vast territory, that nothing remained to England except Bourdeaux, Bayonne, and Gascony. Besides, by the same treaty, Edward secured Montreuil and Ponthieu, Calais and Guienne; and all these possessions were ceded to him in full sovereignty without any suit or homage due to France. Finally, he stipulated for the sum of three millions of golden crowns as the ransom of King John. On his side, he consented to forego all right and claim which he might have on the crown of France. Especially he renounced all title to Normandy and other places, which were said to be the heritage of his ancestors, and to all the sovereignty of Brittany. This treaty was solemnly executed by King John, and observed during his life, except as to the ransom, two-thirds of which remained undischarged at his death. But Charles V, his son and successor, finding this peace very disadvantageous to France, though he had himself been a party to it, and had sworn to observe its conditions, broke it on very frivolous grounds. He declared war against Edward, and in a very few years recovered all that had been ceded to England by the treaty of Bretigny, except Calais, Bayonne, Bourdeaux, and part of Guienne. This second war was interrupted by a truce, which continued till the death of Edward III. in 1377. During the reign of Richard II, and the remainder of Charles V.'s life, and the first years of Charles VI, war and peace followed each other in mutual succession, without any important or decided advantage on either side. At last, Richard II. and

Charles VI. concluded a truce for twenty-eight years, which was ratified by the marriage of Richard with Isabel, Charles's daughter. From the deposition of Richard to the death of Henry IV, notwithstanding frequent violations of the truce, both sides maintained that it still subsisted. Such was the state of the two crowns when Henry of Monmouth mounted the throne. France having broken the peace of Bretigny, and maintaining that the treaty was void, evidently the Kings of England were reinstated in all their rights which they had before that peace. On this principle, immediately after the disclaimer of that peace on the part of France, Edward III. resumed the title of King of France, which he had laid aside; and his successors assumed it also. Since the commencement of the war which followed the treaty of Bretigny there never had been peace between the two crowns, but only truces, which do not affect the rights of the parties. It is evident, therefore, that, when he ascended the throne, Henry V. found himself under precisely the same circumstances in point of right in which his great grandfather, Edward III, was eighty years before, when he commenced the first war. Besides this, Henry had to allege a solemn treaty, which, after it had been unequivocally acted upon, France broke on a most trifling pretext."

Such is the representation made by the author of the *Abrégé Historique*[\[66\]](#) of the affairs of England; and the Author is desirous of transferring into his pages this clear and candid statement the rather because it is written by a foreigner, who seems to have viewed the transaction with enlightened and unprejudiced eyes.

More modern writers, indeed, would teach us to deem it "unnecessary for them to comment on the absurdity of Henry's claim to the French crown in right of his descent from Isabella wife of Edward II. For futile as her son Edward's (III.) pretensions were, Henry's were still less reasonable, as the Earl of March was in 1415 the heir of those persons."[\[67\]](#)

The fact on which this reasoning rests is undoubtedly true, and yet considerations connected with that claim require to be entertained, and weighed without haste and without prejudice; and the truth itself warns us not to dismiss the point so summarily. Henry (it must never be forgotten) had been bred up in the belief that Richard II. had in the most full and unreserved manner, by his act of resignation, yielded all his rights into the

hands of the people of England, and that those rights had been as fully and unreservedly conferred by the nation on Henry's father. Whatever rights, moreover, the Earl of March possessed as lineal heir to the crown, he had, as far as his own personal interest was concerned, over and over again, not merely by a passive acquiescence, but by repeated voluntary acts, virtually resigned, and made over to Henry as actual King; and, lastly, it is clear that Henry's claim was always by himself and by the nation rested on the ground of his being King of England, and, ipso facto, as such, heir of all his predecessors Kings of England.

On these grounds, and with such an opening offered to his ardent mind by the distracted state of the realm of France, Henry resolved to prefer his claim; negotiating first for its amicable concession, and, if unsuccessful in negotiation, then pursuing it in the field of battle. This appears to have been his determination from the first; but from the first he seems also to have contemplated the probability of failure by treaty; for, from the first intimation of his designs, he and his subjects were steadily engaged in making every preparation[\[68\]](#) for a vigorous invasion of France.

In this part of our treatise a brief outline is required of the proceedings between the resolution first taken by Henry, and his appearance in arms on French land; nor can we satisfactorily pass on without taking a succinct view of the internal state of that kingdom at the time of Henry's original claim and subsequent invasion.

SUMMARY OF THE AFFAIRS OF FRANCE.

Charles V, surnamed the Wise, died in 1380.[\[69\]](#) He left to succeed him his son Charles VI, twelve years of age; and he appointed his three brothers to govern the kingdom during the minority,—Lewis, Duke of Anjou, John, Duke of Berry, and Philip, Duke of Burgundy, who by their ambition and rivalry threw the whole realm into confusion. Charles V. left also another son, called the Duke of Orleans, who in his time contributed to the general confusion no less than his uncles. Through the first days of Charles's (VI.) reign, the three regents, differing in every other point, agreed only in burdening the nation with taxes; a circumstance which bred great discontent, and prepared the people for separating into different factions whenever an opportunity might occur.

The Duke of Anjou quitted France in 1381, to take possession of his kingdom of Sicily. The King was of age to be his own master, according to the will of his father, at fourteen; yet his uncles governed both his estate and his person till he was twenty. In 1385, he was married to Isabella, daughter of Stephen, Duke of Bavaria.

In 1388, Charles assumed the reins of government, discharging his uncles, and keeping about his person his brother, the Duke of Orleans, then seventeen, and his maternal uncle the Duke of Bourbon.

The Duke of Burgundy could not endure to see the Dukes of Orleans and Bourbon govern the kingdom in the name of the King; and in 1391 he succeeded in causing the Estates-General to transfer the government to him under the pretext of aiding his nephew to bear the burden of the state. Probably the King had already shown symptoms of that imbecility which afterwards incapacitated him altogether for managing the affairs of his kingdom. In 1395 his malady increased in violence; and for some time the Queen his wife, the Dukes of Orleans, Berry, Burgundy, and Bourbon, each struggled hard to retain the reins of government in their own hands. At length the Dukes of Orleans and Burgundy formed two opposite parties; under the banners of which, as well the members of the court, as the subjects of the kingdom at large, arranged themselves in hostile ranks. Queen Isabella joined the Duke of Orleans. The Duke of Berry fluctuated between the two factions, and had great difficulty in preventing them from coming to extremities. In these struggles the two chiefs were so equal, and so determined not to yield either to the other, that they left the government to the council of the King. The Duke of Burgundy withdrew to the Netherlands, where he was master of the earldoms of Flanders and Artois, and the duchy of Brabant: there he died in 1403, leaving his son John to succeed him, who became Duke of Burgundy and Count of Flanders and Artois. His brothers shared the residue of their father's inheritance.

Whilst the new Duke of Burgundy was employed in arranging his own affairs, the Queen and the Duke of Orleans conducted the government; but with little satisfaction to the people, who found themselves grievously oppressed by taxation. Meanwhile, the Duke of Burgundy married his son Philip, Earl of Charolois, to Michelle, the King's daughter; and one of his

daughters was also espoused to the Dauphin, Louis, then only nine years of age.

Some time afterwards, Charles VI. finding himself in one of his intervals of mental health, and hearing complaints from all sides against his Queen and the Duke of Orleans, convened an assembly of nobles to deliberate on a remedy; and commanded the presence of the Duke of Burgundy. On his approach, the Queen and the Duke of Orleans withdrew, taking with them the young Dauphin. The Duke of Burgundy followed, and overtook them; and rescued the Dauphin from their custody. This was a source of open rupture between those princes. There followed, indeed, an outward show of reconciliation; but their mutual hatred was deadly still. In 1407 the Duke of Burgundy caused the Duke of Orleans to be assassinated. He was bold enough to profess himself the author of the murder, and powerful enough to shield himself from any punishment, and to procure letters of free pardon. Next year he was obliged to visit his own territory, and in his absence his enemies caused the bill of amnesty to be reversed.

Meantime, the Duke gained a victory over the troops of Liege, and marched at the head of four thousand horsemen direct upon Paris. The Queen withdrew at his approach, taking the King with her to Tours; and, finding herself unable to cope with her antagonist, she consented to an accommodation. The King received Burgundy, and reconciled him in appearance to the Duke of Orleans, son of the murdered Duke. After this, the Duke of Burgundy remained master of the government, and of the person of the King.

It will be remembered that, in 1411, a powerful league was formed in Guienne against the Duke of Burgundy, by the Dukes of Berry, Orleans, Alençon, and the Count of Armagnac, who was governor of Languedoc and father-in-law to the Duke of Berry; and who, being the chief conductor of the whole affair, gave the name of Armagnacs to the party in general opposed to Burgundy.^[20] At the beginning, the Duke of Burgundy, having received succours from Henry IV. of England, gained a great advantage over his opponents. Subsequently, the Armagnacs, obtaining considerable assistance from the same King, forced the Duke of Burgundy, who was besieging them in Bourges, to make peace; one condition of which,

however, being that no one of those chiefs should return to the court, the Duke of Burgundy still remained master of the King's person. In this state of triumph on the part of the Duke of Burgundy, and of depression of the Armagnacs, another opponent arose against the Duke, of whom he seems to have been previously under no apprehension,—the Dauphin himself, his son-in-law, then only sixteen years of age. This prince, persuaded that during his father's illness the government could of right belong to no one but himself, resolved to secure his own. He gained over the governor of the Bastille, and seized that fortress. The Parisians flew to arms at the secret instigation of the Duke of Burgundy. A surgeon, named John of Troyes, at the head of ten or twelve thousand men, forced the gates of the Dauphin's palace; and, carrying off the chief friends of that prince, lodged them in prison.

These events took place at the opening of the year 1413, whilst Henry IV. was labouring under the malady of which he died. Henry V. succeeded to the throne, March 20th of that year. At the end of April, the malcontents of Paris, all of the Burgundian faction, committed various excesses, and compelled both the King and the Dauphin to wear the white cap, the badge of their party. The Dauphin^[71] betook himself at last to the Armagnacs, of whom many lived in Paris, grievously oppressed by the government of the Duke of Burgundy; and he planned his scheme so well, and so secretly, that at the beginning of September he found thirty thousand men in Paris ready to support him. By his sudden and vigorous efforts he struck terror into the opposite faction, who abandoned the Bastille and other places in their possession, and thought of nothing but their own personal safety. The Duke of Burgundy himself withdrew to Flanders. The Dauphin, however, gained no permanent advantage from this success; for the King, in one of his favourable intervals, immediately seized the reins of government, and called his nephew the young Duke of Orleans to his counsels. This youth induced the King to issue very violent decrees against the Duke of Burgundy, and to execute a great number of his partisans.

Such was the state of affairs in France when Henry of Monmouth first resolved to prosecute his claims in that kingdom. The Duke of Burgundy lost no time in endeavouring to secure the assistance of so powerful an ally; as we find by the many safe-conducts dated before the Duke's expulsion

from Paris, which did not take place till September. Whether Henry had, before these embassies from the Duke of Burgundy, formed any design of claiming his supposed rights in France, or not, the Duke's negotiations must have strongly impressed him with the distracted state of that country, and with an opening offered to the enterprising spirit of any powerful neighbour who would promptly and vigorously seize upon that opportunity of invading France.

"Although^[72] several negotiations had taken place between September 1413, and the January following, for the purpose of prolonging the subsisting truce between England and France, it was not until January 28, 1414, that ambassadors were appointed to treat of peace. From the engagement then made, that Henry would not propose marriage to any other woman than Katharine, daughter of the King of France, until after the 1st of the ensuing May, (which term was extended from the 18th of June to the 1st of August, and afterwards to the 2nd of February 1415,) it is evident that a marriage with that princess was to form one of the conditions of the treaty. But the first intimation of a claim to the crown of France is in a commission, dated May 1, 1414, by which the Bishop of Durham, Richard Lord Grey, and others, were instructed to negotiate that alliance, and the restitution of such of their sovereign's rights as were withheld by Charles. The principal claim was no less than the crown and kingdom of France. Concession to this demand, however, being at once declared impossible, the English ambassadors waived it, without prejudice nevertheless to Henry's rights. They then demanded the sovereignty of the duchies of Normandy and Touraine, the earldom of Anjou, the duchy of Brittany, the earldom of Flanders, with all other parts of the duchy of Aquitaine, the territories which had been ceded to Edward III. by the treaty of Bretigny, and the lands between the Somme and Graveline; to be held by Henry and his heirs, without any claim of superiority on the part of Charles or his successors. To these demands were added the cession of the county of Provence, and payment of the arrears of the ransom of King John, amounting to one million six hundred thousand crowns. It was also intimated that the marriage with Katharine could not take place, unless a firm peace were also established with France, and that two millions of crowns would be expected as her dower.

On March 14, 1415, the French ministers denied Henry's right to any part of the dominion of their master; but, to avoid extremities, they offered to cede the counties of Angouleme and Bayonne, with various other territories. They said that Provence, not being among Charles's lordships, was not withheld by him. With respect to the arrears of ransom, they thought that, having offered so much to extend the possessions of England, with a view of securing peace, the claim ought to be withdrawn. Touching the marriage, which had been so frequently discussed, though the Kings of France had been accustomed to give much less with their daughters than six hundred thousand crowns, which sum the Duke of Berry had offered with her in the preceding August, yet that it should be enlarged to eight hundred thousand crowns, besides her jewels and apparel, and the expense of sending the princess in a suitable manner to the place where she might be delivered to Henry. But as the English ambassadors said they were not permitted to prolong their stay in France, and had no authority to vary their demands, Charles engaged to send an embassy to England to conclude the treaty.

During the progress of these protracted negotiations Henry grew dissatisfied; and either from impatience, or with a view of awing France into submission, issued writs of 26th September 1414, for a parliament to be held at Westminster after the Octaves of St. Martin, 18th November following. On that day parliament met; and the session was opened at the command of the King by Henry Beaufort, Bishop of Winchester, then Chancellor. In a long harangue he informed the assembly, that their King (who was present in person) had resolved to recover his inheritance, which had been so long and unjustly kept from him and his progenitors, Kings of England; and that, for this purpose, many things were necessary. Taking for his theme the text, "Whilst we have time, let us do good," he pointed out, with more pedantry than eloquence, that for every natural thing there were two seasons; and that just as for the tree there was one time to bud, to flower, and to bring forth fruit, and another time through which it was left to repose, so was there given to man a time for peace, and a time for war and labour: that the King, considering the value of peace and tranquillity which this kingdom then enjoyed, and also the justice of his present quarrel, (considerations most necessary for every prince who had to encounter enemies abroad,) deemed that the proper time had arrived for the accomplishment of his purpose. But, to attain this great and honourable

object, three things, he said, were wanted; namely, wise and faithful counsel from his vassals, strong and true support from his people, and a copious subsidy from his subjects; which each of them would readily grant, because the more their prince's dominions were extended, the less would their burdens become; and, these things being performed, great honour and glory would necessarily ensue.

This address was not without effect, for the Commons, after electing Thomas Chaucer (son, as it is said, of the poet) for their Speaker, "granted the King, for the honour of God, and from the great love and affection which they bore towards their sovereign, two entire fifteenths and two entire tenths, *for the defence of the kingdom of England and the safeguard of the seas.*"

CHAPTER XX.

MODERN TRIPLE CHARGE AGAINST HENRY OF FALSEHOOD, HYPOCRISY, AND IMPIETY. — FUTILITY OF THE CHARGE, AND UTTER FAILURE OF THE EVIDENCE ON WHICH ALONE IT IS GROUNDED. — HE IS URGED BY HIS PEOPLE TO VINDICATE THE RIGHTS OF HIS CROWN, HIMSELF HAVING A CONSCIENTIOUS CONVICTION OF THE JUSTICE OF HIS CLAIM. — STORY OF THE TENNIS-BALLS. — PREPARATIONS FOR INVADING FRANCE. — HENRY'S WILL MADE AT SOUTHAMPTON. — CHARGE OF HYPOCRISY AGAIN GROUNDED ON THE CLOSE OF THAT TESTAMENT. — ITS FUTILITY. — HE DESPATCHES TO THE VARIOUS POWERS OF EUROPE THE GROUNDS OF HIS CLAIM ON FRANCE.

At this point of his work, the Author finds the painful duty devolved upon him of investigating a triple charge, now for the first time brought against Henry by a living writer. He must not shrink from the task, though he enter upon it with a consciousness that, if established, the charge must brand Henry's memory with indelible disgrace, whilst his acquittal may imply censure on his accuser.[\[73\]](#) He feels, nevertheless, that only one course is open for him to pursue; he must follow up the inquiry fully, fearlessly, and impartially, whatever may be the result; and, whether he looks to Henry or his accuser, he must adhere rigidly to the golden maxim, "Friends are dear, but truth is dearer!"

An Author,[\[74\]](#) then, to whom (as we gladly and gratefully acknowledge) we are largely indebted for many helps supplied to the biographer and historian, and from whom we have borrowed copiously in this part of our work, brings a wide and violent charge against Henry's character in those very points on which the general tenour and complexion of his whole life would lead us to regard him as of all least assailable. He charges him with *falsehood*, *hypocrisy*, and *impiety*. The groundwork on which he founds these accusations is a series of letters recorded in M. Le Laboureur's History of Charles VI. of France.

To ascertain more satisfactorily whether the charge is really substantiated, or whether it has been built upon an unsound foundation, we will first extract the whole passage as it stands in his work, "The Battle of Agincourt," and then sift the evidence which the writer alleges in support of so grave an imputation.

"On the 7th April, Henry is said to have addressed the King of France on the subject of his claims, and in reference to the embassy which Charles had signified his intention of sending to discuss them. No part^[75] of the correspondence on this occasion occurs in the *Fœdera*, and it is very slightly alluded to by our historians. "To the first of those letters Charles replied on the 16th of April, and to the last on the 26th of that month; it is therefore evident that Henry did not wait for the answer to the first before the second was written. These documents occur in contemporary writers; and, as the internal evidence which they contain of being genuine is very strong, there is no cause to doubt their authenticity. Their most striking features are falsehood, hypocrisy, and impiety; for Henry's solemn assurance that he was not actuated by his own ambition, but by the wishes of his subjects, is rendered very doubtful by the fact that, on the day after the Chancellor had solicited supplies for the invasion of France, the Commons *merely stated* that they granted *them for the defence of the realm, and the safety of the seas*. The justice claimed was, that France should be dismembered of many important territories; and that, with the hand of Katharine, Henry should receive a sum as unprecedented as it was exorbitant. But this was not all, for his first demand was the crown of France itself; and it was not until he was convinced of the impossibility of such a concession, that he required those points to which his letters refer. If then there was FALSEHOOD in his assertion that his demands were dictated by the wishes of his people rather than by his own, there was HYPOCRISY in the assurances of his moderation and love of peace, and IMPIETY in calling the Almighty to witness the sincerity of his protestation, and in profaning the holy writings by citing them on such an occasion. These letters, which were probably dictated by Cardinal Beaufort, are remarkable for the style in which they are written; in some places they approach nearly to eloquence, and they are throughout clear, nervous, and impressive."

In this threefold indictment, the first charge is "falsehood." The falsehood is made to consist in Henry's assertion, that he was stimulated to prosecute his claim by the wishes of his people; and the only evidence alleged to sustain this charge of falsehood, is the fact that parliament, in granting the supplies, so far from specifying that the grant was made for the purpose of recovering the King's rights in France, merely stated that it was "*for the defence of the realm, and the safety of the seas.*"

Before a charge, fixing an indelible stain on the character of a fellow-creature, whether the individual were a king leading his armies to victory, or the humblest subject in his realm, were made on such grounds as these, it had been well,—well for the cause of truth, and well for the satisfaction of the accuser,—had the nature and force of the evidence adduced been first more carefully examined. The slightest acquaintance with the language of parliament at that time, and the most cursory comparison of the words of its members with their conduct, must satisfy every one that not a shadow of suspicion is suggested of any unwillingness on the part of the Commons to support the King in demanding his supposed rights, and vindicating them by arms. On the contrary, the very records of parliament themselves, which are cited to maintain against Henry the charge of falsehood, carry with them a full and perfect refutation of the accusation, complete in all its parts; and compel us to lament that it has been brought so hastily, unadvisedly, and inconsiderately. Our first point is to ascertain the force of those words in the grant alone cited to substantiate the charge of falsehood against Henry,—what meaning was attached to them by the Commons themselves. We shall find that the subsidy was granted in the usual formal words, "for the defence of the realm of England and so forth." In the first parliament of Henry for example, the subsidy is granted in these words: "To the honour of God, and for the great love and affection which your poor Commons of your realm of England have to you our dread sovereign Lord, for the good of the realm and its good governance in time to come, we have, with the consent of the Lords Spiritual and Temporal, granted to you *for defence of your realm of England,*" and so forth,—specifying a subsidy from wools and other merchandise; and then, in voting an entire fifteenth and a tenth, they add, "*for the defence of the realm, and the safeguard of the seas.*" With precisely the same justice might it be argued in this case that the Commons would not vote the subsidy for "the support of the King's dignity and high

estate," (though that was one of the especial grounds on which he appealed himself to the liberality of his parliament,) as it can be inferred, from the same words used in the parliament of 1415, that the Commons of England were not forward to promote the expedition to France. In that parallel case, however, we are quite sure the argument would be fallacious; because in the very same session they voted that the King's own allowance should take precedence of all other payments of annuities and other demands, to the amount of 10,000*l.* annually.

Another instance occurs in the parliament which met October 19, 1416, the King himself presiding: though the Chancellor, after referring with exultation to the victories of Harfleur, "the key of France," and of Agincourt, "where greatest part of the chivalry of France had fallen in battle," asks for new supplies *for the express purpose* of carrying on the wars in France; the Commons, in voting those supplies, as expressly state that they grant them "*for the defence of your realm of England.*"

The same conclusion is warranted by the grants of 1417 and 1419; excepting that in these the Commons make the argument intended to support the charge against Henry's veracity still less tenable, by inserting a phrase which might seem to exclude the very object for which application for the subsidy was made. The application was made especially for the supplies necessary to carry on the war abroad; the Commons vote the subsidy "for the defence of the realm of England *in especial.*"

But, to remove all possible doubt as to the true intent and meaning of the people of England in the grant in 1414 of two entire tenths and two entire fifteenths, we need only refer to the first act of the next parliament, which, after rehearsing the impossibility of the King effectually carrying on his wars abroad unless one tenth and one fifteenth made by the former parliament, payable on the 2nd of February, should be collected before that time, decrees that subsidy to be due and payable on the feast of St. Lucie in the next coming December. Nor is this all. The next act of this same parliament would of itself prove the utter futility of the charge against Henry, as far as that charge rests upon the evidence adduced. The parliament first state the necessity of supplying the King with more efficient means *for pursuing his campaign in France*, and then vote one entire tenth

and one entire fifteenth,—for what? not for the purpose which they have expressly specified, but "*for the defence of his said realm of England.*" The preamble, however, of this act shows so clearly what were the views and feelings of his subjects on this very point, as well as on the justice of his claim, that a transcript of it seems indispensable in this place.

"The Commons of the realm, in this present parliament assembled, considering that the King our sovereign lord, for the honour of God, and to avoid the shedding of human blood, hath caused various requests to be made to his adversary of France to have restitution of his *inheritance* according to *right and justice*;[\[76\]](#) and for that end there have been diverse treaties, as well here as beyond the sea, to his great costs; nevertheless he hath not, by such requests and treaties, obtained his said inheritance, nor any important part thereof: and since the King, neither by the revenues of his realm, nor by any previous grant of subsidy, hath had enough wherewith to pursue *his right*; yet, always *trusting in God* that in his JUST *quarrel* he shall be upheld and supported, of his own good courage hath undertaken an expedition into those parts, pawning his jewels to procure a supply of money, and in his own person hath passed over, and arrived at Harfleur, and laid siege to it and taken it, and holds it at present, having placed lords and many others there for its defence; and then of his excellent courage, with few people in regard to the power of France, he marched by land towards Calais, where, on his route, many dukes, earls, and other lords, with the power of the realm of France, to an exceeding great number, opposed him, and gave him battle; and God, of his grace, hath given victory to our King, to the honour and exaltation of his crown, of his own fair fame, the singular comfort of his faithful lieges, to the terror of all his enemies, and probably to the lasting profit of all his realm."

We may safely leave the issue to the verdict of any impartial mind. The argument drawn from the language of parliament to convict Henry of falsehood falls to the ground; it has no colour of reason in it; and no other argument is even alluded to by the accuser. It is, moreover, much to be regretted that the Editor of "The Battle of Agincourt," when he was translating so large a portion of the Chaplain's memoir, which with great reason he implicitly follows, had not begun the work of translation a few sentences only before its present commencement. Our countrymen would

then have seen that, from whatever sources that Editor drew the evidence on which to build his triple charge of hypocrisy, falsehood, and impiety against Henry V, those who knew him best, and had the most ample opportunities of witnessing his character and conduct, expressed at least a very opposite opinion on the point at issue. The following are the genuine words of one who accompanied Henry from his native shores to France, was with him at the battle of Agincourt, and returned with him in safety to England. "Meanwhile, after the interchange of many solemn embassies between England and France, with a view to permanent peace, when the King found that very many negotiations and most exact treaties had been carried on in vain, by reason that the council of France, *clinging to their own will, which they adopted as their law*, could be induced to peace by no just mean of equity, without immense injury to the crown of England, and perpetual disinheritance of some of the noblest portions of his right in that realm, though for the sake of peace he was ready to make great concessions, seeing no other remedy or means by which he could come to his right, had recourse to the sentence of the supreme judicature, and without blame sought to recover by the sword what the blameworthy and unjust violence of the French had struggled so long to usurp and keep.... He determined to regain the duchy of Normandy, which had for a long time been *kept, against God and all justice, by the violence of the French*."

There is, however, one declaration contained in the very volume from which these alleged letters of Henry are extracted, which makes the charge brought by the commentator on those letters still more surprising.[\[77\]](#) It is in that very volume positively asserted, with regard to the first rumour through France of Henry's intended invasion, that "his subjects *had strongly* remonstrated with him for his love of peace and rest, and his dislike of active measures, and had *now* INSISTED upon his undertaking the expedition."[\[78\]](#)

The charge of hypocrisy is made to rest "on Henry assuring the French monarch of his moderation and love of peace, whereas he must have been conscious that he was immoderate in his demands, and was not desirous of peace." To prove that his demands were immoderate, is not enough to sustain this accusation; to constitute him a hypocrite, he must *himself have been conscious* that his demands were immoderate. But how stands the

probability? He was fully persuaded that the crown of France was his own; and he first demands the full surrender of his alleged rights. The Commons declare that what he sought was "the restitution of his inheritance according to *right and justice*," and testify that he "trusted in God for support in his *just quarrel*." He then, agreeably to the advice of his council,[\[79\]](#) (who acknowledge that what he sought to recover was "his righteous heritage, the redintegration of the old rights of his crown,") withdrawing his full demand, proposes other terms, unreasonable, no doubt, as we may view them now, but, if regarded as a substitute for the fair kingdom of France, far from stamping on Henry the brand of hypocrisy, when he made a profession of moderation and a love of peace.[\[80\]](#)

There remains the charge of impiety, which is made to rest on Henry having called the Almighty to witness a falsehood, and quoted Scripture in support of what he affirmed. It was undoubtedly too much the practice then, as unhappily it is now, for Christians, on trivial occasions, to appeal to Heaven, and to quote the sanction of Scripture in very questionable matters of worldly policy. But Henry does not appeal presumptuously, nor quote lightly; he appeals solemnly, and he quotes reverently, in a matter of very great importance to both kingdoms, and in a cause which he believed to be founded in right and justice. He appealed to Heaven to witness what he regarded as true. The page we have been examining accuses Henry of falsehood, hypocrisy, and impiety: the evidence of facts, and the testimony of his contemporaries, represent him to us in the character of an honest, undisguised, and pious King.

On Tuesday, April 16, Henry held a council at Westminster, at which the Chancellor, Henry Beaufort, briefly explained the proceedings of the great council, enumerating the causes which induced their King, in the name of God, to undertake in his own person an expedition for the recovery of his inheritance. On the next day the Chancellor informed the council that the King had appointed the Duke of Bedford to be lieutenant of England[\[81\]](#) during his absence; with the Archbishop of Canterbury, the Bishop of Winchester, and other prelates and lay lords to form his council.

As early as May 26, an order was issued to suspend the assizes through England during the King's absence, lest his lieges who accompanied him

might be subjected to inconvenience and injustice. The defence of the country towards Scotland and Wales was provided for, and the rate of wages payable to his retinue and soldiers was fixed. Every duke was to receive 13s. 4d., every earl 6s. 8d., every baron 4s., and every knight 2s., every esquire being a man-at-arms 12d., every archer 6d. each day; whilst for every thirty men-at-arms a reward was assigned of one hundred marks a quarter; together with some other stipulations.

In the spring and summer the King issued^[82] commissions to hire ships from Holland and Zealand; to press sailors to navigate his vessels; to provide workmen to make and repair bows; to procure carts and waggons for the conveyance of his stores; also a supply of masons, carpenters, and smiths, together with the materials of the respective trades. The sheriffs of different counties were ordered to buy cattle; and the sheriff of Hampshire was to cause bread to be baked, and ale to be brewed, at Winchester and Southampton, and the parts adjacent, for the use of the army.

The King not only thus took effective measures for the transport and supply of his forces, but commanded also the Archbishop and the other prelates to array the clergy for the defence of the kingdom at home during his absence. Every sheriff also was to proclaim that a nightly watch should be kept till All-Saints' Day; and no taverner was to allow any stranger to remain in his house more than one day and night, without knowledge of the cause of his delay; and all suspicious persons were to be committed to prison.

Though parliament had granted a liberal supply, the King, finding his expenses to exceed his means, made a direct and powerful appeal to all his loving subjects for a loan, with promise of repayment; and a considerable sum was raised in consequence of that appeal, but still not enough. He was, therefore, compelled to pawn his plate and jewels, (as he had done with his small stock in early youth during the Welsh rebellion,) and to have recourse to all expedients for raising the necessary sums. These expedients were often totally incompatible with our present notions of the royal dignity; but no intimation appears anywhere of the least unfair and dishonourable dealing on the part of the King. His appeals to the people much resembled those of Charles I, under still more urgent circumstances, in after ages.

A curious fact is recorded in the minutes of a council held May 25, 1415, respecting a demand for money from the companies of foreign merchants resident in London. They were summoned before the council, and informed that it was usual for merchants who traded in any other country than their own to lend the government such sums as they could bear, or else be committed to prison during pleasure. This custom was justified on the ground of many and great privileges secured to them in their traffic by the King's favour, from which they derived great wealth. Certain sums were demanded, and sufficient pledges of gold, silver, and jewels were offered; but the merchants of Florence, Venice, and Lucca [de Luk] refused to comply, and were committed to the custody of the warden of the Fleet Prison. From the merchants of Florence was required 1,200*l.*, from those of Venice 1,000*l.*, from those of Lucca 200*l.* These strong measures seem to have worked their intended effect, for all those guilds granted loans afterwards.

Having now effected every preparation in his power, the King passed through London, accompanied by the Mayor and citizens (who attended him as far as Kingston); and having made an offering at St. Paul's, and taken leave of his mother-in-law the Queen, he proceeded on his way towards Southampton, where all his ships and contingents were directed to await his arrival.

Reaching Winchester, he remained there for some days from June 26th, probably to give audience to the French ambassadors, who were presented to him on the 30th. The Archbishop of Bourges headed that embassy, and the Bishop of Winchester was Henry's representative and spokesman. Much of negotiating and bartering ensued, and at first many conciliatory communications were made on both sides; the French yielding much, the English adhering to their original demands, or remitting little from them. At length, the reply of the Archbishop put an abrupt end to further discussion; and Henry commanded the ambassadors to depart, with a promise that he would soon follow them.

It is here again painful to read the unkind and unjustifiable language of the same author, whose triple charge against Henry's religious and moral character we have just investigated, when he describes the surprise of the

French monarch and his court on the return of these ambassadors. "Until that moment," he says, "the French court, either *cajoled* by Henry's *hypocrisy*, or lulled into security by a mistaken estimate of his power, had neglected every means for resisting the storm which was about to burst upon their country." Henry stands convicted of no hypocrisy; and his accuser alleges no evidence on which an impartial mind would pronounce him guilty. It is curious as it is satisfactory to lay side by side with this unguarded calumny the version of the circumstances of that time, made by an unprejudiced foreigner, and a very sensible well-versed historian.^[83] "France was then governed by the Dauphin Louis, a young and presumptuous prince, who had up to this point thought himself able to amuse Henry by feigned negotiations. Nevertheless, the preparations going on in England having opened the eyes of his council, a resolution was taken to send to England twelve ambassadors, at the head of whom was the Archbishop of Bourges."

Several contemporary writers, as well as general tradition, state that, on occasion of one of the various embassies sent to and fro between the courts of London and Paris, the Dauphin, then about eighteen or nineteen years of age, sent an insulting present to Henry of a tun of tennis-balls, with a message full of contempt and scorn,^[84] implying that a racket-court was a more fit place for him than a battle-field. It is well observed, that such an act of wilful provocation must have convinced both parties of the hopelessness of any attempts towards a pacific arrangement; and, since the negotiations were carried on to the very last, some discredit has thence been attempted to be thrown on the story altogether. But it must be remembered (as the author of the *Abrégé Historique* justly remarks) that these negotiations were continued, on the part of France, merely to gain time, and withdraw Henry from his purpose; whilst Henry, on the other side, by his renewed proposals for the hand of Katharine, (an union on which he appears from the first to have been heartily bent,) kept up in his enemies the hope that, to gain that object, he would ultimately relax from many of his original demands. Henry certainly afterwards challenged the Dauphin to single combat, as though he had a quarrel with him personally; and nothing can fairly be inferred against the truth of the tradition, from the silence in the challenge on the point of such an insult having been offered. On the whole, the evidence is decidedly in favour of the reality of the

incident; whilst Henry's reported answer is very characteristic: "I will thank the Dauphin in person, and will carry him such tennis-balls as shall rattle his hall's roof about his ears." And they, says the contemporary chronicler, [85] were great gunstones for the Dauphin to play withal.

Anxious to proceed in our narrative without further allusion to such sweeping and unsupported charges, we must, nevertheless, here introduce (though reluctantly) the remarks which have been suffered to fall from the same pen, as its chief comment on the closing words of Henry's last Will, made at this time.[86] He signed that document at Southampton, July 24th, just three days after discovering the conspiracy of which we must soon speak. Probably a sense of the uncertainty of life, and the necessity of setting his house in order without delay, were impressed deeply upon him by that unhappy event. He felt not only that he had embarked in an enterprise the result of which was doubtful, in which at all events he must expose his life to numberless unforeseen perils; but that the thread of his mortal existence might at a moment be cut asunder by the hands of the very men to whom he looked for protection and victory. Compared with the wills of other princes and nobles of that day, there is nothing very remarkable in Henry's. From first to last it is tinctured with the superstitions of the corrupt form of our holy religion, then over-spreading England.[87]

The subscription to this testament is couched in these words: "This is my last Will subscribed with my own hand. R.H. Jesu Mercy and Gramercy Ladie Mary Help:" and on these words the same author makes this observation: "According to all the biographers of Henry, extraordinary piety was a leading trait in his character, from which feeling the addition to his Will appears to have arisen. It seems indeed difficult to reconcile the *lawless ambition*, much less the *hypocrisy*, [88] which Henry displayed in his negotiations, with an obedience to the genuine dictates of Christianity; but as he rigidly observed every rite of the church, was bountiful towards its members, and uniformly ascribed success to the Almighty, it is not surprising that his contemporaries should have described him as eminently pious."

On this passage the biographer of Henry had rather that his readers should form their own comment, than that he should express the sentiments which

he cannot but entertain: he invites, however, the lover of truth to compare this charge of *lawless ambition and hypocrisy* with the actual conduct of Henry at this very time.

Whilst resident in the Abbey of Tichfield,[\[89\]](#) about ten miles from Southampton, he despatched to the Council of Constance, addressing himself chiefly to the Emperor Sigismund and the other princes assembled there, copies of the treaties between Henry IV. and the French court relative to the restoration of Aquitaine to the English crown; remarking upon the wrong that was done to him by the gross violation of those treaties. This shows at all events that he was not conscious of being actuated by lawless ambition, or of acting the part of a hypocrite; it proves that he was desirous of having the merits of his quarrel with France examined and understood: and he seems to have felt an assurance that those who made themselves acquainted with the real grounds of his intended invasion would pronounce his quarrel to be just. Otherwise he would scarcely have gone out of his way to draw the eyes of assembled Europe, (not to the boldness of an enterprise, nor to the splendour of conquests, but) to a calm investigation of the righteousness of his cause.[\[90\]](#)

The words of his chaplain in recording this measure of Henry deserve a place here. Indeed, every page of contemporary history proves that the King himself had no misgivings as to the uprightness and justice of his cause, and was ready to refer the whole to the judgment of Christendom. "The King caused transcripts of all treaties to be forwarded to the general council, to the Emperor Sigismund and other Catholic princes, to the intent that all Christendom might know how great injuries the duplicity of the French had inflicted upon him, and that he was, reluctantly and against his will, compelled, as it were, to raise his standard against the rebels."[\[91\]](#)

Nor can we here omit to observe, (though it be anticipating what must hereafter be again referred to in the course of the history,) that the behaviour of the Emperor, when, in the spring of the following year, he made a personal voyage to England on purpose to visit Henry, and the solemn declaration of the Duke of Burgundy, (of whose sincerity, however, no one can speak without hesitation,) "that he had at first thought Henry unjust in his demands, but was at length convinced of their justice," show that in the

estimation of contemporaries, and those neither churchmen nor his own subjects, who may be suspected of partiality, Henry's character deserved better than to be stamped with the imputation of "lawless ambition and hypocrisy." It is very easy for any one to charge a fellow-creature with immoral and unchristian motives; and it may carry with it the appearance of honest indignation, and of an heroic love of virtue, religion, and truth, when one can tear off the veil of conquest and martial glory from the individual, and expose his naked faults to pity, or contempt, or hatred. But a good judge, in forming his own estimate of the motives which may have given birth to acts which fall under his cognizance, or in guiding others to return a righteous verdict, will not consider the most ready method of solving a difficulty to be always the safest. Take for granted that Henry's conduct towards France is intelligible on the ground of lawless ambition and gross hypocrisy, (though there is no proof of either,) it is equally, at least, intelligible on the supposition of his full and undoubting conviction of his right to all he claimed. And just as open would any individual plaintiff be to the charge of hypocrisy, who, after having insisted upon his full rights, and given notice of trial, and collected his witnesses, should, on the very eve of the issue being tried, write to the defendant, urging him to yield, and avoid the expense and irritation of a protracted law-suit, offering at the same time a remission of some portion of his claim,—as Henry is in fairness chargeable with hypocrisy because he wrote to his "adversary of France," urging him to yield, and avoid the effusion of blood. On the very eve of his departure for the shores of Normandy, many facts and circumstances assure us that Henry acted under a full persuasion that he demanded of France only what was in strict justice his due when he laid claim to those territories and honours which had been so long withheld from the Kings of England, his predecessors. Facts are decidedly against the charge of hypocrisy; but, even were the facts doubtful, his general character for honesty, and openness, and manly straightforward dealing, (to which history bears abundant evidence,) would make the scale of justice preponderate in his favour.

In dismissing this subject, parallel with these modern accusations of Henry on the ground of "cajoling hypocrisy" we may lay the testimony borne by his contemporary, Walsingham,[\[92\]](#) to the unsuspecting simplicity of his mind, which exposed him to the overreaching designs of the unprincipled and crafty. In his *Ypodigma Neustriæ*, a work expressly written for the use

and profit of Henry, and with a view of putting him upon his guard against the intrigues of foreign courts, he refers to his "innocence liable to be circumvented, and his noble character likely to be deceived, by the cunning craftiness and hypocritical fraud and false promises of his enemies."

CHAPTER XXI.

PREPARATIONS FOR INVADING FRANCE. — REFLECTIONS ON THE MILITARY AND NAVAL STATE OF ENGLAND. — MODE OF RAISING AND SUPPORTING AN ARMY. — SONG OF AGINCOURT. — HENRY OF MONMOUTH THE FOUNDER OF THE ENGLISH ROYAL NAVY. — CUSTOM OF IMPRESSING VESSELS FOR THE TRANSPORTING OF TROOPS. — HENRY'S EXERTIONS IN SHIP-BUILDING. — GRATITUDE DUE TO HIM. — CONSPIRACY AT SOUTHAMPTON. — PREVALENT DELUSION AS TO RICHARD II. — THE EARL OF MARCH. — HENRY'S FORCES. — HE SAILS FOR NORMANDY.

1415.

PREPARATIONS FOR INVADING FRANCE.

It is impossible for us to revert with never so cursory a glance to the departure of Henry of Monmouth from his native shores at the head of an armament intended to recover his alleged rights in France, without finding various questions suggesting themselves, both on the mode adopted for raising and embodying the men, and for transporting the troops and military stores, and all the accompaniments of an invading army. The Kings of England had then no standing army, nor any permanent royal fleet.

In the present volume we have often seen that on an emergence, such as an irruption of the Scots, or the necessity of resisting the Welsh more effectually, the sheriffs of different counties were commanded to array the able-bodied men within their jurisdiction, and join the royal standard by an appointed day; and, no doubt, many a motley, and ill-favoured, and ill-appointed company were seen in the sheriff's train. We have also been reminded with how great difficulty even these musters could be collected, and kept together, and marched to the place of rendezvous; and how seldom could they be brought in time to join in the engagement for which they were

destined. We have repeatedly also learned that the nobles who would recommend themselves to the royal favour, or espoused heartily the cause in which they were engaged, headed their own retainers to the field, and made themselves responsible for their maintenance and pay. In the present case we have reason to believe that the army consisted mainly of volunteers; at least, that the principal persons in rank and fortune joined the King's standard without compulsion. A very lively and enthusiastic interest in the success of his expedition prevailed through the whole country; and the nobles redeemed their pledge, without grudging, that they would aid him in their persons. The pay of the army was settled beforehand, at a fixed rate, from a duke downwards.[\[93\]](#)

Whether there is any foundation at all in fact for the tradition of Henry's resolution to take with him no married man or widow's son, the tradition itself bears such strong testimony to the general estimate of Henry's character for bravery at once and kindness of heart, that it would be unpardonable to omit every reference to it altogether. The song of Agincourt, in which it occurs, is unquestionably of ancient origin; probably written and sung within a very few years of the expedition.[\[94\]](#) Internal evidence would induce us to infer that it was composed before Henry's death, and just after his marriage with Katharine:

"The fairest flower in all France,
To the rose of England I give free."

The ballad, at all events, is among the earliest of our English songs, and was delivered down from father to son in the most distant parts of the kingdom, when very few of those who preserved the national poetry from oblivion could read. This circumstance easily accounts for the many various readings which are found in different copies now, whilst these in their turn tend to establish the antiquity of the song. The admirable simplicity and true natural beauty of the verse will justify its repetition here, though it has already appeared in our title-page, when it ascribes to Henry the combination of valour and high resolve, with merciful considerateness and tender feeling for others. Be the authority for this reported restriction, imposed by Henry on those who were commissioned to recruit soldiers for his expedition, what it may, (let it be founded in fact, or in the imagination of the writer,) it bears that testimony to Henry's character,[\[95\]](#) which the whole current of

authentic documents tends fully to establish. He was brave, and he was merciful.

"Go! call up Cheshire and Lancashire,
And Derby hills,[\[96\]](#) which are so free;
But neither married man, nor widow's son,—
No widow's curse shall go with me."

Of the numbers who went with Henry to France various accounts are delivered down, and different calculations have been made. The song of Agincourt raises the sum of the "right good company" to "thirty thousand stout men and three:" and probably this total, embracing servants and attendants of every kind, is not at all an exaggeration of the number actually transported from England to Normandy; though, if by "stout men" we are to understand warriors able to handle the spear, the bow, the sword, and the battleaxe, we must not reckon them at more than one-third of that number.

The expedients which Henry found it necessary to adopt for the safe transportation of this armament, compel us to review, however briefly, the state and circumstances of English navigation at the period. The Author has already hazarded the opinion in his Preface, that Henry of Monmouth may with justice be regarded as the founder of the British navy; and he feels himself called upon to refer to some facts by which such a representation might seem to be countenanced. He gladly acknowledges that the idea was first suggested to him by the publication of Sir Henry Ellis; whilst every subsequent research, and every additional fact, have tended to confirm and illustrate the same view.[\[97\]](#)

Though few subjects are more interesting, or more deserve the attention of our fellow-countrymen, yet it is confessedly beyond the province of these Memoirs to enter at any length upon a dissertation on the naval affairs of Great Britain. Since, however, if satisfactorily established, the fact will recommend the hero of Agincourt to the grateful remembrance of his fatherland in a department of national strength and glory in which few of us have probably hitherto felt indebted to him, it is hoped that these brief remarks may not be deemed out of place.

Unquestionably, many previous sovereigns of England had directed much of their thoughts to the maritime power of the country. From the time of Alfred himself, downwards, we may trace, at various intervals, evident marks of the measures adopted by our Kings and the legislature, and also by powerful individuals and merchant companies, to keep up a succession of sea-worthy vessels, and mariners to man them. Two hundred years before the date of Henry's expedition, as early as the year 1212, King John seems to have established a sort of dry covered dock at Portsmouth for the preservation of ships and their rigging during the winter. But the very instances to which appeals have been made by various writers, to prove the antiquity of the naval force of South Britain, tend by their testimony to confirm the opinions we are here disposed to adopt. In every successive reign, the annals of which supply any information on the subject, the evidence is clear that the rulers of England did not contemplate the establishment of a fleet belonging to the nation as its own property. The tenures, moreover, by which many maritime towns held their charters, whilst they evince the importance attached to this department of an island's political power, coincide altogether with the view we are taking. The obligation, for example, under which the Cinque Ports lay of furnishing, whenever required, fifty ships, manned each with twenty-four mariners, for fifteen days, enabled the monarch indeed to calculate, from the fulfilment of such stipulated engagements, on a certain supply, adequate, it may be, to meet the usual demand; but at the same time it implied that he had no fleet of his own on which he could rely. Whilst the limited extent to which ships could be supplied by the most rigid exaction of the terms of those tenures compelled the state, on any occasion when extraordinary efforts were requisite, to depend upon the varying and precarious supply produced by the system of impressment. [\[98\]](#)

When Henry ascended the throne, he found still in full operation this old system of our maritime proceedings. Whenever, as we have seen, an occasion required the transport of a considerable body of men from our havens, or forces to be embarked for the protection of our shores and of our merchants, in addition to the contingent, which could be exacted from various chartered towns, the King's government was obliged either to hire ships from foreign countries, or to lay forcible hands by way of impressment on the vessels of his own subjects. A few instances, more or

less closely connected with the immediate subject of our present inquiry, will serve to illustrate that point.

When, for example, Henry's great grandfather Edward III. was preparing for the expedition, which he headed in person, intended to relieve Rochelle, his grandfather John of Gaunt, February 10, 1372, as we find by the records of the Duchy of Lancaster, commanded all his stewards in Wales to assist Walter de Wodeburgh, serjeant-at-arms, appointed by the King to arrest all ships of twenty tons' burden [and upwards?] for the passage of the King and his army to France, and to take sufficient security that they be all ready by the 1st of May either at Southampton, Portsmouth, Hamel in the Rys, or Hamel Stoke.

The records of the Privy Council (11 December, probably 1405,) supply us with an instance (one out of many) which shows, at the same time, the great injury which the public service sustained by this system, and the ruinous consequences which it was calculated to entail on the merchants and the owners of ships. Henry IV. had intended to proceed in person to Guienne; and for that purpose, with the advice of his council, had impressed all the ships westward. His voyage was deferred; but the ships were still, as they had been for a long time, under arrest. The masters had sent a deputation to him to implore some compensation for their great expenses,[\[99\]](#) and some means of support. Henry then wrote to the council, praying them [vous prions] to provide some help for these poor men; and to assure them that no long time would elapse before their services would be called for, since either himself or his representative would undertake the voyage. In the same letter he prayed the council also to write under his privy seal to the King of Portugal, to beg of him a supply of galleys, sufficient to enable him to resist the malice of his enemies the French, and to protect his land and his realm.

We must not suppose that the French monarch found himself under more favourable circumstances when he would prepare for any important affair on the sea. The same system of impressment and hiring was necessarily adopted in France. Thus we find, in 1417, when the French government resolved to make a powerful effort to crush the navy of England, the ships were first to be "hired, at a great sum of gold, from the state of Genoa."

These mercenary vessels formed the fleet over which the Earl of Huntingdon gained a decided victory immediately before Henry's second expedition to France.

Thus, too, (not to cite any more examples,) no sooner had Henry determined to assert his rights on the Continent, and to enforce them by the sword, than he despatched ambassadors to Zealand and Holland to negotiate with the Duke of Holland for a supply of ships; doubtless assured that all which he could impress or hire in all his ports would not be sufficient for the safe transport of his troops, and "their furniture of war." But Henry's ardent and commanding mind soon saw how powerful an engine, both of defence and of conquest, would be found in a permanent royal navy, and how indispensable such an establishment was to any insular sovereign who desired to provide for his country the means of offering a bold front against aggression, protecting herself from insult, maintaining her rights, and taking a lead among the surrounding powers. He resolved, therefore, not to depend upon the precarious and unsatisfactory expedients either of hiring vessels, which would never be his own, (in a market, too, where his enemy might forestal him, and where his necessities would enhance the price,) or of compelling his merchants to leave their trading, and minister to the emergence of the state, at their own inevitable loss, and not improbable ruin. His immediate determination was to spare neither labour nor expense in providing a navy of his own, such as would be ever ready at the sovereign's command to protect the coast, to sweep the seas of those hordes of pirates which then infested them, and to bear his forces with safety and credit to any distant shores. He thus thought he should best secure his own ports and provinces from foreign invasion; afford a safeguard to his own merchants, and to those traders who would traffic with his people; and generally make England a more formidable antagonist and a more respected neighbour.

This new line of policy he adopted very early in his reign. Whilst he was at Southampton, (at the date of this digression, on his first expedition to Normandy,) we find him superintending the building of various large ships: and, two years afterwards, when news reached him of the victory gained by his brother the Duke of Bedford over the French fleet off Harfleur, the tidings found him making the most effectual means for securing future

victories; he was at Smalhithe in Kent, personally superintending the building of some ships to add to his own royal navy, then only in its infancy.[\[100\]](#)

Nor did he confine his labours in this great work to England; he employed also his Continental resources in forwarding the same object. A letter from one John Alcestre, from Bayonne,[\[101\]](#) informs us of a ship of very considerable dimensions then on the stocks at that port, for the building of which the mayor and "his consorts" had contracted with Henry. The vessel was one hundred and eighty-six feet in length from "the onmost end of the stem onto the post behind." "The stem" was in height ninety-six feet, and the keel was in length one hundred and twelve feet.

Henry appears also to have acquired the reputation in foreign countries of having a desire to possess large vessels of his own. An agent in Spain, for example, after informing one of the King's officers in England of his unsuccessful endeavour to cause to be seized for the King's use four armed galleys of Provence, expected to enter the port of Valencia, and which the King of Arragon's government had consented to arrest for Henry, but which disappointed them by not coming to land, mentions that two new carraks (a species of large transport vessel) were in building "at Bartholem," which the King might have if he pleased.

The high importance which Henry attached to these rising bulwarks of his country shows itself in various ways; in none more curious and striking than (a fact, it is presumed, new to history,) in the solemn religious ceremony with which they were consecrated before he committed them to the mighty waters. One of the highest order of the Christian ministry was employed, and similar devotions were performed at the dedication of one of the royal "great ships," as we should find in the consecration of a cathedral. They were called also by some of the holiest of all names ever uttered by Christians.[\[102\]](#) Thus, on the completion of the good ship the Grace-Dieu at Southampton, the "venerable father in Christ, the Bishop of Bangor,"[\[103\]](#) was commissioned by the King's council to proceed from London at the public expense to consecrate it.

When Henry of Monmouth died, the navy of England was doubtless yet in its infancy;[\[104\]](#) but it owed its existence as a permanent royal

establishment to him. We cannot look back on that "day of small things" without feelings of admiration and gratitude; nor now that we seem, for a time at least, free from the danger of foreign invasion, must we forget that, in the late tremendous struggle which swept away the monarchies and the liberties of Europe in one resistless flood, to our navy, which had grown with the growth of our country, and strengthened with her strength, our native land may, under the blessing of Heaven, have been indebted for its continuance in freedom and independence. Of those wooden walls of Old England, as a royal establishment based on systematic principles, Henry of Monmouth was undoubtedly the founder.

Whilst Henry was engaged at Southampton in personally superintending the preparations for invading France, an event occurred well fitted to fill him equally with surprise, and indignation, and sorrow. A conspiracy against his crown and his life was brought to light, which had been formed by three in his company against whom he could have entertained no suspicions: Richard of York, whom he had created Earl of Cambridge; Henry Lord Scrope, the treasurer; and Sir Thomas Grey of Heton. The Rolls of Parliament, containing the authentic record of the proceedings consequent upon the discovery, and the original letters of the Earl of Cambridge, leave no question as to the designs of the conspirators. Some doubts may exist as to their motives: whether they were influenced singly by a generous resolution to restore the crown to its alleged rightful heir,^[105] or by some less honourable and more selfish feeling;^[106] whether by any offence taken against Henry, or, as it is alleged, by the vast bribe offered to them by the crown of France; or whether by more than one of these motives combined, must remain a matter of conjecture. We cannot, perhaps, be certified of the means by which Henry became acquainted with the plot, nor if, as we are told, he was informed of it by the Earl of March himself, can we ascertain beyond doubt how large or how small a share that nobleman had in the previous deliberations and resolutions of the conspirators. Whether he first consented to their design of setting him up as king, and then repented of so ungrateful an act towards one who had behaved to him with so much kindness and confidence, or whether he instantly took the resolve to nip this treason in the bud, no documents enable us to decide. If

the Earl of Cambridge's confession be the truth, the Earl of March at one time was himself consenting to the plot.

On the 21st of July a commission was appointed, consisting of the Earl Marshal, two of the judges,[\[107\]](#) six lords, and Sir Thomas Erpingham, to try the conspirators: and the sheriff of the county was ordered to summon a jury, who assembled at Southampton on the 2nd of August, and found as their verdict, that, on the 20th of July, the Earl of Cambridge and Sir Thomas Grey had traitorously conspired to collect a body of armed men, to conduct Edmund Earl of March to the frontiers of Wales, and to proclaim him the rightful heir to the crown, in case Richard II. were actually dead, against the pretensions of the King, whom they intended to style "the Usurper of England;" that they purposed to destroy the King and his brothers, with other nobles of the land; and that Lord Scrope consented to the said treasonable designs, and concealed them from the King.

Lord Scrope denied having consented to the death of the King, or having had any communication with the other conspirators on that point; and he declared that he had communicated with them on the other points solely to possess himself of a knowledge of their designs in order to frustrate them. He then pleaded his peerage, and his right to be tried by his peers.

Sentence of death in the usual manner was passed upon Grey; but the King having, by a most rare instance of mercy in those days, remitted that part of the sentence which directed him to be drawn on a hurdle and hung, he was allowed to walk through the town to the Northgate, and was there immediately beheaded. On Monday, August 5, the Duke of Clarence presided in a court of the peers, who, having satisfied themselves by carefully examining the record of the conviction of the prisoners, Scrope and Cambridge, adjudged them to death. They were both executed within a few hours of this judgment. The head of Scrope was ordered to be affixed on one of the gates of York and the head of Grey to be stuck up at Newcastle upon Tyne, to mark the baseness of their ingratitude, who had enjoyed so closely the confidence and friendship of Henry.[\[108\]](#)

Nothing is recorded officially of any bribe from France, but the fact of "one million of gold" having been promised as the wages of their treason is asserted by historians. "These lords, for lucre of money," (to use the words

of a manuscript[\[109\]](#) apparently contemporary with the event,) "had made promise to the Frenchmen to have slayne King Henry and all his worthy brethren by a false trayne [treason?] suddenly or they had beware. But Almighty God, of his great grace, held his holy hand over them, and saved them from this perilous meyne [band]. And for to have done this they received of the Frenchmen a million of gold, and that was there proved openly."

As to the guilt or innocence of the Earl of March himself, no proof can be drawn from the fact of his having obtained a full and free pardon[\[110\]](#) a few days after the event. "Such pardons" (as Dr. Lingard rightly observes) "were frequently solicited by the innocent as a measure of precaution to defeat the malice and prevent the accusations of their enemies." Sir Harris Nicolas indeed suggests, "that it would be difficult to show an instance in which they were granted in favour of a person who was not strongly suspected, or who had not purchased them at the expense of his accomplices." But it requires little more than a cursory glance at our authentic records to be assured that Dr. Lingard's view is the more correct. Take, for example, the pardon granted in 1412 to the Archbishop of Canterbury, and couched in almost the same words. There is indeed in this pardon a clause very different from the pardon of the Earl of March; but it is a difference which only tends to establish this point, that the pardons in many cases were *formal*, and altogether independent of the guilt or innocence of the party. The Archbishop (Arundel) is pardoned for all treasons, felonies, and so forth, excepting some outrageous crimes of which he was never suspected; and also provided he was not then lying in prison as a felon convict, or as an adherent to Owyn Glyndowr. Many such instances occur.[\[111\]](#)

On this sad subject two original letters are preserved, addressed to Henry by the Earl of Cambridge; they are found among the "Original Letters" published by Sir Henry Ellis, accompanied, as is usual[\[112\]](#) in his valuable collection, by a succinct and clear statement of such facts as may be necessary for their elucidation. The first contains the Earl's confession; whether written before or after his trial, is not evident. The second sues for mercy, probably after the jury had returned their verdict; it may be even after the sentence was passed by the peers, though a very short portion of a day elapsed between that sentence and his execution.

It is curious to learn, from the first of these letters, that even down to the year of Henry's first expedition to France, the people were from time to time deluded by rumours that Richard II. was still alive. The Earl of Cambridge acknowledged that the conspirators intended to set up the Earl of March, "taking upon him the sovereignty of this land, if yonder man's person, which they call King Richard, had not been alive, as I wot well that he is not alive." He confessed, also, a guilty knowledge of a conspiracy to "bring in that person which they named King Richard, and Harry Percy out of Scotland, with a power of Scots."

Another very curious fact is alleged in this document, interesting in more points than one. It shows what a powerful engine in those days was the *Confessional*; and it proves also that, though Henry has been called the King of Priests, there were some of the sacred order in high station who were bent on his overthrow. Cambridge declares that both the Earl of March and his man Lusy had assured him that the Earl "was not shriven of a great while [had not attended the priests for the purposes of confession] without his confessors, on every occasion, putting him in penance to claim what they called his right." His confessors would not absolve him without imposing upon him, by way of penance, this condition, that he should claim his right to the crown.

LETTER OF CONFESSION FROM THE EARL OF CAMBRIDGE.

My most dreadful and sovereign liege Lord, like to your Highness to wit [please your Highness to know] touching the purpose cast against your high estate. Having the Earl of March, by his own assent, and by the assent of myself, whereof I most me repent of all worldly things; and by the accord of Lord Scrope and Sir Thomas Grey, to have had the aforesaid Earl in the land of Wales without your licence, taking upon him the sovereignty of this land, if yonder man's person, which they call King Richard, had not been alive, as I wot well that he is not alive; [\[113\]](#) for which point I put me wholly in your grace. And as for the form of a proclamation which should have been cried in the Earl's name as the heir to the crown of England against you, my liege Lord, called by untrue name Harry of Lancaster, usurper of England, to the intent to have made the more people to have drawn to him and from you; of the which cry Scrope knew not of as from me, but Grey did; having with the Earl a banner of the arms of England, having also the crown of Spain on a pallet, which, my liege Lord, is one of your weddys, for the which offence I put me wholly in your grace. And as for the purpose taken by Umfrevyle and Wederyngtoun for the bringing in of that person which they named King Richard, and Herry Percy, out of Scotland, with a power of Scots, and their power together seeming to them able to give you a battle, of the which intent Sir Thomas Grey wist of, but not Scrope as by me; of the which knowing I submit me wholly into your grace. And as for the taking of your castles in Wales, Davy Howell made me be host, so there were a stirring in the North; of the which point I put me wholly in your grace. And as touching the Earl of March and Lusy his man, they said me both,

that the Earl was not shriven of a great while, but at all his confessors put him in penance to claim that they called his right, that would be that time that every knew anything that ever to him longed.... [The MS. is here imperfect.] Of the which points and articles here before written, and of all other which now are not in my mind, but truly as often as any to my mind fallen I shall duly and truly certify you thereof; beseeching to you, my liege Lord, for His love that suffered passion on the Good Friday, so have ye compassion on me, your liege man; and if any of these persons, whose names are contained in this bill, holden contrary the substance of that I have written at this time, I shall be ready with the might of God to make it good, as ye, my liege Lord, will award me.

LETTER OF THE EARL OF CAMBRIDGE, SUING FOR MERCY.

My most dreadful and sovereign liege Lord, I, Richard York, your humble subject and very liege man, beseech you of grace of all manner offenses which I have done or assented to in any kind, by stirring of other folk egging me thereto, wherein I wot well I have ill offended to your Highness; beseeching you at the reverence of God, that you like to take me into the hands of your merciful and piteous grace, thinking ye well of your great goodness. My liege Lord, my full trust is that ye will have consideration, though that my person be of no value, your high goodness, where God hath set you in so high estate to every liege man that to you longeth plentifully to give grace, that you like to accept this mine simple request for the love of Our Lady and the blissful Holy Ghost, to whom I pray that they might your heart induce to all pity and grace for their high goodness.

Henry having taken every precaution for the preservation of his people at home, as well against foreign designs as against disturbers of the peace within the realm, left Porchester Castle on the 7th of August, with the intention of superintending in person the embarkation of his troops. This seems to have occupied him to the 10th, when he went on board the "Royal Trinity," and immediately gave signal for the ships to join him from the different stations in which they were awaiting his command. The fleet consisted of about thirteen hundred vessels of very different sizes, varying from twenty to three hundred tons' burden. Probably, reckoning servants, attendants of every kind, as well as fighting men, this fleet transported to the shores of France not less than thirty thousand persons. Of these there were only about two thousand five hundred men-at-arms, four thousand horse-archers, four thousand foot-archers, and one thousand gunners, miners, masons, smiths, with others. The whole amount of fighting men, according to this calculation, does not exceed eleven thousand five hundred. The expedition sailed with a favourable wind on Sunday, August 11, 1415.

[\[114\]](#)

Every document, probably, now known relative to this expedition, has been examined by Sir Harris Nicolas; and to his able digest of the facts relating

to this part of Henry's proceedings the reader is referred for the more minute details.

CHAPTER XXII.

HENRY CROSSES THE SEA; LANDS AT CLEF DE CAUS; LAYS SIEGE TO HARFLEUR. — DEVOTED ATTENDANCE ON HIS DYING FRIEND THE BISHOP OF NORWICH. — VAST TREASURE FALLS INTO HIS HANDS ON THE SURRENDER OF HARFLEUR. — HE CHALLENGES THE DAUPHIN. — FUTILE MODERN CHARGE BROUGHT AGAINST HIM ON THAT GROUND.

1415.

From this time Henry's is the life rather of a general than of a King. His successive battles, and sieges, and victories throw but occasionally more or new light on his character; and it is not within the limits of these Memoirs to describe his military achievements, or to enter upon a detailed examination of his campaigns, except so far only as the events elucidate his character, or as a knowledge of them may be necessary for a fuller acquaintance with his life. Many circumstances of this kind occur between the day when he quitted his port of Southampton, and the hour which terminated his brief but eventful career on earth. The enemies of his fair fame cite some one or other of those transactions to prove him a mass of ambition, superstition, and cruelty. It will be the reader's part to decide for himself whether the facts in evidence bear out those charges, or whether a more equitable judgment would not rather pronounce him to be a man who, in the midst of a most exciting and distracting career, never forgot the principles of piety, justice, and mercy. To attest his valour we need summon no evidence; though even in that point, which the universal voice of Europe had pronounced to be unassailable, his challenge to the Dauphin has been cited by one author as an act that must tarnish his character. The justness of the reflection we shall weigh hereafter. Of licentiousness after his accession to the throne his enemies themselves have never ventured to whisper a suspicion.

As Henry's fleet was leaving his native shores, two incidents are said to have occurred of opposite omen, such as in those days of superstition were wont to exercise powerful influence over the minds of men far removed from the lowest ranks of the people. Swans were seen swimming gaily and fearlessly around the ships, as if hailing them on their own watery element; and their appearance was noted as a happy and encouraging auspice. On the other hand, a fire broke out in one of the large ships before Henry sailed, which did considerable damage among the vessels, not without loss of many lives; and this was deemed an omen of such dire portent, that many of the King's followers would have dissuaded him from persevering in his expedition.

Henry's was a pious, but not a religiously timid or superstitious mind; and, unaffected by this incident, or the entreaties of his friends, he proceeded on his voyage forthwith, and on Friday, August 13, at five o'clock in the afternoon, he entered the mouth of the Seine, and anchored at a place called Clef de Caus,[\[115\]](#) between Honfleur and Harfleur, three miles from the latter town. He landed his forces without opposition; and, on coming on shore himself, he knelt down, and prayed to Almighty God to prosper his just cause.[\[116\]](#)

Henry resolved on laying siege to Harfleur, the inhabitants of which seemed equally determined to resist him. The siege of Harfleur, which commenced on Sunday, August 18, is described with great minuteness by several writers. His brother, the Duke of Clarence, appears to have held the most prominent place among Henry's officers; and much praise is ascribed to him for his prowess and military talent. Every mode of attack and defence then reckoned among martial tactics was carried out on both sides.

In addition, however, to the wonted privations and hardships of a protracted siege, the English host was visited by a violent disease, which spread rapidly through every grade of the army, unsparingly thinning its ranks and carrying off its officers, and threatening annihilation to the whole body. Whilst this calamity was raging at its height, and making dreadful havoc among the soldiery, an incident is recorded to have taken place, to which the mind gladly turns from the din and turmoil of the siege, and the devastations of that fatal scourge; and though the scene is itself the chamber

of death, we cannot but feel a melancholy satisfaction in contemplating it for a while. An ecclesiastic, who was present in the camp, and in attendance on his royal master, records the anecdote in the most casual manner,[\[117\]](#) without a word of admiration or remark to call our attention to it, as though he were relating a circumstance of no unusual occurrence, and such merely as those who knew his master might hear of without surprise; whilst few pages of history bear to any monarch more beautiful and affecting evidence of habitual kindness of heart, pure sympathy with a suffering fellow-creature, and devoted fulfilment of the dearest offices of friendship. Whilst Richard Courtenay, Bishop of Norwich, one of the victims of the dysentery, was lingering in the agonies of death, we find Henry in the midst of his besieging army, at the height of a very severe struggle, war and disease raging on every side,—not in a council of his officers, planning the operations of to-morrow,—nor on his couch, giving his body and mind repose from the fatigues and excitement of his opening campaign,—but we see him on his knees at the death-bed of a dying minister of religion, joining in the offices of the church so long as the waning spirit could partake of its consolations; and then not commissioning others, however faithful representatives they might have been, to act in his stead, but by his own hands soothing the sufferings of the dying prelate, and striving to make the struggle of his latter moments less bitter. Had Henry visited the tent of the good Bishop when he first knew of his malady, and charged any of his numerous retinue to pay especial attention to his wants and comforts, it would have been regarded, at such an hour of pressing emergence, as an act worthy of a Christian King. But Henry, who in no department of his public duties ever willingly deputed to others what he could personally attend to himself, carried the same principle into the exercise of the charities of private life; and has here left a pattern of Christian sympathy and lowliness of mind, of genuine philanthropy, and the sincere affection of true friendship, worthy of prince and peasant alike to imitate. Bishop Courtenay is said to have been among Henry's chosen friends, recommended to him by the singular qualities of his head and his heart. He was a person (we are told) endowed with intellectual and moral excellences of a very high character; and Henry knew how to appreciate the value, and cultivate the friendship, of such a man. Having enjoyed the satisfaction and benefit of his society in life, now, when he was on the point of quitting this world for ever, Henry never withdrew from his bed; but, watching him with tender

anxiety till the ministers of religion had solemnized the last rite according to the prevailing practice of the church in those days, even then, "in his own person," he continued to supply the wants of sinking mortality, "with his own hands[118] wiping the chilled feet" of his dying friend. The manuscript proceeds to say, that, when life was extinct, with pious regard for his memory, Henry caused his body to be conveyed to England, and to be honourably buried among the royal corpses in Westminster.

Three days after this prelate's death, on Wednesday, September 18th, an agreement to surrender on the following Sunday was entered into; the inhabitants of the town pledging themselves by a most solemn oath to abide by the terms of the agreement. The ceremony on this occasion must have had a very imposing effect. The King's chaplain, Benedict Bishop of Bangor, in his pontifical dress, carried the consecrated Host to the walls of the town, preceded by thirty-two chaplains, each in full canonicals, and attended by as many esquires, one of whom bore a lighted taper before each priest. As soon as the parties were sworn on the elements, the townsmen were assured that they need fear no acts of wrong or violence, for the King wished rather to preserve than to destroy his own territory.

On Sunday, September 22, the town was surrendered with much solemn state into Henry's hands. At the appointed hour, Henry, being dressed in the robes of royalty, ascended a throne erected under a silk pavilion on the top of the hill opposite to the town. All his peers and great men were assembled around him. "Our King"[119] (says a writer who was probably an eye-witness) "sat in his estate as royal as did ever any King; and, as it is said, there never was a Christian King so royal, neither so lordly, sat in his seat as did he." From this seat to the town a passage was formed by the English soldiers, through which the late governor, Sir Lionel Braquemont, the Lord de Gaucourt, and others, with the Host borne before them, attended by those who had sworn to observe the treaty, and by thirty-four of the chief inhabitants, passed to Henry's presence, "who forgave them their injustice in keeping his own town from him; and, having hospitably entertained them, dismissed them courteously." Thus fell into Henry's hand one of the most important towns of Normandy, after a siege of about thirty-six days, during which the zeal and valour of the assailants and the besieged were equally displayed.[120]

On the following day Henry entered the town, dismounting at the gate, and walking barefoot to St. Martin's church, in which he gave solemn thanks to God for his success. He then commanded all the women and children, and the disabled, to be separated from those who had sworn allegiance to him, as well as from those who, having refused that oath, were regarded as prisoners. The persons thus separated were next day sent out of the town, to the number of nearly two thousand, loudly lamenting their fate. They were escorted by the English; and all persons belonging to the church, and the women and children, had a present of five sous for their journey, and were permitted to dress themselves in their best apparel, and carry each a moderate bundle with them. It was forbidden to search the priests, and also the heads or the bosoms of the women. At St. Aubon, about four miles from Harfleur, they were entreated to refresh themselves with bread and cheese and wine; at Lislebone the Marshal Boucicault received them, and they were forwarded by water to Rouen. At Henry's invitation, many tradesmen and others came over from England, and became inhabitants of Harfleur; the King, with the desire of strengthening the place, having guaranteed, by a proclamation through England, a house of inheritance to all who would settle there.

About this time Henry sent a message to the Dauphin, challenging him to single combat, and so to decide the dreadful struggle in which the two kingdoms were engaged, without the further effusion of blood. Occasion has been taken to reflect on this act of Henry's, as a stain both on his personal valour and on his principles of justice: the first, because he was twenty-seven years old, and the Dauphin not twenty; the latter, because it were unjust "to expect that so important a stake should be hazarded on the result of such a meeting." To enhance Henry's guilt of cowardice, we are told that he challenged "a mere youth, of whose prowess or bodily strength there is not the slightest evidence, and who died *in the December following*." This is not the first time we have had occasion to remark on this same writer's injustice towards Henry's memory. Why mention the Dauphin's death in the following December, except to insinuate that Henry *knew* he was then in a weak state of bodily health? Of this, however, there is not the shadow of reason for suspecting Henry. On the contrary, the evidence tends to the directly opposite conclusion. The Dauphin died on the 25th December following; but so sudden was his decease, that a suspicion

was excited of his having been poisoned. He had for a long time been actively engaged in heading one of the contending parties in France, and he is reported to have been a bold and presumptuous prince.[\[121\]](#) And, even a month after the battle of Agincourt, we find him, apparently in full strength both of body and mind, exercising the authority of the King, his father, in Paris; vigorously and effectually resisting the entrance of the Duke of Burgundy, who marched with his army direct to the gates of that city, determined to force for himself an entrance into it. And, on his father's relapsing into his malady, he vigorously seized the government, setting the Duke of Orleans at defiance, and carrying off the King, his father, ill as he was, to the siege of Arras.[\[122\]](#) Whether the difference of age between these two young warriors is so great as to justify such strong reflections on Henry's courage, must be left to the judgment of impartial minds. But, when the Dauphin is called a mere youth, it must be borne in mind that he was considerably older than Henry was when he headed his father's troops in Wales, or fought so gallantly in the field of Shrewsbury.

But we must not let this charge, affecting Henry's valour and justice, be dismissed without observing that not only did Henry believe, but it was the universal belief of the age, that "trial by battle" was a proper way of ending a dispute, and one acceptable to God: one in which the justice of the quarrel decided, more than the strength or skill of the combatants. We have proved that there could have been no grounds for Henry's supposing that he was sending a challenge to a youth enervated by sickness; and the difference of age alleged now, at length, in disparagement of Henry's valour, would have been scouted by all the good knights of Christendom, had it been pleaded as an apology for the Dauphin declining the challenge. Surely it indicates a conviction that the points in which the character of a man, famed for bravery and justice, is assailable, are few and unimportant, when such frivolous attacks as this are made on his fair fame.

HENRY'S CHALLENGE TO THE DAUPHIN may be thus translated:—

Henry, by the grace of God, King of France and England, Lord of Ireland, to the high and mighty Prince, the Dauphin of Vienne, our cousin, eldest son of the most mighty Prince, our cousin and adversary of France. Whereas, from reverence to God, and to avoid the shedding of human blood, we have many times and in many ways followed and sought for peace, and have not been able to possess it, yet our desire to secure it increases more and more; and well considering that our wars are followed by the death of men, the destruction of countries, the

wailings of women and children, and so many evils generally as every good Christian must lament and pity, especially ourselves, whom this affair most affects, as it does, to take all pains and diligence to find every means within our knowledge to avoid the above-mentioned evils and distresses, and to acquire the grace of God and the praise of the world. And, since we have thought and advised, it has seemed to us, considering it has pleased God to visit our cousin with infirmity, that the remedy rests upon us and you. And to the end that every one might know that we withdraw not ourselves from it, nor from our part in it, we offer you to put our whole quarrel, with God's grace, between our person and yours. And if it should seem to you that you cannot agree to this, because of the interest which you conceive our cousin, your father, has in it, we declare to you in this our intention, that if you will entertain it, and engage in it, we are well pleased that our said cousin, for our reverence to God, and because he is a sacred person, shall have and enjoy all he has at present for the term of his life, whatever shall happen by the will of God between us and you, as it shall be agreed between his council, ours, and yours.

So that if God shall give us the victory, the crown of France with its appurtenances, as our right, shall be immediately rendered to us without difficulty after his decease. And to this all the lords and estates of France shall be bound, as it shall be agreed between us.

For it is better for us, cousin, thus to decide this war for ever between our two persons, than to suffer the misbelievers, by occasion of our wars, to destroy Christianity, our holy mother the church to remain in divisions, and the people of God to destroy one another. We pray much that you may have as strong a desire to avoid that, and to come to peace, and seek all means of finding it. And let us trust in God that no better way than this can be found. And, therefore, in discharge of our soul, and in charge of yours, if such great evils follow, we make to you the above offer.

Protesting ever that we make this offer for the honour and fear of God, and for the above causes, of our own motion, without our royal relations, councillors, and subjects daring in so high a matter to advise us. Nor can it at any time to come be urged to our prejudice, nor in prejudice of our good right and title which we have at present to the said crown with its appurtenances, nor to the good right and title which we now have to other our lands and heritages on this side the sea, nor to our heirs and successors, if this our offer does not take full effect between us and you in the manner aforesaid. Given under our privy seal, at our town of Harfleur, the 16th^[123] day of September."

CHAPTER XXIII.

HENRY, WITH TROOPS MUCH WEAKENED, LEAVES HARFLEUR, FULLY PURPOSED TO MAKE FOR CALAIS, NOTWITHSTANDING THE THREATENED RESISTANCE OF THE FRENCH. — PASSES THE FIELD OF CRESSY. — FRENCH RESOLVED TO ENGAGE. — NIGHT BEFORE THE CONFLICT. — **FIELD OF AGINCOURT.** — SLAUGHTER OF PRISONERS. — HENRY, HIS ENEMIES THEMSELVES BEING JUDGES, FULLY EXCULPATED FROM EVERY SUSPICION OF CRUELTY OR UNCHIVALROUS BEARING. — HE PROCEEDS TO CALAIS. — THENCE TO LONDON. — RECEPTION BY HIS SUBJECTS. — HIS MODEST AND PIOUS DEMEANOUR. — SUPERSTITIOUS PROCEEDINGS OF THE ECCLESIASTICAL AUTHORITIES. — REFLECTIONS. — SONGS OF AGINCOURT.

1415.

Immediately after the surrender of Harfleur, Henry held a council to deliberate on his future measures. All agreed that, as winter was fast approaching, the King and his army should return to England; but there arose a difference of opinion as to the manner of their return. Henry entertained an insuperable objection against returning by sea; and, notwithstanding all the dangers to which he must inevitably be exposed, he resolved to march through Normandy to his town of Calais. He wished to see with his own eyes, he said, the territories which were by right his own; adding, that he put full trust in God, in whose name he had engaged in this, as he certainly deemed it, his righteous cause. His army had been frightfully diminished by the dysentery; he was compelled to leave a portion of the remainder to garrison Harfleur; and, after the most impartial consideration, the number of fighting men with whom he could enter upon his perilous journey cannot be supposed to have exceeded 9000, whilst the strong probability is that the army consisted of little more than 6000. What portion of admiration for bravery, and what of blame for rashness, an unprejudiced mind would mingle together, when endeavouring to assign the just reward

to Henry for his decision to make his way through the very heart of his enemy's country, himself so weak in resources, his enemy both so strong already, and gathering in overwhelming numbers from every side, is a problem of no easy solution. Probably we are very scantily provided with a knowledge of all his motives; and our praise or our censure might now be very different from what it would be, were we acquainted with all the circumstances of the case. How far he expected that the dissensions among the French would prevent them from uniting to offer him any formidable opposition, though not easy to answer, is a question not to be neglected. Especially might he have been influenced by the expectation that the French would not withdraw their forces from the interior, from fear of the Duke of Burgundy, who was ever on the watch to seize a favourable moment of attack. The fact is beyond doubt, that, having garrisoned Harfleur, he quitted that town about the 8th of October; leaving there all the heavy articles and carriages, with whatever would be an impediment to his progress, and conveying all the baggage of the army on horseback. Henry issued a proclamation, forbidding his soldiers, on pain of death, to be guilty of any kind of injustice or cruelty towards the inhabitants as they passed along.

The King of France had collected an army from all sides: he had more than 14,000 men-at-arms under valiant generals, with the greater part of whom he remained at Rouen, watching the motions of the English. On the 20th of October it was resolved in his council, by a large majority, that the English should be resisted in a regular and pitched battle. The King had received the celebrated standard, the Oriflamme, with much solemnity: and war had been declared by unfurling that consecrated ensign. There seemed at length to have spread through King and princes, and nobles and people alike, an enthusiastic spirit, determined to crush the invaders. The Dauphin himself could scarcely be prevailed upon to obey his father's injunctions, and to abstain from joining the army; his life being considered too precious to be exposed to such danger.

Henry meanwhile, after leaving Harfleur,[\[124\]](#) proceeded without any important interruption through Montevilliers, Fecamp, Arques, a town about four miles inland from Dieppe; and on Saturday, October 12, he passed about half a mile to the right of the town of Eu, where part of the French

troops were quartered. These sallied out on the English in great numbers, and very fiercely, but were soon repulsed; and a treaty was agreed upon between Henry and the inhabitants, who supplied refreshments to his army. He was now informed that the French would offer him battle in a day or two, whilst he was passing the river Somme. Undaunted by these tidings, he resolved to advance; and to cross that river at Blanchetache, the very spot at which Edward III. had passed it before the battle of Cressy. The field of Cressy was only ten English miles in advance; and it may be safely inferred that the remembrance of the struggle and victory of that day filled both Henry himself and his men with additional zeal and resolution. By the false assurance of a prisoner,[\[125\]](#) that the passage there was defended by many noblemen with a strong force, Henry was induced to change his route, and to proceed up the Somme on its left bank. He reached Abbeville on Sunday the 13th of October; but, to his sad disappointment, he found all the bridges broken down, and the enemy stationed on the opposite bank to resist his passage. At this time Henry's situation was most perilous and dispiriting. His provisions were nearly exhausted,—the enemy had laid waste their own country to deprive his army of all sustenance; and no prospect was before them but famine at once, and annihilation from the overwhelming forces of the French. His army proceeded next day, and passed within a league of Amiens, and were much refreshed with plenty of provisions; wine was found in such abundance that the King was obliged to issue a proclamation prohibiting excess. On the Thursday they reached a plain near Corbie, from which town the French made a sally against them, but were repulsed after a brief but spirited engagement. Here John Bromley gallantly recovered the standard of Guienne, and for his valour was allowed to bear its figure for his crest. Here too Henry showed that, amidst all his perils and hardships, he was resolved to maintain the discipline of his army by inflicting the punishment denounced by his proclamation against violence or sacrilege. One of the soldiers was detected with a copper-gilt pix in his sleeve,[\[126\]](#) which he had stolen from a neighbouring church. Henry sentenced him forthwith to be hung, as a warning to all others not to offend with the hope of impunity.

Quitting Corbie, they passed close to Nesle on the 18th October; when Henry, on the point of laying waste that district, heard that a passage over the Somme was at length discovered. The French, meanwhile, had

contented themselves with proceeding before him, and guarding the passages of the river. Whether the policy of allowing the English to exhaust their strength of body and mind be sufficient, or not, to account for their conduct, we have not evidence enough to pronounce decidedly; but, on many occasions, their abstinence from striking a blow seems otherwise almost inexplicable. Henry made now one of his most vigorous efforts to effect a passage; nothing, we are told, could exceed his own personal exertions.[\[127\]](#) The French had broken up the lanes leading to the fords, and thrown every obstacle in the way. However, nothing seemed able to resist his resolution; and in a few hours the whole of his army had crossed. Great was the joy of the English on having surmounted this formidable obstacle; and they now hoped to reach Calais without a battle. But on the following day two heralds came to announce to Henry the resolution of the French to give him battle, and to take vengeance on him for invading their country. Henry, without any change of countenance, with much gentleness replied, "All would be done according to the will of God." On the heralds then asking him by what route he proposed to proceed, "Straight to Calais" was the reply. He then advised them not to attempt to interrupt his march, but to avoid the shedding of Christian blood. The heralds fell down upon their knees as they first approached him; and on dismissing them, he gave them a hundred golden crowns. From the hour of these heralds departing, Henry and his men always wore their warrior-dress, in readiness for battle; and he spoke to his army with much tenderness and spirit, and evidently with a powerful effect. To his surprise, next morning none appeared to oppose him, and he proceeded on his journey. Many circumstances happened from day to day, and hour to hour, calculated to dispirit the English, by exciting an assurance that the French army was near, and waiting their own time to seize upon their prey; delaying only in order to make their utter demolition more certain. Henry's route probably was taken through Peronne, Albert, Bonnières,[\[128\]](#) Frevent; and he reached the river Ternoise (called the River of Swords) without any remarkable occurrence. No sooner, however, had he passed the Ternoise, and mounted the hill not far from Maisoncelle, than a man came, breathless, and told the Duke of York that the enemy was approaching in countless numbers. Henry forthwith commanded the main body to halt, and setting spurs to his horse hastened to view the enemy, who seemed to him like an immense forest covering the whole country. Nothing dismayed, he ordered his troops to

dismount and prepare for battle; animating them by his calm, intrepid bearing, and by his language of kindness and encouragement. The French, who were first seen as they were emerging from a valley a mile off in three columns, halted at the distance of about half a mile.

The English felt assured that they would be immediately attacked; and, as soon as they were drawn up in order of battle, they prepared for death. The greatest want then felt in the camp was the lack of priests,[\[129\]](#) every one being anxiously desirous of making confession and obtaining absolution. Henry's presence of mind, and noble soul, and pious trust, and intrepid spirit, showed themselves on this occasion in words which ought never to be forgotten. Sir Walter Hungerford having expressed his sorrow that they had not ten thousand of those gallant archers who would be most desirous of aiding their King in his hour of need, the King rebuked him, saying, "He spoke idly, for, as his hope was in God, in whom he trusted for victory, he would not, if he could, increase his forces even by a single person; for, if it was the pleasure of the Almighty, few as were his followers, they were sufficient to chastise the confidence of the enemy, who relied on their numbers."

About sun-set the French took up their quarters in the orchards and villages of Agincourt and Ruissauville. Henry, anxiously seeking lodgings for his exhausted soldiers, at length found in the village of Maisoncelle a better supply for their wants than they had met with since they left Harfleur; and a small hut afforded the King himself protection from the weather.[\[130\]](#) Before the English quitted their position to go to Maisoncelle, Henry permitted all his prisoners to depart, upon condition that if he gained the approaching battle, they should return and surrender themselves; but, if he were defeated, they should be released from their engagements. This night, through nearly the whole of which rain fell heavily, was passed by the two hostile armies, about one mile distant from each other, very differently, but not inconsistently with their relative circumstances. Both suffered severely from the weather as well as from fatigue; but whilst the French, anticipating an easy and sure victory, played at dice for their prisoners as their stake; the English, having prepared their weapons for the conflict, betook themselves to prayer, and the observance of the other ordinances of their religion.

At day-break, on Friday, October 25, the French drew up in order of battle, in three lines, on the plain of Agincourt, through which was the route to Calais. Of their numbers the accounts both of English and French writers vary exceedingly, and it is impossible to fix upon any amount with confidence; probably, however, at the very lowest calculation they were more than fifty thousand men.

Henry was up at break of day, and immediately attended mass. He then, mounted on a small grey horse, bearing on his coat the arms of France and England, and wearing a magnificent crown on his head, drew up his men in order of battle in an open field. His main body, consisting of men-at-arms, he commanded himself; the vanguard was committed, as a right wing, to the Duke of York at his own request; and the rear-guard was posted, as a left wing, under the command of the Lord Camois. The archers were placed between the wings in the form of a wedge, with their poles fixed before them as a protection against the cavalry. Henry then rode along the lines, and addressed them in a speech full of spirit, well fitted to inspire in his men enthusiastic ardour and devotedness. "Sir," was the reply, "we pray God to give you a good life, and victory over your enemies." At this juncture (we are told by one historian^[131]) an attempt was made at negociation, but it failed; Henry, in the midst of all his present perils, insisting virtually on the same terms which he had offered when in safety within the realm of England.^[132]

The King assigned to the gallant veteran, Sir Thomas Erpingham, a friend of Henry, no less venerable for his age than distinguished for his bravery and military skill, the honourable duty of arraying his host. He first calmly marshalled the troops, placing the archers foremost and the men-at-arms behind them; and then, riding in front of the line, exhorted his brother-warriors in the name of their prince to fight valiantly. A third time did this aged and fearless knight ride before the ranks which were stationed to receive the first shock of the enemy, and if possible to turn back the apparently resistless and overwhelming tide of battle; and then, having deliberately executed his commission to the full, he threw up into the air the truncheon which he held in his hand, shouting, "Now strike!" and, immediately dismounting, joined the King and his attendants, who were all on foot. When the soldiers saw the staff in the air, and heard the cry of the

veteran, they raised such a tremendous shout as startled the enemy, and filled them with amazement.[\[133\]](#)

It was now approaching mid-day; when Henry, perceiving that the enemy would not commence the attack, but were waiting either for reinforcements, or in the hope of compelling him by want of provisions to surrender, issued the command, "Banners, advance!" His soldiers fell down instantly upon the ground prostrate, and implored the Almighty to succour them; each, as it is said, putting a morsel of earth into his mouth in remembrance of their mortality. They then rose, and advanced firmly towards the enemy, shouting, and with the sound of trumpets. The Constable of France commanded his advanced guard to meet them, who instantly obeyed, with the war-cry "Montjoye!" The battle commenced by a shower of arrows from the English, which did great execution. The French cavalry were immediately thrown into confusion, chiefly in consequence of the horses rushing on the pointed stakes which were fixed before the English archers, and, maddened with pain, turning upon their own ranks. The battle was then tremendously obstinate: at one time, the shock of the French body caused the English to give way; but it was only to rush again upon their enemies with a renewed and still more impetuous and desperate attack. Their charge, like a torrent of mighty waters, was resistless; and the archers, having exhausted their quivers, and betaking themselves to their swords and bills and hatchets, the slaughter among the ranks of the French was dreadful. The Duke of Alençon endeavoured in vain to rally his men, now giving way, and being worsted on every side; and, returning himself to the struggle, he fell in single combat with King Henry himself. Whilst the conflict was raging, Anthony, Duke of Brabant, came up with such of his forces as could keep pace with him in his rapid haste towards the field of battle, and instantly mingled in the thickest of the fight: he fell too; gallantly, but unsuccessfully, striving to stem the flood. The battle seemed now to be decided, when that event took place, which every one must lament, and which nothing but necessity could justify,—

THE SLAUGHTER OF THE PRISONERS AT AGINCOURT.

The name of Henry of Monmouth is inseparable from the Battle of Agincourt; and immeasurably better had it been for his fair fame had

himself and his little army been crushed in that tremendous struggle, by the overwhelming chivalry of France, than that he should have stained that day of conquest and glory by an act of cruelty or vengeance. If any cause except palpable and inevitable necessity could be proved to have suggested the dreadful mandate for his soldiers to put their prisoners to the sword, his memory must be branded by a stigma which no personal courage, not a whole life devoted to deeds of arms, nor any unprecedented career of conquest, could obliterate. The charge of cruelty, however, like some other accusations, examined at length in these Memoirs, is of comparatively recent origin; and as in those former instances, so in this, our duty is to ascertain the facts from the best evidence, and dispassionately to draw our inference from those facts after an upright scrutiny and patient weighing of the whole question in all its bearings. Our abhorrence of the crime may well make us hesitate before we pronounce judgment against one to whose mercy and chivalrous honour his contemporaries bore willing and abundant testimony; the enormity of so dreadful an example compels us, in the name of humanity and of justice, not to screen the guilty. We may be wisely jealous of the bias and prejudice which his brilliant talents, and his life of patriotism and glory, may unconsciously communicate to our minds; we must be also upon our guard lest an excessive resolution to do justice, foster imperceptibly a morbid acquiescence in the condemnation of the accused.

The facts, then, as they are gleaned from those authors who wrote nearest to the time (two of whom, one French, the other English, were actually themselves present on the field of battle, and were eye-witnesses of some portion at least of the circumstances which they narrate,) seem to have been these, in their order and character.

At the close of one of the most desperate struggles ever recorded in the annals of ancient or modern warfare, whilst the enemy were in the act of quitting the field, but had not left it, the English were employing what remained of their well nigh exhausted strength in guarding their prisoners, and separating the living from the dead, who lay upon each other, heaps upon heaps, in one confused and indiscriminate mass. On a sudden a shout was raised, and reached Henry, that a fresh reinforcement^[134] of the enemy in overwhelming numbers had attacked the baggage, and were advancing in battle-array against him. He was himself just released from the

furious conflict in which, at the close of his almost unparalleled personal exertion, he engaged with the Duke of Alençon, and slew him on the spot. Precisely, also, at this juncture, the main body of the French who had been engaged in the battle, and were apparently retreating, were seen to be collecting in great numbers, and forming themselves into bodies, throughout the plain, with the purpose, as it appeared, of returning to the engagement.

To delay might have been the total sacrifice of himself and his gallant little band; to hesitate might have been death. Henry instantly, without a moment's interval, by sound of trumpet ordered his men to form themselves, and attack the body who were advancing upon his rear, and to put the prisoners to death, "lest they should rush upon his men during the fight." These mandates were obeyed.[\[135\]](#) The French reinforcement, advancing from the quarter where the baggage was stationed, no sooner felt a shower of arrows, and saw a body of men ready to give them battle, than they turned to flight; and instantly Henry, on seeing them run, stopped the slaughter of the prisoners, and made it known to all that he had had recourse to the measure only in self-defence. Henry, in order to prevent the recurrence of such a dreadful catastrophe, sent forthwith a herald to those companies of the enemy who were still lingering very suspiciously through the field, and charged them either to come to battle at once, or to withdraw from his sight; adding, that, should they array themselves afterwards to renew the battle, he would show no mercy, nor spare either fighting-men or prisoners.

Of the general accuracy of this statement of the facts little doubt can be entertained, though in the midst of the confusion of such a battle-field it would not be matter of surprise were some of the circumstances mistaken or exaggerated. In reflecting on this course of incidents, the thought forces itself upon our mind, that the mandate was given, not in cool blood, nor when there was time and opportunity for deliberation and for calculating upon the means and chances of safety, but upon the instant, on a sudden unexpected renewal of the engagement from a quarter from which no danger was anticipated; at a moment, too, when, just after the heat of the battle was passing over, the routed enemy were collecting again in great numbers in various parts of the field, with a view evidently of returning to

the charge and crushing their conquerors; at a moment, too, when the English were scattered about, separating the living from the dead, and all was yet confusion and uncertainty. Another fact, as clearly and distinctly recorded as the original issuing of the mandate, is, that no sooner was the danger of the immediate and inevitable sacrifice of the lives of his men removed by the retreat of the assailants, than, without waiting for the dispersion of those menacing bodies then congregating around him, Henry instantly countermanded the order, and saved the remainder of the prisoners. The bare facts of the case, from first to last, admit of no other alternative than for our judgment to pronounce it to have been altogether an imperative inevitable act of self-preservation, without the sacrifice of any life, or the suffering of any human being, beyond the absolute and indispensable necessity of the case.

But, perhaps, the most striking and conclusive testimony in vindication of Henry's character on that day of slaughter and victory, is borne both by the silence and also by the expressed sentiments of the contemporary historians. This evidence deserves to be put more prominently forward than it has ever yet been. Indeed, as long as there was no charge of cruelty, or unnecessary violence, brought against his name in this particular, there was little need of alleging any evidence in his defence. It remained for modern writers, after a lapse of centuries, to stigmatize the command as an act of barbarity, and to represent it as having tarnished and stained the victory of him who gave it. [136] It is, however, a most remarkable and satisfactory circumstance that, of the contemporary historians, and those who followed most closely upon them, who have detailed the proceedings with more or less minuteness, and with a great variety though no inconsistency of circumstances, in whose views, moreover, all subsequent writers, with few exceptions, have unreservedly acquiesced, not one single individual is found to cast the slightest imputation on Henry for injustice or cruelty; while some, in their account of the battle, have not made the most distant allusion to the circumstance. All the earlier writers who refer to it appear, with one consent, to have considered the order as the result of dire and unavoidable necessity on the part of the English King. Not only so: whilst no one who witnessed the engagement, or lived at the time, ever threw the shadow of reproach or of complaint on Henry or his army, various writers, especially among the French historians, join in reprobating the unjustifiable conduct of

those among the French troops who rendered the massacre inevitable, and cast on their own countrymen the entire responsibility and blame for the whole melancholy affair. Instead of any attempt to sully and tarnish the glory won by the English on that day, by pointing to their cruel and barbarous treatment of unarmed prisoners, they visit their own people with the very strongest terms of malediction, as the sole culpable origin and cause of the evil. And that these were not only the sentiments of the writers themselves, but were participated in by their countrymen at large, is evidenced by the record of a fact which has been generally overlooked. Those who were deemed guilty of thus exposing their countrymen to death, by unjustifiably renewing the attack when the conflict was acknowledged to be over, and after the French soldiery had given up the field, not only were exposed to disgrace in their characters, but suffered punishment also for the offence in their persons. Anticipating censure and severe handling as the consequences of their misconduct, they made valuable presents to such as they thought able to screen them; but so decided was the indignation and resentment of their countrymen, that the leaders of the offending parties were cast into prison, and suffered a long confinement, as the punishment for their misconduct on that day.

The inference, then, which the facts, as they are delivered by English and French writers, compel us to draw, coincides with the professed sentiments of all contemporaries. Those, on the one hand, who shared the glory and were proud of the day of Agincourt, and those, on the other, whose national pride, and wounded honour, and participation in the calamities poured that day upon the noblest families of France, and in the mourning spread far and wide throughout the land, caused them to abhor the very name of Agincourt, all sanction our adoption of that one inference: *Henry did not stain his victory by any act of cruelty*. His character comes out of the investigation untarnished by a suspicion of his having wantonly shed the blood of a single fellow-creature.

To enable the reader to judge for himself how far the view taken in the text is justified by the evidence, the Author has thought it desirable to cite from different writers, French as well as English, the passages at length in which they describe the transaction.

The Chaplain of Henry V, an eye-witness, who was himself stationed with the baggage, and whose account is contained in the fasciculus known as "MS. Sloane, 1776, p. 67," thus reports the transaction:

"When some of the enemy's foreranks were slain, those behind pressed over the dead, and others again falling on them were immediately put to death; and near Henry's banners so large was the pile of corpses, and of those who were thrown upon them, that the English stood on heaps which exceeded a man's height, and felled their adversaries below with swords and axes. And when, at length, for the space of two or three hours, that powerful body of the first ranks had been broken through and crushed to pieces, and the rest were forced to fly, our men began to move those heaps, and to separate the living from the dead. And behold, suddenly, with what angry dispensation of Providence it is not known, (*nescitur in quâ irâ Dei,*) a shout is made that the cavalry of the enemy in an overwhelming and fresh body were rallying, and forming themselves to attack our men, few in number, and worn out with fatigue. And the captives, without any respect of persons, (except the Dukes of Orleans and Bourbon, and certain other illustrious men, and a few besides,) were put the sword, to prevent their becoming our ruin in the approaching struggle. And, after a little while, the enemy, (by the Almighty's will,) having tasted the sharpness of our arrows, and seeing that our King was approaching them, left us a field of blood, with chariots and many other carriages filled with provisions and weapons, lances and bows."

Jean Le Fevre, Seigneur de St. Remy, who was also an eye-witness, being present in the English camp, records the event, and his own opinion of it, thus:

"Then there befel them a very great misfortune; for a large body of the rear-guard, in which were many French, Bretons, Gascons, and others, who had betaken themselves to flight, and had with them a large number of standards and flags, showed signs of an intention to fight, and were marching in order. When the English perceived them thus congregated, orders were given by the King of England for every one to slay his prisoners; but those who had taken them were unwilling to put them to death, because they had taken those only who could give a high ransom. On the King being apprised that they would not kill their prisoners, he gave in charge to a gentleman with two hundred archers to put them all to death. The order of the King was obeyed by this esquire, which was a lamentable affair; for all that body of French nobility were *in cold blood* cut and hewed, head and face,—a wonderful thing to see. THAT ACCURSED BAND OF FRENCHMEN, WHO THUS CAUSED THAT NOBLE CHIVALRY TO BE MURDERED, when they saw that the English were ready to receive them and give them battle, betook themselves to flight suddenly; and those who could, saved themselves; and the greater part of those who were on horseback saved themselves, but of them who were on foot the greater part were put to death."

Elmham thus records the transaction:—

"The English, already wearied, and for the most part destitute of arms fit for a charge, when the French were arraying themselves for battle with a view to the renewal of the conflict, fearing lest the persons they had taken should rush upon them in the struggle, slew many of them, though noble, with the sword. The King then, by a herald, commanded those French soldiers who were still occupying the field either to come to battle at once, or speedily to depart out of his sight; assuring them that, if they should again array themselves for a renewed engagement, both they and the prisoners yet remaining should perish without mercy, with the most dire vengeance which the English could inflict."

Fabyan's account differs from that of other writers only in one particular; he represents the retirement of the French, who had rallied for a renewal of the conflict, to have been the result of the message sent to them by the Duke of Orleans and his fellow-prisoners, in their panic on hearing Henry's mandate, which seemed to put their lives into immediate jeopardy.

"When the King, by power and grace of God more than by force of man, had gotten this triumphant victory, and returned his people from the chase of his enemies, tidings were brought to him that a new host of Frenchmen were coming towards him. Wherefore he commanded his people to be embattled; and, that done, made proclamation through the host that every man should slay his prisoners: by reason of which proclamation the Duke of Orleans, and the other lords of France, were in such fear, that anon, by the licence of the King, they sent such word unto the said host that they withdrew."

The contemporary author whose work is translated by Laboureur, having in impassioned language spoken of the "eternal reproach, and ever deplorable calamity of the miserable battle of Agincourt," instead of attempting to make the English partake in any degree of the disgrace which on that day stained the annals of France, tells us that Henry, believing a great body of the vanguard, who had been broken through, were running, not in flight, but to join the rest of the army and renew the attack, gave orders for all the prisoners to be put to the sword; and the carnage lasted till it was known they were actually running away. He then stopped it; and explained that his orders were given in doubt of the enemy's intentions.—This writer seems to have been mistaken in his view of the circumstances; but the thought of Henry having acted unjustifiably does not seem to have crossed his mind.

Monstrelet's account is somewhat different from the two last, and more full in its details:

"During the heat of the combat the English made several prisoners; and then came news to the King of England that the French were attacking them from the rear, and that they had already taken his sumpter-horses and baggage. This was true; for Robinet de Bournonville and Riffart de Clamasse, Ysambert d'Azencourt, and some other men-at-arms, accompanied by six hundred peasants, went to plunder the baggage, and carried off a great quantity of the property of the camp, and a large number of horses, whilst those who were their guards were engaged in the battle. This pillage caused the King great trouble, for he saw also at the same time in the open field those French who had taken to flight rallying themselves in companies; and he doubted whether their intention was not to renew the engagement. He therefore caused a proclamation to be made by sound of trumpet, that every Englishman should on pain of death^[137] slay his prisoners, to prevent their succouring their own people in the time of need; and then, on the sudden, followed a very great carnage of French prisoners. For which proceeding, Robinet de Bournonville and Ysambart d'Azencourt were afterwards punished and imprisoned a long time by order of John Duke of Burgundy, notwithstanding they had given to Philip Earl of Charolois, his son, an exceedingly valuable sword, studded with precious stones and jewels, belonging to the King of England, which they had found and taken with the other booty, that the Earl might interest himself for them should any trouble overtake them in consequence of this circumstance."

Des Ursins represents the catastrophe to have been occasioned by the news spread through the field that the Duke of Brittany was arrived with a powerful reinforcement, on which the French rallied. He gives, however, two accounts; in one of which he reports the prisoners taken by the English to be fourteen thousand, a number exceeding the whole body of fighting men in the English army.

Paradin de Cuyseault, in his Annals of Burgundy, marks very strongly in how serious a light the offence of the French assailants was viewed by their contemporaries:

"And this [the order for the slaughter of the prisoners] was executed, of which the said Bournonville and Azencourt were the cause: and they being accused of this charge before the Duke of Burgundy, his will was that they should suffer death: but the Earl of Charolois saved them, in return for the beautiful sword."

Pierre de Fenin, a contemporary esquire, and a clerk of the household to Charles VI, employs expressions very pointedly exculpatory of the English; he does not speak of Henry's mandate at all:

"Whilst the battle between the English and French was yet *pending and going on*, and the English had already almost gained the mastery, Isambert d'Azencourt, and Robinet de Bournonville, accompanied by some men-at-arms of little note, made an assault on the baggage of the English, and caused a great [affray] terror. When the English saw that it was the French who were coming upon them to attack them, *in that necessity they felt themselves obliged* to put to death many whom they had already made prisoners; for which the two persons above mentioned were afterwards made the objects of severe execration, and were also punished for the offence by the Duke of Burgundy."[\[138\]](#)

Among the many instances of heroism which occurred during the battle, Henry's conduct was particularly distinguished. He fought on foot like a lion, as our annalists express themselves, and was throughout the noblest example of valour. Especially was his gallant rescue of his brother, the Duke of Gloucester, remembered with admiration. That prince had been wounded by a dagger, and thrown on the ground by the Duke of Alençon and his soldiers, when Henry rushed between them, and defended his brother till he was removed from the conflict. This noble deed nearly cost him his life; for, stooping down to raise his brother, the Duke of Alençon, or one of his men, struck him such a blow as to break off a part of his crown.

The loss on both sides has been very variously reported. Probably of the French not less than ten thousand fell in that field of blood;[\[139\]](#) of the English perhaps less than one-tenth of that number. But France did not on that day reckon her loss by the number of the slain; the chief of her chivalry[\[140\]](#) and nobility fell there. On the English side the only men of note who were slain in the battle were the Duke of York, the Earl of Suffolk, Sir Richard Kedgeley, Thomas Fitz-Henry, John de Peniton, and David Gamme.[\[141\]](#)

The last-mentioned person is that David Gamme who was ransomed from Owyn Glendowr, and who is reported to have replied, when questioned as

to the number of the enemy, "My liege, there are enough to be slain, enough to be taken prisoners, and enough to run away!" This gallant speech of David Gamme immediately before the battle, has been delivered down from father to son among his Cambrian compatriots with feelings of exultation and pride. A circumstance of a very opposite character and tendency (which has never, it is believed, hitherto appeared in our histories,) must not be suppressed here. Among those who swelled the enormous host which on that day gave battle to the King of England, were found natives of his own Principality. During the dreadful devastations caused by Owyn Glyndowr, great numbers left their mansions and estates a prey to his fury, and saved themselves from personal violence by taking refuge in England, or beyond the seas. Many, too, of those who had made themselves notorious as Owyn's partisans, fled from Wales when his cause began to falter, and avoided the penalty of perseverance in their rebellion, or the humiliating alternative of submission to one whom they deemed a tyrant and usurper. Quitting their native soil in the enjoyment of health and strength, not a few of these inhabitants of the Principality enlisted under the standard of foreign powers; especially (as it is reasonable to conclude) of the King of France, who had espoused the cause for which they were expatriated. How large or how small a number of Welshmen fell in the ranks of the French on that day, or how many escaped, we have no means of ascertaining. Our attention is drawn to the subject by the record of a fact too specific, and too well authenticated, to be doubted or evaded.[\[142\]](#) William Gwyn of Llanstephan, was in the army of the enemy on the field of Agincourt, and his corpse was found among the slain. His castle of Llanstephan was in consequence forfeited to the crown, and was granted to the King's brother, Humphrey Duke of Gloucester.

Being left master of the field, Henry withdrew his army a few paces, and addressed them in a speech very characteristic of his mind. After thanking them for their services, he bade them consider his success as undoubted proof of the justice of his cause; and directed them not to pride themselves on the event, but to give the glory to God. Henry then called to him Montjoye, the principal herald of France, and demanded of him to whom the victory belonged; who replied, that it was to the King of England. He

then asked the name of the neighbouring castle; and, being informed that it was Agincourt, "Then," said he, "this shall for ever be called

"THE BATTLE OF AGINCOURT."[\[143\]](#)

Henry, naturally anxious to hasten with his troops beyond the reach of his enemies, and to arrive at Calais before they could recover from their present overwhelming distress, removed from his quarters, passing through the field of battle early on the next day, taking his prisoners with him. Many vague expressions occur in some writers, which might be wrested to imply wanton cruelty in the English after the battle; but no direct charge of the sort is brought against them; and we may reasonably hope that there was no more of human suffering than of necessity followed so tremendous a conflict: whilst all writers agree in recording and extolling the kindness, and compassion, and courtesy shown by Henry to his prisoners, especially to the Duke of Orleans; endeavouring by all means in his power to cheer and console them. Just as after the battle of Grosmont, when he was only seventeen years old, so now in the prime of manhood, on the field of Agincourt, we find in him the same kind and warm-hearted conqueror: "In battle a lion; but, duty appeased, in mercy a lamb!"

The army found great difficulty at Calais from the scarcity of provisions; and the prisoners, as may be supposed, were in still greater distress. The moment Henry, who was staying at Guisnes, heard of it, he ordered vessels to be procured to convey both soldiers and prisoners to England. Henry himself reached Calais[\[144\]](#) on the 29th of October, and was received with every demonstration of loyalty. He was met by the clergy singing Te Deum; whilst the inhabitants shouted, "Welcome the King, our Sovereign Lord!" News reached London very early, whilst the citizens were yet in bed, on Tuesday, October 29; and on that day the victory was celebrated by religious processions, in which we are told the Queen Dowager joined, though Arthur, Count of Richmond, her own son, was among the prisoners. On Monday, November 4, the Duke of Bedford announced the welcome news officially to parliament. Henry embarked for England on Saturday, 16th of November, and reached Dover late on the same day, though the wind had been very boisterous, and one or two of his vessels were lost. So overflowing was the joy and zeal of his subjects, that we are told they

rushed into the sea, and brought him to shore in their arms. At Canterbury he was met by the archbishop and clergy: on Friday, 22nd of November, he slept at Eltham. The next day he was met, about ten o'clock, at Blackheath, by the Mayor and all the civic authorities of London, dressed in their most splendid robes, and accompanied by not less than twenty thousand citizens on horseback.

In London a most magnificent pageant was ready to welcome him. Minute descriptions of the various devices, such probably as England had never seen before, have come down to us. But we need take no further notice of them than to remark, that during the splendid scene, which lasted from ten o'clock till three, (in the course of which Henry humbly returned thanks both in St. Paul's and in Westminster Abbey,) the King's deportment was singularly modest. His dress was simple; he rode gravely on, attended by a small retinue; and, his thoughts apparently wrapped up in contemplating the power and goodness of the Almighty, he seemed altogether indifferent to the splendour of the scenes and the devotedness of the crowds through which he passed. So anxious was he to avoid exciting the applause of his people, that he would not allow the helmet which he wore at Agincourt to be exhibited on this occasion; the battered state of which bore evidence to the danger he had encountered: nor would he allow the minstrels to compose verses, or sing songs, to his praise; but persisted in attributing the glory of his victory to God alone.

It is pleasing to trace the rewards[\[145\]](#) bestowed by Henry on his companions in arms at Agincourt, and the measures which he adopted to preserve their names from oblivion. With this view he doubtless caused a roll to be made recording their names; though only a transcript of one part has been yet discovered among the archives. We may hope that not many years will elapse before numbers of those most interesting documents which now lie buried in heaps of confusion will be brought to light. Henry selected to fill every vacancy in the order of the Garter, (not bestowed on sovereign princes,) the peers and distinguished commanders who fought with him at Agincourt; and when he restricted the use of coats of arms in a subsequent expedition to those who could prove their right to them, he excepts those only who bore arms with him at Agincourt. To commemorate

this victory with more especial honour, he created a King-at-arms, called "Agincourt."

Our reformed views of Christian truth must not make us undervalue the testimony borne to Henry's gratitude towards his companions in arms, though they were removed by death from all earthly favours and rewards. He did for them what he could; and though we believe him to have been performing a vain office, and profitless to those whom it was intended to benefit, in the prevailing superstition of those days we see traces of the kindness and grateful spirit of the hero.[\[146\]](#)

Many of the French princes taken at Agincourt remained prisoners in England for many years. The Duke of Bourbon died in confinement. The Duke of Orleans was not released for five-and-twenty years. Whilst a captive in the Tower of London, he had recourse to the solace of literature; and composed many pieces of poetry, still preserved in the British Museum, which indicate genius and cultivated taste.

How highly the people of England valued this victory is seen in very many particulars. The superstition of those times was also made to contribute to its celebrity. The victory of Agincourt was gained on the feast of the Translation of St. John of Beverley, and was ascribed to his merits. His festival had before been kept on the 7th of May; but now it was ordained to be celebrated for ever on the 25th of October. But that was the feast of Crispin and Crispianus; and so the authorities of the church decreed that all three saints should share in the offices of that day.[\[147\]](#)

The Archbishop declares that this ecclesiastical constitution was made in full convocation by the will, counsel, and consent of all his brothers, and also at the special instance of their most Christian King.

The document abounds to the overflow with the gross superstition of the age. It is only by recalling what that degrading superstition was, that we can estimate at their proper value the blessings of the Reformation. Of the genuineness of this document there can be no doubt. It was addressed by Henry Chicheley, Archbishop of Canterbury, to the Vicar of the Bishop of

London, who was then at the council of Constance; and its preamble at least deserves a place here.

"Henry, by divine permission, Archbishop of Canterbury, Primate of all England, and Legate of the Apostolic see, to our beloved son the spiritual Vicar-general of our venerable brother R. by the grace of God, Bishop of London, now in foreign parts. The holy honour of the English church (whose praise and fame, in devoted veneration of God and his saints, the whole world extols above the churches of other regions and provinces,) requires that the same church shall more abound with the praises of those, and more exultingly rejoice in glad devotion to them, by whose patronage and grace of miracles she rejoices to flourish; and by whose pious intercession the state, not only of the church, but of the whole realm, together with the inward sweetness of peace and quiet, and with victory gained over foreign enemies, is defended by just rulers.

"The grace of this help, though God to the same church, and to the inhabitants of the realm of England, hath often decreed to show by the merits of divers saints, (with whom she shines gloriously on every side,) yet in these last days He has evidently deigned more miraculously and more especially to console the aforesaid church, together with the aforesaid nobles, inhabitants, and all members of the kingdom, by the especial suffrage of her (almifici) gracious confessor and bishop, the most blessed John of Beverley, as we verily believe!

"Oh! ineffable consolation, especially in our times, in every age pleasant, and ever to be called to mind; namely, the victory of our most Christian Prince, King Henry V. of England, and of his army, in the battle of Agincourt, lately fought in the parts of Picardy; which on the Feast of the Translation of the said Saint, to the honour of the divine name, and to the honour of the realm of England, from the boundless mercy of God, was granted to the English.

"On which Feast of his Translation, whilst the struggle between our countrymen and the French was being carried on, as to the hearing of us and our brethren in our last convocation, abundantly and especially, the true report of the inhabitants of that country brought the tidings, that from his tomb sacred oil flowed, drops falling as of sweat, indicative of the divine mercy towards his people, doubtless obtained by the merits of that most holy man.

"Wishing, therefore, in our province to spread an increase of divine worship, and especially to extol further the praise of so great a patron, with the wills, counsel, and assent of our brethren and the clergy in the said convocation, and no less at the special instance of the said most Christian Prince, we have determined that the memory of that most holy confessor everywhere throughout our province should be exalted with feelings of prayers and devotions [votivis et devotis affectibus]."

Then follows the decree above mentioned.

This mass of extravagant folly and blind superstition, this presumptuous sharing of God's omnipotence and sovereign might with the power of such poor erring fellow-mortals as the corrupt ministers of a corrupt church had presumptuously ranked among the inhabitants of heaven,—thus daring to forestal the judgment of Christ at the last day, and to pronounce on the glory

of a man whose spiritual state Omniscience alone can know,—it is impossible to contemplate without feelings of gratitude that Heaven's mercy has released us from such perverted use of the Gospel of the Saviour; nor without a prayer that the Spirit of light and truth would guide those of our fellow-creatures who are still walking in the same land of darkness and error, into the clear light of Christian truth.

The Author, to whom the following "Song of Agincourt" has been familiar from his childhood, cannot refrain from inserting it here. This is that ancient, and, as it is believed, contemporary ballad, which has preserved to our times that golden stanza which appears in the title page of these volumes; and every word of which reflects the character of Henry as a hero and a merciful man. The quotation, also, from Burnet's History of Music, and the contemporary song to which he refers, will, it is presumed, be generally acceptable.

SONG OF AGINCOURT.

As our King lay on his bed,
All musing at the hour of prime,[\[148\]](#)
He bethought him of the King of France,
And tribute due for so long a time.

He called unto him his lovely page,
His lovely page then called he;
Saying, You must go to the King in France,
To the King in France right speedily.

Tell him to send me my tribute home,
Ten ton of gold that is due to me;
Unless he send me my tribute home,
Soon in French land I will him see.

Away then goes this lovely page
As fast, as fast as he could hie;
And, when he came to the King in France,
He fell all down on his bended knee.

My master greets you, sir, and says,
Ten ton of gold is due to me;
Unless you send me my tribute home,
You in French land soon shall see me.

Your master is young, and of tender age,
Not fit to come into my degree;

I'll send him home some tennis-balls
That with them he may learn for to play.

Away then goes this lovely page,
As fast, as fast as he could hie;
And, when he came to our gracious King,
He fell all down on his bended knee.

What news, what news, my trusty page?
What news, what news dost thou bring to me?
I bring such news from the King of France,
That you and he can never agree.

He says you are young, and of tender age,
Not fit to come up to his degree;
He has sent you home some tennis-balls,
That with them you may learn for to play.

Oh! then bespoke our noble King,
A solemn vow then vowed he;
I'll promise him such English balls
As in French land he ne'er did see.

Go! call up Cheshire and Lancashire,
And Derby hills that are so free;
But neither married man, nor widow's son,
No widow's curse shall go with me!

They called up Cheshire and Lancashire,
And Derby hills that are so free;
But neither married man nor widow's son,
Yet they had a right good company.

He called unto him his merry men all,
And numbered them by three and three,
Until their number it did amount
To thirty thousand stout men and three.

Away then marched they into French land,
With drums and fifes so merrily;
Then out and spoke the King of France,
Lo! here comes proud King Henrie!

The first that fired, it was the French,
They killed our Englishmen so free;
But we killed ten thousand of the French,
And the rest of them they did run away.

Then marched they on to Paris gates,
With drums and fifes so merrily;
Oh! then bespoke the King of France,
The Lord have mercy on my men and me!

Oh! I will send him his tribute home,
Ten ton of gold that is due from me;
And the very best flower that is in all France
To the rose of England will I give free.

"At the coronation of Henry V," observes Dr. Burney, "in 1413, we hear of *no other instruments than harps*;[\[149\]](#) but one of that prince's historians[\[150\]](#) tells us that their number in the hall was prodigious. Henry, however, though a successful hero and a conqueror, did not seem to take the advantage of his claim to praise; and either was so modest or so tasteless as to discourage and even prohibit the poets and musicians from celebrating his victories and singing his valiant deeds. When he entered the city of London, after the battle of Agincourt, the gates and streets were hung with tapestry, representing the history of ancient heroes; and children were placed in temporary turrets to sing verses. But Henry, disgusted at these vanities, commanded, by a formal edict, that for the future no songs should be recited by harpers, or others, in honour of the recent victory. '*Cantus de suo triumpho fieri, seu per citharistas, vel alios quoscunque, cantari, penitus prohibebat.*'

"It is somewhat extraordinary that, in spite of Henry's edicts and prohibitions, *the only English song of so early a date, that has come to my knowledge, of which the original music has been preserved*, is one that was written on his victory at Agincourt in 1415. It is preserved in the Pepysian Collection, at Magdalen College, Cambridge."[\[151\]](#)

After some observations upon the general ignorance of the transcribers of ancient music, Dr. Burney proceeds to say, "that the copy in the Pepysian Collection is written upon vellum in Gregorian notes, and can be little less ancient than the event which it recorded;" and that there is with it a paper which shows that an attempt was made in the last century (17th) to give it a modern dress, but that too many liberties had been taken with the melody, and the drone bass, which had been set to it for the lute, is a mere jargon. He then presents what he says is a faithful copy of this venerable relic of our nation's prowess and glory.

Owre Kynge went forth to Normandy,
With grace, and myght of chyvalry;
The God for hym wrought marv'lusly,
Wherefore Englonde may calle and cry,

CHORUS.

Deo gratias, Anglia!
Redde pro Victoria!

He sette a sege, the sothe to say,
To Harflue town, with royal array;
That toun he wan, and made a fray
That Fraunce shall rywe tyl domes-day.
Deo gratias! &c.

Than, for sothe, that Knyght comely
In Agincourt feld faught manly;
Thorow grace of God, most myghty,
He hath bothe felde and victory.
Deo gratias! &c.

Then went owre Kynge, with all his oste,
Thorowe Fraunce, for all the Frenshe boste;
He spared^[152] for drede of leste ne most,
Till he come to Agincourt coste.
Deo gratias! &c.

Ther Dukys and Earlys, Lorde and Barone,
Were take and slayne, and that wel sone;
And some were ledde into Lundone;
With joye, and merth, and grete renone,
Deo gratias! &c.

Now gracious God he save owre Kynge,
His peple, and all his well wyllinge;
Gef him gode lyfe, and gode endynge,
That we with merth may safely synge,
Deo gratias, Anglia! redde pro Victoria!

CHAPTER XXIV.

REASONS FOR DELAYING A SECOND CAMPAIGN. — SIGISMUND UNDERTAKES TO MEDIATE. — RECEPTION OF SIGISMUND. — FRENCH SHIPS SCOUR THE SEAS, AND LAY SIEGE TO HARFLEUR. — HENRY'S VIGOROUS MEASURES THEREUPON. — THE EMPEROR DECLARES FOR "HENRY AND HIS JUST RIGHTS." — JOINS WITH HIM IN CANTERBURY CATHEDRAL ON A DAY OF THANKSGIVING FOR VICTORY OVER THE FRENCH. — WITH HIM MEETS THE DUKE OF BURGUNDY AT CALAIS. — THE DUKE ALSO DECLARES FOR HENRY. — SECOND INVASION OF FRANCE. — SIEGE OF CAEN. — HENRY'S BULLETIN TO THE MAYOR OF LONDON. — HOSTILE MOVEMENT OF THE SCOTS.

1415-1417.

It has been made a subject of observation, and of conjecture as to its cause, that Henry did not take advantage of the next spring to prosecute his claims in France. Some [\[153\]](#) would have us suspect that it was "to show that personal honour had been his leading object, that he remained at home nearly two years afterwards without any military movement." But a much more intelligible and palpable cause offers itself to the mind on the slightest reflection upon the circumstances in which he was placed. [\[154\]](#) He had not the means ready for invading France. His forces were diminished by a number of men appallingly great, in proportion to the body with which he had landed at Harfleur; and his treasury was exhausted. For his first expedition he had borrowed the utmost which his subjects and friends either would or could supply; and the grants made to him by his parliament had been anticipated even to carry on the former campaign. That it was his intention, however, when he left France after the victory of Agincourt, to return to that country in the following spring, seems clear from the circumstance that, on dismissing his less illustrious prisoners at Calais, he bound them on their words to bring their ransoms to him on the field of Lendi, at the feast of St. John in the summer; with this voluntary proviso,

that, if they did not find him there, they should be free from all obligation to him.

In the mean time, a most influential mediator between the two kingdoms appeared, the intervention of whom would, even under other circumstances, have rendered delay imperative. Sigismund, Emperor of Germany, first visited the King of France in his capital, and then extended his journey to England, with a view of bringing about a peace, though all his efforts proved unavailing.

On his approach towards England, the utmost pains seem to have been taken to make his reception worthy of his high dignity and of the English people. The orders of council are very minute and interesting;[\[155\]](#) and the arrival of Sigismund seems to have occupied the time and thoughts of the whole nation. The Earl of Warwick was then Captain of Calais, whose character for gallantry and courteous bearing was so distinguished on this, as on all other occasions, that he was called the Father of courtesy. The Emperor and his retinue of one thousand persons, among whom were many German and Italian princes and nobles, embarked at Calais in thirty of the King's ships, and arrived at Dover on the 29th of April 1416. Here the Duke of Gloucester, Constable of Dover, with many noblemen, met him; and gave him precisely that sort of reception which we should have expected from English gentlemen under the immediate direction of Henry. As the Emperor was ready to set his foot on land, they stepped into the water with their drawn swords, and told him with mingled firmness and courtesy, "that, if he came as a mediator of peace, they would receive him with all the honours due to the imperial dignity; but if as Emperor he challenged any sovereign power, they must tell him that the English nation was a free people, and their King had dependence on no monarch on earth; and they were resolved, in defence of the liberty of the people, and the rights of their King, to oppose his landing on their shores." The answer of the Emperor set them at ease on this point, and he was received with every mark of respect and honour; among other testimonies of Henry's feelings towards him, was his installation of him as a Knight of the Garter at Windsor.[\[156\]](#)

It is impossible not to contrast the conduct of our countrymen on this occasion and the behaviour of Sigismund, with his conduct in France, and

the readiness with which that conduct, however humiliating, was submitted to. Sigismund was received with much ceremony and magnificence at Paris; but, before he left it, he had surprised and disgusted the King by exercising an act of sovereignty in the very house of parliament. By courtesy he was seated on the chair usually occupied by the King himself. A trial was proceeding, the result of which seemed to turn on the knighthood of one of the litigants. The Emperor called for a sword, and knighted the individual forthwith.

Whilst Sigismund was anxiously engaged in endeavouring to bring the two nations to terms of peace, news arrived of an event which must have made his efforts and mediation appear hopeless. The French had fallen upon part of the garrison of Harfleur, and cut off a considerable body of them. Not long after this, and whilst negotiations were pending between London and Paris, with a more favourable appearance of a successful issue, tidings came that the French fleet had scoured the Channel, had blockaded Southampton, and had made various attempts on the Isle of Wight; that the Constable, D'Armagnac, had recalled them, and they were then besieging Harfleur. Henry and his council resolved on making an immediate and vigorous effort to destroy that fleet; and forthwith an armament was prepared, of which Henry expressed his determination to take the command himself. At the urgent request, however, of the Emperor, he desisted from that resolution, and gave the supreme command to his brother the Duke of Bedford; who, after a most obstinate battle, gained a decided victory over the enemy, and relieved Harfleur.[\[157\]](#)

The Emperor was soon convinced that his mediation must fail, and that France was resolved to renew the war. He then determined not to remain neutral, but to join himself by a solemn league with Henry. The preamble of this covenant is deeply interesting, as indicative, at least, of the professed sentiments of Sigismund with regard to the pretensions of Henry, and to the conduct and character of the two belligerent kings. Sigismund declared the object of his desire to have been the restoration of peace to the church and to Christendom; and, with that end in view, he had endeavoured to reconcile the Kings of England and France, but without success. The failure he ascribed entirely to the hatred of peace which influenced the French King, to whom he attributed also the prevalence of schism in the church, and the

disturbed state of the Christian world. He then expresses his resolution "to form a league with Henry in the name of the Lord God of Hosts, and to assist him in the recovery of his JUST RIGHTS." [\[158\]](#) This league was signed August 15, 1416. The Emperor, shortly after this unlooked-for termination of his office as mediator, left England. Before he had proceeded onwards from Calais, Henry himself arrived at that town. After some days, the Duke of Burgundy also joined them; and much time was spent in secret negotiations, the nature of which did not transpire, though we may suppose both the Emperor and King were anxious to make him a party to the league already concluded between themselves. A covenant, however, was signed by the Duke early in October, in which he declared that, "though he had taken part with the enemies of Henry in time past, yet now, *being assured of his lawful claim*, he would employ his arms in his service as the rightful King of France."

The Emperor left Calais for Germany; and Henry, having concluded a truce with France till the 2nd of February, returned to England, and met his parliament on October 19th. Much zeal was here shown in his behalf; and whilst the parliament granted two whole tenths and two whole fifteenths, to be levied on the laity, the clergy gave two tenths, to be paid by their own body. But all this was not enough; recourse was again had to borrowing, the Dukes of Clarence, Bedford, and Gloucester pledging themselves, in case of Henry's death, to the repayment of the loans. Henry pawned a valuable crown to his uncle, the Bishop of Winchester, for money to a great amount; and he pledged very valuable jewels to the Mayor of London for another large sum. No measure was left untried, that Henry might be prepared by the ensuing spring with men and money for the invasion of France. [\[159\]](#) In the meanwhile, the French princes and nobles who had been taken prisoners at Agincourt were anxiously negotiating for their release. In a communication of strict confidence to the Emperor, Henry declares that all their proceedings were suspicious, and selfish, and deceitful; that he had suffered the Duke of Bourbon to return to France on certain conditions, but that the Emperor might be assured of his resolution to invade that country.

Henry's exertions were effectual; and, soon after midsummer, he found himself prepared with men and money to renew his expedition to Normandy in a fleet of fifteen hundred sail, and with an army of not less

than twenty-five thousand soldiers. Before he embarked, however, he commissioned Holland, Earl of Huntingdon, whose father had been beheaded at Cirencester in the reign of Henry IV, with a squadron to scour the seas, and secure a free passage for the transports. The Earl was successful in a most hard-fought battle with a fleet of Genoese large ships, sent by their republic[\[160\]](#) to aid the French King; and on July 23rd 1417, Henry set sail for the coast of France.[\[161\]](#) A large body of French on the shore threatened to oppose him; but he landed his forces safely, on the 1st of August, at Beville. As soon as his people were all safe on shore, by an act characteristic of himself, he adopted the same measure which, on his former expedition, had compelled him to make his way to Calais by land. He dismissed all his ships homeward, excepting what were required for transporting cannon; thus assuring his soldiers that they must conquer or die, for they had no retreat.

Henry found the country altogether deserted, the inhabitants having fled from their homes in every direction on receiving the alarming tidings of his approach. It is said that twenty-five thousand families fled into Brittany; and so complete was the evacuation in some districts, that there reigned through the country the stillness of death. In Lisieux, a considerable town eighteen miles from the sea, the English found but one old man and one woman. The people had secured themselves, to the utmost of their means, in fortified towns, all of which had been supplied with strong garrisons on the first news of the intended invasion.

Henry systematically caused the most strict discipline to be observed in his army, of which many proofs are recorded. Among other instances we read that when a monk complained of having been robbed by a soldier, he was desired to fix upon the guilty man. On discovering the culprit, the King upbraided him with his baseness, and pronounced him worthy of death; but, on making restitution, and promising never again to be guilty of the offence, he pardoned him. "And you, friend," said he, turning to the monk, "go back to your brethren in peace, and attend all of you to your sacred duties without fear of me or my army. I am not come hither as a thief to rob your churches and altars, but as a just and merciful King to protect you from violence." Henry then proclaimed through the army that no one should injure an ecclesiastic on pain of death.[\[162\]](#) It was amusing, we are told, to

see how the numbers of the regular clergy were suddenly swollen; rustics shaving their heads, and putting on the dress of a monk, to be safe under the terms of that protection.

During this campaign Henry sent repeated bulletins of his proceedings and successes to the mayor and aldermen of London, many of the originals of which are still in existence; and which combine, with the answers to them, in bearing evidence to the popularity of Henry's person, and of the cause in which he was embarked. Some of these documents are exceedingly interesting; but it would be needless to transfer them all into these pages. [163] It is to be lamented that such indisputable records are not all published, or rendered accessible to every one who would wish to consult them. The interspersions of a few in this part of the volume may enable the reader to verify in more points than one the views which are here offered of Henry's character and the feeling of the people of England at this period. The first is a letter from Henry himself, dated August 9, 1417, at Touque, the very day of the surrender of that place, and only a week after he landed.

"Trusty and well-beloved, we greet you oftentimes well; doing [giving] you to understand for your comfort, that, by the grace of God, we be safely arrived into our land of Normandy, with all our subjects ordained to go with us for the first passage. And this day, the even of St. Lawrence, about mid-day, was yolden [yielded] unto us the castle of Touque, about the which our well-beloved cousin, the Earl of Huntingdon, lay; and the keys of the said castle delivered unto us without the shedding of Christian blood, or defence made by our enemies:—the which castle is an honour, and all the viscounty and lordships of Ange hold thereof, as we have been informed of such men as were therein. Whereof we thank God lowly, that hym lust [he is pleased] of high grace to show unto us so fair beginning in our present voyage; desiring also that ye thank God thereof in the most best wise that ye can, and that ye send us from time to time such tidings be komerys be thwene [by comers between], as ye have in that side the sea. Given under our signet, at our said Castle of Touque, the 9th day of August.

"To the Mayor, Sheriffs, Aldermen, and good people of our City of London."—Endorsed in French.

But though Henry speaks thus encouragingly of his present campaign, he had soon much to make him anxious, and to rouse all the energies of his mind. Among other sources of solicitude was the growing evil of desertion. Many of his soldiers grew tired of the war, and, dishonourably leaving his camp, stole back to their native country. Of the prevalence of this mischief we have too clear proof in the following writ, a copy of which was despatched to all the sheriffs of England. It is found among the Norman

Rolls, and is one of the few specimens with which Mr. Hardy has enriched the interesting introduction to his edition of those valuable documents.[\[164\]](#)

"The King to the Sheriffs of London and Middlesex, greeting. Whereas we have received certain information and undoubted evidence that divers of our lieges who lately came with us to our kingdom of France, there as we hoped stoutly to oppose and resist the pride and malice of our enemies, have deserted us in the midst of these our enemies, and without our licence have in great multitudes falsely and traitorously withdrawn and returned to our kingdom of England, and are still daily withdrawing and returning; which, if suffered to continue, would manifestly turn, not only to the continual prejudice of us, but to the serious injury and peril of our faithful lieges accompanying us (which God avert!) We, desirous, as we are bound, to provide and ordain a fitting remedy in this matter, do command and strictly enjoin you to arrest and take into custody without delay all and each of those whom by inquiry, information, or other means whatsoever, you shall discover to have been with us in our said kingdom of France, in our company, or in that of others, and who have withdrawn themselves thence without our licence under our signet, or that of the Constable of our army, and to deliver them as soon as taken to our very dear brother, John Duke of Bedford, Guardian of England. And, upon the fealty and allegiance wherein ye are bound to us, let this by no means be neglected. Witness the King, at his castle of Caen, in his duchy of Normandy, the 29th day of September.—By the King himself."

The most important siege in this campaign was that of Caen;[\[165\]](#) at the taking of which, after a tremendous conflict and loss of life, Henry behaved towards the vanquished with so much mercy and kindness, that the governors of many neighbouring towns sent to him the keys of their gates.

So great was his success that the French court sent commissioners to him to negotiate for peace, but the treaty resulted in no favourable issue; and Henry went on in his career of victory through the very depth of winter; and became master of Bayeux, Argentan, Alençon, and other places. He was engaged, however, in the siege of Falaise through the whole of December, the town not surrendering till the 2nd of January.

It was at this time that the capture and execution of Lord Cobham took place in England; of which we have written fully in a separate dissertation at the close of this volume. Henry, however, probably knew nothing of that unfortunate man's capture till he heard of his death.

Early in the preceding autumn [1417] an alarm spread through England in consequence of the hostile demonstration of the Scots. There seems to be some doubt as to the extent of their movements. Buchanan represents the whole affair as one of very little moment, scarcely more than a border

foray; but the English chroniclers lead us to believe that it was a formidable invasion. It is said that the Lollards were the instigators; though it is more probable that the invitation was sent to Scotland from France, and especially through the Duke of Orleans, then a prisoner in Pontefract, whose liberty was consequently much straitened, as we find by an original letter of Henry himself.[\[166\]](#)

"Furthermore, I would that ye commune with my brother, with the Chancellor, with my cousin of Northumberland, and my cousin of Westmorland; and that ye set a good ordinance for my north marches, and specially for the Duke of Orleans and for all the remnant of my prisoners of France, and also for the K. of Scotland. For as I am secretly informed by a man of right notable estate in this land, that there hath been a man of the Duke of Orleans in Scotland, and accorded with the Duke of Albany that this next summer he shall bring the mammet[\[167\]](#) of Scotland to stir what he may; and also that there should be found ways to the having away specially of the Duke of Orleans, and also of the K. as well as of the remnant of my said prisoners, that God do defend! [which God forbid!] Wherefore I will that the Duke of Orleans be kept still within the castle of Pomfret, without going to Robertis Place, or to any other disport; for it is better he lack his disport than we be deceived."

The Scots on one side laid siege to Berwick, from which they were driven by the Earl of Northumberland, Hotspur's son; the other part of the Scotch army directed their attack on Roxborough, where they were routed by the united forces of the Dukes of Exeter[\[168\]](#) and Bedford,[\[169\]](#) and the Archbishop of York. That military prelate, unable, from the weakness of age, to ride, yet caused himself to be carried to the field, that surrounded by his clergy he might encourage his people to defend their native land.

After these successful military proceedings in the north of the kingdom, parliament met on Nov. 16. They prayed for speedy judgment on rioters and malefactors; presented a petition on the subject of Sir John Oldcastle; supplicated for a reward to the Lord Powys, who was instrumental in seizing him; and then they voted the King a subsidy of a tenth and a fifteenth. The clergy also in convocation granted two tenths. In this convocation an attempt was made to encourage learning by promoting to benefices such as had laboured long and diligently in the Universities. This proposition was rejected in Oxford at that time; but it received the cordial promotion and assistance of the University in July 1421. On the latter occasion, however, the measure, opposed as it was most vigorously by the monks, would probably again have miscarried, had not Henry himself,

"who favoured arts and loved learned men," interposed his own authority in its favour.

CHAPTER XXV.

HENRY'S PROGRESS IN HIS SECOND CAMPAIGN. — SIEGE OF ROUEN. — CARDINAL DES URSINS. — SUPPLIES FROM LONDON. — CORRESPONDENCE BETWEEN HENRY AND THE CITIZENS. — NEGOCIATION WITH THE DAUPHIN AND WITH THE FRENCH KING. — HENRY'S IRISH AUXILIARIES. — REFLECTIONS ON IRELAND. — ITS MISERABLE CONDITION. — WISE AND STRONG MEASURES ADOPTED BY HENRY FOR ITS TRANQUILLITY. — DIVISIONS AND STRUGGLES, NOT BETWEEN ROMANISTS AND PROTESTANTS, BUT BETWEEN ENGLISH AND IRISH. — HENRY AND THE SEE OF ROME. — THRALDOM OF CHRISTENDOM. — THE DUKE OF BRITTANY DECLARES FOR HENRY. — SPANIARDS JOIN THE DAUPHIN. — EXHAUSTED STATE OF ENGLAND.

1418-1419.

Henry[170] meanwhile was making rapid progress in subduing Normandy; and to induce the inhabitants to return to their homes, which they had abandoned, he issued a proclamation promising protection and favour to all who would acknowledge his sovereignty. He also pledged himself to relieve his subjects from all injustice and oppression.

Whilst he was lying before the town of Louviers, the Cardinal des Ursins arrived in his camp with letters from the Pope, urging Henry to make peace; the Cardinal of St. Mark having been sent to the French King for the same purpose.

These offers of mediation were unavailing; and Henry, encouraged by the distracted state of France, resolved to push his conquests to the utmost; and, after some severe skirmishing at Pont de Larche,[171] he proceeded to lay siege to Rouen. Did the plan of these Memoirs admit of a fuller inquiry into the affairs of France, we might here with benefit review the proceedings of the different parties in that country since the field of Agincourt. The result of such a review would probably be the conviction that the divisions by

which that country was distracted not only facilitated Henry's conquests, but alone admitted of them. His victories, even if they had ever been won, would scarcely have followed each other so rapidly, had the King of France, the Dauphin, and the Duke of Burgundy opposed him with united forces.

The citizens of Rouen, which was well garrisoned, and had an ample store of provisions, had declared themselves for the Duke of Burgundy; but now, in their alarm, they supplicate aid from the Dauphin against the common enemy. His answer was, that he was compelled to employ his troops in defending his own towns against the Duke of Burgundy.[\[172\]](#)

The whole English army, with a great train of artillery, came up before the city on the last day of July 1418, before another harvest could afford new supplies of corn. To that one town the people of Normandy had brought all their treasures; and those who were intrusted with the safekeeping of the place seemed determined to endure all the miseries of blockade and famine, rather than surrender. Henry, with the resolution not to lavish the lives of his soldiers by attempting to take this town by storm, laid close siege to it by land; whilst some "good ships," which he had from the King of Portugal, blockaded the mouth of the Seine.

Ten days after Henry laid siege to Rouen, he despatched a letter to the Mayor and Aldermen of London, which, with their answer, cannot be read without interest.

"BY THE KING.

"Right trusty and well-beloved! we greet you oft times well. And for as much as, in the name of Almighty God, and in our right, with his grace, we have laid the siege afore the city of Rouen, which is the most notable place in France, save Paris; at which siege, us nedeth [we need] greatly refreshing for us and for our host; and we have found you, our true lieges and subjects, of good will at all times to do all things that might do us worship and ease, whereof we can you right heartily thank; and pray you effectually that, in all the haste that ye may and ye will, do arm as many small vessels as ye may goodly, with victuals, and namely [especially] with drink, for to come to Harfleur, and from thence as far as they may up the river of Seyne to Rouen ward with the said victual, for the refreshing of us and our said host, as our trust is to you; for the which vessels there shall be ordained sufficient conduct, with God's grace. Witting well also that therein ye may do us right great pleasance, and refreshing for all our host above said; and give us cause to show therefore to you ever the better lordship in time to come, with the help of our Saviour, the which we pray that He have you in his safeguard.—Given under our signet, in our host afore the said city of Rouen, the 10th day of August.

"To our right trusty and well-beloved the Mayor,
Aldermen, and all the worthy Commoners of our city of
London."

To this appeal the authorities of the city paid immediate and hearty attention, and forwarded to Henry an answer under their common seal on the 8th of September, (the Nativity of our Lady, the blissful maid,) of which the following is a copy. A memorandum in Latin informs us that the clause within brackets was for different causes kept back, and not sent with the letters. The letter is a curious specimen of the flattering and complimentary style of the good citizens of London when addressing their sovereign.

"Our most dread, most sovereign Lord, and noblest King, to the sovereign highness of your kingly majesty, with all manner of lowness and reverence, meekly we recommend us, not only as we ought and should, but as we best can and may; with all our hearts, thanking your sovereign excellence of your gracious letters in making [us] gladsome in understanding, and passing comfortable in favouring our poor degrees, which ye liked late to send us from your host afore the city of Rouen. In which letters, after declaration of your most noble intent for the refreshing of your host, ye record so highly the readiness of our will and power at all times to your pleasance, and thanking us thereof so heartily, that truly, save only our prayer to Him that all good quiteth [requiteth], never was it nor might it half be deserved. And after seeing in your foresaid gracious letters ye pray us effectually to enarme as many small vessels as we may with victual, and specially with drink, for to come as far as they may in the river Seyne. And not only this, but in the conclusion of your sovereign letters foresaid, ye fed us so bounteously with the best showing of your good lordship to us in time coming as ye have ever done, that now and ever we shall be the joyfuller in this life when we remember us on so noble a grace. [O how may the simpless of poor lieges better or more clearly conceive the gracious love and favourable tendress of the King, their sovereign Lord, than to hear how your most excellent and noble person, more worth to us than all worldly riches or plenty, in so thin abundance of victual heavily disposed, so graciously and goodly declare and utter unto us, that are your liege men and subjects, your plain lust and pleasance, as it is in your said noble letters worthily contained. Certain, true liege man is there none, ne faithful subject could there non ne durst tarry or be lachesse [backward] in any wise to the effectual prayer and commandment of so sovereign and high a lord, which his noble body paineth and knightly adventureth for the right and welfare of us.] Our most dread, most sovereign Lord, and noblest King, may it please your sovereign highness to understand, how that your foresaid kingly prayer, as most strait charge and commandment, we willing in all points obey and execute anon, from the receipt of your said gracious letter, which was the 19th day of August nigh noon, unto the making of these simple letters. What in getting and enarming of as many small vessels as we might, doing brew both ale and beer, purveying wine and other victual, for to charge with the same vessels, we have done our busy diligence and care, as God wot. In which vessels, without [besides] great plenty of other victuals, that men of your city of London aventuren for refreshing of your host to the coasts where your sovereign presence is in, we lowly send with gladdest will unto your sovereign excellence and kingly majesty by John Credy and John Combe, your officers of your said city, bringers of these letters, tritty botes [thirty butts] of sweet wine, that is to say, ten of Tyre, ten of Romeney, ten of Malmesey, and a thousand pipes of ale, with two thousand and five hundred cups for your host to drink of, which we beseech your high excellence and noble grace for our alder comfort and gladness benignly to receive and accept; not having reward [regard] to

the little head or small value of the gift itself, which is simple; but to the good will and high desire that your poor givers thereof have to the good speed, worship, and welfare of your most sovereign and excellent person, of which speed and welfare, and all your other kingly lusts [desires] and pleasancess, we desire highly by the said bearers of these letters, and other whom your sovereign highness shall like, fully to be learned and informed. Our most dread, most sovereign Lord, and noblest King, we lowly beseech the King of Heaven, whose body refused not for our salvation worldly pain guiltless to endure, that ye, your gracious person, which for our alder good and profit so knightly laboureth, little or nought charging bodily ease, in all worship and honour evermore to keep and preserve.—Written at Gravesend, under the seal of Mayoralty of your said city of London, on the day of the Nativity of our Lady, the blissful maid.

"To the King, our most dread and most sovereign Lord."

After every deduction is made from this singular epistle on the ground of flattery and words of course, it proves that in expression, at least, the Mayor and good citizens of London not only heartily seconded Henry in his present undertakings, but identified his cause with their own, and regarded him as fighting their battles, and exposing himself to the dangers and privations of war in vindication of their own rights; and probably we are fully justified in regarding their sentiments as fairly representing the prevalent feelings of the people of England. There were, doubtless, many exceptions, as there ever must be in such a case, to the general unanimity; and we are not without evidence that, during this siege of Rouen, Henry's proceedings were commented upon unfavourably by some of his subjects at home.[\[173\]](#)

During this siege negotiations were set on foot by the Dauphin for an alliance with Henry, who seemed to enter into the views of the ambassadors heartily;[\[174\]](#) but at the same time similar negotiations were carried on between Henry and the King of France. In the management of these a curious dispute arose as to the language in which the conference should be carried on: the French required that their own should be the medium of communication; the English remonstrating, and requiring the Latin to be employed, that the Pope and other potentates might understand their proceedings. It was proposed that all writings should be in duplicate, one copy in French, the other in Latin; but Henry insisted that his ambassadors should sign only an English or a Latin copy. During these negotiations the French ambassadors presented to the King the portrait of the Princess Katharine,[\[175\]](#) which he received with great satisfaction. The treaty, however, was broken off, and the Cardinal Des Ursins returned to Pope Martin at Avignon. It is painful to read the account of the siege of Rouen;

misery in all its shapes is painted there.[\[176\]](#) Indeed, if the accounts we have received be true, so complicated a tale of wretchedness is scarcely upon record. But the details can give no satisfaction; they would only harrow up the feelings, without supplying any facts essential to the history of those months of human suffering. Henry was resolved neither to burn the town, nor to take it by storm; but to reduce it by starvation. At length his feelings overpowered this resolution, and he received the town upon conditions, on the 19th January 1419.[\[177\]](#) Thus was Rouen subdued to the Crown of England, two hundred and fifteen years after the conquest of it by Philip of France in the reign of King John. Stowe tells us, that to relieve this oppressed city Henry ordained it to be the chief chamber of all Normandy; and directed his exchequer, his treasury, and his coinage to be kept there. We have already seen that he caused his vast treasures before kept in Harfleur to be brought to Rouen.

It is confessedly beyond the province of these Memoirs even to glance at the affairs of Ireland, except so far as a reference to them may bear upon the character and conduct of Henry of Monmouth. Not only, however, does the presence of a body of native Irish, headed by one of the regular clergy of Ireland, aiding Henry at the siege of Rouen, seem to draw our thoughts thitherward; but some documents also, relative to our sister-land, of that date, may be thought to require a few words in this place. During the reign of Richard II. the warlike movements of the native Irish, who had never been conquered or civilized, compelled that monarch to proceed to Ireland in person, and to take the field against those wild rebels. They had formerly been kept in comparative awe by a strong hand; but the continental wars of Edward III. had much slackened the wonted vigilance and activity of his government at home in checking their outbreaks against the English settlers. They had, consequently, grown bold, and threatened to extirpate the English altogether. Vigorous measures became necessary, and the King twice headed an army himself to restore peace. On his first visit he was summoned home by the prelates, to put down the spreading sect of the Lollards; in his second, his delay, after the landing of Bolinbroke at Ravenspurgh, cost him his crown. In this latter expedition Henry of Monmouth (as we have seen) accompanied him, and had personal experience of the uncivilized state of the country, and the savage character

of the warfare carried on by the inhabitants. It is curious to remark, that on several occasions Richard II. employed the Irish prelates as his ambassadors to Rome, "for the safe estate and prosperity of the most holy English church." The fact, however, is too evident, that all Irish dignities were bestowed on Englishmen; and except by some assumed privilege of the Pope, or by other proceedings equally unacceptable to the English settlers, no native Irishman was ever in those times advanced to any high station in the church, or even promoted to an ordinary benefice. Indeed the law forbade such promotions.

On the principle observed throughout these Memoirs, of avoiding all reference to the political struggles and controversies of the passing hour, the Author will make no reflections on the past, the present, or the future policy of England towards a country whose destinies seem so indissolubly bound up with her own. He humbly prays that HE, who says to the tempest "Peace, be still!" and is obeyed, may so guide and govern the religious and moral storms by which our age is shaken on the subject of Ireland, that in His own good time the troubled elements may be calmed; and that truth, peace, and charity may prevail, and bless both countries, then at length become like "a city that is at unity in itself."

By most of those who take a wide and comprehensive range of its history, the dissensions which have distracted Ireland, and from time to time torn it in pieces, and caused it to flow with the blood of its neighbours and of its own children, will probably be ascribed, not more to the difference of religion among its inhabitants, than to the difference of origin. The struggles have been, not more between Protestants and Romanists, not more between Catholics of the church of England and Ireland, and Catholics in communion with the sovereign pontiff, than between English and Irish, between those who have regarded themselves as the aboriginal sons of the soil, and those of Saxon or Norman descent, whom they have hated and abhorred as intruders and invaders. The conflicts between these classes in Ireland, as they may be traced in its chronicles, were just as dreadful and as sanguinary before the Reformation, as ever they have been since the separation of the reformed church from the see of Rome. At all events, whatever may be the nature of the unhappy causes of disunion in the present day, till within comparatively modern times the struggles have been

not more of a religious than of a national, or perhaps of a predial, character. Authentic history teems with evidence bearing directly on this point; and even the original documents, references to which are interspersed through this volume, are quite sufficient to establish it.

Among other documents confirmatory of the view here taken, which it would be beyond the province of these Memoirs to recite, the statute of 4 Hen. V. (1416), referring as it does to similar enactments of previous reigns, and strongly expressive of the bitter jealousies which existed between the two nations, seems to claim a place here.

"Whereas it was ordained in the times of the progenitors of our Lord the King, by statute made in the land of Ireland, that no one of the Irish nation be elected archbishop, bishop, abbot, prior, nor in any manner be received or accepted to any dignity or benefice within the said land; and whereas many such Irish, by the power of certain letters of licence to them made by the Lieutenants of the King there to accept and receive such dignities and benefices, are promoted and advanced to archbishoprics and bishoprics within the said land, who also have made their collations to Irish clerks of dignities and benefices there, contrary to the form and effect of the said statute; and consequently, since they are peers of parliament in that land, they bring with them to the parliaments and councils held in that land servants by whom the secrets of the English in that land have been and are from day to day discovered to the Irish people who are rebels against the King, to the great peril and mischief of the King's loyal subjects in that land: our said Lord the King, willing to provide remedy for his faithful subjects, with the consent of the Lords, and at the request of the Commons, wills and grants that the said statute shall be in full force, and be well and duly guarded, and fully executed, on pain of his grievous indignation."

The statute then provides, that if any bishops act against this law, their temporalities shall be seized for the King till they have given satisfaction; that the Lieutenants shall be prohibited from granting such licences to Irishmen; and that all such licences, if made, shall be null and void.

Perhaps, however, the words of the petition to the Commons, on which this enactment was founded, are still more striking and convincing on the subject.

"To the honourable and wise Sires, the Commons of this present Parliament, the poor loyal liegemen of our Sovereign Lord the King in Ireland. Whereas the said land is divided between two nations, that is to say, the said petitioners, English and of the English nation, and the Irish nation, those enemies to our Lord the King, who by crafty designs secretly, and by open destruction making war, are continually purposed to destroy the said lieges, and to conquer the land, the petitioners pray that remedy thereof be made."[\[178\]](#)

When Henry of Monmouth succeeded to the throne, Ireland was as wild^[179] in its country, and as rude in its inhabitants, as it was in the reign of Henry II. The English pale (as it has been correctly said) was little more than a garrison of territory; and it was absolutely necessary either for the English inhabitants to leave their possessions and abandon Ireland altogether, or for the English government to keep the aboriginal Irish in check with a strong hand, and compel them by military force to abstain from outrage. What would have been at the present day the state of Ireland, had Henry directed his concentrated energies to subdue the island, and then to civilize and improve it, (measures by no means improbable had not the conquest of France occupied him instead,) it would be profitless to speculate. Even with his thoughts distracted by his foreign expeditions, or rather, perhaps, almost absorbed by them, and whilst he had but a very scanty contingent of officers and men at his disposal for home-service, we have evidence that Ireland had not been in so peaceable a condition for very many years as it had become under his government. Whilst pursuing his victories on the Continent, he laboured (and his labours were in an astonishing degree successful) to provide for the effective administration of his own dominions with a view to peace and justice.

A memorial forwarded this year to Henry, probably in consequence of certain complaints of maladministration which had been sent to the council the preceding winter, is very interesting. It is signed by a large number of persons, lay and ecclesiastical: bishops, abbots, priors, archdeacons, barons, knights, and esquires joined in the petition.^[180] The prayer of the memorial was professedly to procure a fuller remuneration to the then Lord Lieutenant,^[181] John Talbot, Lord Furnival, for his indefatigable and successful exertions in subduing "the English rebels and the Irish enemies;" it was, however, evidently intended to obtain a still greater share of the King's attention, and of the public expenditure in that island. The memorial commences by expressions of loyalty to Henry's person, the petitioners desiring above all earthly things to hear and to know of the gracious prosperity and noble health of his renowned person, to the principal comfort of all his subjects, but "especially of us who are continuing in a land of war, environed by your Irish enemies and English rebels, in point to be destroyed, if it were not that the sovereign aid and comfort of God, and of you our gracious Lord, do deliver us." It then states that they had prevailed

upon the Lieutenant^[182] not to persevere in his intention to leave Ireland for the purpose of applying to Henry in person for payment and relief, expressing their great alarm should his presence be withdrawn from them. The memorialists then dwell at great length upon the vast labours, travails, and endeavours of Lord Furnival for the good of all Henry's lieges; but those labours were only military proceedings: every sentence of the memorial breathes of war, and slaughter, and destruction. One of the chief topics in his praise is that he remained many days and nights ("the which was not done before in our time") in the lands of various of the strongest Irish enemies (specifying them by name), taking their chief places and goods, burning, foraging, and destroying all the country, and in many places causing the Irish rebels to turn their weapons against each other. The document then shows the precarious tenure of goods and of life among the English at that time in Ireland; how they were "preyed upon and killed," and what a wonderful change had just been effected by the vigorous measures of Lord Furnival. "Now your lieges may suffer their goods and cattle to remain in the fields day and night, without being stolen or sustaining any loss, *which hath not been seen here by the space of these thirty years past*, God be thanked, and your gracious provision!" It also states that Maurice O'Keating, chieftain of his nation, traitor and rebel, did on the Monday in Whitsun-week, (*i.e.* May 31st, not a month before the date of the memorial,) "for the great fear which he had of the Lieutenant, for himself and his nation, yield himself without any condition, with his breast against his sword's point, and a cord about his neck, delivering without ransom the English prisoners which he had taken before; to whom grace was granted by indenture, and his eldest son given in pledge to be loyal lieges from henceforward to you our sovereign Lord." This memorial, dated June 26th, "in the fifth year of your gracious reign," 1417, must have reached Henry on the very eve of his setting out on his second expedition to Normandy.

The complaints, to answer which, among other objects, we have already intimated an opinion that this memorial might possibly have been partly prepared, were taken into consideration on the 28th of the preceding February by the King himself in council, and are by no means devoid of interest, though only a cursory allusion to them can be made here. Among the grievances are certain "impositions outrageously imposed upon them;" the seizure of the wheat and cattle belonging to churchmen by the officers

and soldiers of the Lieutenant, contrary to the liberties of Holy Church; and the non-execution and non-observance of the laws in consequence of the insufficiency of the officers. To these complaints the King replies that, at the expiration of Lord Furnival's lieutenancy, he would provide a remedy by the appointment of good and sufficient officers. The terms of indenture, by which the King and Lieutenant were then usually bound, probably presented an obstacle to any immediate interference.

But the most interesting point in these complaints is the prayer with which they close. It proves that, in the view of the complainants, (and probably theirs was the general opinion,) absenteeism was then very prevalent, and was held to be one of the greatest evils under which Ireland was at that time suffering; it informs us also that Irishmen born (that is, however, men of English extraction born in Ireland,) were advanced to benefices in England; and it shows that many such natives of Ireland were in the habit of coming to England for the purposes of studying the law, and of residing in the Universities. The complainants "require that through the realm of England proclamation be made that all persons born in Ireland, being in England, except persons of the church beneficed, and students and others engaged in the departments of the law, and scholars studying in the Universities, betake themselves to the parts of Ireland, for defence of the same.

To this petition the King only replies, that "he grants it according to the form of the statute made in that case."

The statute to which Henry here refers was made in the first year of his reign. It bears incidental testimony to his mild and merciful disposition, as compared with the feelings and views of his contemporaries; and shows that in legislation he took the lead of his parliament in preferring mild and moderate to violent and sanguinary measures.

The Commons pray that the penalty of absenteeism after the proclamation should be loss of life or limb, and forfeiture of goods; the King consents only to imprisonment, instead of death and mutilation. "The Commons," (such are the words of the record,) "for the quiet and peace of the realm of England, and for the increase and welfare of the land of Ireland, pray that it may be ordained in the present parliament, that all Irishmen, and all Irish begging clerks, called Chaumber Deakyns [chamberdeacons], be voided the

realm between Michaelmas and All Saints, on pain of loss of life and limb; except such as are graduates in the schools, and serjeants and students of law, and such as have inheritance in England, and 'professed religious;' and that all the Irish who have benefices and office in Ireland live on their benefices and offices, on pain of losing the profits of their benefices and offices,—for the protection of the land of Ireland." The King grants the prayer, but modifies the severity of the penalty proposed by the Commons, limiting the punishment to the loss of goods, and imprisonment during the royal pleasure; and excepting merchants born in Ireland of good fame, and their apprentices, now being in England, and those to whom the King may grant a dispensation.

It was in the year following these proceedings that Henry received succours from Ireland, just before he laid siege to Rouen. The Pell Rolls state that they were two hundred horse and three hundred foot, under the command of the Prior of Kilmaynham,[\[183\]](#) transported by Bristol vessels from Waterford to France. Others, doubtless, might have joined him also from the same quarter; but it seems very probable that Hall, or those whom he followed, exaggerated this statement, and substituted the Lord of Kylmaine for the Prior of Kilmaynham, when they tell us "that a band of one thousand six hundred native Irish, armed with their own weapons of war, in mail, with darts and skaynes, under the Lord of Kylmaine, were with Henry V. at the siege of Rouen, and kept the way from the forest of Lyons; and so did their devoir that none were more praised, nor did more damage to their enemies." Still the account given of these wild Irish, by Monstrelet, would seem to countenance the idea of a much greater number than were transported over with the warlike Prior. "The King of England" (says that author) "had with him in his company a vast number of Irish, of whom far the greatest part went on foot. One of their feet was covered, the other was naked, without having clouts, and poorly clad. Each had a target and little javelins, with large knives of a strange fashion. And those who were mounted had no saddles, but they rode very adroitly on their little mountain horses: and they rode upon cloths, very nearly of the same fashion with those which the Blatiers of the French country carry. They were, however, a very poor and slight defence, compared with the English: besides, they were not so accoutred as to do much damage to the French when they met. These Irish would often, during the siege, together with the English, scour the

country of Normandy, and do infinite mischief, beyond calculation; carrying back to their host great booty. Moreover, the said Irish on foot would seize little children, and leap on the backs of cows with them, carrying the children before them on the cows, and very often they were found in that condition by the French."[\[184\]](#)

The only other document relating to Ireland at this time, which it is purposed to transfer into these pages, is chiefly interesting as affording one of the many instances upon record of the personal attention which Henry paid to the business necessary to be transacted at home, whilst he was engaged in battles and sieges and victories abroad. It is a petition, (in itself also of some importance in regard to Irish history,) from Donald Macmurrough, (Macmore or Macmurcoo,) addressed to "the most high and excellent redoubted Lord the King of England," and is dated July 24, 1421.

"Most humbly supplicates, Donaal Macmurcoo, a prisoner in your Tower of London, that as above all things in the world, (most gracious Lord,) with entire intent of his heart, he desires to be your liege man, and to behave towards you from this day forward in good faith, as is his right; and to do that loyally he offers to be bound by the faith of his body [his corporal oath], and all the sacraments of Holy Church, in any manner which you please graciously to ordain and appoint; and all his friends who are at his will, under his subjection, or at his command under his lordships, will promise the same by word of mouth. And for greater security for the time to come, as well to your most noble and sovereign Lordship as to your heirs and the crown of England, during his life loyally to hold and accomplish the same, he offers you his son and heir in pledge. May it please your most high and gracious excellence, according to his promises aforesaid, graciously to receive and accept him to your most noble and abundant grace, for God's sake and in a work of charity."

The petition is in French.—The answer in English is this: "Ye King will that he come before his counsel, and find surety as it may be found reasonable."

"For Macmourgh.—Offer to be sworn to the King, and to give hostage thereupon."

The order of the council consequent upon this, in Latin, refers the matter to the Lieutenant and council in Ireland.

Henry at this time appears to have had considerable intercourse with the see of Rome. In a letter written to his resident ambassador in that city, John Keterich, Bishop of Lichfield, he requires, in very humble language, that his Holiness would not invade the rights of the crown of England as settled by a concordat between Edward III. and Gregory XI; that he would provide for

the admission of Englishmen only into the priories in England which the Conqueror had annexed to Norman abbeys; and that he would send strict injunctions to the bishops of Ireland that the people should be taught the English tongue, and that none should be capable of any ecclesiastical preferment who should be ignorant of it, since the best and greatest part of that nation understood it, and experience had shown what disorders and confusions arose from a diversity of languages.

It is impossible to read the documents of this time without being struck by the evidence as well of the thralldom under which the Pope held the sovereigns and people of Christendom, as of the spirit of piety which habitually influenced Henry.

His confessor had died, and he had applied to the Archbishop of Canterbury to select another for him. That primate's answer is full of interest. The Archbishop gives the King all the authority which he himself possessed; and yet Henry is obliged to seek permission at the court of Rome to have a confessor of his own, and to celebrate divine service at convenient times and in convenient places. He had sent for a chapel, with altars, vestments, and ministers, from England; and the warrant is in existence to press carriages and horses to carry them to the sea, to be transported to him in Normandy. This instrument is dated February 5th, 1418, and it should seem that all these preparations were insufficient till he could obtain the Pope's licence and dispensation in the following August.[\[185\]](#)

The Pope then gives Henry permission to have a confessor of his own choice, who should once a year during his life, and once also at the hour of death, give him full pardon for all the sins of which he repented from the heart, and which he confessed with the mouth; provided that the confessor take care to have satisfaction given to those to whom it is due. The Pope adds an earnest hope that this indulgence would not tempt Henry to commit unlawful acts at all more freely than before.[\[186\]](#)

By another act of grace, dated only ten days after the former, King Henry is permitted to have one or more portable altars, and to have mass at uncanonical times, and even in prohibited places, provided he were not himself the cause of the interdict. This grant has also some curious stipulations annexed: among others it is directed that the doors shall be shut

at such masses, the excommunicated excluded, the service being conducted without sound of bell and with a low voice. Especially is it enjoined that liberty to have mass before day should be used very sparingly, because since our Lord Jesus Christ, the Son of God, is offered as a sacrifice on that altar,—and he is the brightness of eternal light,—it is right for that to be done, not in the darkness of night, but in the light of day.

Henry remained for some time at Rouen, and wore the ducal robes as Duke of Normandy. A conspiracy to surrender the town to the French King was defeated by the honourable conduct of De Bouteiller, who, on being requested to join the conspirators, on the contrary discovered their designs to Henry.

Early in the year 1419, the Duke of Brittany, distrusting the power of France to defend him, were the English to turn their arms against his territory, sought and obtained an alliance with Henry; of whose just and honourable principles he had experienced practical proofs.

At this time the Spaniards added much to Henry's difficulties. Having engaged to succour the Dauphin, they are said to have sent ships to Scotland for men, part of whom they probably landed at Rochelle. Henry's forces, however, were victorious in the south, no less than in the north.

Still, though victorious and feared on every side, Henry found that war and disease had so reduced his army as to compel him to apply to his subjects at home for reinforcement. The reasons sent from Norfolk, which are probably only specimens of the returns from other counties, would lead us to infer that most of his subjects, who were both willing and able to join his standard, had already been drained off. The Bishop of Norwich, and others, return that "the stoutest and strongest of their countrymen were already in the army, and others pleaded poverty and infirmities." Robert Waterton, to whom the King had made an especial appeal, assured him that at the approaching assizes at York he would urge the gentlemen of those parts to tender their services. There seems also to have been a growing disinclination or disability among the clergy to provide a supply of money; probably both their means and their zeal for the cause had diminished. In the diocese of York they complained loudly of the impoverished state of the church, but at last voted one-half of a tenth.

CHAPTER XXVI.

BAD FAITH OF THE DAUPHIN. — THE DUKE OF BURGUNDY BRINGS ABOUT AN INTERVIEW BETWEEN HENRY AND THE FRENCH AUTHORITIES. — HENRY'S FIRST INTERVIEW WITH THE PRINCESS KATHARINE OF VALOIS. — HER CONQUEST. — THE QUEEN'S OVER-ANXIETY AND INDISCRETION. — DOUBLE-DEALING OF THE DUKE OF BURGUNDY; HE JOINS THE DAUPHIN; IS MURDERED ON THE BRIDGE OF MONTEREAU. — THE DAUPHIN DISINHERITED. — HENRY'S ANXIETY TO PREVENT THE ESCAPE OF HIS PRISONERS.

1419-1420.

About the month of March in the year 1419, the Dauphin proposed to meet Henry with a view to the formation of an alliance, to which Henry was at this time by no means averse. The Dauphin, however, acted with very bad faith on the occasion; and, by neglecting to come according to his solemn engagement,[\[187\]](#) gave unintentionally another opening to the Duke of Burgundy to advocate a treaty between France and England. So utterly, indeed, had the Dauphin thrown aside all thoughts of an interview with Henry, on which he had appeared very anxiously bent, that he even made a vigorous attack on the English ambassadors and their escort when on their road to the King of France.

The Duke of Burgundy, taking advantage of this juncture, succeeded, not only in persuading the two Kings to interchange ambassadors, but in effecting a personal conference between the royal parties. Henry agreed to come to Mante, on condition that Charles and the Duke of Burgundy would come to Ponthoise. A large field on the banks of the Seine, near to the gate of Melun, was selected for the meeting. The preparations for the interview are described with great minuteness by historians. A pavilion at an equal distance from the tents of both nations was erected by the Queen of France,

and presented to Henry; adjoining to it were two withdrawing apartments. The King of France was detained by indisposition at Ponthoise on the day appointed, May 30, 1419; but the Queen, the Princess, the Duke of Burgundy, and the Count de St. Pol, on the one side, with their council and guards, and, on the other, Henry, his two brothers, Clarence and Gloucester, his two uncles, the Duke of Exeter and the Bishop of Winchester, the Earls of March and Salisbury, with his council and his guard, met in this "fair and wide mead of Melun." The Queen's tent was "a fair pavilion of blue velvet richly embroidered with flower-de-luces; and on the top was the figure of a flying hart, in silver, with wings enamelled." Henry's tent was of blue and green velvet, with the figures of two antelopes embroidered; one drawing in a mill, the other seated on high with a branch of olive in his mouth, with this motto wrought in several places, "After busy labour, comes victorious rest." A great eagle of gold, with eyes of diamond, was placed above. At three in the afternoon the royal parties, having entered within the barriers, approached each other, the Queen led by the Duke of Burgundy, the Princess by the Count de St. Pol. Henry with a solemn bow took the Queen by the hand and saluted her, and afterwards the Princess; as did also his brothers, bending one knee almost to the ground. The Duke of Burgundy paid his respects to Henry, and was honourably received by him. Henry led the Queen into the pavilion, taking the upper hand of her after a long dispute about this ceremony; and having placed her in one chair of state, of cloth of gold, himself occupied the other. Nothing further than ceremony was the apparent object of that day's conference, though the fate of Henry perhaps turned upon it. The Earl of Warwick, "the father of courtesy," addressed the Queen, and the parties separated,—the Queen's for Ponthoise, Henry's for Mante; having first engaged to meet each other again on the following Thursday. These conferences were carried on at intervals till June 30th, without any satisfactory progress being made towards peace; on that day they agreed to meet on the 3rd July, and Henry kept his engagement, but the French disappointed him; and then, convinced of their insincerity, and the total absence of all real intentions on their part to bring the proceedings to a favourable issue, he dissolved the conference, complaining loudly of the unfair dealings of his enemies. He was chiefly, however, angry with the Duke of Burgundy, to whom he ascribed all the blame; and who is said to have been guilty of such double-dealing as to have had frequent

interviews with the Dauphin in the neighbourhood of Paris, even during the conference.

A circumstance connected with this meeting is too closely interwoven with Henry's character, and conduct, and destiny, to be passed over in silence. In preparing for the interview, the Queen had shown much courteous attention to secure Henry's gratification; and she looked forward to it as the hour of her daughter Katharine's [\[188\]](#) conquest over his heart. That Princess was a lovely young person, and in the very prime and bloom of her beauty; and her mother had flattered herself that her charms would prevail over the young conqueror more than the arms or the statesmen of France. Nor had the designing lady altogether miscalculated the power of her daughter's charms, or the extent of Henry's susceptibility. His heart was touched at the first sight of Katharine, and the practised eyes of her mother saw that the victory was won. Her daughter (she observed) had overcome a prince who appeared till then invincible. But the wily Queen outwitted herself; and, for the present, by her own act disengaged the toils in which Henry had been unquestionably taken. With a view of inflaming his love for her daughter the more by her absence, and of compelling him to comply with any conditions of a treaty, one of which would be Katharine's hand and heart, she would not suffer the Princess to be present at any of the following interviews: the first sight of so much beauty had so triumphant an effect, that she would not permit a second. But her scheme, however finely drawn, was observed by Henry; and, indignant at the artifice, he became more inflexible than ever, and insisted more firmly than before on his first proposals; assuring the Duke of Burgundy that he was resolved to have the Princess with all his other demands, or force the King of France from his throne, and drive the Duke from the kingdom.

The unsuccessful issue of this famous conference was undoubtedly owing in some measure to the Duke of Burgundy, who was for a long time balancing in his mind the policy of joining Henry or the Dauphin. Henry openly charged the Duke with dishonourable conduct; and then the Duke, in a conference at Melun, [\[189\]](#) on Tuesday, July 11th, 1419, made a solemn league, offensive and defensive, with the Dauphin. They engaged to join in the administration of the government without jealousy and envy; and after mutual acts of courtesy, and ratifying the covenant of peace by solemn

oaths, they parted, professedly sworn friends, but having war against each other in their hearts.

Henry, after the respite of these abortive negotiations, again entered upon his career of war and conquest. The next fortified town was Ponthoise, possession of which would open his way to Paris. His soldiers were in the highest spirits; and he seems himself, so far from being dismayed by the union of the Duke of Burgundy with the French court, to have been roused by a sense of his difficulties and dangers to a still higher spirit of valour and enterprise. Ponthoise was taken by surprise, and Henry regarded it as the most important place he had taken during the war. How resolved soever he was to be master of it, he would not make the attempt till after the expiration of the truce with the Duke of Burgundy, "so punctual was he to the observance of his faith and honour, which in brave princes are inviolable." And, to use the words of Goodwin, "his soul was so little altered from its natural moderation by this success, that he sent to the King of France to tell him, that though he had taken so considerable a town, which, being only a few leagues from Paris, opened a way to the conquest of that capital, yet he now offered him peace upon the same terms which he had propounded in the treaty of Melun; with this only addition, that Ponthoise also should now be confirmed to him."

The Dauphin's troops diminished the joy of this victory by taking one or two places by surprise. Still all Paris was in great consternation, and the panic ran through the Isle of France; whilst Clarence marched his troops to the very walls of the metropolis. Shortly after the fall of Ponthoise Henry despatched letters to the citizens of London; which were intercepted by the enemy, who took the bearer of them prisoner. He consequently sent another despatch to the same purport, from Trie Le Chastel, near Gisors, on the 12th of the next month. The importance he attached to this communication, his repetition of the intercepted letters clearly intimates: it is chiefly interesting now because it assures us that Henry believed himself to be almost within reach of the objects of his enterprise; whilst it acquaints us also with the fact, that he had applied for aid to all his friends through Christendom. The letter, it is believed, has never yet been published.

"BY THE KING.

"Trusty and well beloved, we greet you well; and we thank you with all our heart of the goodwill and service that we have always found in you hither-to-ward; and specially of your kind and notable proffer of an aid, the which ye have granted to us of your own good motion, as our brother of Bedford and our Chancellor of England have written unto us, giving therein good example in diverse wise to all the remanent of our subjects in our land. And so we pray you, as our trust is ye will, for to continue. And as to the said aid, the which ye have concluded to do unto us now at this time, we pray you specially that we may have [it] at such time and in such days as our brother of Bedford shall more plainly declare unto you on our behalf; letting you fully wit [giving you fully to understand] that we have written to all our friends and allies through Christendom, for to have succours and help of them against the same time that our said brother shall declare you: the which, when they hear of the arming and the array that ye and other of our subjects make at home in help of us, shall give them great courage to haste their coming unto us much the rather, and not fail, as we trust fully. Wherefore we pray you heartily that ye would do, touching the foresaid aid, as our said brother shall declare unto you on our behalf: considering that [neither] so necessary ne [nor] so acceptable a service as ye may do, and will do (as we trust into you at this time), ye might never have done into us since our wars in France began. For we trust fully to God's might and his mercy, with good help of your aid and of our land, to have a good end of our said war in short time, and for to come home unto you to great comfort and singular joy of our heart, as God knoweth: the which He grant us to his pleasance, and have you ever in his keeping! Given under our signet in our town of Pontoise, the 17th day of August.

"And weteth [know], that, the foresaid 17th day of August, departed from us at Pontoise our letters to you direct in the same tenour; and because it is said the bearer of them is by our enemies taken into Crotey, we renouelle [renew] them here at Trye the Castle, the 12th day of September."

"To the Mayor and Citizens of London."

Henry's arms were victorious through this autumn, town after town, and fortress after fortress, yielding to him; when an event took place which had a most decided and immediate influence on his affairs and those of France. [190] The Dauphin solicited another interview with the Duke of Burgundy, who was cautioned by some of his friends against trusting his person again to that prince's power; whilst others deprecated the appearance in the Duke of any suspicion of the Dauphin's faith and honour. The Duke proceeded to Montereau; where, on the bridge which led to the town, a room of wood-work was prepared for the conference; and at the end, towards the town, were successive barriers. These excited suspicion; still the Duke quitted the town, and entered into the place appointed. There he met the Dauphin, who was surrounded by assassins ready to despatch his enemy at a word.[191] Never was a more base and foul murder committed than that by which the Duke of Burgundy was butchered on the bridge of Montereau. His own guilt is no justification of his murderers; and it is an unsafe interpretation of the inscrutable acts of Providence to regard his death "as the requital of

divine justice." [\[192\]](#) He had caused the Duke of Orleans to be assassinated in the streets of Paris, and he now falls himself by the murderous hands of assassins. He was a bold, presumptuous, ambitious, and licentious man; and his own vices betrayed him to his ruin. But those by whom he fell were equally guilty of treachery and murder, as though he had through his life been guiltless of blood, and an example of virtue.

This tragedy filled the people of France with affliction for the murdered Duke, and with horror at the Dauphin's perfidy and cruelty; but no one seemed to be rendered more decidedly hostile to him for this act than his own mother and father. And whilst the son of the murdered Duke swore he would never lay down his arms till he had avenged his father's death upon his murderers, the King himself, by a proclamation dated Troyes, January 27, 1420, declared that Charles, Count of Ponthieu, condemned and cursed by God, by nature, and his own parents, could have no title to the throne; and that it was just and expedient, for the peace of the nation, that Henry, King of England, should be established Regent of France.

Henry at this time seems to have been exceedingly apprehensive lest, by the escape of the princes and nobles of France, his prisoners in England, the prospect of securing his conquests by a treaty of peace might be interrupted. An original letter, addressed by him to his Chancellor, dated Gisors, October 1, 1419, acquaints us with his anxiety on this subject; whilst it affords another interesting specimen of the English language at that time, and Henry's own style.

"Worshipful Father in God, right trusty and well-beloved, we greet you well.

"And we wol and pray you, and also charge you, that as we trust unto you, and as ye look to have our good lordship, ye see and ordain that good heed be taken unto the sure keeping of our French prisoners within our realm, and in especial the Duke of Orleans, and after to the Duke of Bourbon. For their escaping, and principally the said Duke of Orleans, might never have been so harmful nor prejudicial to us as it might be now if any of them escaped, and namely [especially] the said Duke of Orleans, which God forbid! And therefore, as we trust, you seeth that Robert Waterton, for no trust, fair speech, nor promises that might be made unto him, nor for none other manner of cause, be so blinded by the said Duke that he be the more reckless of his keeping; but that, in eschewing of all perils that may befall, he take as good heed unto the sure keeping of his person as possible.

"And inquire if Robert of Waterton use any reckless governance about the keeping of the said Duke, and writeth to him thereof that it may be amended. And God have you in his keeping!— Given under our signet, at Gisors, the first day of October.

"To the worshipful Father in God,[\[193\]](#) and right trusty and well-beloved, the Bishop of Durham, our Chancellor of England."

CHAPTER XXVII.

HENRY'S EXTRAORDINARY ATTENTION TO THE CIVIL AND PRIVATE DUTIES OF HIS STATION, IN THE MIDST OF HIS CAREER OF CONQUEST, INSTANCED IN VARIOUS CASES. — PROVOST AND FELLOWS OF ORIEL COLLEGE. — THE QUEEN DOWAGER IS ACCUSED OF TREASON. — TREATY BETWEEN HENRY, THE FRENCH KING, AND THE YOUNG DUKE OF BURGUNDY. — HENRY AFFIANCED TO KATHARINE. — THE DAUPHIN IS REINFORCED FROM SCOTLAND. — HENRY ACCOMPANIED BY HIS QUEEN RETURNS THROUGH NORMANDY TO ENGLAND.

1419-1420.

One of the most strikingly characteristic features of the extraordinary hero, whose life and character we are endeavouring to elucidate, forces itself especially upon our notice during his campaigns in Normandy. Neither the flush of victory, nor the disappointments and anxiety of a protracted siege, neither the multiplied and distracting cares of intricate negotiations, nor the incessant trials of personal fatigue,[\[194\]](#) could withdraw his mind from what might perhaps be not unfitly called the private duties of his high station.[\[195\]](#) If an act of injustice was made known to him, he could not rest till he had punished the guilty party, and compelled them to make restitution. If abuses in church or state came under his eye, (and his eye was never closed against them,) he would himself personally provide for the necessary reform. If disputes threatened the peace and welfare of a community over which he had any control, he delighted to act as mediator and to restore peace. And all this he did in the midst of the noise, and confusion, and ceaseless disturbances of a camp in the heart of an enemy's country, with the same anxious zeal, and attention to details, as he could have shown in the times of profoundest peace; though now and then dropping an expression to make his correspondent understand how much

more time and thought he would have devoted to the subject before them, were not his mind and body so occupied by war.

Among many illustrations of this striking trait in Henry's character, the following instances will, it is presumed, be deemed generally interesting, and deserving a fuller notice than a brief statement of the facts might require.

The first is a letter from Henry to his brother the Duke of Bedford, then Guardian of England, in which he urges him to attend without delay to some complaints from the subjects of the Duke of Brittany, and to take prompt and efficient measures to prevent a repetition of the injuries complained of.

"BY THE KING.

"Right trusty and well-beloved brother, we greet you as well. And as we suppose it is not out of your remembrance in what wise and how oft we have charged you by our letters that good and hasty reparation and restitution were ordained and made at all times of such attemptats as happened to be made by our subjects against the truce taken betwixt us and our brother, the Duke of Brittany; and, notwithstanding our said letters, diverse complaints be made and sent unto us for default of reparation and restitution of such attemptats as be made by certain of our subjects and lieges, as ye may understand by a supplication sent to us by the said Duke; which supplication we send you closed within these letters, for to have the more plain knowledge of the truth. Wherefore we will and charge you that ye call to you our chancellor, to have knowledge of the same supplication; and, that done, we will that ye do send us in all haste all those persons that been our subjects contained in the supplication aforesaid. And that also in all other semblable matters ye do ordain so hasty and just remedy, restitution, and reparation upon such attemptats done by our subjects, in conservation of our truce, that no man have cause hereafter to complain in such wise as they [have] done for default of right doing; nor we cause to write to you alway as we done for such causes, *considered the great occupation we have otherwise*. And God have you in his keeping!—Given under our signet, in our host afore Rouen, the 29th day of November."[196] [1418].

The next instance occurs[197] on the apprehension entertained of intended violence and general disturbance of the public peace near Bourdeaux by two noblemen who disputed about the property of a deceased lord. Henry's letter is addressed to the Council of Bourdeaux, giving them peremptory orders to put an instant end to the feud in his name. It is written in French.

"Very dear and faithful.—Whereas we are given to understand that great discord and division prevails between our dear and well-beloved, the Lords de Montferrant and de Lescun, on account of the lands of the late Lord de Castalhan; we wish this to be appeased with all possible speed, in the best manner possible, just as we ourselves would be able to end it. So we wish, and

we charge you, that, immediately on the sight of this, you take the whole charge into *our* [*? your, voz, for noz*] hands; giving straitly in charge to the said Lords Montferrant and de Lescun that neither of them make, or procure or suffer to be made, any riots or assemblies of people, the one against the other, in the meantime, under great pains upon them by you to be imposed, and applied to our aid. And this omit in no way, as we trust in you.—Given under our signet, in our castle of Gisors, the 26th day of September."

The following letter from Henry to the Bishop of Durham, his Chancellor, dated 10th February 1418, and written whilst he was engaged in the siege of Falaise, gives us a pleasing view of the care with which he attended to the claims of individuals, and his desire to do justice to a faithful servant.

"Worshipful Father in God, right trusty and well-beloved. Forasmuch as our well-beloved squire, John Hull, hath long time been in our ambassiat and service in the parts of Spain, for the which he hath complained to us he is endangered greatly, and certain goods of his laid to wedde [*pledge*]; wherefore we wol that ye see that there be taken due accompts of the said John, how many days he hath stand in our said ambassiat and service, and thereupon that he be contented and agreed [*have satisfaction*] in the best wise as longeth unto him in this case.—Given under our signet, in our host beside our town of Falaise, the 10th day of February."[\[198\]](#)

But whilst Henry could thus direct his thoughts to the redress of individual grievances, in the midst of the din of war and the excitement of the camp, he equally shows calmness, and presence of mind, and comprehensive views of sound policy in his negotiations with foreign powers, and his instructions to his representatives at home. In the spring of 1419, letters were received by Henry from several cities of Flanders, which, together with his answers to them and his instructions to his brother, will not be read without interest. The towns of Ghent, Ypres, Bruges, and Franc apply to Henry for his protection and friendship, or rather for a renewal or continuance of that especial favour which they had enjoyed in former days; they refer more particularly to the kindness of his "grandfather, John Duke of Lancaster, of noble memory, who, because he was born among them, ever showed them most singular love and regard." This letter, written in French, and dated 24th March 1418, is given under the seals of the three first towns, and the seal of the Abbot of St. Andrew for the people of Franc, because they had no common seal. Henry's answer, in Latin, assures them, "If the people of Flanders will behave towards England as they are said to have done in times past, we shall rejoice to give no less valuable indications of our favour than did our father or grandfather; and we have instructed our brother, the Duke of Bedford, and our council, to send ambassadors with full powers to Calais, to negotiate a peace between England and you."

Probably Henry did not pen this letter himself; but, whoever indited it, the letter contains fewer barbarisms, and has more indications of classical scholarship in the writer, than are often found in modern Latin.^[199] Henry forwarded both the Flemish prayer and his own answer to his brother, with instructions in English; and, shortly after, he sent a long letter to his Chancellor, the Bishop of Durham, as well on that negotiation, as on an affair in dispute between the English merchants and the Genoese. This document shows how minutely Henry investigated the matters on which he wrote; and how sensible a view he took of the interests of our commerce, and how dispassionate was his judgment. The Genoese had seized goods belonging to English merchants, who laid claim for a compensation. Henry's letter states the exact sum at which the English estimated their merchandise, and the lower price fixed by the Genoese;^[200] and then, in consideration of the injury done to English commerce by the Genoese letters of marque, Henry recommends the English merchants to accept the offer made by the Genoese, provided they stipulate that the English merchant vessels shall have as free course of trade to Genoa as the Genoese desired to have to the ports of England. This correspondence is found among the "Proceedings of the Privy Council." The whole is well deserving the perusal of any one interested in the history of British commerce, but is on too extensive a scale for insertion at length in this work.^[201]

The only other instance which the Author of these Memoirs would add to the preceding (though many and various examples of the same kind are at hand) is one which brings all the associations of opening life before his mind, and recalls days which can never be forgotten, whilst they can never be remembered without the liveliest feelings of gratitude to the Giver of every good. The days which he spent within the walls of that college to which Henry's letter refers, are long ago past and gone; but they have left a fragrance and relish on the mind, and the remembrance of them is sweet.

Oriel College, founded by Edward II, not long before his unhappy murder, for the promotion of sound learning and religious education, has been, if any college ever was, faithful to its trust. When Henry V. was (as we believe) studying under the care of his uncle, the future Cardinal, John Carpenter, afterwards Bishop of Worcester, was resident in Oriel; and between him and young Henry a close intimacy, we are told, was formed.

These friendships, cherished when the heart is most warm, and the best feelings freshest, not only endear the two friends to each other through life, but excite in each an interest in whatever belongs to the other. On this principle we may believe that Oriel College, and its peace and welfare, were objects of no ordinary interest to Henry; certainly his friend, John Carpenter, felt so grateful to the society in which he had imbibed the principles of philosophy and religion, as to found one new fellowship in addition to the eight of its original foundation, and the four founded by his contemporary, though probably his senior, John Frank, Master of the Rolls. About the time when Henry was pursuing his victories in France, an unhappy dispute arose to interrupt the harmony of this little community. Perfect peace is reserved for the faithful in heaven; on earth we must not expect to pass through life either as insulated individuals, or as members of any society, however sound may be its principles, and however Christian may be the general temper of its members, without some of those disturbing vexations which admonish us (with many other warnings) not to suffer our hopes to anchor here. Just as in a family, quarrels in a college are the more fatal to the comfort of its members in proportion to the narrowness of the circle which surrounds them, and to the closeness of the bond which more frequently compels them to meet together. The citizen of the world may avoid one whom he cannot meet with satisfaction and pleasure; the inmate of a college comes in contact with his brethren every day. The place of prayer, the refectory, the social board of kindly intercourse, all well calculated to cherish and ripen feelings of friendship, yet if unkind sentiments are lurking in the breast, only provoke their expression, and cherish the heartburnings, and fan the embers of discord into a flame.

In a college the first spark of unkindness, unbrotherly, anti-social feelings, should especially be extinguished: disunion there is more fatal to comfort and ease, and peace of mind, and the enjoyment of whatever blessings might otherwise be in store, than in any other community except that of husband and wife, parent and child, brother and brother. To no combination of Christians would the Apostle with greater earnestness repeat his injunction, "Love one another."

What was the immediate subject of dispute at the time when Henry interfered with Oriel College, the Author has never been able to discover.

There is no auxiliary evidence, and the only source of reasonable conjecture must be the internal testimony of the King's letter itself. The epistle is an original, preserved in the Tower of London; its date is 7th of July, and in the town of Mante. This fixes it (with as much certainty as we can ever expect in such matters) to the year 1419; when Henry seems to have made Mante his chief residence for some time, and was certainly there both before and after the 7th of July in that year.

This letter is very interesting, particularly to Oriel men, for other reasons, and especially because it contains indisputable proof of the position maintained by them, that not the Chancellor, nor the King by his Chancellor, but the King himself in person, is the visitor. May his interference on a similar occasion be never again needed! May discord between the Head and the Fellows, or between the Fellows among themselves, be for ever banished! But should the voice and the hand of the visitor be ever required "to stint the controversy," the visitor of this "ancient and royal house"—is the King of England only. The letter is in itself characteristic of Henry, and affords, probably, a fair specimen of the style of an English gentleman of that day.

"BY THE KING.[\[202\]](#)

"Worshipful father in God, our right trusty and well-beloved, we greet you well. And for as much as we lately sent for Master Richard Garsedale, one of the contentents of the Provost of the Oriell, to that end that for his party should nothing be pursued, neither at the court of Rome nor elsewhere, but that that controversy should be put in respite unto our coming home with God's grace: for our occupation is such that we may not well intend to such matters here. Wherefore we will that ye make both the said Garsedale, which cometh now home by our leave, and sufficient of both the parties that neither of them shall make further pursuit of appeal at court of Rome, nor no manner of pursuit there, or elsewhere, as touching the said controversy, unto our coming as before; at which time our intent is to put the same controversy to a good and righteous conclusion, and the said party in rest. And if any of them have the said pursuit of appeal hanging in court, that they abate it, and send to revoke it in all haste: and that they make all such as been their attornies or doers in court spiritual and temporal to surcease. And we will furthermore, as touching our said College of the Oriell, that ye put it in such governance as seemeth to your discretion for to do, unto our coming. And God have you in his keeping!—Given under our signet, in our town of Mante, the 7th day of July.

"To the worshipful father in God, our right trusty and well-beloved, the Bishop of Durham, our Chancellor of England."

Whilst Henry was occupied by his campaign in France, a parliament met October 16th, 1419, and voted one-fifteenth, and one-tenth, and one-half part of them both. In this parliament that enactment was made on which our authority chiefly rests for believing the Queen-Dowager, Bolinbroke's widow, to have been guilty of conspiring her son-in-law's death. The act, after declaring that she was accused by friar John Randolph, and other credible witnesses, of having compassed the King's death in the most horrible manner; and that Roger Colles of Shrewsbury, and Peronell Brocart, lately living with the Queen, were violently suspected of having been partners in her guilt; enacted that all the lands, and castles, and possessions, as well of the Queen as of her accomplices, should be seized for the King's use, provision being made for the maintenance of the Queen and her servants.

Meanwhile, much progress was made in France towards a peace between Henry, the French King, and the young Duke of Burgundy. An armistice was signed between Henry and Charles at Mante, November 20, but only for the Isle of France; and, at the close of the month, the Duke of Burgundy, then at Arras, signed his consent to the articles which Henry had commissioned his ambassadors to lay before him, which were these:

First, that he should have the Princess of France in marriage. Secondly, that he should not disturb the King of France in the possession of the crown; but suffer him peaceably to enjoy it, and receive its revenues as long as he lived. Thirdly, that the Queen also should during her life retain her title and dignity, with such a part of the revenues of the crown as would be suitable to maintain the royal honour. Moreover, that the crown of France, with all its dominions, should, after the death of the King, descend to Henry and his heirs for ever; that, in consequence of the incapacity of the King's mind, Henry should as Regent administer the affairs of government, with a council of the nobles of France; with other stipulations subservient to these grand fundamental points.

The Duke of Burgundy also agreed on certain articles^[203] of amity between himself and Henry, stipulating to give his own support of Henry's authority and rights as Regent and King; in return for Henry's protection of

him in all his rights, and against all his enemies, especially against the murderers of his father.

To effect these great ends, a general armistice was concluded at Rouen, December 24th, to continue to the 1st of March, from which it was provided that the Dauphin should be excluded. This truce was afterwards prolonged to March 24th. Meanwhile, the war was vigorously carried on by the English and Burgundian forces against the Dauphin; whilst on the confines of Normandy, where the English at that time were stationed, every thing was conducted by the people of the two nations in as amicable and familiar a manner as though the peace had absolutely been concluded, and the English King were Regent of France; an object, as they professed, most devoutly desired by the people of Paris, who sent their deputies to bespeak the good offices of Henry for the preservation of their rights and liberties. [204] Henry's ambassadors made many objections to the terms of the proposed treaty, chiefly on the ground that, by accepting them, Henry would injure his then title to the throne of France. But he saw himself that all essentials were provided for; and desirous of terminating the war, and more anxious (we may believe) to make the beloved Princess his own wife, left Rouen on his journey to Troyes, where the French court and the Duke of Burgundy were. Henry passed so near to the walls of Paris, that the people hastened out of the city to see him; and they greeted him with joyous and welcoming acclamations.

Henry, arriving at Troyes, made an immediate visit to the King, the Queen, and the Princess. How far the love of Henry towards Katharine expedited the negotiations we cannot tell. Every difficulty, however, vanished; and a final agreement and perpetual peace was made and sworn to "by Charles, King of France, and his dearest and most beloved son, Henry, King of England, constituted heir of the crown and Regent of France." Henry having consented during Charles's life not to assume the title of King of France, Charles promised always to style Henry "our most illustrious son, Henry, King of England, heir of France." After Charles's death, the two kingdoms of England and France were to be for ever united under one King. Many other articles swell this solemn league, which are all subservient to these leading provisions.

This treaty was signed at Troyes, May 21, 1420, in the presence of the Emperor Sigismund and many of the Continental princes, all of whom became parties thereto. On the same day Katharine and Henry were affianced before the high altar of St. Peter's Church, in Troyes; in which city proclamation of the peace[205] was made both in the French and the English tongue. It was afterwards proclaimed at Paris, and the principal cities of France; and, on June 24, it was proclaimed in London, after a solemn procession and a sermon at St. Paul's Cross: and an ordinance was made for breaking the great seal of England, and making another, on which to the King's title should be added, "Regent and heir-apparent of France;" and a corresponding order was given to the officers of his mint at Rouen for a change of the inscription on the coinage there." [206]

The marriage of Henry with Katharine[207] was celebrated with great magnificence by the Archbishop of Sens, on the 30th of May, in the presence of the principal nobility of Burgundy and France. The Duke of Burgundy first, and then all the other assembled nobles, swore allegiance to Henry, as Regent of France. "For," (as the historians[208] say,) "the fame of his heroic actions in war, when his person was unknown to them, had acquired him a universal esteem; and they knew not what most to admire, his courage, conduct, or success. But now his noble presence, in which there was a due mixture of majesty with affable deportment, procured a greater veneration. They knew him to be prudent in councils, experienced in war, of an undaunted courage in dangers, and prosperous in all his enterprises; and therefore they persuaded themselves that their country would be happy under the influences of his government." It is said that they were confirmed in these anticipations of good, as well as exceedingly delighted, by the speech which he addressed to them in full assembly, showing the moderation and temper of his soul. At the close of his address they unanimously expressed their confidence in his honour, and the highest regard for his interests.

The Dauphin, however, continued to prevent the establishment of peace; and, having obtained from the Scotch parliament a reinforcement of seven thousand men, under the command of the Earl of Buchan, still proved a formidable enemy to Henry. But, never relaxing his exertion whilst any

thing remained to be done, Henry prepared most vigorously to meet the forces thus united against him.[\[209\]](#)

He retained still in his camp the King of Scotland, by whose influence he had hoped to draw the Scots from the service of the Dauphin; but they would not listen to their monarch whilst he was the King of England's prisoner. The English army, however, was recruited by a considerable reinforcement, which the Duke of Bedford had brought over with him. He had governed England as Regent, during the King's absence, with great zeal and wisdom; and he now left the Duke of Gloucester to rule the kingdom in his stead.

Many cities and garrisons attached to the Dauphin held out with much resolution and fidelity to his cause, and the English had full employment in reducing them. The town of Melun was defended with most determined obstinacy. During the protracted siege of this place, Henry was surrounded by all the magnificence and state of a royal court amidst the noise and disorders of war. His Queen, also, "with a shining train of ladies," came to the camp; for whom "a fair house was built, at such a distance as secured them from any danger of shot from the town." The royal bride and bridegroom had been allowed a very brief interval for that enjoyment of each other's society in retirement and privacy which is denied to few in any rank of life immediately on their union. Their marriage was solemnized on the 30th of May at Paris, and for one short week only from that day are the records silent as to Henry's residence. On the 7th of June he was at Villeneuve, engaged again (if, indeed, there had been any interruption of his public duties,) in the business of the state. From July the 9th to the end of September he passed, with very few exceptions, his day alternately at Paris, and in the camp before Melun, which was about ten leagues from the capital. It was, we may reasonably conjecture, to make this new life of war as little irksome to Katharine as the circumstances would allow, and to provide an additional source of amusement and gratification, that Henry sent to England for those new harps for himself and his Queen, to the purchase of which at that time we have already referred.

At the surrender of Melun, a circumstance took place characteristic of Henry's firmness and justice, mingled at the same time with feelings of

friendship and kindheartedness. A gentleman of his household, who had fought with him at Agincourt, and was high in his esteem, was convicted on clear evidence of having received a bribe during the treaty for the surrender of the town, which tempted him to favour the escape of one suspected of being an accomplice in the Duke of Burgundy's murder. The young Duke of Burgundy and the Duke of Clarence petitioned for his pardon; but Henry gave orders for his execution, saying he would have no traitors in his army. At the same time he was heard to declare he would have given fifty thousand nobles that Bertrand de Chaumont had not been guilty of such a crime.

Shortly after the surrender of Melun, Charles and Henry went together to Paris, accompanied by their Queens. The royal party were met by the citizens with every demonstration of joy and devotedness; and, in honour of Henry, most persons of quality dressed themselves in red.[\[210\]](#) The first solemn act performed at Paris after the rejoicings were ended, was the attainder of the Dauphin and his accomplices for the murder of the Duke of Burgundy. He was denounced as unworthy of succeeding to any inheritance, and sentenced to perpetual banishment; judgment of death being pronounced against all his accomplices. A knowledge of these proceedings only stimulated him to further acts of violence.

Henry's court was at the Louvre, whilst Charles' was at the Hôtel de St. Paul. The two courts were marked by a wide difference in splendour and attendance. The palace of Charles was deserted, whilst Henry's was crowded by almost all the great men of France.

Having now established the government of France, and provided for its maintenance during his absence, Henry proceeded with his royal bride towards England. In Normandy he was well received by the estates, who were assembled at Rouen, and who voted him a subsidy of 400,000 livres. On leaving this place, he constituted the Duke of Clarence his Lieutenant of Normandy, and gave commission to the Duke of Exeter to administer the government in Paris.[\[211\]](#) With his Queen and the Duke of Bedford he reached his native land in safety on the last day of January, or the first of February 1421; and he immediately communicated to the Archbishop his wish for him to appoint a day of public thanksgiving.[\[212\]](#)

CHAPTER XXVIII.

KATHARINE CROWNED. — HENRY AND HIS QUEEN MAKE A PROGRESS THROUGH A GREAT PART OF HIS DOMINIONS. — ARRIVAL OF THE DISASTROUS NEWS OF HIS BROTHER'S DEATH (THE DUKE OF CLARENCE). — HENRY MEETS HIS PARLIAMENT. — HASTENS TO THE SEAT OF WAR. — BIRTH OF HIS SON, HENRY OF WINDSOR. — JOINS HIS QUEEN AT BOIS DE VINCENNES. — THEIR MAGNIFICENT RECEPTION AT PARIS. — HENRY HASTENS IN PERSON TO SUCCOUR THE DUKE OF BURGUNDY. — IS SEIZED BY A FATAL MALADY. — RETURNS TO VINCENNES. — HIS LAST HOUR. — HIS DEATH.

1421-1422.

Henry, now in the enjoyment of peace in England, Ireland, and France, (except only so far as the Dauphin was yet unsubdued,) in the enjoyment, too, of a union with the most beautiful Princess of the age, seems to have reached the highest pinnacle of his ambition and his hopes. The Queen was crowned with great solemnity and magnificence in Westminster Abbey, [\[213\]](#) on the third Sunday in Lent. (23rd February 1421.)

After Henry had gratified his royal consort by proving to her how deep and lively an interest the people of England took in her welfare and happiness, he retired with her for a time to Windsor. A combination, however, of various motives, induced him to propose to her to join him in the execution of a design on which he seems to have been bent, and to accompany him [\[214\]](#) in a progress through the kingdom. He was most anxious to ascertain by personal inspection the state and condition of his subjects in various parts of the realm; more especially with the view of satisfying himself that justice was impartially administered, crimes repressed, and innocence protected. He felt also naturally a desire to present his loyal subjects to his Queen, of whom we have many proofs that he was in no ordinary degree proud; and, at the same time, to add to her gratification by

visiting in her society those places with which he had early associations of pleasure, or which it would be most interesting to a foreigner to see. He was also influenced, perhaps, in some measure by a desire of visiting, in a sort of pilgrimage, the shrine of the patron saint of his family, John of Bridlington; and that of John of Beverley, the saint to whose merits the hierarchy, as we have seen, so presumptuously ascribed the turn of the battle on the day of Agincourt.

With these motives,[215] combined, it may be, with others, Henry lost no time in carrying his intention into effect. He seems to have always acted under a practical sense of the maxim, never to put off till to-morrow what is to be done, and what may be done, to-day. Without waiting for the summer, or a more advanced stage of the spring,—and, had he delayed for longer days and more genial weather, the journey would never have been taken,—we conclude that, about the beginning of the second week in March, the King and Queen, attended by a large retinue of friends and nobles, began their journey northward.[216] The first place in which we are sure they rested is Coventry, which they reached probably about the 8th of March, and where they were certainly on the 15th of that month, the eve of Palm Sunday. Henry had a house at Coventry, in right of the duchy of Cornwall, called Cheylesmoor; and probably they took up their abode in that mansion during their stay at Coventry. The greater part of the time spent in Warwickshire was perhaps passed in the castle of Kenilworth, a favourite residence of his grandfather, John of Gaunt, who made very great additions to the mansion, always afterwards called the Lancaster Buildings. Henry himself, too, had been much employed in improving this place, and surrounding it with pleasure-grounds and arbours,[217] instead of the thorns and brakes which had formerly been seen there. Just seven years before this visit with his Queen, he had drained and planted the rough land near the castle; and the local historians tells us the spot was called "The Plesance in the Marsh."

From Kenilworth the royal party went (probably about the 20th of March) to their house at Leicester, where they kept the festival of Easter.[218] Easter Sunday fell that year on the 23rd of March. Could Henry have known of the sad calamity which befel him that very Easter, his rejoicings would have been turned into mourning. It was at that very time that the

disastrous conflict took place, in which the English were routed, and the Duke of Clarence, whom Henry had left his representative on the Continent, was slain. Where the King was when the melancholy tidings reached him, and which induced him to cut short his progress, does not appear. We know that the joyful news of Agincourt reached London on the fourth morning after the battle; and probably the sad report of his brother's death, and of the discomfiture of his troops, was posted on to Henry whilst he was at York. Towards this, his northern capital, we conclude that he proceeded from Leicester, about the last day of March. The inhabitants of York had made most costly preparations for the reception of their royal visitors; and on their arrival they welcomed their conquering sovereign, and the partner of his joys and cares, with every demonstration of loyalty and devotedness. The most princely presents were offered to Henry in the most dutiful and cordial spirit of loving and admiring subjects. How many days they remained together amidst the festivities and rejoicings of the province of York, is not recorded; perhaps the limit to this festival was the hour when the gloom which spread over the kingdom on the death of Clarence reached the royal party. It is not improbable that the news of his loss gave a turn to Henry's mind, and induced him with sentiments of piety and mourning to leave the splendour of his court for a while, and, laying aside the feelings of the triumphant monarch, to give himself up to exercises of devotion, and to a preparation for the same awful change which had so unexpectedly stopped the career of his younger brother. Leaving his Queen among his friends and faithful lieges of York, he proceeded on a kind of pilgrimage to Bridlington, Beverley, and Lincoln;[\[219\]](#) but in what order he visited those places it does not appear. He was at York on the 4th of April, and again on the 18th; whilst it is equally certain that on the 15th he was at Lincoln. The author of the manuscript which tells us that his object in going to Lincoln was to be present at the installation of Richard Flemming, then lately elected Bishop, seems to be in error when he adds, that the King rejoined the Queen at Pontefract, and thence proceeded to Lincoln, and thence to London; unless, indeed, the King visited Lincoln once by himself, and once with Katharine; a supposition in the last degree improbable. He certainly returned to York after his sojourn at Lincoln on the 15th. It is very probable that, when he left York, he proceeded first to Bridlington, thence to Beverley, and so, crossing the Humber at Hull, reached Lincoln about the 13th of April, and, having passed two or three days there, returned to York on the 17th. The

only other town mentioned by chroniclers is Pontefract. Documents may, perhaps, be hereafter discovered to account for him between the 18th of April, when he was certainly at York, and the 1st of May, when he had returned to Westminster. At present we are left to conjecture: but it cannot be thought improbable if we suppose that, from his castle of Pontefract, (where he would have seen the Duke of Orleans[\[220\]](#), then a prisoner there, whom he always treated with respect and kindness, and whom he indulged with as much relaxation of his confinement as was compatible with his safe custody,) he took the route for Chester, the place where he had formerly landed on his return from Trym Castle. Thence pointing out to his bride the country of Glyndowr, in which he passed his noviciate in arms; and the whole line of the Welsh borders, with which he had been long familiar, he would probably have passed on to Shrewsbury, where he might have taken Katharine to the spot in the battle-field on which Hotspur fell. From Shrewsbury, his line would be through Worcester, in which city he had often been stationed during the Welsh rebellion; and so onwards through Oxford, (a place he probably had visited on his journey northward, and where he would have been delighted to show Katharine the "narrow chamber" assigned to him when he studied there,) thus finishing his circuit where it began, at Windsor.

There are difficulties attending this supposition, to the existence of which the Author is fully alive; but in the whole affair there is only a choice of difficulties. He is aware that the journey from York through Chester and Shrewsbury to Windsor would have required the royal party to travel for fourteen days at the rate of twenty miles on the average each day consecutively. But, on the other hand, without such a supposition, the old chroniclers[\[221\]](#) must be altogether laid aside, (though there is no other evidence to make their statement improbable,) when they assure us that Henry took Katharine to visit his principality, as well as the distant parts of his kingdom.[\[222\]](#) It must, moreover, be borne in mind that although he might have felt a reluctance (notwithstanding the melancholy event which hastened his return to the capital) to break off his intended progress without visiting at least the borders of Wales, yet he was pressed for time, and would therefore not willingly lose a day on the road. Be this as it may, we are assured[\[223\]](#) that, wherever he went, his ears were in all places open to the complaints of the injured and oppressed; he redressed their wrongs,

punished the perverters of public trusts, reformed many abuses in the local governments, and established such ordinances as should secure for the future the impartial administration of justice to high and low alike.

If, as we are led to believe, Henry returned by the way of Chester, his ardent imagination and pious turn of thought would have reverted with mingled feelings of wonder and gratitude to his journey along the same road two-and-twenty years before; when, returning from his own captivity in Ireland, he accompanied the captive Richard towards his metropolis, to resign his throne there, and soon afterwards to lay down his life. To Henry, indeed, mementos presented themselves on every side of the frailty of all sublunary possessions, the precarious tenure by which king or peasant alike holds any earthly thing; whilst he was himself destined, in the revolution of the next year, to become in his own person a marked example of the same uncertainty. His spirit might seem to address us from the grave, in the words of a reflecting man.[\[224\]](#) "A day, an hour, a moment is sufficient for the overthrow of dominions which are thought to be grounded on foundations of adamant."

Where Henry was when the unexpected news arrested his progress is not known. The certainty is, that whilst he was anxiously engaged in reforming abuses, and preparing good laws at home; after he had also just concluded a peace with Genoa, and, by generously releasing the King of Scotland, had bound him by the strongest ties of gratitude and affection; his exertions were suddenly arrested by the sad news of the defeat of his forces at Baugy in Anjou, and the death, in battle, of his brother, the Duke of Clarence.[\[225\]](#) These tidings caused him to shorten his progress, and to return to his capital, where he arrived at furthest on the 1st of May.

The Bishop of Durham, Chancellor of England, was charged to open the Parliament, which met on the second of that month, Henry himself being present, in the Painted Chamber. The Chancellor's address, though in many points strange, and well-nigh ridiculous, is too interesting to be passed by unnoticed. He began by uttering eulogies on the King, specifying, among other topics of praise, this merit in particular,—that, whilst God had granted him victories and conquests as the fruits of his labour, he never assumed the least merit to himself, but ascribed all the glory to God only, "*following in a*

manner the example of the very valiant Emperor Julius Cæsar;" and also because as Job, when news was brought to him of the death of all his children as they were feasting in their eldest brother's house, praised God, saying, "The Lord gave, and the Lord hath taken away, the will of the Lord be done; blessed be the name of the Lord!" so our sovereign Lord the King, when he first heard of the death of the noble prince, the Duke of Clarence, his own dear brother, and of the gallant knights and others slain with him, praised and blessed God for the visitation of that calamity, as he had before had cause to praise Him for all his prosperity. In declaring the cause of summoning this Parliament, he mentions the desire the King had of rectifying, according to right and justice, all abuses and wrongs which had prevailed through the realm since his last passage to foreign lands, especially to the injury of those who had been with him there; and also his wish that all the laws of the realm should be maintained and enforced, and that further provision should be made for the [\[226\]](#)better governance, and peace, and universal good of the realm. The Parliament, it is said, cheerfully voted him a fifteenth,[\[227\]](#) though many persons petitioned against further taxation, and gave utterance to sad complaints of their poverty. The Convocation also met on May 5th, and on the 12th; they voted him a tenth from the revenues of the clergy: and his uncle, the Bishop of Winchester, advanced to him by way of loan twenty thousand pounds. The Parliament guaranteed payment of the loans to all who should advance money to the King for this expedition.

Henry, impatient to repair the dishonour of the defeat which his forces had sustained, and to reduce his foreign dominions to peace, issued his writ, on the 27th of May, to the sheriffs of the several counties to publish his proclamation that all persons should hasten with the utmost speed to join the King, and accompany him in his voyage. And now possessing under his command a larger force than he had ever yet raised; after procuring by subsidies and loans as large a sum as the power or inclination of his people supplied; having also appointed his brother, the Duke of Bedford, Regent; he left London (never to return to it alive), on the last day of May, or the 1st of June. From the 1st to the 10th of that month he seems to have passed his days alternately at Canterbury and Dover; though the cause of this delay does not appear to have been recorded. To whatever the postponement of his departure is attributable, though he left the metropolis not later than the

1st, he did not finally quit the English shores till the 10th of June. On the 12th he was at Rouen.[\[228\]](#)

The Dauphin himself with a large army was at this time besieging Chartres, and Henry having passed by Abbeville, Beauvais, Gisors, and Mante, marched himself with strong hand to raise that siege. On Henry's approach the Dauphin withdrew.

Some of these facts, with others, are contained in a letter which was forwarded from Henry to the mayor and citizens of London, (it is the last we shall have occasion to transcribe,) and which is chiefly remarkable for his language when speaking of the Dauphin. He will not acknowledge him to have any right to the title, and calls him a pretender. Another point of considerable interest is the unqualified manner in which he speaks of the cordial co-operation and sincere attachment of the young Duke of Burgundy.

BY THE KING.

"Trusty and well-beloved, we greet you well. And for as much as we be certain that ye will be joyful to hear good tiding of our estate and welfare, we signifie unto you that we be in good health and prosperity of our person; and so be our brother of Gloucester, and bel-uncle of Exeter, and all the remnant of lords and other persons of our host, blessed be our Lord, which grant you so for to be! Witting, moreover, that in our coming by Picardy we had disposed us for to have tarried somewhat in the country, for to have set it, with God's help, in better governance; and, while we were busy to intend therto, come tidings unto us that he that clepeth him [calleth himself] Dauphin was coming down with a great puissance unto Chartres. Wherefore we drove us in all haste to Paris, as well for to set our father of France, as the said good town of Paris, in sure governance, and from thence unto this our town of Mante, at which place we arrived on Wednesday last, to the intent for to have given succours, with God's grace, unto the said town of Chartres; and hither come unto us our brother of Burgundy with a fair fellowship, for to have gone with us to the said succours; the which our brother of Burgundy we find right a trusty, loving, and faithful brother unto us in all things. But, in our coming from Paris unto this our town of Mante, we were certified upon the way, by certain letters that were sent unto us, that the said pretense Dauphin, for certain causes that moved him, hath raised the said siege, and is gone into the country of Touraine in great haste, as it is said. And we trust fully unto our Lord that, through his grace and mercy, all things here, that we shall have to do with, shall go well from henceforth, to his plesance and worship; who we beseech devoutly that it so may be, and to have you in his keeping!—Given under our signet, in our host, at our town of Mante, the 12th day of July."

Though the Dauphin avoided Henry altogether, he was forced to engage with the Duke of Burgundy's army, and he suffered a most decided defeat

near Blanche Tache. Henry, meanwhile, was engaged in reducing Dreux and other towns, still garrisoned for the Dauphin.

The town of Meaux was so strong, and so well manned, that the siege of that one place occupied Henry from the 6th of October through the whole winter, and to the very end of the next April. During this protracted siege, in which the Earls of Dorset, and of Worcester, and Lord Clifford were killed, Henry sent ambassadors to the Emperor Sigismund for succours. He had the satisfaction, meanwhile, to hear that his Queen was delivered of a son, at Windsor, on St. Nicholas' day (December 6th). Whether the common report has any foundation in truth, cannot now be certainly known: his father, however, is said to have omened ill of the young prince when he heard of the place of his birth, and to have spoken thus to Lord Fitz-Hugh, his chamberlain: "My lord, I Henry, born at Monmouth, shall small time reign and get much; and Henry, born at Windsor, shall long reign and lose all: but God's will be done!" Probably this was a prophecy forged after the event, and ascribed to Henry without any foundation in truth.

In the session of Parliament held December 1st, 1421, under the Duke of Bedford as Regent, one fifteenth was voted for prosecuting the war, with this condition appended, that the first half of it should be paid in the money then current. The gold coin had been much lessened in value by clipping and washing; consequently the Parliament, to relieve the people, ordained that the receivers of the tax should take all light pieces, not wanting in weight more than 12*d.* in the noble. The people, therefore, got rid of their gold as fast as they could, and hoarded up their silver.[\[229\]](#) The Convocation also, which met at York, September 22nd, granted a tenth.

After reducing many towns and castles, Henry proceeded to the Château Bois de Vincennes, near Paris, to meet his Queen,[\[230\]](#) who had landed at Harfleur, on the 21st of May, with a noble retinue, and under convoy of the Regent himself. Henry and Katharine entered Paris together, where they were magnificently received; the same painful contrast still being felt by Charles between his court and that of his heir-apparent. The young King had put the spirit of the Parisians to the test by a strong measure, in levying a most unpopular tax; but the discontent did not break out into any open tumult. Indeed (as the chroniclers record) their resentments were abated, or

rather turned into affection, when they felt the kind influences of King Henry's just and moderate government, and observed his exact administration of justice in redressing wrongs, and punishing without partiality or favour the authors of them. By this just conduct he gained especially the love of the people, who regarded him as their father and protector.

The Dauphin in the mean time was anxiously bent on recovering a crown from which the victories of Henry, and the displeasure of the King his father, had excluded him. His army was comparatively small, and he therefore, whilst Henry was with an army in the neighbourhood, avoided a battle, keeping always two days' march distant from him. Finding, however, that Henry was now, at length, far away, he laid siege to Cone, a town on the Loire, the garrison of which agreed to surrender on the 16th of August, if they were not by that time relieved by the Duke of Burgundy. The Duke not only sent into Flanders and Picardy to levy troops to raise this siege, but importuned Henry also to strengthen him with English soldiers and officers. The King's answer was that he would come himself at the head of his whole army to the Duke's relief. This was his resolution; but God decreed otherwise.

Very shortly after this resolution, Henry was seized by a disorder, on the exact nature of which historians are not agreed, which proved fatal to him. Yet, though much weakened, he resolved to join his army, which, at the first approach of his disorder, he had commanded the Duke of Bedford to lead on to raise the siege of Cone. With this intention he left the King^[231] and Queen of France, and his own beloved Katharine, at Senlis, and proceeded to Melun. His complaint was then making rapid and deadly progress; and, after having been carried in a litter with the intention of passing through his troops, he was compelled to return to Vincennes.^[232] The Duke of Bedford, who had raised the siege of Cone without striking a blow, hearing now of the state of danger in which his brother was, left the army, and, accompanied by a few friends, rode full speed towards the castle, where the King lay.

Henry, sensible that his end was fast approaching, desired the Duke of Bedford, the Duke of Exeter, the Earl of Warwick, Sir Lewis Robessart, and

some others, to stand round his bed; to whom we are told he spoke to this effect: "I am come," said he, "to the end of a life which, though short, has yet been glorious, and employed to advance the good and honour of my people. I confess it has been spent in war and blood; yet, since the only motive of that war was to vindicate my rights after I had ineffectually tried milder methods, the guilt of all the miseries it occasioned belongs not to me, but to my enemies. As death never appeared formidable to me in so many battles and sieges, so now, without horror, I regard it making its gradual approach. And since it is the will of my Creator now to put a period to my day, I cheerfully submit myself to his will." He then mentioned two circumstances which tended to make him anxious on leaving the world: the one, that the war was not brought to a close; the other, that his son was an infant. But he was comforted on both these points by the tried friendship and sound principles of the Duke of Bedford, his brother; to whom he gave in charge both his kingdom and his boy. He then desired the Earl of Warwick to undertake the office of preceptor and guide to the young prince in learning and in arms. Henry next left a charge for his brother Humfrey to be careful that no division of affection and interests should take place between them; he conjured them also not to quarrel with the Duke of Burgundy, and enjoined them not to release the Duke of Orleans, and some other prisoners, till his son was arrived at years of discretion.

This was a mournful hour for those noblemen and friends and relatives who surrounded his bed. At length, having given all necessary directions for the government of his kingdom and his family,[\[233\]](#) he fixed his thoughts wholly on another world. He urged the physicians to tell him the real state of his disease; but they evaded any direct answer. Very soon he required them to tell him how long, in all human probability, he had to live. After some consultation, one of them, speaking for the rest, knelt down and said, "Sir, think of your soul; for, without a miracle, in our judgment you cannot survive two hours." His confessor and other ministers of religion then surrounded his bed, and administered the parting rite of the Roman church, as it was at that time and is still practised. He next desired them to join in the seven penitential psalms; and when in the 51st psalm they read, "Build thou the walls of Jerusalem," caught by the words, Henry bade them stop awhile; and with a loud voice declared to them, on the faith of a dying person, that it verily had been his fixed purpose, after settling peace in

France, to proceed against the infidels, and rescue Jerusalem from their tyranny, if it had pleased his Creator to lengthen out his days. He then requested them to proceed; and when they had finished their devotions, between two and three o'clock in the morning, he breathed his last.

Henry of Monmouth died 31st August 1422; and when he resigned his soul into the hands of his Redeemer, he seemed to fall asleep rather than to expire.[\[234\]](#)

Such a Christian end of his mortal existence is not surprising when we remember (a point on which his own chaplain will not suffer us to doubt,) that every day of his life he read and meditated upon the word of God, for the express purpose of learning how best to fear and serve him; a daily exercise (says the chaplain) from which, when he was engaged in it, no one even of his chief nobles and the great men of his state[\[235\]](#) could withdraw him.[\[236\]](#)

The bowels of Henry were buried in the monastery of St. Maur; and his body embalmed, being put into a leaden coffin, was drawn to St. Denis. Before and behind the corpse were two lamps burning; and two hundred and fifty torches gave light to the procession. The Abbot and Monks of St. Denis came out to meet it, and solemnly preceded it to their church, where they performed the office for the dead, the Archbishop of Paris singing the requiem. From St. Denis the procession advanced to Paris, where the body was deposited for a while in Notre Dame; and thence, with great and solemn pomp, it was carried to Rouen. The Queen, from whom the death of her husband had been before concealed, here met the Duke of Bedford; and made preparations for the conveyance of the body to England. In a bed, in the same carriage with the body, was laid the figure of the King, with a crown of gold on his head, a sceptre in his right hand, and a ball in his left. The covering of the bed was vermilion silk embroidered with gold, and over the chariot was a rich silk canopy. The chariot was drawn by six horses in rich harness. The first bore the arms of St. George, the second, the arms of Normandy; the third, those of King Arthur; the fourth, those of St. Edward; the fifth, the arms of France; the sixth, the arms of England and France. James, King of Scots, followed it as principal mourner. The banners of the saints were borne by four lords. The hatchments were carried by twelve captains; and around the carriage rode five hundred men-at-arms, all in black armour,—their horses barbed black, and their lances held with the points downwards. A great company clothed in white, and bearing lighted torches, "encompassed the hearse." Those of the King's household followed, and after them the royal family; the Queen, with a great retinue, followed at a league's distance. Whenever the corpse rested masses were sung from the first dawn of the morning till nine o'clock. The procession passed through Abbeville to Calais; and crossing to Dover, proceeded with the same solemnities towards London. When they approached the capital, they were met by fifteen bishops in their pontifical habits, and many abbots in their mitres and vestments, with a great company of priests and people. The princes of the royal family went mourning next to the hearse. The corpse was buried in Westminster Abbey, among its most valued treasures.

Among the public acts[\[237\]](#) of the realm his death is thus recorded:

"DEPARTED THIS LIFE, AT THE CASTLE OF BOIS DE VINCENNES, NEAR PARIS, ON THE LAST DAY OF AUGUST, IN THE YEAR 1422, AND THE TENTH OF HIS REIGN, THE MOST CHRISTIAN CHAMPION OF THE CHURCH, THE BRIGHT BEAM OF WISDOM, THE MIRROR OF JUSTICE, THE UNCONQUERED KING, THE FLOWER AND PRIDE OF ALL CHIVALRY—**HENRY THE FIFTH**, KING OF ENGLAND, HEIR AND REGENT OF FRANCE, AND LORD OF IRELAND."

Here we would have drawn the curtain round the bed of Henry of Monmouth; but truth and justice compel us to tarry somewhat longer in the chamber of death. The tongue and pen of calumny have not suffered the dying hero to pour out his soul with his last breath in prayer and pious ejaculations unmolested; and the accuser's name is too widely known, and has unhappily gained too much influence in the world, for his calumnies to be passed over as harmless. Henry, having "set his house in order," and being certified how short a time he had to live, declares, on the faith of a dying man, that he had been fully resolved (had the Almighty granted him length of days to put his resolve into effect) to proceed in person to the Holy Land, and rescue the city of God from the pollutions and abominations of the infidels. In recording this declaration of the expiring monarch, Hume adds a comment as full of bitter sarcasm as it is tinctured with his characteristic spirit of scepticism. "So ingenious are men in deceiving themselves, that Henry forgot in these moments all the blood spilt by his ambition, and received comfort from this late and feeble resolve; which, as the mode of those enterprises was now past, he certainly would never have carried into execution." Had Hume been as faithful and painstaking in the search of truth, as he was ready to adopt the account of any transaction which was nearest at hand, and unscrupulous in substituting his own hasty remarks in the place of well-weighed reflections on ascertained facts, he never would have suffered so ignorant and ill-founded a comment to disgrace his pages. Hume[\[238\]](#) charges Henry with having left the world, forgetful of the bloodguiltiness by which his soul was stained, and with a sentence of hypocrisy and falsehood on his lips. To the first charge,—that Henry, at the awful moment of his dissolution, deceived himself into a forgetfulness "of all the blood spilt by his ambition,"—needs only to be replied, that so far from his having forgotten the loss of human life attendant upon his wars, the very page on which the historian is so severely commenting, records that Henry spoke of that subject openly and

unreservedly to those who stood around his bed, expressing his sure trust that the guilt of that blood did not stain his soul, who sought only his just inheritance; but rested on the heads of those who, by their obstinate perseverance in injustice, compelled him to appeal to the God of battle in vindication of his own rights.

Again, Henry declares, on the faith of a dying Christian Prince, that it had verily been his fixed resolution, as soon as his wars in France had been brought to a favourable issue, to proceed to the Holy Land. Hume says that this was a late and feeble resolve; and the ground on which he rests this charge of falsehood is, that the mode of those enterprises was then past. Hume ought to have known, as an ordinary historian, that the mode of those enterprises was not then past; and Hume might have known that Henry's was not a death-bed resolve, to which the expiring self-deceiver clung for comfort when the world was receding from his sight; but that in his health and strength, and in the mid-career of his victories, he had actually taken preliminary measures for facilitating the execution of that very design.

With regard to the first position asserted by Hume, that "the mode of these enterprises was gone by," the facts of history are so far from authorizing him to make such an assertion, that they combine to expose its rashness and unsoundness. When Henry succeeded to the throne, he found a large naval and military force actually prepared by his father for the proclaimed purpose of executing such an enterprise, the undertaking of which was only prevented by his death.[\[239\]](#) And even a century after, the mode of those enterprises had not yet passed; for Pope Leo X. successfully negotiated a league between the chief powers of Christendom, engaging them to unite against the infidel dominion of the Turk. Not only were such crusades subjects of serious and practical consideration in Europe just before Henry's accession to the throne, and a full century after it, but, during the last years of Henry's life, most vigorous and persevering exertions were made by the Sovereign Pontiff to effect an immediate expedition of the confederated powers of Christendom to Palestine, with the avowed purpose of crushing the power of the infidels. The histories of those times bear varied evidence to the same points: we must here, however, confine our attention to some facts more immediately connected with the case before us. In the year 1420, [\[240\]](#) July 12, Pope Martin V, conceiving that Sigismund would very

shortly bring the war which he was then waging against the Hussites in Bohemia to an end, in a bull dated Florence calls upon all Kings, Prelates, Lords, and people, adjuring them most solemnly, by the shedding of Christ's blood, to join Sigismund, and under his standard to invade the lands of the Turks, and to exterminate them. He urges the formation of one grand general army, and for all true men to take the cross; with his apostolic promise to all who should so assume the cross, and join the army in their own persons and at their own charges, and also to all who should take up arms with the *bonâ fide* intention of joining the army, should they die on their journey, a full remission of all sins of which they should have repented from the heart, and confessed with the mouth; and, "in the retribution of the just, we promise them (says the Pontiff) an increase of eternal salvation."

[\[241\]](#)

In the following year the Pope wrote a most urgent letter to Sigismund, pressing upon him, before and above all things, the duty of extirpating the heresy in Bohemia; assuring him that, however brilliant might be his career in other respects, yet by no means could he so well secure the favour of God, renown among men, and the stability of his throne. The Pontiff, in the same year, wrote repeatedly to Henry, King of England, urging him to consent to terms of peace between his country and France. We should have been glad had we been able to contemplate the Pontiff of Rome, in the character of a Christian mediator, urging two contending nations to be reconciled, solely with the Christian desire of stopping the dominion of war and blood, reconciling those who were at variance, checking the violent passions of mankind, and restoring to Europe the blessing of peace. But his desire was to reconcile France and England, in order that the concentrated powers of the faithful in Europe might be turned against the heretics in the north; and, when they were exterminated, then that the same forces might proceed to crush the infidel, and rescue the lands of the faithful from his grasp. The ecclesiastical historian,[\[242\]](#) who records the letters of the Sovereign Pontiff, assures us that Henry, King of England, had been repeatedly admonished by "the vicar of Christ to make peace with the French, and to dedicate to Christ his skill in war against the Turks, those savage enemies of the Gospel; adding (what the facts of the case did not justify him in saying,) that, in the agonies of his last illness, Henry confessed that he was dreadfully tormented with remorse because he had

not consecrated his martial powers by waging war against the Mahometans." [243] Surely this testimony is of itself sufficient to rescue Henry's memory from having vowed that he had resolved to do what he knew he never could have done. "The mode of those enterprises was" not "past."

But Hume would have it believed that this was a late and feeble resolve of Henry, formed on his death-bed, when he was acting the part of a self-deceiver, forgetful of the lamentable effects of his ambition, and seeking comfort from his self-deception in the last moments of his life. There is strong and clear evidence that he not only had contemplated such a measure, but had actually taken important preliminary steps to facilitate the execution of his design, whenever he might be happily released from his present engagements. "This vindictory evidence" (to use the words of Mr. Granville Penn) [244] "of the veracity and sincerity of Henry, is a manuscript discovered at Lille, in Flanders, in the autumn of 1819, which proves to positive demonstration, that at the moment when Henry was suddenly arrested in his victorious progress by the hand of death, his mind was actually, though secretly, engaged in projecting an attack on the infidel power in Egypt and Syria, as soon as he should have pacified the internal agitations of France; and that a confidential military agent of high character and distinguished rank had been despatched by him to survey the maritime frontier of those two countries, and to procure, upon the spot, the information necessary towards embarking in so vast an enterprise.

"The manuscript is a small quarto in vellum, in old French, finely written in black character, and richly illuminated; consisting of fifty-four pages, and comprising a succinct military survey of the coasts and defences of Egypt and Syria, from Alexandria round to Gallipoli, made by the command of Henry within the three last years of his life, and completed and reported immediately after his unexpected death, by which death it was rendered unavailing. The confidential author of this survey was Gilbert de Lannoi, counsellor and chamberlain to Philip the Good, Duke of Burgundy, and that Duke's ambassador to Henry."

The same writer thus expresses himself in conclusion. "His declaration was not the prompting of a sickly conscience striving to procure delusive

comfort from 'the late and feeble' resolves of a death-bed, as Hume unworthily asserts; it was the composed and deliberate communication of a dying captain and sovereign, disclosing to those around him, under a strong sentiment of devotion, a secret of that kingly office which he was then on the point of relinquishing for ever. To enter upon an appreciation of the moral value of the enterprise which Henry had then in prospect, would be as much out of place here, as it would be absurd to estimate it by the rule of the present age. In those ages, when all the higher orders of society were either clerical or martial, much real piety of sentiment must, in innumerable instances, have been compounded with the widely-extended romantic spirit which was ardent to hazard life on sacred ground of Judea, rather than to suffer the continuance of its profanation by the avowed enemy of the Christian name.

"The establishment of this point, certifying, as it does an interesting fact hitherto unknown, and effectually repelling and exposing an unjustifiable sarcasm directed against one of the most illustrious princes that have graced the English crown, may acquire in the history of truth the importance to which it might not be able to lay claim in the political history of a people."

[\[245\]](#)

In dismissing the immediate subject of this inquiry, the Author of these Memoirs feels himself under the painful necessity of recording his deliberate judgment on the inaccuracies of that celebrated writer, whose reflections upon Henry's dying declaration have been animadverted upon here. Through the whole series of years to the events of which these Memoirs are chiefly limited, he has been able to find very few transactions in recording or commenting upon which Hume has not been guilty of error; whilst the mistakes into which he has fallen (some more, some less, gravely affecting the character of an historian,) are generally such as an examination of the best evidence, conducted with ordinary care, would have enabled him successfully to avoid. Hume, unfortunately, supplied himself without stint from the stream after it had mingled with many turbid and discolouring waters. To draw, in each case of doubt and difficulty, from the well-head of historical truth, would have exacted more time and labour than he was ready to bestow. Had he prescribed to himself a system of research the very opposite to that in which he unhappily indulged, instead of representing

Henry of Monmouth to have left the world with the falsehood of a self-deceiver on his tongue, he would have been compelled to record him as a man of piety, mercy, and truth.

CHAPTER XXIX.

WAS HENRY OF MONMOUTH A PERSECUTOR? — JUST PRINCIPLES OF CONDUCTING THE INQUIRY, AND FORMING THE JUDGMENT. — MODERN CHARGE AGAINST HENRY. — REVIEW OF THE PREVALENT OPINIONS ON RELIGIOUS LIBERTY. — TRUE PRINCIPLES OF CHRISTIAN FREEDOM. — DUTY OF THE STATE AND OF INDIVIDUALS TO PROMOTE THE PREVALENCE OF TRUE RELIGION. — CHARGE AGAINST HENRY, AS PRINCE OF WALES, FOR PRESENTING A PETITION AGAINST THE LOLLARDS. — THE MERCIFUL INTENTION OF THAT PETITION. — HIS CONDUCT AT THE DEATH OF BADBY.

WAS HENRY OF MONMOUTH A PERSECUTOR?

In estimating the character of an individual, nothing is more calculated to mislead ourselves, or to subject him to injustice at our hands, than a disregard of the time, and country, and circumstances in which he lived. It is equally unwise, and unfair, and deceitful, for a human judge to establish one fixed standard^[246] of excellence in any department whatever of scientific or practical knowledge, and then to try the merits of all persons alike with reference to that one test. The injustice and absurdity of estimating the talents for investigation and acumen, the skill, and industry, and perseverance of a chemical student, many centuries ago, by the knowledge of the most celebrated men of the present day, and to pronounce all who fell below that standard to have been deficient in natural talents, or in a faithful exercise of them, would be seen and acknowledged by all. At this time, errors in navigation would be unpardonable, which would have implicated a pilot in no culpability at all, who lived before the invention of the mariner's compass, and when half our globe was as yet unknown. The same observations are applicable when we would estimate the moral excellence of an individual, his worth in a private or a public capacity, his character as a subject or a governor,—as the framer, or the guardian, or the administrator of the laws. Many a practice in ordinary social intercourse,

which would not be tolerated, and would fix a stigma on those who were examples of it as persons to be shunned and excluded from society in one age or country, might in another not only be endured, but be even countenanced and encouraged by those who would take the lead in the improvement and refinement of civilized life. The grand broad fundamental principles of right and wrong must abstractedly be acknowledged always and in every place; but in the interpretation^[247] of them, and in their practical application, we shall find in the records of successive ages every conceivable diversity. If, in these days, we are tempted to brand with the mark of ignorance, and superstition, and cruelty, those among our predecessors who enacted laws against witchcraft, and condemned to death those who were found guilty of dealings with the spirit of wickedness, we must at the same time remember that persons who are examples of every Christian excellence, of reverence for God's law, of justice and charity, are now engaged in occupations which those men held in abhorrence. They believed in the reality of witchcraft, and condemned those who were pronounced guilty of the crime; we believe that the crime cannot be committed, that it is merely a creature of the imagination, and we denominate those who pretend to the power of committing it impostors: just as by the Mosaic law they were condemned as deceivers, pretending to possess a power and knowledge independently of the Almighty. Our predecessors considered the lending of money upon interest as an offence against the law of God, and reprobated those who so employed their capital as usurers, who had forfeited all title to the name of merciful Christians;—whilst in the present day the most scrupulous person does not hesitate, as in a matter of conscience, to depend for the means of subsistence on such a source of income. Assuming that in each of these two cases our views are formed on a sounder principle of moral and religious philosophy, we have no more right to disparage the character of any individual, who did his best in the midst of less favourable circumstances, than we should have to reprobate the helmsman of former days, because in the darkness of a starless night he had no compass wherewith to save his ship from wreck.

These principles must be borne in mind, and acted upon whenever we would examine the spirit and character of any individual on the charge of superstition, bigotry, cruelty, and unchristian persecution. Had not these principles unhappily been laid aside for a time and forgotten, we should

scarcely have been pained by so severe a portrait of Henry of Monmouth, as a writer who ought to have known better has drawn, not in the warmth of debate and the hurry of controversy, but in the hour of reflection and quietude. "In the midst of these tragedies died Henry V, whose military greatness is known to most readers. His vast capacity and talents for government have been also justly celebrated. But what is man without the genuine fear of God? This monarch, in the former part of his life, was remarkable for dissipation and extravagance of conduct; in the latter he became the slave of the popedom,[\[248\]](#) and for that reason was called the Prince of Priests. Voluptuousness, ambition, superstition, each in their turn, had the ascendant in this extraordinary character. Such, however, is the dazzling nature of personal bravery and of prosperity, that even the ignorance and folly of the bigot, and the barbarities of the persecutor, are lost or forgotten amidst the enterprises of the hero and the successes of the conqueror. Reason and justice lift up their voice in vain. The great and substantial defects of Henry V. must hardly be touched on by Englishmen. The battle of Agincourt throws a delusive splendour around the name of this victorious King."[\[249\]](#)

It is very painful to read this sentence; but the historian and biographer must not be driven by such sweeping condemnation into the opposite extreme; nor be deterred by the apprehension of unpopularity from laying open his views both of the moral and religious question in the abstract, and also of the acts, and character, and spirit of the individual subject of inquiry.

The principles of religious liberty were ill understood through many years before, and subsequently to, the time of Henry V. The sentiments of persons in every rank of life in those days seem to have been built upon an understanding, that the authorities, ecclesiastical and civil, were bound in duty to expel heresy by force. It was not the case of a dominant party enacting penalties abhorrent from the sympathies of the mass of the people; "the people themselves wished to have it so, and the priests bore rule by their means." So thorough a triumph had the gigantic policy of Rome achieved over the freedom, and the wills, and the judgments of the inhabitants of Europe! Like her other victories, this too was the work of progressive inroads on the liberties of Christians. Never at rest, ever active, the arch-conqueror fastened to her chariot-wheels, one by one, the most

valued rights and most solemn duties of responsible agents. The right of private judgment in matters of religion had been resigned by the vast majority of the people of Christendom, and the duty and responsibility in each individual of searching for the truth himself had been laid aside long before Henry V. was called to take a part in the affairs of this world. Bold and noble spirits, indeed, were found in successive periods to assert their own rights and to declare the privileges and the duties of their fellow-creatures, and to think for themselves in a matter which so deeply involved their own individual and eternal welfare; whilst the bulk of mankind in Christendom not only resigned their faith to the absolute control of the priesthood, but exacted also from their fellow-citizens a similar surrender, on pain of losing their share in the protection and advantages of the state. Thus had heresy, in various nations of Europe, become synonymous with rebellion and treason; a rejection of the determinations of the church in matters of doctrine was identified in most men's minds with rejection of the authority of the civil magistrate;[\[250\]](#) and every one who dared to dispute the jurisdiction of Rome was regarded as a dangerous innovator, and an enemy to his own country.

That this was a state of things to be deplored by every friend of liberty and lover of truth, is not questioned; that domination over the consciences of men has ever been the object of the church of Rome, and that the spirit of persecution will ever be characteristic of her principles, is not here denied; nor are these observations made for the purpose of softening the feelings of abhorrence with which any persons may be disposed to view the proceedings of a persecuting spirit in those things which concern our most momentous interests so awfully. We refer to these historical reminiscences solely for the purpose of forming a more correct estimate of the individual character of one who lived in those times, and was born, and cradled, and educated in that atmosphere. It is easy to charge Henry V. with "the ignorance and folly of the bigot, and the barbarities of the persecutor;" but it were more worthy of a historian (his eye bent singly on the truth) to substitute inquiry for assumption, and careful weighing of the evidence for indiscriminate condemnation. There is such a thing as persecution, though the dungeon and the stake be not employed for its instruments; and true charity will be tender of the character of a fellow-mortal, though he is removed from this scene of trouble and trial, and has no longer the power of

answering the accusations with which his good name is assailed. We may be as honest as those who write most bitterly, in our abhorrence of persecution; and yet think the individual who put its most rigid laws into effect, deserving of compassion and pity that his lot had fallen in such days of bigotry and ignorance, rather than of reprobation for not having discovered for himself a more enlightened path of duty.

It is not because we are obliged to confess that even the outward acts of Henry V. have been those of a persecutor, that these preliminary remarks are offered; it is rather to prepare our minds for a fair examination of his conduct, with reference to the only just and equal standard; for a candid and searching analysis of the evidence drawn from original sources, before it has become turbid and coloured by the channel through which it is often forced to flow; and for an unprejudiced judgment on his character,—a judgment perverted neither, on the one hand, by the dazzling splendour of his victories, nor, on the other, by that very common but most iniquitous principle of adjudication condemns the accused from hatred of the crime laid to his charge. The Author's sentiments on the character of religious persecution in general, and of the persecuting spirit of the church of Rome in particular, need not be disguised. He would never be disposed to acquit Henry V, or any other person, from a feeling of sympathy with the spirit of persecution.

The religion of the Gospel abhors all persecution. The faith of Christ must be maintained and propagated by more holy and heavenly weapons than those which can be forged by human authority and power. Persecution prevails in a Christian community only so far as the genuine spirit of the Gospel is quenched or checked among its members. The church has a power of compelling men to come to Christ, and to embrace the true faith, but its instruments of compulsion must be spiritual only: its sword must be supplied from God's own armoury. The sentence, "Having the terrors of the Lord, we persuade men," conveys an idea of tremendous consequences in store for those who refuse to obey the truth; but the consequences are reserved for the immediate dispensation of Him "who knoweth the thoughts." That believers, when possessed of temporal power, should have recourse to bodily restraint, and torture, and death, as the earthly punishment of those who entertain unsound doctrine, is a monstrous

invention, which can derive no countenance from "the Word," and must be supported only by a worldly sword, and the arm of man wielding it. If, indeed, Christians are so far forgetful of the spirit of the Gospel as, on the plea of defending and spreading its genuine doctrines, to disturb the peace, and shake the foundations, and threaten the overthrow of society, the civil magistrate, whether Christian or heathen, will interpose. But neither has he, more than the church, any authority whatever for interfering by violence with the faith of any one. It is the duty of a Christian magistrate to provide for his people the means of religious instruction, and worship, and consolation; but, on the principles which alone can be justified, he must leave them at liberty to reject or to avail themselves of the benefit. Their neglect, or their abuse of it, will form a subject of inquiry at another tribunal; and the final, irreversible judgment to be pronounced there, man has no right to anticipate by pain and punishment on earth. These are the true principles of Christianity, and a church departs from the Gospel whenever these principles are neglected.

In adopting, however, these principles, and making them practically one's own, it must never be forgotten that there is a danger of confounding them, as they are unhappily too often confounded, with the results of a philosophy, falsely so called, which would teach governments to be indifferent to the religion of their people, and would encourage individuals to take no interest in the dissemination of religious truth. East is not more opposed to west, than the spirit of persecution, which would compel others by secular punishments to make profession of whatever doctrines the government of a country may adopt, is opposed to that Christian wisdom which maintains it to be equally the bounden duty of the state to provide for the religious instruction and comfort of its members, as it is the duty of a father to train up his own children in the faith and fear of God. The poles are not further asunder, than that holy anxiety for the salvation of our fellow-creatures which would impel Christians, to the very utmost bound of the sphere of their influence, to promote as well unity in the faith as the bond of peace and righteousness of life, is removed from that narrow bigotry which fixes on those who differ from ourselves the charge of wilful blindness, and obstinate hatred of the truth, to be visited by man's rebuke here, and God's displeasure for ever.[\[251\]](#) A wise and pious writer of our own has said,[\[252\]](#) "Show me the man who would desire to travel to heaven

alone, regardless of his fellow-creature's progress thitherward, and in that same person I will show you one who will never be admitted there." The principle applies equally to an individual and a commonwealth. Show me a State which neglects to provide for the spiritual edification and comfort of its members, and in its institutions proves itself unconcerned as to the advancement of religious truth, and in that State you see a commonwealth whose counsels are not guided by the spirit of the Gospel, and therefore on which, however for a time it may shine and dazzle men's eyes with the splendour of conquest, and be making gigantic strides in secular aggrandizement, the blessing of the God of Truth and Love cannot be expected to descend.

A Christian legislature is bound by the most solemn of all obligations to supply with parental care the means which, in the honest exercise of its wisdom, it deems best fitted for converting the community into a people serving God; each obedient to his law here, each personally preparing for the awful change from time to eternity. But with each individual member of the community, from those who make its laws or administer them to the humblest labourer for his daily bread, it must ultimately be left to accept or to reject, to cultivate or neglect, the offered blessing. The moment compulsion interferes with the free choice of the individual, the religion of the heart and the outward observance cease to coincide, and hypocrisy, not faith working by love, is the result. "Persecution[253] either punishes a man for keeping a good conscience, or forces him into a bad conscience; it either punishes sincerity, or persuades hypocrisy; it persecutes a truth, or drives into error; and it teaches a man to dissemble and to be safe, but never to be honest."

With these observations we would proceed to inquire historically into the personal character of Henry V. with regard to religious persecution; a prince who lived when all Christendom was full of the darkness of bigotry and superstition, and when persecution had established its "cruel habitations" in every corner of the land.

The first occasion on which Henry of Monmouth's name is in any way connected with religious intolerance and persecution, is recorded in the Rolls of Parliament, 7 and 8 Henry IV. The circumstance is thus stated by

Prynne,[\[254\]](#) or whoever was the author of the passage which is now found in the "Abridgment of Records in the Tower." "At this time the clergy suborned Henry, Prince, for and in the name of the clergy, and Sir John Tibetott the Speaker, for and in behalf of the Commons, to exhibit a long and *bloody* bill against certain men called Lollards,—namely, against them that taught or preached anything against the temporal livings of the clergy. Other points touching Lollardy I read none; only this is to be marked, for the better expedition in this exploit, they joined prophecies touching the King's estate, and such as whispered and bruited that King Richard should be living; the which they inserted, to the end that by the same subtlety they might the better achieve against the poor Lollards aforesaid. Wherein note a most unlawful and monstrous tyranny; for the request of the same bill was, that every officer, or other minister whatever might apprehend and inquire of such Lollards without any other commission, and that no sanctuary should hold them."

The Biographer of Henry V. needs not be very anxious as to the real intention of this petition. The allegation that Prince Henry and the Speaker of the House of Commons were suborned by the clergy, is a pure invention; no proof, or probable confirmation of any part of the charge, is afforded by history. The Speaker is named as the chief member of the House of Commons; the Prince is named as President of the Council, and chief member of the House of Lords; each acting in his official rather than in his individual character.

The petition was presented on Wednesday, December 22, in the parliament 7 and 8 Henry IV. which was dissolved that same day. The Roll records that "The Commons came before the King and Lords, and prayed an interview with the Lords by John Tybetot the Speaker." Different petitions were presented; one touching the succession of the crown, and the petition in question. The petition is not drawn up in the name of the Commons and Lords; it purports to be addressed to the King by "his humble son Henry the Prince, and the Lords Spiritual and Temporal in this present parliament assembled;" and the Speaker, in the name of the Commons, prays the King that the petition might be made the law of the land until the next parliament: and the King "graciously assents." Whatever were the real object of this law, if its aim were merciful, the Prince ought to have no additional share of

the praise; if it were adding to the severity of the existing law, he deserves no additional blame, from the fact of his name appearing in the petition. In either case it appears there just as the Speaker's does, officially. But what was the real drift of this petition? Suppose it to have been on the side of severity, will it deserve the character assigned to it by the author of the "Abridgment?" Can it be called a "bloody" petition? It prayed that after the feast of Epiphany next ensuing, without any other commission, "Lollards, and other speakers and contrivers of news and lies, *might be apprehended and kept in safe custody till the next parliament, and there to answer to the charges against them.*" Suppose this to have been an extension of a former persecuting law, it gave no power of life or death, or any further severity against the person, than merely safe custody, a power now given to any magistrate against persons accused of any one of a large class of offences usually treated as light and trifling. But we may suppose that the real bearing of this petition were altogether the other way,—that it was intended to mitigate the severity of the existing law,—to deprive the real persecutors of the power, which they would undoubtedly have had, "of citing the suspected heretic, punishing him by fine and imprisonment, and, in the case of a relapsed or obstinate heretic, consigning him to the civil power for death." This power the statute[255] 2 Hen. IV. c. 15, conferred on the diocesans; and the petition in question might have been virtually a suspension of that sanguinary law till the next session. If this be so, we have precluded ourselves from ascribing any individual merit to Henry of Monmouth above the rest of the peers who drew up the petition; but he must share it equally with them; at all events, the charge of his having been suborned by the clergy to present "a long and bloody petition" falls to the ground. On this question, however, it were better to cite the opinion of an author certainly able to take a correct view of such subjects; and who, not having Henry the Fifth's character before him at the time, but only the historical fact, must be regarded as an unprejudiced authority. Mr. Hallam, [256] in his History of the Middle Ages, makes this comment upon the proceeding in question. "We find a remarkable petition[257] in 8 Henry IV. professedly aimed against the Lollards, but intended, as I strongly suspect, in their favour. It condemns persons preaching against the Catholic faith or sacraments to imprisonment against the next parliament, where they were to abide such judgment as should be rendered by *the King and peers of the realm.* This seems to supersede the burning statute of 2 Henry IV, and the

spiritual cognizance of heresy. Rot. Parl. p. 583; see too p. 626. The petition was expressly granted; but the clergy, I suppose, prevented its appearing in the Roll."[\[258\]](#) Certain it is, that, unless the statute framed upon this petition suspended the power of the existing law, the hierarchy had full authority, without the intervention of the civil magistrate, to apprehend any one suspected of heresy, to try him, to sentence him, and to deliver him over to the secular power for death, upon receipt of the King's writ.[\[259\]](#) Certain it also is, that, on those who might be apprehended in consequence of this petition, none of those rigours could be visited: on the contrary, they would be placed beyond reach of the ecclesiastical arm. Surely to talk of Prince Henry being suborned by the priests to present a bloody petition, savours rather of blind prejudice than of upright judgment.

The only other occasion which places Henry of Monmouth, whilst Prince of Wales, before us in conjunction with bigotry, intolerance, and persecution, is the martyrdom of a condemned heretic, executed in Smithfield. Fox, and those who follow him, say, that the martyr was John Badby, an artificer of Worcester, condemned first in his own county, and then definitively sentenced by the Archbishop, the Duke of York, the Chancellor, and others in London; the Chronicle of London records the same transaction, but speaks of the individual as a "*clerk*, who believed nought of the sacrament of the altar!" There is no doubt, however, that the two accounts, as well as the Archbishop's record, refer to the same individual, though the Chronicle of London is mistaken as to the sphere of life in which he moved. It will be borne in mind that the question is not, whether John Badby ended his life gloriously in defence and in testimony of the truth, nor whether those who charged, and tried, and condemned him, were merciless persecutors; the only point of inquiry immediately before us is, Whether, at the death of John Badby, Henry of Monmouth showed himself to be a persecutor. The circumstances, however, of this martyr's charge and condemnation, independently of that question, are by no means void of interest; though our plan precludes us from detailing them further than they may throw more or less direct light upon the subject of our investigation. The following statement is taken from Archbishop Arundel's record.[\[260\]](#)

John Badby was an inhabitant of Evesham, in the diocese of Worcester, and by trade a tailor. He was charged before the bishop with heresy, and was condemned in the diocesan court. The point on which alone his persecutors charged him, was his denial of transubstantiation. His trial took place on the 2nd of January, 1409, and he was subsequently brought before the Archbishop and his court in London, as a heretic convict. His examination began on Saturday, the 1st of March 1410, at the close of which the court resolved that he should be kept a close prisoner till the next Wednesday, in the house of the Preaching Friars, where the proceedings were carried on. The Archbishop, for greater caution, said that he would himself keep possession of the key. When the Wednesday arrived, the Archbishop took, as his advisers and assistants, so great a number of the bishops and nobles of the land, that (in the words of his own record) it would be a task to enumerate them: among others, however, the names of Edmund Duke of York, John Earl of Westmoreland, Thomas Beaufort Chancellor of England, and Lord Beaumont, are recorded.[\[261\]](#) Prince Henry, though present in London, and actively engaged with some of the same noblemen as members of the council, was not present at Badby's examination, either on the Saturday or on the Wednesday.[\[262\]](#) In all his examinations Badby seems to have conducted himself throughout with great firmness and self-possession, and, at the same time, with much respect towards those who were then his judges. Looking to the circumstances in which he was placed, it is almost impossible for any one not to be struck by the weight and pointedness of his answers. He openly professed his belief in the ever blessed Trinity, "one omnipotent God in Trinity;" and when pressed as to his belief in the sacrament of the altar, he declared that, after consecration, the elements were signs of Christ's body, but he could not believe that they were changed into the substance of his flesh and blood. "If," he said, "a priest can by his word make God, there will be twenty thousand Gods in England at one time. Moreover, I cannot conceive how, when Christ at his last supper broke one piece of bread, and gave a portion to each of his disciples, the piece of bread could remain whole and entire as before, or that he then held his own body in his hand." At his last appearance before the large assemblage of the hierarchy and the temporality, when asked as to the nature of the elements, he said, that "in the sight of God, the Duke of York, or any child of Adam, was of higher value than the sacrament of the altar." The Archbishop declared openly to the accused that, if he would live according to the

doctrine of Christ, he would pledge his soul for him at the last judgment day.

The registrar, in recording these proceedings, employs expressions which too plainly indicate the frame of mind with which this poor man was viewed by his persecutors. Had the words been attributed either to the Archbishop himself, or to his remembrancer, by an enemy, they might have excited a suspicion of misrepresentation or misunderstanding. "Whilst he was under examination the poison of asps appeared about his lips; for a very large spider, which no one saw enter, suddenly and unexpectedly, in the sight of all, ran about his face." To this absurd statement, however, the registrar adds a sentence abounding with painful and dreadful associations. "The Archbishop, weighing in his mind that the Holy Spirit was not in the man at all, and seeing by his unsubdued countenance that he had a heart hardened like Pharaoh's, freeing themselves from him altogether, delivered him to the secular arm; praying the noblemen who were present, not to put him to death for his offence, nor deliver him to be punished." Whatever force this prayer of the hierarchy was expected to have, the King's writ was ready. The Archbishop condemned him before their early dinner, and forthwith on the same day, after dinner, he was taken to Smithfield, and burnt in a sort of tub to ashes. The Lambeth Register^[263] mentions the mode of his death, and affirms that he persevered in his obstinacy to the last, but says nothing whatever about the Prince of Wales. The further proceedings with regard to this martyr, and which connect him with the subject of these Memoirs, are thus stated by Fox, in his Book of Martyrs.

"This thing^[264] [the condemnation by the Archbishop, and the delivery of Badby to the secular power,] being done and concluded in the forenoon, in the afternoon the King's writ was not far behind; by the force whereof John Badby was brought into Smithfield, and there, being put into an empty barrel, was bound with iron chains, fastened to a stake, having dry wood put about him. And as he was thus standing in the pipe or tun, (for as yet Perilous' bull was not in use among the bishops,) it happened that the Prince, the King's eldest son, was there present; who, showing some part of the good Samaritan, *began to endeavour and assay how to save the life of him* whom the hypocritical Levites and Pharisees sought to put to death. *He admonished and counselled him that, having respect unto himself he should speedily withdraw himself out of these labyrinths of opinions;* adding oftentimes threatenings, the which would have daunted any man's stomach. Also Courtney, at that time Chancellor of Oxford, preached unto him, and informed him of the faith of holy church. In this mean season, the Prior of St. Bartlemew's in Smithfield, brought, with all solemnity, the sacrament of God's body, with twelve torches borne before, and so shewed the sacrament to the poor man being at the stake: and then they demanded of him how he believed in it; he answered, that he well knew it was hallowed bread, and not God's body. And then was the tunne put over him, and fire put unto him. And when he

felt the fire he cried, 'Mercy!' (calling belike upon the Lord,) and so the Prince immediately commanded to take away the tun and quench the fire. The Prince, his commandment being done, asked him if he would forsake heresy and take him to the faith of holy church; which thing if he would do, he should have goods enough: promising also unto him a yearly stipend out of the King's treasury, so much as would suffice his contentation. But this valiant champion of Christ rejected the Prince's fair words, as also contemned all men's devices, and refused the offer of worldly promises, no doubt but being more vehemently inflamed with the spirit of God than with earthly desire. Wherefore, when as yet he continued unmoveable in his former mind, the Prince commanded him straight to be put again into the pipe or tun, and that he should not afterwards look for any grace or favour."

Milner having told us, that "the memory of Henry is by no means free from the imputation of cruelty," gives an unfavourable turn to the whole affair, and ascribes a state of mind to the Prince, which Fox's account will scarcely justify. Milner's zeal against popery and its persecutions, often betrays him into expressions which a calm review of all the circumstances of the case would, probably, have suggested to his own mind the necessity of modifying and softening. Fox attributes to Henry "some part of the good Samaritan," and puts most prominently forward his desire and endeavour to save the poor man's life. Milner ascribes to him a violence of temper, altogether unbecoming the melancholy circumstances of that hour of death, and directs our thoughts chiefly to his attempt to force a conscientious man to recant.

The account of Milner is this: "After he, Badby, had been delivered to the secular power by the Bishops, he was by the King's writ condemned to be burned. The Prince of Wales, happening to be present, very earnestly exhorted him to recant, adding the most terrible menaces of the vengeance that would overtake him if he should continue in his obstinacy. Badby, however, was inflexible. As soon as he felt the fire, he cried 'Mercy!' The Prince, supposing he was entreating the mercy of his judges, ordered the fire to be quenched. 'Will you forsake heresy,' said young Henry, 'and will you conform to the faith of the holy church? If you will, you shall have a yearly stipend out of the King's treasury?' The martyr was unmoved, and Henry IN A RAGE declared that he might now look for no favour. Badby gloriously finished his course in the flames."

The Chronicle of London, from which, in all probability, Fox drew the materials for his description, makes one shudder at the reckless, cold-blooded acquiescence of its author in the excruciating tortures of a fellow-

creature suffering for his faith's sake. In his eyes, heretics were detestable pests; and an abhorrence of heresy seems to have quenched every feeling of humanity in his heart. It must be observed, that this contemporary document speaks not a word of Henry having been "in a rage," nor of his having commanded the sufferer to be "straight put into the ton," nor of his having used "horrible menaces of vengeance," nor, even in the milder expression of Fox, "threatenings which would have daunted any man's stomach."

"A clerk," (says the Chronicle,) "that believed nought of the sacrament of the altar, that is to say, God's body, was condemned and brought to Smithfield to be burnt. And Henry, Prince of Wales, then the King's eldest son, counselled him to forsake his heresy and hold the right way of holy church. And the Prior of St. Bartholomew's brought the holy sacrament of God's body with twelve torches lighted before, and in this wise came to this cursed heretic; and it was asked him how he believed, and he answered that he believed well that it was hallowed bread, and nought God's body. And then was the tonne put over him, and fire kindled therein; and when the wretch felt the fire he cried mercy, and anon the Prince commanded to take away the ton and to quench the fire. And then the Prince asked him if he would forsake his heresy, and take him to the faith of holy church; which if he would have done, he should have his life, and goods enough to live by; and the cursed shrew would not, but continued forth in his heresy: wherefore he was burnt."[\[265\]](#)

There probably will not be great diversity of opinion as to the conduct of Henry, and the spirit which influenced him on this occasion. He was present at the execution of a fellow-creature, who was condemned to an excruciating death by the blind and cruel, but still by the undoubted law of his country. Acting the "part of the good Samaritan," he earnestly endeavoured to withdraw him from those sentiments the publication of which had made him obnoxious to the law; and he employed the means which his high station afforded him of suspending the King's writ even at the very moment of its execution, promising the offender pardon on his princely word, and a full maintenance for his life. He could do no more: his humanity had carried him even then beyond his authority, and, considering all the circumstances, even beyond the line of discretion; and, when he found that all his efforts were in vain, he left the law to take its own course,—a law which had been passed and put in execution before he had anything whatever to do with legislation and government.

CHAPTER XXX.

THE CASE OF SIR JOHN OLDCASTLE, LORD COBHAM. — REFERENCE TO HIS FORMER LIFE AND CHARACTER. — FOX'S BOOK OF MARTYRS. — THE ARCHBISHOP'S STATEMENT. — MILNER. — HALL. — LINGARD. — COBHAM OFFERS THE WAGER OF BATTLE. — APPEALS PEREMPTORILY TO THE POPE. — HENRY'S ANXIETY TO SAVE HIM. — HE IS CONDEMNED, BUT NO WRIT OF EXECUTION IS ISSUED BY THE KING. — COBHAM ESCAPES FROM THE TOWER.

1413.

The death of Sir John Oldcastle, Lord Cobham, and the circumstances which preceded it, require a more patient and a more impartial examination than they have often met with. But it must be borne in mind throughout that our inquiry has for its object, neither the condemnation of religious persecution, nor the palliation of the spirit of Romanism,—neither the canonization of the Protestant martyr, nor the indiscriminate inculcation of all concerned in the sad tragedy of his condemnation and death,—but the real estimate of Henry's character. The pursuit of this inquiry of necessity leads us through passages in the history of our country, and of our church, which must be of deep and lively interest to every Englishman and every Christian. It is impossible, as we proceed, not to fix our eyes upon objects somewhat removed from the direct road along which we are passing, and, contemplating the state of things as they were in those days, contrast them fairly and thankfully with what is our own lot now.

It were a far easier work to assume that all who were engaged in prosecuting Sir John Oldcastle were men of heartless bigotry, unrelenting enemies to true religion, devoid of every principle of Gospel charity, men of Belial, delighting in deeds of violence and blood; and that the victim of their cruelty, persecuted even to the death solely for his religious

sentiments, was a pattern of every Christian excellence, the undaunted champion of Gospel truth, the sainted martyr of the Protestant faith. This were the more easy task, for little further would need to be done in its accomplishment than to select from former writers passages of indiscriminate panegyric on the one hand, and equally indiscriminate vituperation on the other. The investigation of doubtful and disputed facts, to the generality of minds, is irksome and disagreeable; and its results, for the most part removed, as they are, from extreme opinions on either side, are received with a far less keen relish than the glowing eulogy of a partisan, and the unsparing invective of an enemy. Truth, nevertheless, must be our object. Truth is a treasure of intrinsic value, and will retain its worth after the adventitious and forced estimate put upon party views and popular representations shall have passed away.

Sir John Oldcastle, who derived the title of Lord Cobham from his wife, was a man of great military talents and prowess, and at the same time a man of piety and zeal for the general good. He was one of the chief benefactors towards the new bridge at Rochester, a work then considered of great public importance; and he founded a chantry for the maintenance of three chaplains. Oldcastle was by no means free from trouble during the reign of Richard II. Indeed, so unsettled was the government, and so violent were the measures adopted against political opponents, and so cheap and vile was human life held, that few could reckon upon security of property or person for an hour. One day a man was seen in a high civil or military station; the next arrested, imprisoned, banished, or put to death. Oldcastle was very nearly made an early victim of these violent proceedings. Among the strong measures to which parliament had recourse about the year 1386, they appointed fourteen lords to conduct the administration, among whom was Lord Cobham. Just ten years afterwards he was arrested, and adjudged to death by the parliament;[\[266\]](#) but his punishment, at the earnest request of certain lords, was commuted for perpetual imprisonment,[\[267\]](#) a sentence from which the lords of parliament revolted,—and he was exiled.[\[268\]](#) From this banishment he returned with Henry of Lancaster, and was restored to all his possessions which had been forfeited. Through the whole reign of Henry IV. we find him in the King's service in Wales and on the Continent. In a summons for a general council of prelates, lords, and knights, dated July 21, 1401, occurs the name of John Lord Cobham.[\[269\]](#)

In the Minutes of Council about the end of August 1404, John Oldcastle is appointed to keep the castles and towns of the Hay and Brecknock; and when English auxiliaries were sent to aid the Duke of Burgundy, Oldcastle was among the officers selected for that successful enterprise. Between the Prince of Wales and this gallant brother in arms an intimacy was formed, which existed till the melancholy tissue of events interrupted their friendship, and ultimately separated them for ever.

We have already seen that Lord Cobham had given proof of a pious as well as a liberal mind; and his piety showed itself in acts which the Roman church sanctioned and fostered. He built and endowed a chantry for the maintenance of three chaplains. But he had imbibed a portion of that spirit which Wickliffe's doctrines had diffused far and wide through the land; and he not only boldly professed his principles, but actively engaged in disseminating them. It is very difficult to ascertain the exact truth as to the tenour and extent of the religious opinions of the rising sect, and the degree in which they were political dissenters, aiming at the overthrow of the existing order of things in the state as well as in the church. Their enemies, doubtless, have exaggerated their intentions, and have endeavoured to rob them of all claim to the character of sincere religious reformers; probably misrepresenting their objects, and confounding their designs with the plots of those turbulent spirits[270] who then agitated several countries in Europe; whilst their friends have denied, perhaps injudiciously, any participation on their part in seditious and treasonable practices. By the one they have been condemned as reckless enemies to truth, and order, and peace; by the other they are exalted into self-devoted confessors and martyrs; in soundness of faith, integrity of life, and constancy unto death for the truth's sake, equalling those servants and soldiers of Christ who in the first ages sealed their belief with their blood. The truth lies between these extremes: their enemies were bigoted or self-interested persecutors; but many among themselves, as a body, in their language, their actions, and their professed principles, were very far removed from that quiet, patient, peaceable demeanour which becomes the disciples of the Cross. Doubtless there were numbers at that time in England possessing their souls in patience, bewailing the gloom and superstition and tyranny which through that long night of error overspread their country, and anxiously but resignedly expecting the dawn of a holier and brighter day. It is, however,

impossible to read the documents of the time without being convinced, not only that the temporal establishment of the Church was threatened, but that the civil government had good grounds for watching with a jealous eye, and repressing with a strong hand, the violent though ill-digested schemes of change then prevailing in England. Undoubtedly the hierarchy set all the engines in motion for the extirpation of Lollardism, as the principles of the rising sect were called. They felt that their dominion over the minds of men must cease as soon as the right of private judgment was generally acknowledged; and they resolved, at whatever cost of charity and of blood, to maintain the hold over the consciences, the minds, and the property of their fellow-creatures, which the Church had devoted so many years of steady, unwearied, undeviating policy to secure. The real question, the point on which every other question between the Protestant communions and the Church of Rome must depend, is this: "Have individual Christians a right to test the doctrines of the Church by the written word of God; or must they receive with implicit credence whatever the church in communion with the See of Rome, the only authorized and infallible guardian and propagator of Gospel truth, decrees and propounds?" All the other differences, however important in themselves, and practically essential, must follow the fate of this question. The Romanists are still aware of this, and are as much alive to it as ever were the most uncompromising vindicators of their church in the days of Lollardism. They took their resolution, and it was this: "Come what will come, this heresy must be put down; the very existence of the Church is incompatible with this rivalry: either Lollardism must be extinguished, or it will shake the very foundations of Rome." And, having taken this resolution, they lost no favourable opportunity of carrying it into full effect.

Some writers seem to have fixed their thoughts so much on the bold and ruthless measures adopted, or compassed, by the Church under the house of Lancaster, as to have left unnoticed their proceedings previously to Henry IV.'s accession. In 1394, when Richard II. made his first expedition to Ireland, though he had been absent a very short time, so alarmed were the heads of the Church at the progress of the new opinions, that the Archbishop of York^[271] and the Bishop of London went over in person to implore him to return forthwith and put down the Lollards,^[272] his own and the Church's formidable enemies. Many strong measures were resorted to on that King's return, but all short of those deeds of guilt and blood

which disgraced our country through the next reigns. The Pope, the King, and the hierarchy put forth their united exertions, and for a season the growing danger seemed to be repressed; but it was still silently and widely spreading. In the year 1400, before Henry IV. was settled in his throne, and whilst he was naturally alive to every report of danger, the several estates of the realm "pray the King to pass such a law as may effectually rid the kingdom of those plotters against all rule and right and liberty, (for so are the Lollards described,) whose aim is to dispossess the clergy of their benefices, the King of his throne, and the whole realm of tranquillity and order, exciting to the utmost of their power sedition and insurrection." And in that year was passed the statute *De hæretico comburendo*, which enacted that a suspected heretic should be cited by his diocesan, be fined, and imprisoned; and, if pronounced a relapsed or obstinate heretic, be given over by the Church to the secular power, to be burnt, in an elevated spot, before the people, to strike terror the more. It was under this statute that Sir John Oldcastle was summoned, tried, adjudged, and delivered to the secular power.

How long he had entertained the new opinions, or, by openly encouraging their propagators, had incurred the anger, and drawn down upon himself the concentrated violence of the hierarchy, does not appear. From one circumstance we may fairly infer, that, whilst he was aiding the Prince in the war against Owyn Glyndowr, he had not been silent or idle in the dissemination of these principles. In the synod held in St. Paul's, his offence of sending emissaries and preachers is said to have been especially committed (beside the dioceses of London and Rochester) in the diocese of Hereford; and, as we have seen, in 1404 he was especially charged with the safeguard of the town and castle of Hay, in Herefordshire: he was also sheriff of that county in 1407. Whether he had ever communicated his sentiments to the Prince, or not, must remain a matter only of conjecture: be this as it may, no sooner was the first parliament of Henry V. assembled,—and they met soon after Easter,—than Arundel convened a full assembly^[273] of prelates and clergy in St. Paul's Cathedral.^[274] It was there speedily determined that the breaches in the Church could not be repaired, nor peace and security restored, unless certain noblemen and gentry, favourers of Lollardism, were removed, or effectually silenced, and brought back to their allegiance. Especially, and by name, was this decree

passed against Sir John Oldcastle, Lord Cobham; and a resolution was taken to proceed against him forthwith. But he was then in high favour with the King; and the Archbishop thought it discreet to endeavour first to withdraw from him the royal favour, before proceeding openly to put the law in force against him. And at this point our interest in the transactions, and our desire to ascertain the accuracy of the accounts in every particular begin to increase; for our estimate of the tone and temper of Henry's mind, and the real nature of his conduct, will be affected by a very slight change of expression and turn of thought. Was Henry V. a persecutor for religious opinions?

Perhaps the more satisfactory course will be, first to give the statements of Fox, and one or two others, who have taken the view of the case least favourable to Henry, and then to add the account of the transaction as it is recorded by the Archbishop, on whose record Fox informs us that the ground and certainty of his own history of Lord Cobham depended. Almost all subsequent writers copy the martyrologist exclusively and implicitly, though often with much additional colouring.

Fox, who certainly follows the original statement in Archbishop Arundel's register much more faithfully, than those who have taken their facts from him, and heightened them by their own exaggerated colouring, gives an unfavourable and an unfair turn to the whole proceeding by one or two strokes of his pencil. His version of the affair is this: "The King *gently* heard those bloodthirsty prelates, and *far otherwise than became his princely dignity*; notwithstanding requiring, and instantly desiring them, that in respect of his noble stock and knighthood, they would deal favourably with him, and that they would, if possible, without all rigour or extreme handling, reduce him to the Church's unity. He promised them also, that, in case they were content to take some deliberation, himself would seriously commune the matter with him. Anon after, the King sent for Lord Cobham, and, as he was come, he called him, secretly admonishing him, betwixt him and him, to submit himself to his mother the holy Church, and as an obedient child to acknowledge himself culpable. Unto whom the Christian knight made this answer: 'You, most worthy prince, I am always most ready to obey. Unto you, next my eternal God, I owe whole obedience, and submit thereto, as I have ever done. But as touching the Pope and his

spirituality, I owe them neither suit nor service; forasmuch as I know him by the Scriptures to be the great Antichrist, the son of perdition, the open adversary of God, and the abomination standing in the holy place!' When the King had heard this, and such like sentences more, he would talk no longer with him, but left him so utterly. And as the Archbishop resorted again unto him for an answer, he gave him his full authority to cite him, examine him, and punish him according to their devilish decrees, which they called the laws of holy church."

In his comment on the answer said to have been made by Lord Cobham to the King, Milner's zeal in favour of the accused, betrays him into expressions against Henry which cannot be justified: "*The extreme ignorance of Henry* in matters of religion by no means disposed him to relish such an answer as this; *he immediately turned away from him in visible displeasure*, and gave up the disciple of Wickliff to the malice of his enemies."

Hall's version is this: "The King, first having compassion on the nobleman, required the prelates, if he were a strayed sheep,[\[275\]](#) rather by gentleness than by rigour to bring him back again to his old flock: after that, he, sending for him, godly exhorted and lovingly admonished him to reconcile himself to God and his laws. The Lord Cobham thanked the King for his most favourable clemency, affirming his grace to be his supreme head and competent judge, and no other."

The record, as it is found in the Archbishop's Memoirs, is as follows. Having stated that, of the tracts which had been condemned to the flames for their heretical contents, one consisting of many smaller tracts full of more dangerous doctrine, tending to the subversion of the faith and the church, was found at an illuminator's in Paternoster Row, who confessed that it was Lord Cobham's, and another was brought from Coventry, full of poison against the Church of God, the Archbishop's record thus proceeds: "The day on which the said tracts were condemned and burnt, certain tracts, containing more important and more dangerous errors of the said Lord John Oldcastle, were read before the King, and almost all the prelates and nobles of England, in the closet of the King at Kennington; the said Lord John Oldcastle being present and hearing it, having been especially summoned

for this purpose. Then our King himself expressed his abhorrence of those conclusions, as the worst against the faith and the church he had ever heard. And the said Lord John Oldcastle, being asked by the King whether he thought the said tract was justly and deservedly condemned, said that it was so. On being asked how he could use or possess a tract of this sort, he said that he had never read more than two leaves.

"And be it remembered that in the said convocation the said Lord John Oldcastle was convicted by the whole clergy of the province of Canterbury, upon his ill-fame for errors and heretical wickedness, and how in various dioceses he had held, assumed, and defended erroneous and heretical conclusions; and that he had received to his house, favoured, refreshed, and defended, chaplains suspected and even convicted of such errors and heresies, and had sent them off to different parts of the province to preach and sow this evil seed, to the subversion of the faith and the state of the church.[\[276\]](#) And supplication was made on the part of the same clergy to the Lord Archbishop and the prelates, that the said John Oldcastle should be summoned to answer in person to these points. And because it seemed right to the Lord Archbishop and the prelates, that the King ought first to be consulted on this point, because he had been his intimate friend, they waited upon the King at Kennington, and with all due reverence consulted with him upon the matter. And the King returned thanks for their obliging kindness, and prayed them, [*regratiabatur benevolentiis eorundem, et eis supplicabat,*] for respect to the King himself, because he had been his intimate friend, and also from respect to the military order, they would defer process and execution of every kind against him; promising them that he would labour, with regard to him, to bring him back with all mildness and lenity from the error of his way to the right path of truth. And if he could not succeed in this endeavour, he would deliver him to them according to the canonical obligations to be punished, and would assist them in this with all his aid and with the secular arm. And the said Archbishop and prelates acquiesced in the King's desire, but not without the dissatisfaction and murmurs of the clergy. Then, after the lapse of some time, when our said Lord the King had laboured long and in various ways in the endeavour to bring back the said knight to the sheepfold of Christ, and had reaped no fruit of his toil, but the knight continually relapsed into a worse state than before, at length the King, in the following month of August, being at

Windsor, without further lenity sharply chided the said Lord John for his obstinacy. And the said Lord, full of the Devil, not enduring such chiding, withdrew without leave to his castle of Cowling in Kent; and there fortified himself in the castle, as was publicly reported. After that, the King sent for the Lord Archbishop, who was then at Chichester, celebrating the Assumption of the blessed Virgin; and, on his coming to the King at his house in Windsor Park, the King, after rehearsing the pains he had taken, enjoined on the Archbishop, and required him on the part of God and the Church, to proceed with all expedition against the said Lord John Oldcastle according to the canonical rules; and then the Archbishop proceeded against him as the law required."[\[277\]](#)

After attentively perusing this authentic statement, comparing it with subsequent representations, and recollecting that the utmost which Henry did was to direct the ecclesiastical authorities to proceed according to the laws of the land, where he had interrupted their proceedings with a view of averting the extremities on which those authorities seemed bent—and when we learn that even that temporary delay had called forth the decided disapprobation and remonstrance of the clergy,—few probably among unprejudiced minds will be disposed to view this incident in any other light than as a proof that Henry, who was a sincere believer, was yet anxious to bring all to unity in faith and discipline by reason and gentle means, by the force of argument and persuasion only; and that he earnestly endeavoured to blunt the edge of the sword with which the law had supplied the hierarchy, and to avert the horrors of persecution. Undoubtedly, when he failed, he directed the authorities to proceed according to law, and assisted them in securing Cobham's person when he set them at defiance. But it is necessary to take a comprehensive view of all the circumstances before we pronounce judgment as to his principles or motives.

The account of Henry's own chaplain, who was prejudiced in the extreme against the rising sect, seems undoubtedly to imply that in one stage of the melancholy transaction Henry was more than passive, and encouraged rather than checked the ecclesiastical authorities to proceed; but he at the same time adds, what is of course of equal credit, that the piety of the King deferred the extremity of punishment and his death. He adds, "that Henry

had Oldcastle committed to the Tower, influenced by the hope that he might bring him back to the true faith; and that when, towards the end of October, the straitness of his confinement was softened, and he was, under promise of renouncing his errors, released from his bond, he broke prison and escaped." This was written between Oldcastle's escape and his subsequent capture and death. If we take one part of such evidence, we must in fairness take the other; and certainly, in that contemporary's view, Henry was fully determined to do all he could to save Cobham from the extreme penalty of the law.

He solicited the hierarchy, as a favour to himself, to suspend their operations for a while; they consented to grant the suspension as a favour to the King, upon his royal word being pledged that, should he fail in his endeavours, he would interfere with their proceedings no further, but on the contrary would assist them. Consistently with his promise, and with his duty as the chief magistrate of the realm, he could scarcely have done otherwise than he appears to have done.

After he had put forth his very utmost endeavours to rescue his subject and friend from the ruin to which the hierarchy had destined him, he made up his mind that the law should take its course, and that the accused should be tried as the statute directed. Lord Cobham wrote a confession of his faith, and, carrying it with him to the court, presented it to the King; who, having resolved to interpose no further between the accused and the process of the law, directed him to present it to his judges: and probably few will be disposed to think that Henry could act otherwise, consistently with his high station. The case was now most materially altered; Lord Cobham was in a very different position, and so was the King. As long as his kind offices could prevent a public prosecution, Henry spared no personal labour or time, but zealously devoted himself to this object, though unsuccessfully. But now the proceedings had advanced almost to their consummation, and interference at this point could scarcely have been consistent with the royal duty; especially when we consider what those proceedings were. Lord Cobham had been summoned to appear before the spiritual court, had disobeyed the citation, had been pronounced "guilty of most deep contumacy," and had been excommunicated. Henry could not interfere in this stage of the business with any show of regard to the laws, agreeably to

which (blind, and cruel, and bloodthirsty, and wicked, as we may deem them,) the proceedings undoubtedly had been conducted; he therefore, as it should seem, could not do otherwise than direct the schedule, then presented to him by Lord Cobham, to be referred to the tribunal which the law had appointed to hear and determine the charges. On this turn of his affairs, the valiant knight and sincere Christian had recourse to various pleas and measures, for which were we to condemn him, as he has been condemned, we should act most unjustly. We must not judge him by the standard of our own times, nor with reference to principles on which we might justly be arraigned ourselves. But let the same measure of justice be dealt to all alike; and whilst the eulogist of Lord Cobham pleads in excuse the "wretched state of society" then existing,[\[278\]](#) let all the circumstances of time and society and law be taken into calm consideration before we condemn Henry, or rather before we withhold from him the praise of moderation, liberality, and true Christian kindness. The result of this visit to the King (to which the Archbishop's record does not allude) is thus stated by Fox. "Then desired Lord Cobham in the King's presence that a hundred knights and esquires might be suffered to come in upon his purgation, which he knew would clear him of all heresies. Moreover, he offered himself after the law of arms to fight for life or death with any man living, Christian or heathen, in the quarrel of his faith; the King and the Lords of his council excepted. Finally, with all gentleness he protested before all that were present, that he would refuse no manner of correction that should, after the laws of God, be ministered unto him; but that he would at all times with all meekness obey it. Notwithstanding all this, the King suffered him to be summoned personally in his own privy chamber." There is one circumstance of very great importance, omitted by Milner, Turner, and others; but which cannot be neglected if we would deal fairly by Henry. Fox gives a circumstantial statement of it; and it is of itself sufficient to account for whatever of "strait handling" may have been shown by the King to his unhappy friend at that hour. Lord Cobham, though he had repeatedly professed that the King was his supreme head, and liege Lord, and competent judge, and no other; and that he owed neither suit nor service to the Pope, whom he denounced as Antichrist; yet now appealed in the presence of the King peremptorily to the Pope, not on the heat of the moment, but by a written document which he showed to the King. The King overruled this appeal;[\[279\]](#) at least, he informed the accused that he should

remain in custody until it was allowed by the Pope, and that at all events the Archbishop should be his judge. He was then arrested again at the King's command, and taken to the Tower of London, "to keep his day," the time appointed for his trial. But the reader will judge more satisfactorily of the proceeding after reading the statement of Fox himself. "Then said the Lord Cobham to the King that he had appealed from the Archbishop to the Pope of Rome, and therefore he ought, he said, in no cause to be his judge; and, having his appeal there at hand ready written, he showed it with all reverence to the King. Wherewith the King was then much more displeased than afore, and said angerly unto him that he should not pursue his appeal; but rather he should tarry in hold till such time as it were of the Pope allowed, and then, would he or nild he, the Archbishop should be his judge."[\[280\]](#)

How far at this juncture the King was competent to take upon himself the responsibility of forbidding any further proceedings against the individual on whose head the church had resolved to pour the full vial of its wrath and vengeance; and, if he had by law the power, how far he could consistently with the safety of his throne and the peace of his kingdom have done so, are questions not hastily to be determined. Certain it is, that, not two years after Lord Cobham's first citation, Henry seems to have been thought by the council[\[281\]](#) to be so far from forward in the work of persecution, as to need from them a memorial to be more vigilant and energetic in his measures "against the malice of the Lollards;" and to require the Archbishops and Bishops to do their duty in that respect. Henry, though sincerely attached to the religion of Rome, yet, whether at the stake in Smithfield, or in his own palace at Kennington, appears to have endeavoured "to do the work of the good Samaritan," and to the very verge of prudence to interpose between the execution of a cruel law, and the sufferings of a fellow-creature for conscience sake; not by setting himself up against the law of the kingdom over which he reigned, but by gentleness and persuasion, and promises and threats, to induce his subjects not to defy the law. Our inquiry does not require or allow us to follow the steps of the devoted Lord Cobham through his examinations before the ecclesiastical judges, nor to pronounce upon the conduct and language either of Arundel[\[282\]](#) or his prisoner. Henry seems to have taken no part in the proceedings whatever. But after the definitive sentence had been passed,

and he had been left to the secular power, and remanded in custody of Sir Robert Morley to the Tower, we must observe that though according to Fox himself, the Archbishop had compelled the lay power by most terrible menacings of cursings and interdictions to assist him against that seditious apostate, schismatic, and heretic, and troubler of the public peace, that enemy of the realm and great adversary of holy church, (for all these hateful names did he give him,) yet the King's writ for his execution was not forthcoming, and, as far as we have any means of knowing, never was it issued. In the case of Sautre, the sentence of his degradation and delivery to the secular power was passed, and the King's writ for execution is tested on the very same day, February 26th, 1401.[\[283\]](#) In the case of Badby, the sentence, the King's writ, and the execution of the persecuted victim, followed in one and the same day hard upon each other.[\[284\]](#) But though Lord Cobham was sentenced on Monday, September 25, 1413, yet he remained in the Tower some time,—Fox says, "a certain space;" Milner says, "some weeks,"—and no warrant of execution was forthcoming. Indeed, as far as the record speaks, no such writ was ever issued by the King. The Tower was no ordinary prison, and yet Lord Cobham escaped[\[285\]](#) by night, no one knew how. Whether by connivance or not, and, if by connivance, whether from any intimation of the King's wishes or not, was never stated.[\[286\]](#) Many conjectures and surmises were afloat, but no satisfactory account of his escape was ever made known to the public. Certain it is that, had the King been a "cruel persecutor," had he been as ready to meet the desires of the hierarchy as his father was in the case of Sautre or Badby, a few hours only after the ecclesiastical sentence was passed would have borne Lord Cobham from the power of his persecutors to the place where the wicked cease from troubling, and where the weary are at rest. Walsingham says that both Henry and the Archbishop were desirous of saving Oldcastle's life, and that the Archbishop requested the King to give him a respite of forty days.[\[287\]](#) But, adds Walsingham, he escaped, and spent the time in preparing soldiers for revenge.

Had Henry been merely indifferent on this point, the writ would have issued as a matter of course. We have seen that, before any proceedings were instituted against him, Henry used his utmost endeavours and personal exertions to prevent the gallant knight from falling into the dangers which threatened; and now, when nothing but his own writ to the sheriff was

wanted to bring the last scene of the sad tragedy to a close, the King withheld it. The Archbishop, we are told by Fox, compelled the lay power, by most terrible menacings of cursing and interdictions, to assist him against Lord Cobham; and we may be satisfied, the clergy, after denouncing him in convocation, and after such vast pains had been undergone to subject him to the penalty of death, would not have failed to press their sovereign to extremities against this ringleader of their enemies: and yet the writ of execution is withheld, and the condemned prisoner escapes. Whatever inference may be drawn from these proceedings, at all events they give no colour to the charge of persecution; on the contrary, the conduct of Henry of Monmouth shews throughout indications of a kind-hearted good man, averse from violence, anxious to avoid extremities, withholding his hand from shedding of blood; and that not from a carelessness or ignorance in the matter, for he was sincerely attached to the Roman communion, believing it to be the true religion of Christ, and had also made proficiency in the learning of the time. Compared with the knowledge of those who have lived in more favoured times, and whilst the true light has shone from the sanctuary of the Gospel on the inhabitants of our land, Henry's acquaintance with divine things may appear scanty. But he certainly had possessed himself of a large share of Christian verity, and he was earnestly bent on maintaining the faith which he had espoused. The system, however, of the law of terror found no willing supporter in him. His forbearance from persecution sprang from a genuine feeling of humanity, the spirit of philanthropy and kindness.

CHAPTER XXXI.

CHANGE IN HENRY'S BEHAVIOUR TOWARDS THE LOLLARDS AFTER THE AFFAIR OF ST. GILES' FIELD. — EXAMINATION OF THAT AFFAIR OFTEN CONDUCTED WITH GREAT PARTIALITY AND PREJUDICE. — HUME AND THE OLD CHRONICLERS. — FOX, MILNER, LE BAS. — PUBLIC DOCUMENTS. — LORD COBHAM, TAKEN IN WALES, IS BROUGHT TO LONDON IN A WHIRLICOLE, CONDEMNED TO BE HANGED AS A TRAITOR, AND BURNT AS A HERETIC. — HENRY, THEN IN FRANCE, IGNORANT, PROBABLY, OF COBHAM'S CAPTURE TILL AFTER HIS EXECUTION. — CONCLUDING REFLECTIONS.

From the escape of Lord Cobham, or perhaps from the extraordinary affair of St. Giles' Field, which must now engage our attention, we perceive a most evident change in the sentiments and conduct of King Henry towards the Lollards, and especially towards Lord Cobham. Up to that time he seems to have considered their only crime to have been heresy, and he anxiously employed his good offices to rescue and save them: after that time he appears to have regarded them as his own personal enemies, subverters of order, traitors to the throne and the kingdom; and their heresy and schism were identified in his mind with the crimes of sedition and treason.[\[288\]](#) How far this view of their principles and designs was just, has been disputed. Both sides of the question have been strongly maintained. The inquiry is by no means devoid of interest in itself; and, as far as Henry's conduct and character are involved in the transactions of that time, is indispensable; and throughout the inquiry it must be remembered that the elucidation of his character, not the acquittal or conviction of Oldcastle and the Lollards, is the object we have in view.

Hume, depending implicitly on the old chroniclers, pronounces Cobham as the ringleader, and his followers guilty of treason. Fox, in his *Book of Martyrs*, has supplied Milner and many others with a very different view. Even Le Bas, in his "*Life of Wiclif*," though he is compelled to

acknowledge that, "with every allowance for the exaggerations of malice, of bigotry, and of terror, it is scarcely possible to believe that imputations so dark could have been *wholly* fictitious and unfounded," yet is unfortunately contented with the statements and arguments of later compilers, instead of satisfying himself from the original documents. He could scarcely have read the terms which Henry V. used in the different documents of his pardon to the offenders, or even in his proclamation of a reward for the capture of Sir John Oldcastle, when he tells us, "it should never be forgotten that the records of their persecution are wholly silent on the subject of sedition or conspiracy."

It is curious to read the opposite accounts given of the affair of St. Giles' Field by two modern historians, both having access to precisely the same documents. Hume thus summarily disposes of the case:—"Cobham, who was confined in the Tower, made his escape before the day appointed for his execution.[\[289\]](#) The bold spirit of the man, provoked by persecution and stimulated by zeal, was urged to attempt the most criminal enterprises; and his unlimited authority over the new sect proved that he well merited the attention of the civil magistrate. He formed, in his retreat, very violent designs against his enemies; and, despatching his emissaries to all quarters, appointed a general rendezvous of the party in order to seize the person of the King at Eltham, and put their persecutors to the sword. Henry, apprised of their intention, removed to Westminster: Cobham was not discouraged by this disappointment, but changed the place of rendezvous to the field near St. Giles's. The King, having shut the gates of the city to prevent any reinforcement to the Lollards from that quarter, came into the field in the night-time, seized such of the conspirators as appeared, and afterwards laid hold of the several parties who were hastening to the place appointed. It appeared that a few only were in the secret of the conspiracy; the rest implicitly followed their leaders: but, upon the trial of the prisoners, the treasonable designs of the sect were rendered certain, both from evidence and from the confession of the criminals themselves. Some were executed, the greater number pardoned. Cobham himself, who made his escape by flight, was not brought to justice till four years after; when he was hanged as a traitor, and his body was burnt on the gibbet, in execution of the sentence pronounced against him as a heretic. This criminal design, which was perhaps aggravated by the clergy, brought discredit upon the party, and

checked the progress of that sect, which had embraced the speculative doctrines of Wickliffe, and at the same time aspired to a reformation of ecclesiastical abuses."

Of the same affair Milner's version is this:—"The royal proclamation did not put an end to the assemblies of the Lollards. Like the primitive Christians, they met in smaller companies and more privately, and often in the dead of the night. St. Giles' Fields, then a thicket, was a place of frequent resort on these occasions; and here a number of them assembled on the evening of January the 6th, 1414,[\[290\]](#) with the intention, as was usual, of continuing together to a very late hour. The King was then at Eltham, a few miles from London. He received intelligence that Lord Cobham, at the head of twenty thousand of his party, was stationed in St. Giles' Fields for the purpose of seizing the person of the King, putting their persecutors to the sword, and making himself the regent of the realm. Henry suddenly armed the few soldiers he could muster, put himself at their head, and marched to the place. He attacked the Lollards, and soon put them into confusion. About twenty were killed, and sixty taken: among these was one Beverley, their preacher; who, with two others, Sir Roger Acton and John Brown, was afterwards put to death. The King marched on, but found no more bodies of men. He thought he had surprised only the advanced guard, whereas he had routed the whole army. This extraordinary affair is represented by the popish writers as a real conspiracy; and it has given them occasion to talk loudly against the tenets of the reformers, which could encourage such crimes. Mr. Hume also has enlisted himself on the same side of the question, and in the most peremptory and decisive manner pronounced Lord Cobham guilty of high treason."

Milner[\[291\]](#) depends upon "the able and satisfactory vindication of Lord Cobham by Fox, the martyrologist," whom he affirms to have examined with great diligence and judgment *all* the authentic documents. It is very dangerous to place implicit reliance on any one, however impartial he may be; especially ought we to seek evidence for ourselves, when an author professes, as Fox does, his object to be the vindication of one party and the conviction of another. On this point there are two or three unquestionably original documents, neither of which does Fox examine, and on which probably the large majority of readers will be disposed to rest, as the safest

ground for their opinion on Henry's conduct. In the course of the very day, on the early morning of which, and during the night preceding, the affair in St. Giles' Field took place, the King offers a reward of five hundred marks to any by whose counsel Lord Cobham should be taken, one thousand marks to any who should take him, and immunities and privileges to any city or town whose burgesses should bring him before the King. This proclamation, dated Westminster, 11th of January 1414, assigns these reasons for the offer of such rewards for his capture: "Since, by his abetting, very many of our subjects called Lollards have maintained diverse opinions against the Catholic faith; and contrary to their duty of allegiance, and falsely and traitorously, have imagined our death, because we have taken part against them and their opinions as a true Christian prince, and as we are bound by the obligation of an oath; and because they have plotted very many designs, as well for the destruction of the Catholic faith, as of the state of the lords and great men of our realm, as well spiritual as temporal; and, to fulfil their wicked purpose, have designed to make diverse unlawful assemblies, to the probable destruction of our own person, and of the states of the lords and nobles aforesaid."

In the same proclamation we find these words, which most persons will probably interpret as a proof of Henry's desire to mingle mercy with justice: "We, observing how some of these Lollards and others, who have designed our death and other crimes and evils, have been taken on the past occasion, and are condemned to death; and wishing hereafter, in a better and more gentle manner, as far as we can, to avoid the shedding of the blood of Christians, especially of our subjects, whom, for the tender and especial regard we have towards them, we desire with all anxiety of mind to preserve from blood-shedding and personal punishment," &c.

Another offer of pardon was made in a proclamation dated March 28, 1414. It seems that many vexatious prosecutions had taken place, and great disquietude and alarm had in consequence prevailed, and there was danger lest the good and sound members of the community might be condemned with the wicked and reckless disturbers of the public peace. The King therefore offers a free pardon[\[292\]](#) to all who will apply for letters of pardon before the Feast of St. John the Baptist: there are, however, ten or twelve exceptions; among others, Sir John Oldcastle, Thomas Talbot,

Thomas Drayton, rector of Drayton Beauchamp. In the body of this act of grace we read this pious sentiment of Henry: "We, from reverence to HIM who hath suddenly granted to us protection and victory against many of our said enemies, and in his own holy and good time desires to give pardon and peace to all who offend against himself, lest he destroy them in their iniquities and sins,—we, for the tranquillity, security, and peace of our lieges and subjects, decree this pardon."

In the December of the same year was the following pardon proclaimed, which, among other things, fixes the precise date of the affair in St. Giles' Field, and supplies, what has been triumphantly demanded by those who will pronounce the whole to have been a mere invention, *the conviction of an accused party*. "Whereas John Longacre of Wykeham, formerly of London, mercer, was indicted before William Roos of Hamelak, and others our justices, assigned to try treasons, felonies, &c. in our county of Middlesex, for plotting to put us and our brothers to death, and to make Sir John Oldcastle regent of this kingdom; and had resolved, with twenty thousand men, to execute their wicked purpose; and on the Wednesday after the Epiphany, in the first year of our reign, there Sir John Oldcastle and others, traitorously persevering in such purpose, traitorously met together in St. Giles' Great Field, and compassed our death; and the said Longacre pleaded 'not guilty,' and put himself on his country; and he was by the inquiry [inquest] found guilty, and condemned to be drawn from the Tower of London to St. Giles' Field, and there to be hanged; we, of our special grace, have pardoned the said John Longacre."

It is impossible for any candid mind to read these documents without being convinced that Henry was fully and reasonably assured of the treasonable practices of Oldcastle and his adherents, and that he was anxious to deal as mercifully with his enemies as would be consistent with a due regard to the peace and safety of the realm; and his biographer considers this as all which legitimately falls within his province. Whether Oldcastle himself were on that night in St. Giles' Field, is now a question probably beyond the reach of certain conclusion. The King's pardon to Longacre declares that he was present, and there is no evidence on record against it. These are the documents on which we must form our opinion. They are not traditionary stories, written many years after the event; they are not manifestos

published in a foreign land; they are State-documents published on the very spot, all in the same year, one on the very day after the transaction, one in the March, and the last in the December following. With reference to Fox's arguments,—whilst every one would, on many accounts, do well to read them,—it will be immediately obvious, that "though twenty thousand were said to be expected, and a few hundreds only were found," yet that the large body of adherents who were to rendezvous in St. Giles' Field were to come from the city, and that on the first news of the meeting of the Lollards Henry sent to order the city gates to be shut.^[293] Fox also says that any conspiracy is incredible in which only three names could be fixed upon; but this only argues in him an ignorance of the documents above referred to, in which many persons are by name excepted from the pardon, and reference is made to many others accused in different parts of the country. It can no longer be doubted that Lord Cobham was believed by Henry to have entered into a treasonable conspiracy against the government and the person of the King; though, after he escaped from the Tower, there is no evidence yet discovered (except the King's own declaration) to prove that he was in Fickett's Field, as the place of meeting near St. Giles' church was called.

Of the seditious and treasonable conduct of Oldcastle, no one seems to have entertained any doubt before the time of Fox, who wrote more than a century and a half after the event. The Chronicle of London, written about 1442, not thirty years after the transaction, after stating the capture and execution of "diverse men," "much folk," among the rest "a squire of Sir John Oldcastle," adds these words: "And certainly the said Sir John, with great multitude of Lollards and heretics, were purposed with full will and might to have destroyed the King and his brethren, which be protectors of holy church, and them also that be in degree of holy order in the service of God and his church; the which will and purpose, as God would, was let, and Sir John fled and escaped."^[294] Fox quotes the Monk of St. Alban's, whose testimony in the book entitled "Chronicles of England, and the Fruit of Time," speaks in this strong language: "And in the same year (1 Henry V.) were certain of Lolles taken, and false heretics, that had purpose of false treason for to have slain our King, and for to have destroyed all the clergy of the realm, and they might have had their false purpose. But our Lord God would not suffer it, for in haste our King had warning thereof, and of all their false ordinance and working; and came suddenly with his power to St.

John without Smithfield: and anon they took a captain of the Lolleis and false heretics, and brought them unto the King's presence, and they told all their false purpose and ordinance; and then the King commanded them to the Tower, and then took more of them both within the city and without, and sent them to Newgate and both Counters; and then they were brought for examination before the clergy and the King's justices, and there they were convicted before the clergy for their false heresy, and condemned before the justices for their false treason."

Walsingham says, referring to the time of Henry's first expedition, that the Lollards, probably hearing of the treason of Grey, Scroop, and Cambridge, at Southampton, came out of their lurking-places, and spoke and wrote on the church-doors treason. And Oldcastle, who was in concealment near Malvern, having heard, though by a mistake, that the King had sailed, sent threats to Lord Burgoyne, who forthwith collected at his castle of Haneley, near Worcester, five thousand men. Cobham returned to his concealment; but a chaplain of his, and other partisans, being taken, were so closely questioned that they discovered the place in which he kept his arms concealed between two walls.

The author published under the name of Otterbourne, refers to a document which, if authentic, would establish Oldcastle's treasonable practices beyond further question. "The Lollards," he says, "meanwhile were sadly grieved by the discovery of certain schedules and indentures between John Oldcastle and the Duke of Albany, in which the Scots are invited to besiege Roxburgh and Berwise [Berwick]. And on this the Duke laid siege to Berwise by sea and land." Whether all these testimonies and original documents establish Lord Cobham's guilt or not, it is impossible to read them without inferring that, at all events, there was abundant reason for Henry's own conduct with regard to him.[\[295\]](#)

After his escape to Wales, however, and the exception of his name from the bill of pardon, and the offer of a reward for his capture, Henry does not appear to have had anything whatever to do with Lord Cobham in life or in death. There is something strange and affecting in the circumstances of his capture and execution. It was towards the close of the year 1417, whilst parliament was sitting, that news arrived of the Lord Cobham having been

discovered and taken in Wales. After voting a subsidy to Henry, who was then pursuing his victories with all his energy in France, "as soon as they heard that the public enemy was taken, they all agreed not to dissolve parliament until he were examined and heard." The Lord Powis was sent to bring him to London, his men having taken him after a desperate struggle. [296] "He stood," says the Monk of Croyland, "at great defence long time, and was sore wounded or he would be taken. And so the Lord Powis' men brought him out of Wales to London in a whirlicole." He was forthwith carried before the parliament as an outlaw, on the charge of treason, and, as an excommunicated heretic, given over to the secular power. He heard the several convictions, and made no answer to the charges; and was then instantly condemned to be taken to the Tower, and thence to the new gallows in St. Giles' Field, and there to be hanged for his treason, and to be burnt hanging for his heresy. There was, undoubtedly, great irregularity and hurry in this proceeding. But probably the statement of the Monk of St. Alban's is not far from the truth. "So he was brought to Westminster, and there was examined on certain points, and he said not nay; and so he was convicted of the clergy for his heresy, and dampned before the justices to the death for treason: and he was led to the Tower again, and there he was laid on a hurdle, and drawn through the city to St. Giles' Field. And there was made a new pair of gallows, and a strong chain, and a collar of iron for him; and there he was hanged, and burnt on the gallows, and all for his lewdness and false opinions."

And here we must close this sad tragedy, in the last scene of which King Henry took no part. He was spared the pain of either sanctioning or witnessing these transactions. The first information he received of his unhappy friend's capture, probably certified him also of his death; and whatever we may suppose to have been his sentiments on the removal from this world of one whom he certainly believed guilty of treason, and the enemy of his throne; his kindness of heart, and sympathy with the brave and the good, must have made him, even in the midst of the din of war and the flush of victory, lament the fate of one whom for so many years he had held in affection and esteem. Henry probably felt a melancholy satisfaction that he was spared the sad duty, for so he must have deemed it, of sanctioning the last sentence on his friend. They are now both in the hands of Him to

whom all hearts are open, and from whom no secret is hid; and there we leave them to his just but merciful disposal.

CHAPTER XXXII.

THE CASE OF JOHN CLAYTON, OF GEORGE GURMYN, AND OF WILLIAM TAYLOR, EXAMINED. — RESULTS OF THE INVESTIGATION. — HENRY'S KINDNESS AND LIBERALITY TO THE WIDOWS AND ORPHANS OF CONVICTED HERETICS. — REFLECTIONS.

Henry of Monmouth's name seems never to have been associated by our historians with the death of any one condemned to the flames as a heretic, except in the case of those two persons the circumstances of whose last hours have been examined at length in this inquiry,—Badby, whom he endeavoured to save even at the stake, and Oldcastle, whose execution he respited, and for whose death he never issued the warrant. There are, however, three prosecutions for heresy, which, though hitherto unconnected with the question discussed in these chapters, seem to claim a patient consideration before this inquiry is closed, and the final answer be returned to the question, Was Henry a persecutor for religious opinions? The names of the three persecuted for maintaining opinions different from the dogmas of the church of Rome, to whose convictions and deaths our attention is here drawn, are John Clayton, or Claydon, George Gurmyn,[\[297\]](#) and William Taylor.

The case of John Clayton, whether we look to it merely as a well-authenticated fact of history, or seek from it ancillary evidence as to the principles and conduct of Henry in the matter of religious persecution, involves subjects of deep interest. The satisfaction with which it is believed many may view it, as one of the incidents which seem to imply that Henry was an unwilling, reluctant executor of the penal laws of his kingdom, and took the lead of his people in liberality and toleration, must be mingled with pain sincerely felt on witnessing the stewards of the word of life becoming the zealous and relentless exactors of a cruel and iniquitous law, straining to

the very utmost its enactments to cover their deeds of blood, and sacrificing their fellow-creatures to the image they had set up. The case of Clayton puts the excessive enormities of the hierarchy of that day in a more striking point of view than many others of the more generally cited instances of persecution. Clayton's was not the case of a powerful man like Cobham, whose very character and station, and rank and influence, made him formidable: Clayton's was not the case of a learned man, or an eloquent preacher, or an active, zealous propagator of those new doctrines from which the see of Rome anticipated so much evil to her cause. His was the case of a tradesman, unable to read himself, and engaging another to read to him out of a book which seemed to give him pleasure; the place of reading being a private room in a private house, the time of reading being the Lord's day, and other festivals of the church; and the witnesses against him being his own servant and his own apprentice. Had the record of this sad persecution been written by an enemy to the priesthood, we should have suspected that the whole case was misrepresented, that a colouring had been unfairly given to the proceedings, to make them more odious in our sight; and though, at the best, such proceedings must be detestable, we should have deemed that in this case the facts had been distorted to meet the prejudiced views of the writer. But the proceedings are registered in the authentic records of the Archbishop of Canterbury,[\[298\]](#) and are minutely detailed in all the circumstances of time, and place, and person.

John Clayton was a currier, or skinner, living in the parish of St. Anne's, "Aldrychgate." In those days few tradesmen could read, and he was not an exception. But he had at an early period formed a very favourable opinion of the new doctrines; the preaching of Wickliffe's followers, or, it may be, of Wickliffe himself, had made so deep an impression on his mind, that nothing could shake the firmness and constancy of his belief to the day of his death. His predilection for "Lollardy," as the profession of the new doctrines was called, became known to the ecclesiastical rulers long before the statute for burning heretics was passed in England; and his religious opinions exposed him to great troubles and hardships, even in the reign of Richard II. He was arrested on suspicion of heresy, and carried before Braybrook, Bishop of London. The consequence of his conviction was imprisonment, first in Conway Castle for two years, and subsequently in the Fleet for the term of three years more. He then renounced the errors alleged

against him, and abjured them at the time when "Lord John Searle" was chancellor of England, about the year 1400. Through the reign of Henry IV, and the two first years of Henry V, Clayton seems to have remained unmolested. No sooner, however, had Henry left England on his first expedition to France, than Clayton was seized, tried, and condemned. There seems to have been unusual despatch evinced in every stage of the proceedings. Clayton was not cited by regular process. The Mayor of London arrested him, and brought him before the Archbishop's consistory, on Saturday, August 17th, when he was examined, and remanded till the next Monday, August 19th. On which day he was brought up again, and finally condemned as a wilful relapsed heretic.

At that very time, Henry, having dismissed his ships, was first commencing the siege of Harfleur; he had left England only the preceding Sunday. Whether the time selected for Clayton's arrest and trial was merely accidental, or whether the civil and ecclesiastical authorities (for both were equally eager for the blood of their victim) seized upon the opportunity of Henry's first absence from England, is a question which ought not to be decided before all the circumstances attending both Clayton's execution and the proceedings against Taylor (which will be next examined) shall have been carefully weighed. One of the witnesses, who testified to overt acts of heresy (such as those on which he was condemned) having been seen in Clayton's conduct a year before the time of trial, was living in the house of the Mayor of London; and that functionary seems to have hurried on the prosecution with more zeal than considerateness, and to have kept the young man in readiness to give his testimony whenever a favourable opportunity offered. Such circumstances cannot be contemplated without suspicion. At all events, the plain fact is, that, on the very Saturday after Henry sailed from England, Clayton was brought under arrest, not under process of citation, before the ecclesiastical judges by the Mayor of London, who was ready with his witnesses.

The charges brought against Clayton were, that, having renounced heresy, he had again been guilty of the same crime, by associating with persons suspected of heresy, and by having heretical books in his possession. To establish these facts, in addition to his own confession that he "had been imprisoned in the time of Bishop Braybrooke on a charge of heresy, and had

subsequently renounced in the time of Chancellor Searle, and had heard read about one quarter of the book then produced," they proceeded to examine two witnesses who had been inmates in Clayton's family.

The first witness swore that he had been, some time past, a servant and apprentice of John Clayton; that he had seen one John Fuller, a fellow-servant of his, reading the book, which he then identified, to his master, in St. Martin's Lane, on certain festival days since Easter; that in the book were the ten commandments in English, but what else it contained he knew not; that John Clayton seemed to be delighted with the book, and to regard it as sound and Catholic.

Another witness, Saunder Philip, a lad fifteen years old, a servant of Clayton's, but living at the time of the trial in the house of the Mayor of London, testified that he saw the book brought into Clayton's house about the middle of the preceding Lent; that he heard Clayton, his master, say that he would rather pay three times the price of the book than be without it; and that, on several occasions, through the year before, he saw and heard persons suspected of heresy conversing with Clayton.

To what miserable, degrading expedients were these persecutors obliged to condescend in compassing their designs! compelling those who ate of the bread of the accused, and drank of his cup, and were his own domestic servants, and confidential inmates of his home, to bear the testimony of death against him: verifying among Christians what the Lord of Christians prophesied as the result of pagan opposition to the Gospel itself, "A man's foes shall be those of his own household."

The poor man himself confessed that he believed he had heard about one-fourth part of the book read. The book produced, and identified by the witnesses, was called "The Lantern of Light;" in which the ecclesiastical judges pronounced many gross and wicked heresies to be contained. Among other articles objected to, some of which were doubtless in a more palpable manner adverse to the favourite doctrines of Romanism, we find the following criterion of the lawfulness and virtue of alms-giving. The author maintained that alms were neither lawful nor virtuous, unless four conditions were observed in the distribution of them.

- 1.—Unless they be given to the honour of God.
- 2.—Unless they be given from goods justly gotten.
- 3.—Unless they be given to one whom the donor believed to be in a state of Christian charity.
- 4.—Unless they be given to such as in very deed, without dissembling or pretence, are in need.

That the parts of the book which contained the heretical doctrines were ever read to Clayton, does not seem to have been elicited at the examination. The witnesses could only depose to having heard the Decalogue read in English, but nothing more; and the poor man's own confession acknowledged only that he had heard about one quarter of the work read. Still, on this confession and this evidence, and for this offence, John Clayton was convicted of heresy, was condemned as a relapsed heretic, and left without mercy to the secular power. Fox, who quotes no authority, adds only, that he "was by the temporal magistrates not long after had to Smithfield and burnt."

The ecclesiastical record contains no information after the sentence passed on Monday the 19th of August, and our historians seem not to have made any inquiries as to the fate of this man. Recent researches, however, into original documents have been made by the Author, with the view of facilitating the present inquiry, and rendering it more satisfactory; and the successful result of those researches enables him to throw some additional light on the subject under investigation. The following facts deserve especial attention. Shortly after the above sentence was passed by the ecclesiastical authorities, the Mayor and citizens of London wrote a letter to King Henry, rehearsing the judgment of the ecclesiastical court on John Clayton, and expressing their intention to make an example of the convict by carrying the sentence into execution. But they desired the King to send them his especial directions on the subject, as they were desirous to avoid giving offence in this as well as in all other affairs. The answer of Henry to this request, if it was ever made, is certainly not recorded. The strong probability is that the execution took place before there had been time for the King's answer, if he ever sent one, to reach London. The sheriffs of

London state in this same year that "they had expended 20s. about the burning of John Claydon, skinner, and George Gurmyn, baker, Lollards convicted of heresy," though the day of the execution is not recorded.

It must here be remembered, that the Mayor himself arrested Clayton, and produced the witnesses against him; that the King's writ^[299] was not necessary to authorize execution after judgment passed by the ecclesiastical authority in convocation; and that, even if it had been necessary to procure the royal sanction, the Duke of Clarence was left in England with full powers, as Henry's representative. Yet, in order to avoid giving offence, though they were determined to make an example of Clayton, they were afraid to proceed to the extreme penalty of the law without first taking the instructions of the King. This would scarcely have been necessary, nor would any hesitation, or scruple, or misgiving have arisen in their minds, had they not been under a strong practical persuasion that the execution of this man would have given their King displeasure. And when we know what employment awaited Henry from the very day of Clayton's conviction till his return home,—the siege of Harfleur, the harassing march through France, the battle of Agincourt,—we cannot wonder at no answer being recorded. Perhaps he made no answer; perhaps the letter never reached him in the midst of his struggles and dangers; probably he did not interfere, but allowed the law to take its course. Whatever took place between the condemnation and the death of Clayton, every stage of the transaction, from the first arrest of the accused on the very Saturday after Henry sailed for France, makes it quite clear that, in the opinion of the magistrates of London, Henry would be no willing abettor of persecution.

A case, however, of no ordinary character as a matter of historical record, and doubly important to those who take an interest in the result of the present investigation, requires to be examined in all its bearings (especially with reference to the dates of its several stages) with greater care than has hitherto been bestowed upon it.

In the July of 1416, whilst the Emperor Sigismund and Henry were both in England, Archbishop Chicheley gave evidence of his zeal by issuing most stringent mandates, directing his suffragan bishops to make diligent search for heretics, to report the names and circumstances of all who were

suspected of heresy under seal to the metropolitan, and to institute process against them according to law. On the publication of these injunctions, a most strict and searching inquisition took place through the country. Still no one suffered the extreme penalty of the law as a heretic convict. In the next year, no sooner was Pope Martin V. elected at Constance, than, complaining bitterly of the neglect and apathy of the ecclesiastical and civil authorities, the new Pontiff addressed every argument, both of encouragement and of intimidation, to the laity and the clergy alike, urging them to unite as one man in the work of extirpating heresy. He even applied to the English church, that, in their overflowing zeal for the Apostolic See, they would raise a subsidy in aid of the war then being carried on against the heretics in Bohemia. Among those who had fallen under suspicion of heresy, and who were watched with jealous vigilance by the ecclesiastical authorities, was one William Taylor, who had proceeded to his degree of Master of Arts in one of the Universities, and had been admitted into the order of priest in the church. Taylor was cited to appear before the consistory; and on Monday, February 12, 1420, he confessed before Archbishop Chicheley that in the time of his predecessor (Arundel) he had been suspected of heresy; and for not appearing, or for not answering to the charge brought against him, he had been excommunicated, and had remained under that sentence for fourteen years.[\[300\]](#) Upon his expression of sorrow and repentance, he was commanded to appear on the following Wednesday at Lambeth, where, in the great chapel, he received the pardon of the church on certain stipulated conditions. He was bound by solemn promises, and by an oath on the Gospels (thrice repeated), not to offend again; and he promised to appear in person or by his proctor at the next convocation, there to confess his penitence. He was then set at liberty.

Taylor, however, was not long allowed to remain unmolested. Agreeably to the call of the sovereign Pontiff at Rome, and the peremptory injunctions of his metropolitan, agreeably also (as it too evidently appears by the sequel) to his own views of duty, Philip Morgan, Bishop of Worcester, denounced the same William Taylor in full convocation, May 5, 1421, as a person vehemently suspected of heresy. The King was then in London, but was on the eve of leaving the kingdom; and fully occupied in preparing to proceed forthwith to wipe off the disgrace which had fallen on the English arms, and to restore confidence to his troops, then much depressed by the unexpected

discomfiture of their countrymen, and the death of the Duke of Clarence in battle. On Saturday, May 24, Taylor was put upon his trial, being produced before the court as the Bishop of Worcester's prisoner, who had caused him to be arrested. Of the three opinions savouring of heresy, (*errorem et hæresin sapientes*,) he pleaded guilty to having entertained the two last, but of the first he seems to have had no knowledge; indeed, it is very difficult to say what meaning could have been attached to it.

He was charged with having maintained at Bristol.

First, That whosoever suspends on his neck any writing, by that act takes away the honour due to God only, and renders it to the Devil.[\[301\]](#)

Secondly, That Christ was not to be prayed to in his character of man, but only as God.

Thirdly, That the saints of heaven were not to be addressed in prayer.

On the next Monday, May 26th, he was pronounced guilty of heresy, and condemned to perpetual imprisonment for the term of his life. So dreadful a punishment (to which, whatever it might be, he had on his previous release sworn to submit,) suddenly struck him to the very heart, and caused him to show some signs of a subdued mind. On which the Archbishop mitigated that sentence by adding to it an alternative, "Unless he shall be able to give bail, to the satisfaction of the Chancellor of England."

We have already intimated that Henry's thoughts were at this time fully and anxiously occupied in preparing for an immediate expedition to France; and it is to be observed that, on the very day after Taylor's condemnation, the King issued his writ to the sheriffs, commanding them to publish his proclamation for all persons to hasten with the greatest speed to join the King in his voyage. Taylor left the court in custody, as the prisoner of the Bishop of Worcester, to end his days in a dungeon, unless he should be able to produce the required bail; in which case the Bishop was authorized by the court to release him.

When Henry left London, on the Monday after Taylor's condemnation, he left it never to return. His death, as we have seen, took place on the last day

of August 1422. That Henry knew anything of the prosecution of this person, does not appear; and, if he had been made acquainted with the intended proceedings, whether he expressed any opinion upon them in favour of maintaining the faith by the secular arm, or in favour of the gentle and mild means of persuasion,—is a matter lost to history, and all inquiry into any of those points must be fruitless. Nor are we informed whether the poor man could produce the required bail, or whether he remained a prisoner till his death. Some expressions in the record of the subsequent transactions would induce us to infer that he had, after his condemnation, been at large and was again taken into custody (*sub custodiâ carcerali iterum arrestatus*). The striking fact, however, is this,—that Henry had not been dead six months before this same priest was brought up a prisoner in the custody of a jailor, and tried before the same court for a repetition of the very same offence; or rather, perhaps, for the very same individual act for which, a year and three quarters before, he had been condemned to perpetual imprisonment. The same accuser, the Bishop of Worcester, charged him with having, *since his abjuration aforesaid*, written, maintained, and communicated with a certain priest, named Thomas Smyth, living at Bristol, on paper in his own hand-writing, the alleged heretical opinions. Here it must be observed, that the charge was made by the same accuser, the Bishop of Worcester, before the same Judge Chicheley; that the place in which he was said to have held these doctrines was in each case the same, Bristol; that in each case the doctrines were said to have been conveyed by writing; and that, as to the time of the offence, the Bishop did not say it was after his previous condemnation, but only after his recantation, which took place in February 1420, just a year and a quarter before his sentence of imprisonment. And if we examine the four heretical opinions which were extracted, in 1423, by the Canonists out of his written communication to Thomas Smyth, we shall find them in substance nothing more or less than two of the opinions on which he was before condemned to imprisonment in 1421.

1.—All prayer which is a petition for any supernatural or gratuitous gift, is to be offered to God alone.

2.—Prayer is to be addressed only to God.[\[302\]](#)

3.—To pray to any creature is to commit idolatry.

4.—The faithful ought to address their prayers to God, not in reference to his humanity, but only with regard to his Deity.

This was the sum of his offence, involving precisely the identical opinions of which he had been pronounced guilty in 1421, after his recantation in 1420.[\[303\]](#)

After Lynewood had given his opinion that a relapsed heretic was to be left to the secular court, without hope of pardon, and without being heard as to the corporal punishment, his judges proceeded to the extreme execution of the law. Taylor was degraded on Monday the 1st of March, 1423, in the first year of Henry VI; and, the writ for his burning being issued on the same day, he suffered death in Smithfield.

How far these circumstances may be pronounced to bear on the subject, and to conspire in acquitting Henry of Monmouth of the charge with which his name has been unsparingly assailed, of having been in spirit and conduct a persecutor for religious opinions, deserves serious consideration. When it is borne in mind that the Lollards were certainly represented to Henry as the enemies of his throne and of the peace of the realm; that the Pope and the hierarchy of England were loud and incessant in their appeals to the authorities to extirpate such poisonous weeds from the garden of the Lord's heritage; that the Emperor Sigismund was most zealous in obeying such calls of the church, and caused his own land to flow with blood; that Henry's prelates made a direct personal appeal to him to prosecute heretics; that his council deemed it necessary to remind him of his duty in that point; [\[304\]](#) that his own chaplain openly charged him with want of zeal and with apathy in that good cause; that no single warrant for the execution of any one condemned for heresy alone was ever signed, or, as far as we can ascertain, was ever sanctioned, by him; that the only victims of the priesthood actually burnt for heresy alone during his reign were condemned and executed in Henry's absence from the kingdom; and that one person sentenced to imprisonment during Henry's life was, within a few months after his death, condemned to the flames, and actually burnt for the same offence; when all these points are fairly weighed, probably few will not feel

satisfied that the judgment passed upon Henry, on the charge of persecution, is inconsistent with the soundest principles of historical investigation.

The Author, however, is induced to confess that a comparison of the events of Henry's reign with those which preceded his accession, and followed his death, has compelled him to form more than a merely negative opinion on Henry of Monmouth's principles and conduct and influence. In addition to the circumstances detailed in these chapters, he would solicit attention to one fact, which no historical writer seems to have noticed. During the last years of Henry IV. a greater number of persons appear to have suffered in the fires of martyrdom than the accounts of our chroniclers would lead us to suppose.^[305] By the cruel operation of the law, the goods and chattels of convicted heretics were escheated to the crown; and when Henry came to the throne, several widows and orphans were suffering severely from the effects of that ruthless enactment. No sooner had he the power of relieving their distress, than, in the exercise of the most divine prerogative of the kingly office, he restored to many their confiscated property. The most correct notion of the motives which influenced him will be conveyed by the language itself of the several grants: "We, compassionating the poverty of Isabella, widow of Richard Turner, who was convicted and put to death for heresy, of our especial grace have granted to the said Isabella all the goods and chattels to us forfeited, for the maintenance of herself and of her children."^[306] Similar grants are recorded, and all in the first year of his reign, to Alice widow of Walter Yonge, Isabella widow of John Horewood, and Matilda widow of John Fynche; their several husbands having suffered for maintaining opinions then pronounced heretical. This fact seems to be not only confirmatory of the views we have taken of Henry's tender-heartedness and sympathy with the afflicted and helpless, but indicative also of the absence of whatever approaches a persecuting and vindictive spirit towards those who had incurred the extreme penalty of the law for conscience-sake. The Author cannot but infer that Henry's dislike of persecution placed a considerable check on the fierceness with which it raged, both before and after his reign; that the sanguinary intentions of the priesthood were, to a very considerable degree, frustrated by his known love of gentler means; and that in England a greater portion of religious liberty was enjoyed during the years through which he sat on the throne,

than had been tolerated under the government of his father, or was afterwards allowed through the minority of his son.

The Author entered upon the subject of the three last chapters with the view of ascertaining, on the best original evidence, the validity or the unsoundness of the charge of persecution for religion brought against Henry of Monmouth. Independently of the result of that investigation, he confesses himself to have risen from the inquiry impressed with mingled feelings of apprehension and of gratitude:—gratitude for the blessings of the Reformation; and apprehension lest, in our use of those blessings, and in the return made to their Almighty Donor, we may be found wanting. For no maxim can be more firmly established by the sound deductions of human wisdom, or more unequivocally sanctioned by the express words of revelation, than the principle that to whom much is given, of them will much be required. And on this principle how awfully has our increase of privileges enhanced our responsibility! By the Reformation, Providence has rescued us from those dangers which once attended an honest avowal of a Christian's faith; has freed us from those gross superstitions which once darkened the whole of Christendom; and has released us from that galling yoke under which the disciples of the Cross were long held in bondage. The bestowal of these blessings exacts at our hands many duties of indispensable obligation. The Author hopes he may be pardoned, if, in closing this subject, he refers to some of those points which press upon his own mind most seriously.

Those who are intrusted with a brighter and a more pure light of spiritual truth, are, first of all, bound to prove by their lives that religion is not in them a dead and inoperative letter; but a vivifying principle, productive of practical holiness and virtue. Enlightened Christians are bound to show forth their principles by the exercise of every Christian excellence, and so to prove to the world that God is with them of a truth.

Another indispensable duty is, that those who possess the truth should individually and by combined exertions labour to spread its heavenly influence throughout the whole mass of their fellow-creatures, not only in every corner of their own land, but to the utmost coasts of the civilized

world, and through the still numberless regions of barbarism and idolatry. "Freely ye have received, freely give."

Again, it were a narrow view of our duty were we to feel an anxiety for the preservation, through the period only of our own existence upon earth, of the benefits which we now enjoy. To be satisfied with the assurance that provision is made for our own times, is a principle altogether unworthy a philanthropic and a Christian mind: and the more valuable and essential the blessing, the more steady and vigorous should be our labour in providing for its permanency and its future increase. If we are honest in our own choice, we believe that by delivering down to posterity, in its integrity and pureness, the blessing which has been committed to us in especial trust, we are transmitting not a state-device (as its enemies delight to call it), but an institution founded on the surest principles of true philosophy and of revelation, with a view to the best interests of the whole human race. If, aided by the Divine Founder of the church, we resign to those who come after us the fostering and mild, but firm and well-grounded establishment of the Protestant faith, removed equally from latitudinarian indifference and from the intolerance of bigotry, with an ungrudging spirit sharing with others the liberty of conscience we claim for ourselves, we shall transmit an inheritance which may be to future ages what it has proved itself to be towards many among ourselves, and of those who have gone before us,—the instructor and guide of their youth, the strength and stay of their manhood, the support and comfort of their declining years;—an institution which is the faithful depository of Christian truth; the surest guardian of civil and religious liberty; the parent of whatever is just, and generous, and charitable, and holy. ESTO PERPETUA!

APPENDIX. No. I.

To those, as we are led to believe, contemporary poems, which appear in the body of the work, the Author is induced to subjoin a "Ballad of Agincourt," of much later date indeed, but which, for the noble national spirit which it breathes throughout, and the vigour of its description, cannot easily be exceeded: it is not so generally known as it deserves to be; though some of its expressions may sound strangely and quaintly to our ears. It will be found in Drayton's Works, p. 424.

"Fair stood the wind for France,
When we our sails advance;
Nor now to prove our chance,
Longer will tarry;
But, putting to the main,
At Kaux, the mouth of Seine,
With all his martial train,
Landed King Harry.

And taking many a fort,
Furnished in warlike sort,
Marcheth towards Agincourt,
In happy hour.
Skirmishing day by day,
With those that stopped his way;
Where the French general lay
With all his power.

Who, in the height of pride,
King Henry to deride,
His ransom to provide,
To the King sending:
Which he neglects the while,
As from a nation vile;
Yet with an angry smile
Their fall portending.

And turning to his men,
Quoth our brave Henry then,

Though they to one be ten,
 Be not amazed.
Yet have we well begun,
Battles so bravely won
Have ever to the sun
 By fame been raised.

And for myself, quoth he,
This my full rest shall be:
England ne'er mourn for me,
 Nor more esteem me.
Victor I will remain,
Or on this earth be slain;—
Never shall she sustain
 Loss to redeem me.[\[307\]](#)

Poitiers and Cressy tell,
Where most their pride did swell;
Under our swords they fell;—
 No less our skill is,
Than when our grandsire great,
Claiming the regal seat,
By many a warlike feat
 Lopped the French lilies.

The Duke of York so dread,
The eager vaward led;
With the main Henry sped
 Amongst his henchmen.
Exeter had the rear,
A braver man not there!
How fierce and hot they were[\[308\]](#)
 On the false Frenchmen!

They now to fight are gone,
Armour on armour shone;
Drum now to drum did groan—
 To hear was wonder;
That with the cries they make,
The very earth did shake;
Trumpet to trumpet spake,
 Thunder to thunder.

Well it thine age became,
O noble Erpingham!
Who didst the signal aim
 To our hid forces;
When, from a meadow by,
Like a storm suddenly,
The English archery
 Stuck the French horses.

With Spanish yew so strong,
Arrows a cloth-yard long,
That like to serpent stung,
 Piercing the weather.
None from his fellow starts,
But playing manly parts,
And, like true English hearts,
 Stuck close together.

When down their bows they threw,
And forth their bilbows drew,
And on the French they flew;—
 Not one was tardy;
Arms were from shoulders sent,
Scalps to the teeth were rent;
Down the French peasants went:—
 Our men were hardy.

This while our noble King,
His broad sword brandishing,
Down the French host did ding,
 As to o'erwhelm it.
And many a deep wound lent,
His arms with blood besprent;
And many a cruel dent
 Bruised his helmet.

Gloucester, that Duke so good,
Next of the royal blood,
For famous England stood
 With his brave brother;
Clarence, in steel so bright,
Though but a maiden knight,
Yet in that famous fight
 Scarce such another.

Warwick in blood did wade,
Oxford the foe invade,
And cruel slaughter made,—
 Still as they ran up;
Suffolk his axe did ply;
Beaumont and Willoughby
Bare them right doughtily;
 Ferrers and Fanhope.

Upon St. Crispin's day,
Fought was this noble fray;
Which fame did not delay
 To England to carry;
Oh! when shall English men
With such acts fill a pen,

Or England breed again
Such a King Harry!"

APPENDIX, No. II.

To the miseries which fell upon the inhabitants of Rouen during the siege, a brief reference has been made in the body of this work. The following lines, by an eye-witness, record a very pleasing circumstance indicative of Henry's piety and benevolence. The wretched inhabitants, who could contribute no aid in the defence of the town, were driven by the garrison beyond the gates with the most unmerciful hardheartedness. On Christmas-day Henry offered, in honour of the festival, to supply all the inhabitants, great and small [meste and least], with meat and drink. His offer was met very uncourteously by the garrison, and his benevolent intentions were in a great degree frustrated. The poem called "The Siege of Rouen" may now be read in the *Archæologia*, vol. xxi, with an interesting introduction by the Reverend William Conybeare.

SIEGE OF ROUEN.

"But then, within a little space,
The poor people of that same place
At every gate they were put out,
Many a hundred on a rout.
It was great pity them for to see,
How women came kneeling on their knee;
And their children also in their arms,
For to save them from harms.
And old men came kneeling them by,
And there they made a doleful cry;
And all they cried at once then,
'Have mercy on us, ye English men!'
Our men gave them some of their bread,
Though they to us were now so quede.[\[309\]](#)
Harm to them we did none,
But made them again to the ditch gone:
And there we kept them all abache,
Because they should not see our watch:
Many one said they would liefer be slain,
Than turn to the city of Rouen again.

They went forth with a strong murmuratiōn,
And ever they cursed their own natiōn;
For the city would not let them in,
Therefore they did full great sin;
For many one died there for cold,
That might full well their life have hold.
This was at the time of Christmas:
I may you tell of a full fair case,
As of great meekness of our good King;
And also of meekness a great tokening.
Our King sent into Rouen on Christmas day,
His heralds in a rich array;
And said, because of this high feast,
Both to the meste and to the least
Within the city, and also without,
To tell, that be scanty of victuals all about,
All they to have meat and drink thereto,
And again safe-conduct to come and to go.
They said, 'Gramercy!' all lightly,
As they had set little prize thereby;
And unnese [scarcely] they would grant any grace
To the poor people that out put was,
Save to two priests, and no more them with,
For to bring meat they granted therewith;
'But an there come with you and mo [more],
Truly we will shoot you too.'
All on a row the poor people were set,
The priests come and brought them meat;
They ate and drank, and were full fain,
And thanked our King with all their main;
And as they sate, their meat to fong,
Thus they talked them among:
'O Mightiful Jesu!' they said then,
'Of tender heart is the Englishmen;
For see how this excellent King,
That we have been ever again standing;
And never would we obey him to,
Nor no homage to him would we never do;
And yet he hath on us more compassion,
Than hath our own countrymen;
And therefore, Lord Jesu, as Thou art full of mercy,
Grant him grace to win his right in hey.'[\[310\]](#)
And thus the poor people that time spake,
And full good tent thereto was take;
But when they had eaten and went their way,
The truce adrew, and war took his way."

APPENDIX, No. III.

AUTHENTICITY OF THE MANUSCRIPTS

Sloane 1776, and Reg. 13, c. 1.

It will be borne in mind that the only document which contains the charge brought against Henry of Monmouth of unfilial conduct and cruel behaviour towards his afflicted father is a manuscript, two copies of which are preserved in the British Museum; and that a thorough examination of the authenticity of that manuscript was reserved for the Appendix. Every right-minded person will agree that the magnitude and dark character of a charge, so far from justifying a prejudice against the accused, should induce us to sift with more scrutinizing jealousy the evidence alleged in support of the accusation.

It will require but a very brief inspection of the two MSS., Sloane 1776, and Reg. 13, c. 1.,[\[311\]](#) to be assured that they are either both transcripts from one document in that part of the volume which contains the history of Henry IV, or that one of these is copied from the other.[\[312\]](#) Unless, therefore, an intimation be given to the contrary, it will be understood that reference is made to the Sloane MS., which, though not copied with equal correctness in point of orthography and grammar, is still far superior to the King's in the clearness of the writing.

The Sloane MS. 1776,[\[313\]](#) appears to consist of four portions, though the same hand copied the whole.

The first portion extends from the commencement to page 40.

The second from page 40 to the end of the account of Henry IV. at page 49.

The third from the commencement of the reign of Henry V. page 50, to his second expedition to France, mentioned in page 72.

The fourth from that point to the end, at page 94, b.

1. The first portion embraces that part of the reigns of Richard II. and Henry IV. which falls within the range of the chronicle of the Monk of Evesham; ending with an account of the marriage of Edmund Mortimer with a daughter of Owyn Glyndowr, and two cases of sacrilege.

2. The second carries on the history of Henry IV. to the beginning of his thirteenth year, and contains the passage which charges Henry V. with the unfilial attempt to supplant his father on the throne. These first two parts must be examined together, and in detail; the last two will require only a few remarks, and may then be dismissed.

That the history which commences at p. 50 of the Sloane MS. was the work of an ecclesiastic who attended Henry V. in his first expedition to France, is made evident at a much earlier point of the narrative than the translation of it by Sir Harris Nicolas, in the Appendix to his "Battle of Agincourt," would enable us to infer. The passage "After having passed the Isle of Wight, swans were seen," should have been rendered, "After we left the shores of the Isle of Wight behind, swans appeared." The writer was at the battle of Agincourt, stationed with the baggage, and with his clerical associates praying for God's mercy to spare themselves and their countrymen.

That he was not the same person who wrote the history of Richard II. and Henry IV, now found in the same fasciculus, seems to be placed beyond doubt; his style is very different, and his tone of sentiment directly at variance with what is found in the preceding portion. He is a devoted admirer of Henry V, a characteristic which no one will ascribe to the writer of the preceding page.[\[314\]](#)

This writer had composed his history before the year 1418; for of Sir John Oldcastle he says, "that he broke prison after his condemnation, and lurked in caves and hiding-places, *and is still lurking*."[\[315\]](#) This portion of the MS. offers evidence in almost every page that its author was an eye-witness of what he describes. Probably no doubt will be entertained that it is the

genuine production of an ecclesiastic in attendance on the King. But his work evidently ceases at page 72, where he offers a prayer that the Almighty "would give good success to his master, then going on his second expedition, and grant him victory as he had twice before; and fill him with the spirit of wisdom, and heavenly strength, and holy fear."

After the close of the Chaplain's narrative, the MS. loses almost all its interest: it carries on the history through the first years of the reign of Henry VI, and is evidently only part of what the volume once contained.[\[316\]](#)

The two former portions of the volume now claim our careful examination; and, of these two, especially the second.

It has been already intimated, that the first part of the MS. contains that portion of the history of Richard II. and Henry IV. which is embraced by the memoirs of the Monk of Evesham. A careful examination of both, and a comparison of each with the other, have induced the Author to conclude (with what degree of probability he must leave others to decide) that the writer had the work of the Monk before him, and copied from it very largely, but made such alterations as we should expect to find made by a *foreigner*, and one whose feelings were *opposed to the Lancastrian party*; a supporter rather of the cause of Richard, and the French, and the other enemies of Bolinbroke's house. The Monk's work bears every mark of being the genuine production of one who witnessed Henry IV.'s expeditions to Wales, and who was in all his sentiments and prejudices an Englishman and a Lancastrian. The Author fears he may be considered too minute and tedious on this point; but, since the circumstance of the writer of the manuscript bear immediately upon the authenticity of the charge, he trusts he shall be excused a detail which, except for that consideration, would be superfluous.

1. They both record the execution of a Welshman, who preferred death to treachery. The Monk adds this comment: "*We English* too [*possumus et nos Angli*] may derive an example here; to preserve our fidelity, &c. even to death." The MS. thus expresses its comment: "*All English servants* may contemplate an example of fidelity towards their own masters from the conduct of that Welshman."

2. Thus too, in mentioning the introduction of the fashion into England of wearing long sleeves like a *bagpipe*, the two MSS. of the Monk most clearly write "Bagpipe." Of the MSS. in question, the Sloane writes Bagebyte, the Reg. "Babepipæ;"—evidently the writer in neither case knowing the meaning of the English word which he attempted so unsuccessfully to copy.

3. In relating the capture of Lord Grey, the Monk adds, "which we grieve to say." The MS., without any such, expression of sympathy or sorrow, says that "he fell into the snare which he had prepared for others." [\[317\]](#)

4. The Monk merely records the return of Isabel to France; the MS. reflects strongly on her return *without her dower*, and her feelings of repugnance against receiving any boon from Henry, whom she regarded as *Richard's enemy*.

5. Speaking of the battle of Homildon, the Monk says, "Of *our countrymen* only five were slain;" and adds, "We praise thee, O God, because thou hast been mindful of us." The MS. says, "*And of the English* scarcely five were slain;" but adds no word of praise.

6. The Monk says, "From this time Owyn's cause seemed to grow and prosper, *ours* to decrease." This is omitted in the MS.

7. Whereas the Monk (describing the character of Richard in the very words—and many are unusual words—adopted by the MS.) records that Richard was in the habit of sitting throughout the night till the morning in drinking, and "other occupations not to be named:" the MS. omits the latter phrase. The Monk says there were *two* points of excellence in Richard's character; the MS., though confining itself to the two specified by the Monk, calls them "very many," "*plura*."

8. In recording the commencement of Owyn Glyndowr's rebellion, the Monk, speaking of it as "an execrable revolt," says that the Welsh elected Owyn against the principles of peace [*contra pacem elegerunt*]. The MS. says that the Welsh elected a respectable and venerable gentleman to be their leader and prince.

Our attention is now especially called to some points in which the MS. seems to be so full of historical mistakes and improbabilities as to render any statement of a fact, especially of an improbable fact, not supported by other evidence, suspicious.[318]

1. Froissart (who appears to be well acquainted with the proceedings of Bolinbroke till he left the coast of France, but to have been altogether mistaken as to his proceedings from that hour,) states, with the greatest probability, that Bolinbroke left Paris under plea of visiting his friend the Duke of Brittany, and having been well received and assisted by him, set sail from some port of Brittany [intimating that his embarkation was (as was natural) carried on in secret, for he "*had only been informed*" that it was from Vennes].[\[319\]](#) The MS., on the contrary, with the greatest improbability, roundly asserts that Bolinbroke went to Calais, obtained money from the treasurer, though against his will, and seized all the ships which he could find in the port. The improbability that Bolinbroke should have excited the suspicions of the authorities of Calais not in his interest, from which a single boat in a few hours could have carried the news of his hostile attempts to Richard's friends in England, and the absurdity of making him seize all the ships in the port of Calais to carry over his handful of friends, can impress the reader with no favourable idea of this writer's accuracy.

2. No fact is more undeniably certain than that Henry IV. made his eldest son (our Henry V.) Prince of Wales and Duke of Cornwall in the parliament held immediately upon his accession; whereas the MS. declares that Henry V. was so created in the year of the Emperor of Constantinople's visit to England, and in the parliament which began at the feast of St. Hilary, during which Sautre was burned for a heretic;—that is, a year and a quarter later.

3. The MS. account of Hotspur's rebellion is quite inconsistent with facts, and altogether, in other respects, as improbable as it is singular. The MS. says that Hotspur,[\[320\]](#) about Candlemas, was commissioned to go against the Welsh rebels; but when he reached the country with his forces, and found it to be mountainous, and fit neither for horse nor infantry, he made a truce with Owyn, and went to London to take the King's pleasure upon it. The reception he met with at court drove him to his own country; and the

King, as soon as he heard of Percy gathering his people, collected those whom he believed to be faithful to him, and hastened to meet him near Shrewsbury. Whereas the fact is, that Henry Percy had been resident as Chief Justice in North Wales, Constable of Caernarvon, &c. at least three years; had besieged Conway with his own men; had routed the rebels at Cader Idris, and most zealously persevered in his attempts to suppress the rebellion; and had returned from the Principality at least a year and a half before the Candlemas (1403), at which the MS. says that he was first commissioned to go there.

The next point to which the attention of the reader is solicited will perhaps be considered by many to involve a greater improbability than the Author may himself attach to it. Every one who has ever read, or heard, or written about the "Tripartite Indenture of Division" made between Glyndowr, Mortimer, and Northumberland, fixes it, as Shakspeare does, before the battle of Shrewsbury.[\[321\]](#) The scene in the house of the Archdeacon of Bangor is too exquisite for any one to desire it to be proved a fable. But (as the Author believes) this MS. is the only document extant which professes to record the words of that treaty; and yet this document fixes it to a date long after the Percies lost that "sorry field." It is represented to have been made in the February of the year of Pope Innocent's election: if before that election, it was made in 1404; if after it, in 1405. And certainly the tradition is general that Northumberland, after his flight to Scotland, visited Wales.

Another point deserving consideration is the account of the conspiracy of Mowbray and the Archbishop of York. That account is drawn up in a manner most unfavourable to Henry IV. The MS. boldly also records the miracle wrought in the field of the Archbishop's execution, and states that various miracles attracted multitudes to his tomb daily. It also affirms that, on the very day and hour of the Archbishop's execution, Henry IV. was struck with the leprosy.[\[322\]](#)

Perhaps too it may appear strange to others, as the Author confesses it has appeared to himself, that, up to the very last chapter of this history of Richard II. and Henry IV, no mention whatever is made of Henry of Monmouth, except in the unaccountable anachronism of his creation as Prince of Wales. It is curious that an historian should state that the young

Duke of Gloucester was sent for from Ireland, and not allude to the circumstance of the Prince being in prison with him, and being sent for back at the same time.[\[323\]](#)

We are now arrived at the very last chapter, the chapter containing the charge on which Henry of Monmouth's character has been so severely, and, if that charge be true, so justly arraigned. The chapter professes to record the transactions of the thirteenth year of Henry IV. The question is one of such essential importance as far as Henry's good name is at stake, and (as the Author cannot but think) in point too of the philosophy of history, involving principles of such deep interest to the genuine pursuer of truth, that he would not feel himself justified were he to abstain from transcribing the whole chapter.

"In the thirteenth year there was a great disturbance between the Duke of Burgundy and the Duke of Orleans. Wherefore the Duke of Burgundy sent to the Lord Henry, Prince of England,[\[324\]](#) for aid to oppose the Duke of Orleans: who sent to his succour the Earl Arundell, John Oldcastle the Lord of Cobham, the Lord Gilbert Umfravill, the Lord of Kyme, and with them a great army; by whose prowess at Senlow [Reg. 'Senlowe'], near Paris, the Duke of Orleans was vanquished, and cruelly routed from the field, and his followers crushed, routed, and slain. And the same Duke of Orleans thought how he could avenge himself against the Duke of Burgundy; and immediately he sent to King Henry of England a great sum of gold, together with William Count Anglam [Reg. "de Anglam"], his brother, as a hostage or surety for a greater sum, to obtain succour from the King of England himself. And the King did not put off sending him succour; and he appointed Lord Thomas, his second son, Duke of Clarence, and conferred on him the dukedom (or, as it was of old time, the earldom) of Albemarle; and Edmund, who before was Duke of Albemarle, then, after the death of his father, he advanced to be Duke of York. And Lord John Cornwall, who married his sister, the Duchess of Exeter, and whom the King appointed Captain of Calais, he sent towards the parts of France with a great power of men. And when they landed in Normandy, near Hogges, forthwith the Lord de Hambe, with seven thousand armed men, went up against the English to oppose them, and thus on that day there was a great slaughter of men; for on the part of the Duke of Burgundy eight hundred men were taken, and

four hundred slain: and thus at length victory was on the side of the English. After which the Duke, with his army, turned off towards the country of Bourdeaux,[325] [] destroying [] of the countrymen, collecting great sums of money, at length arrived at Bourdeaux, and from thence they returned to England about the vintage."

The reader's especial attention is here called to the confusion of facts and dates, the mistakes historical, geographical, chronological, biographical, with which this short section abounds to the overflow. It will perhaps be difficult to find a page in any author, ancient or modern, more full of such blunders as tend to destroy confidence in him, when he records as a fact what is not found in any other writer, nor is supported by ancillary evidence. The MS. states that all these events took place in the thirteenth year of Henry IV: the MS. writes it at length, "Anno decimo tertio," which began on the 20th September 1411. Now, allowing to the writer every latitude not involving positive confusion, it is impossible for us to suppose, when he crowds all these events within one year, that he had any such information on the affairs of England as would predispose us to regard him as an authority.

1. The first application by the Duke of Burgundy for English auxiliaries was in August 1411; and the battle of St. Cloud (the place which the MS., evidently ignorant of its situation and name, calls Senlow) was fought on the 10th of November 1411. The Duke of Orleans, at the beginning of the following year, 1412, made his application to the English court for aid against the Duke of Burgundy, but it was not till the 18th of May 1412 that the final treaty was concluded between Henry IV. and the Duke of Orleans; and it was not till the middle, or the latter end of August 1412, that the Duke of Clarence was despatched to aid the Duke of Orleans; and he remained in France till he received news of his father's death, in April 1413; when, and not before, he returned to England after his expedition to aid the Duke of Orleans.[326] Yet all these events are stated in the MS. to have fallen within the same year.[327]

2. The MS. says that the English, after their victory over the Duke of Burgundy's forces, returned to England at the time of vintage. The English returned to England at the end of autumn; not after their struggle against the

Duke of Burgundy, but after their victory over the Duke of Orleans at the bridge of St. Cloud, a year and a quarter at least before their return from the expedition against the Duke of Burgundy.

3. Again, the MS. says that the Duke of Orleans sent, immediately after the battle of St. Cloud (the Senlow of the MS.), a large sum of money to the King of England, together with his brother, the Earl of Angouleme, as a hostage or pledge for the payment of a greater sum, to induce the King to comply with his request. This is utter confusion. The Earl was sent as an hostage,—not beforehand, to induce Henry IV. to send auxiliaries,—but afterwards, to insure the payment of large sums which the Duke of Orleans stipulated to pay to the English after they had been some time in France, on condition of their quitting it. The Earl of Angouleme was sent as an hostage to England somewhat before January 25, 1413; the MS. says, at the end of 1411.

4. Again, the MS. having dated the death of John, Earl of Somerset, Captain of Calais, in the preceding year, says that the King then made John Cornwall Captain of Calais. Whereas the fact is, that John Beaufort, Captain of Calais, died on Palm Sunday, 1410, and Prince Henry was appointed to succeed him on the following Tuesday. His appointment, by writ of privy seal, bears date March 18, 1410; and he continued to be Captain of Calais till he succeeded to the throne.

The MS. having recorded the marriage of the Duke of Clarence with the Countess of Somerset, and the dispute between him and the Bishop of Winchester, in which Prince Henry took the Bishop's part against his brother, as having taken place in this same year, proceeds with the passage, for the purpose of ascertaining the accuracy and authenticity of which we have been led to make so many prefatory observations.

"In the same year,[\[328\]](#) on the morrow of All Souls, began a parliament at Westminster; and because the King, by reason of his infirmity, could not in his own person be present, he appointed and ordained in his name his brother, Thomas Beaufort, then Chancellor of England, to open, continue, and prorogue it. In which parliament Prince Henry desired from his father the resignation of his kingdom and crown, because that his father, by reason of his malady, could not labour for the honour and advantage of the

kingdom any longer; but in this he was altogether unwilling to consent to him,—nay, he wished to govern the kingdom, together with the crown and its appurtenances, as long as he retained his vital breath. Whence the Prince, in a manner, with his counsellors retired aggrieved; and afterwards, as it were through the greater part of England, he joined all the nobles under his authority in homage and pay. In the same parliament the money, as well in gold as in silver, was somewhat lessened in weight in consequence of the exchange of foreigners, &c."

Now, there can be no doubt (1) that a parliament was held on the morrow of All Souls, in the thirteenth year of Henry IV. (1411); (2) that it was *opened*, *continued*, and *prorogued* by Thomas Beaufort, the Chancellor, by commission from the King, in his absence; (3) that an alteration in the coin was agreed upon in that parliament; and (4), moreover, that the King declared in that parliament his determination to allow of no innovations, nor of any encroachments on his prerogative, but to maintain the rights and privileges of his crown in full enjoyment, as his royal predecessors had delivered them down.

A superficial glance at these facts would doubtless suggest a strong confirmation of the details of the MS. in other points, and thus predispose us to receive the statement with regard to Prince Henry's unfilial conduct on the authority of this document alone. But, on close examination, these very facts, which the records of the realm place beyond doubt, coupled with others equally indisputable, to which we shall presently refer, demonstrate to the Author's mind that no dependence whatever can be placed on this MS., and that the statement is altogether apocryphal, and founded on palpable confusion.

The parliament met on the morrow of All Souls, Tuesday, November 3, 1411, (13th Henry IV,) and was opened, continued, and prorogued by the Chancellor; but not on account of the King's indisposition, or inability to be present. The Rolls of Parliament are most explicit on this point. They state that the King, having been informed that very many lords, spiritual and temporal, knights of the shire, and burgesses, who ought to attend that parliament, had not assembled on the appointed day, commissions the Chancellor to open the parliament, and to prorogue it *till the following day*.

And on the following day, Wednesday, (the Lords and Commons then being in the presence of the King,) the Chancellor, by the King's command, recited the reasons for convening the parliament, and charged the Commons to retire and elect their Speaker.

Not only so. On the Thursday (Nov. 5), the Commons came before the King and the Lords, and presented Thomas Chaucer as their Speaker. And the Speaker prayed liberty of speech, &c.: and the King granted the request, but declared that he would admit of no innovation nor encroachment on his prerogative, but resolved to maintain his rights as fully as his predecessors had done. On this the Speaker prayed him to grant to the Commons, till the day following, time for putting their protest, &c. in writing. To this the King agreed. But, forasmuch as the King could not attend on the Friday in consequence of diverse great and pressing matters, the time was postponed to the following day, Saturday; when the Commons came before the King, and presented their prayer, &c.

The fact is, that the King was repeatedly present at this parliament, from the day before the Speaker was chosen to the very last day. On a subsequent occasion, the Prince of Wales also, as well as the King, is recorded to have been present, (as doubtless he was on various occasions throughout,—probably an habitual attendant,) in what character, and under what circumstances, whether as the supplanter of his father or not, perhaps the words of the record may, to a certain extent at least, enable us to pronounce.

"On Monday, the last day of November, the Speaker, in the name of the Commons, prayed the King to thank my Lord the Prince, the Bishops of Winchester and Durham, &c. who were assigned to be of council to the King in the last parliament, for their great labour and diligence; for, as it appears to the said Commons, my said Lord the Prince, and the other Lords, have well and loyally done their duty according to their promise in that parliament. And upon that, kneeling, my Lord the Prince, and the other Lords, declared, by the mouth of my Lord the Prince, how they had taken pains, and labour, and diligence, according to their promise, and the charge given them in parliament, to their skill and knowledge. This the King remembered well [or made good mention of], and thanked them most graciously. And he said besides, that he was well assured, if they had had

more than they had, in the manner it had been spoken by the mouth of my Lord the Prince, at the time the King charged them to be of his council in the said parliament, they would have done their duty to effect more good than was done in diverse parts for the defence, honour, good, and profit of him and his kingdom. And our Lord the King also said, that he felt very contented with their good and loyal diligence, counsel, and duty, for the time they had been of his council."

This took place on the 30th of November, a month (saving two days) after the parliament had assembled, and within less than three weeks of its termination. It would scarcely be credible, even had the report come through a less questionable channel, that Henry of Monmouth up to that time had been guilty of the unfilial delinquency with which the MS. charges him. Nor could he have made the "unnatural attempt to dethrone his diseased father" at any period through the remaining three weeks of the session of that parliament. At all events, such a proceeding appears altogether irreconcilable with the conduct both of the parliament and of the King on the very last day of their sitting. "On Saturday, December 20th, (say the Rolls,) being the last day of parliament, the Speaker, recommending the persons of the Queen, of the Prince, and of other the King's sons, prayeth the advancement of their estates; for the which the King giveth hearty thanks."

Had any such transaction taken place during this parliament as the MS. records, would the King, on the last day of the session, without any allusion to it, have given hearty thanks to the Commons for their recommendation of the Prince's person (coupled with the name of his Queen and his other sons), and their prayer for further provision for his dignity and comfort?

There are, however, two or three more circumstances upon which it may appear material to make some observations; or even, should these closing observations not seem altogether indispensable, yet, since this is all new and untrodden ground, it may yet be thought safer to anticipate conjectures, than to leave any questions unopened and unexamined on this point—a point which the Author trusts may be set at rest at once, and for ever.

The Author then is ready to confess his belief that both the MS. and its commentator, the modern historian, have confounded this parliament of

November 1411 with the parliament of February 3, 1413, which was opened in the illness of the King, and which he never was able to attend. But if it be attempted to engraft on this fact the surmise that it might have been in the latter parliament that the Prince demanded the surrender of the throne, and that it is after all a mere mistake of dates, the material fact being unshaken and unaffected,—to this suggestion he replies, that there is no evidence, directly or indirectly bearing on the subject, in support of such a surmise. The only statement in printed book or manuscript known, is that which we have now been sifting; and which with a precision, as though of set purpose, minute and pointed, fixes the alleged transaction to the year 1411.[\[329\]](#) Not only so. We have, on the contrary, reason to believe that before the meeting of the next parliament, February 1413, *all differences had been made up between the King and his son*; and that from the day of their reconciliation they lived in the full interchange of paternal and filial kindness to the end. For that jealousies and alienations of confidence, fostered by the malevolence of others,[\[330\]](#) had taken place between them in the course of the preceding year, the very mention of the "ridings of gentils and huge people with the Prince," twice recurring in the Chronicle of London, seems of itself to force upon us. The accounts, at all events, such as they are, which chroniclers give of their reconciliation, fix the date of that happy issue of their estrangement to a period antecedent to the last parliament of Henry IV. February 3.—Cras. Purif. 1413.

Although the life and reign of Henry IV. continued more than a year and four months after the passing of the ordinance respecting the coin, with an account of which this MS. abruptly closes, yet (excepting what is involved in the extract above cited) not one single word is said of the foreign and domestic affairs of the kingdom, or of the life of the King, or of his death; though much of interesting matter was at hand, and though a parliament was summoned, and actually met fourteen months after the alteration of the coin. And such is the close of a document, not like a yearly chronicle, or general register of events, satisfied with giving a summary of the most remarkable casualties in the briefest form; but a narrative which transcribes, with unusual minuteness, the very words (at full, and with all their technicalities,) of some of the most unimportant and prolix statutes of Henry IV.'s reign.[\[331\]](#) It is not that the MS. is mechanically cut short by

loss of leaves, or other accident; the Sloane ends with an "etc." in the very middle of a page, and the King's at the foot of the first column.

We need not encumber this inquiry (already too long) by any reflections on the avidity with which this passage of the MS. has been seized, and made the groundwork of charges against Henry of "unfilial conduct," "unnatural rebellion" towards his father, and "the unprincipled ambition of a Catilinarian temper," with other hard words and harder surmises; because we are trying the value of testimony. If that testimony is sound, modern historians may doubtless build upon it what comments seem to them good; if we utterly destroy the validity of the evidence, their foundation sinks from under their superstructure.

The reader, however, has probably already determined that, unless there be in reserve some other independent, or at least auxiliary source of evidence, the palpable contradiction and manifest confusion reigning through this part of the MS., together with the high degree of improbability thrown over the whole statement by the undoubted records of the very parliament in question, justify the rejection of the passage altogether from the pale of authentic history. The Author confesses that he has step by step come to that conclusion.

THE END.

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Footnote 1: Close Roll.[\(back\)](#)

Footnote 2: "The high esteem which the nation had of Henry's person produced such an entire confidence in him, that both houses of parliament in an address offered to swear allegiance to him before he was crowned, or had taken the customary oath to govern according to the laws. The King thanked them for their good affections, and exhorted them in their several places and stations to employ all their power for the good of the nation. He told them that he began his reign in pardoning all that had offended him,

and with such a desire for his people's happiness, that he would be crowned on no other condition than to make use of all his authority to promote it; and prayed God that, if he foresaw he was like to be any other than a just and good king, he would please to take him immediately out of the world, rather than seat him on the throne, to live a public calamity to his country."—Goodwin. See Stowe. Polyd. Verg. Elmham.[\(back\)](#)

Footnote 3: Elmham.[\(back\)](#)

Footnote 4: Not Palm Sunday, but the fifth Sunday in Lent, was called Passion Sunday.[\(back\)](#)

Footnote 5: "With mickle royalty."—Chron. Lond.[\(back\)](#)

Footnote 6: Chroniclers record that the day of his coronation was a day of storm and tempest, frost and snow, and that various omens of ill portent arose from the circumstance.[\(back\)](#)

Footnote 7: Henry had excited feelings of confidence and admiration in the minds of foreign potentates, as well as in his subjects at home. Among the embassies, with offers and pledges of friendship and amity, which hastened to his court on his accession, are numbered those of John of Portugal, Robert Duke of Albany, Regent of Scotland, John King of Castile, John Duke of Brittany, Charles King of France, and Pope John XXIII.[\(back\)](#)

Footnote 8: Sir Edward Coke, in his 4th Inst. ch. i. declares that this act was disavowed in the next parliament by the Commons, for that they never assented. The Author has searched the Parliament Rolls in vain for the authority on which that assertion was founded.[\(back\)](#)

Footnote 9: The Monday after Corpus Christi day; which feast, being the Thursday after Trinity Sunday, fell in the year 1413 on June 22.[\(back\)](#)

Footnote 10: This Dr. Walden (so called from the place of his birth in Essex) was so able a disputant that he was called the Netter. He seems to have written many works, which are either totally lost, or are buried in temporary oblivion.[\(back\)](#)

Footnote 11: Goodwin. Appendix, p. 361.[\(back\)](#)

Footnote 12: Minutes of Council, 29 June 1413.[\(back\)](#)

Footnote 13: Many original petitions addressed to Henry are still preserved among our records. In one, which may serve as a specimen of the kind of application to which this custom compelled him to open his ear, Richard Hunt appeals to him as a "right merciable lord, moved with pity, mercy, and grace." "In great desolation and heaviness of heart," the petitioner states that his son-in-law, Richard Peke, who had a wife and four children, and had been all his life a true labourer and innocent man, and well-beloved by his neighbours, had been detected in taking from a vessel goods not worth three shillings; for which crime his mortal enemies (though they might have their property again) "sued to have him dead." He urges Henry to grant him "full noble grace," at the reverence of Almighty God, and for passion that Christ suffered for all mankind, and for the pity that he had on Mary Magdalene. The petitioner then promised (as petitioners now do) to pray for endless mercy on Henry; he adds, moreover, what would certainly sound strange in a modern petition to a monarch, "And ye, gracious and sovereign lord, shall have a good ox to your larder." Henry granted the petition. "The King woll that this bill pass without any manner of fine, or fees that longeth to him."[\(back\)](#)

Footnote 14: The Pell Rolls acquaint us with the very great expense incurred on this occasion.[\(back\)](#)

Footnote 15: Dugdale's Baronage.[\(back\)](#)

Footnote 16: Minutes of Council, 21 May and 10 Dec. 1415. Addit. MS. 4600. Art. 147.[\(back\)](#)

Footnote 17: Pell Rolls, Mich. 4. Hen. V. Many documents also in Rymer refer to this transaction.[\(back\)](#)

Footnote 18: Roger Mortimer, fifth Earl of March, son and heir of Philippa, daughter and heiress of Lionel Duke of Clarence, third son of Edward III, died in 1398; leaving two sons, Edmund, of whom we are here speaking, then about six years of age, and Roger, about a year younger.[\(back\)](#)

Footnote 19: In a previous section of these Memoirs, brief mention has been made of the abortive attempt to carry off into Wales this young Earl of March and his brother, and of the generous conduct of Henry of Monmouth in his endeavour to restore the Duke of York to the King's favour, which he had forfeited in consequence of his alleged participation in that bold design. A manuscript has since been brought under the Author's notice, which places in a very strong light the treasonable and murderous purpose of those who originated the plot, and would account for the most watchful and jealous caution on the part of the reigning family against a repetition of such attempts. Henry must have been fully aware of his danger; and the fact of his throwing off all suspicion towards the young Earl, and receiving him with confidence and friendship, enhances our estimate of the generous and noble spirit which actuated him. The document, in other points curious, seems to deserve a place here:

"The Friday after St. Vallentyne's day, anno 6 Henrici Quarti, ye Erll of Marche's sons was secretly conveyd out of Wyndsor Castell yerly in ye morninge, and fond aff[ter?] by diligent serche. But ye smythe, for makyng the key, lost fyrst his lands; after, his heed. Ye Lady Spenser, wydow to the Lord Spenser executed at Bristow, and syster to ye Duke of York, was comytted cloase prysonner, whare she accused her brother predict for the actor, for ye children predict; and that he sholde intend to breake into the King's manor att Eltham ye last Crystmas by scaling the walles in ye nighte, and there to murther ye Kinge; and, for better proaffe hereof, that yf eyther knight or squyer of England wold combatt for her in the quarrell, she wold endure her body to be burned yf he war vanquished. Then W. Maydsten, one of her sqyres [undertook?] his Mrs. quarrell with gage of his wheed [so], and was presently arrested by Lord Thomas, ye Kyng's son, to the Tower, and his goods confyscatt. Thomas Mowbray, Erll Marshall, accused to be privy to the same, butt was pardoned."—Lansdown, 860 a, fol. 288 b.[\(back\)](#)

Footnote 20: 14 Nov. 1414. MS. Donat. 4600. Reference is made there to June 9, 1413, not three months after Henry's accession.[\(back\)](#)

Footnote 21: 1417, July 20, at Porchester. 1418, 2 June, at Berneye. December 1418, in the camp before Rouen. 11 June 1416.—Rymer.[\(back\)](#)

Footnote 22: In the summer after the battle of Agincourt the King "takes into his especial care William of Agincourt, the prisoner of his very dear cousin Edmund Earl of March."[\(back\)](#)

Footnote 23: This parliament was summoned to be at Leicester on the 29th of February, but was prorogued to the 30th of April. At this period

parliaments were by no means uniformly held at Westminster.[\(back\)](#)

Footnote 24: In this parliament we find a petition loudly complaining of the outrages of the Welsh.[\(back\)](#)

Footnote 25: About this time there seems to have been entertained by the legislature a most determined resolution to limit the salaries of chaplains in private families. Many sumptuary laws were made on this subject. Provisions were made repeatedly in this and other parliaments against excessive payments to them. The origin of this feeling does not appear to have transpired. Probably it was nothing more than a jealousy excited by the increasing wealth of the church.—Parl. Rolls, 2 Henry V.[\(back\)](#)

Footnote 26: When his determination to recover his rights was announced in parliament, he was twenty-seven years of age.[\(back\)](#)

Footnote 27: The answer which Bishop Oldham is said to have made on this occasion is chiefly remarkable for the intimation it conveys, that the downfall of the monasteries was anticipated a quarter of a century before their actual dissolution. "What, my lord, shall we build houses and provide livelihoods for a company of bussing monks, whose end and fall we may ourselves live to see? No, no; it is more meet that we should provide for the increase of learning, and for such as by their learning shall do good to the church and commonwealth."—Anthony Wood.[\(back\)](#)

Footnote 28: Henry had much at heart the maintenance of the truth of the Christian religion, such as he received it. Of this he is thought to have given early proof, by confirming a grant of fifty marks yearly, during pleasure, to the prior and convent of the order of Preachers in the University of Oxford, to support the doctrine of the Catholic faith. It will be said that this was merely to repress the Lollards. Be it so, though the original document is silent on that point. It proves, at least, that he wished to maintain his religion by argument rather than by violence. The circumstance, however, of its being merely a confirmation of a grant, which even his father found in existence when he became King, takes away much from the importance of the fact.—Pell Rolls, 1 Henry IV.[\(back\)](#)

Footnote 29: The present Duke and Duchess kindly searched out and visited the remaining sisters in Staffordshire.[\(back\)](#)

Footnote 30: Dugdale; ed. 1830.[\(back\)](#)

Footnote 31: April 11, 1415.[\(back\)](#)

Footnote 32: In the early part of his father's reign, an ordinance was made, charging the King's officers not to suffer aliens to bring bulls or other letters into the kingdom, which might injure the King or his realm.—Cleop. F. III. f. 114.[\(back\)](#)

Footnote 33: November 7, 1413.[\(back\)](#)

Footnote 34: By a statute (4 Hen. IV. 1402), after the Legislature had complained that the Convents put monks, and canons, and secular chaplains into the parochial ministry, by no means fit for the cure of souls, it is enacted, that a vicar adequately endowed should be everywhere instituted; and, in default of such reformation, that the licence of appropriation should be forfeited.[\(back\)](#)

Footnote 35: Henry III. is said to have assigned to Louis IX. this reason for his preference of devotional exercises to sermons.[\(back\)](#)

Footnote 36: It is curious at the same time to observe what extraordinary notions the Commons, who presented this petition, had formed of freedom; how jealous they were of the lower orders, and how determined to exclude them from sharing with themselves the good things of the church's temporalities. The Commons pray that (no nief or vileyn) no bondswoman or bondsman, be allowed to send a son to school with a view of being advanced in the church; and that for the maintenance and safety of the honour of all the free men of the land.[\(back\)](#)

Foonote 37: 15 Richard II. (1391.)[\(back\)](#)

Footnote 38: Some persons would probably be surprised, among the facts recorded in this cause, (all which however are confirmed by the ecclesiastical registers,) to find that by a sort of retrograde promotion,

according to our usual ideas of episcopal preferment, a Bishop of London, Nicoll Bubwith, was translated from London to Salisbury, and from Salisbury to Bath and Wells. The pleading also reminds us of a curious fact with regard to Bishop Hallam's promotion, not generally known. The record merely states that "the Bishop of Sarum, that now is, was translated from York to the church of Sarum." This latter translation, however, (if such it can be properly called,) admits of a more easy solution than the preceding. The fact is, that Hallam was actually appointed by the Pope to the archbishopric of York; to which appointment the King objected. The nomination of the Pope was not persisted in, and Hallam was consecrated Bishop of Salisbury.[\(back\)](#)

Footnote 39: "Jeo ne ferra disputation del poiar l'appost', mes jeo ne scay veier coment il par ses bull' changer, le ley d'Engleterre."[\(back\)](#)

Footnote 40: See Year Book, "Anno xi. Hen. III."—Term. Mich. fol. 37; Hilar. fol. 38; Pasc. fol. 59; Trin. fol. 76.[\(back\)](#)

Footnote 41: "L'appost'." "Nostre Saint Pier l'appost'." "Bulls fait par Saint Pier."[\(back\)](#)

Footnote 42: It is very painful to reflect on the intolerant spirit of this very Sigismund, who was so anxious to reform the abuses of the church; but it is forced upon us whilst we are inquiring into the times of Henry. Sigismund had paid (as we shall see) a visit to Henry, and he meditated another. But he never put that design into execution. A letter from Heretong Van Clux, Henry's minister, informed his master that he must not expect to see the Emperor, for he had employment at home in putting down the followers of Huss. "Now I know well he might not come, for this cause, that many of the great lords of Bohemia have required him for to let them hold the same belief that they are in. And thereupon he sent them word, that rather he would be dead than he would sustain them in their malice. And they have answered him again, that they will rather die than go from their belief. There is a great power of them, lords, knights, and esquires; but the greatest power is of the commoners. Therefore the Emperor gathers all the power that he may, to go into Bohemia upon them."—See Ellis's Original Letters.[\(back\)](#)

Footnote 43: This council seems to have entailed, first and last, on England, a very considerable expense. Within a week of the date of the commission, the Pell Rolls record the payment of 333*l.* 6*s.* 8*d.* (a large sum in those days) "to Richard Beauchamp, Earl of Warwick, sent as the King's ambassador to the General Council held at Constance before our lord the Pope, the Emperor, and others, there assembled for the salvation of Christian souls." Payments also to others are recorded.[\(back\)](#)

Footnote 44: Bishop Hallam died at Constance, Sept. 5, 1417. On which day the Cardinal des Ursins addressed a letter to Henry, praying him to appoint as Hallam's successor at Salisbury, John Ketterich, Bishop of Lichfield, to whose ability and zeal and worth the Cardinal bears strong testimony. This same Cardinal had a personal interview with Henry in 1418, just before the taking of Rouen.

Le Neve leaves it in doubt whether Bishop Hallam was buried at Constance, or in Westminster Abbey. But the Author has been kindly furnished by Sir Francis Palgrave, who visited Constance last year, with the following interesting particulars relative to the resting-place of that excellent man. "The monument of Bishop Hallam consists of a slab inlaid with brass, in the usual style of English memorials of the same period, but quite unlike those of Germany; and I have no doubt but that the brasses were sent from England. He is represented at full length in the episcopal dress, his head lying between two shields, the royal arms of England within the Garter, (as Chancellor of the order,) and his own bearings. But the tomb being placed exactly in front of the high altar, the attrition to which it has been exposed in this part of the church has nearly effaced the engravings." His funeral, we are told, was attended by the assembled princes and prelates and nobles of the council, who followed him to the grave with every demonstration of respect and sorrow.[\(back\)](#)

Footnote 45: Anthony à Wood, referring to the alleged resolution of the University of Oxford in favour of Wickliff and his doctrines, refers to this Bishop Hallam, though with some mistake. "The prime broacher," he says, "of this testimonial, of which we have nothing in our registers, records, or books of epistles, was John Husse in the first tome of his works, and from him John Fox. Against the former of whom it was objected in the Council

of Constance, that he had openly divulged the said commendatory letter in behalf of John Wickliff, falsely conveyed to Prague, under the title of the University of Oxford, by two students, one a Bohemian, the other an Englishman. Whereupon those of England who were present at the council, of whom, if I mistake not, Robert Hallam, about these times Bishop of Oxford [Salisbury], was one, produce another letter under the seal of the University, wherein, on the contrary, the members thereof as much denounce against him as the other was in behalf of him, and referred the matter to the council to judge of it as they thought fit; but how it was decided I find not."[\(back\)](#)

Footnote 46: In his arguments on this article Dr. Ullerston offers some excellent reflections upon the use and abuse of singing in the church. The sentiments of Augustin, which he quotes, are truly judicious and edifying. That eloquent father lamented that often the beauty of the singing withdrew his mind from the divine matter and substance of what was sung; but when he remembered how, on occasions of peculiar interest to him, psalmody carried his soul towards heaven in holy raptures, he could not help voting for its continuance in the church service. Ullerston quotes also two lines, not indeed specimens of classical accuracy, but the spirit of which should never be absent from the mind of a Christian worshipper, whether a Protestant or in communion with the see of Rome:

"Non vox sed votum, non musica chordula sed cor,
Non clamor sed amor, sonat in aure Dei."[\(back\)](#)

Footnote 47: Thomas Gascoyne, a contemporary writer, born 1403, ordained 1427, who gives us a deplorable view of the ignorance and immorality of the clergy of his time, mentions the appointment of Walden as Henry's chaplain, in confirmation of his position that he never could find that any King of England retained any bishop after consecration as his confessor or resident chaplain till the time of Henry VI. "When (he says) Henry IV.'s confessor was made a bishop, he sent him to his cure and his bishopric; and Henry V, who was a very prudent King indeed, and terrible to many nations, had with him one doctor proficient in divinity, Thomas Walden, as his confessor, who was burdened with no cure of souls. Thus were Kings and Lords accustomed to retain as their chaplains persons who were free from all cure of souls."[\(back\)](#)

Footnote 48: Pell Rolls, Mich. 7 Hen. V, he is paid for his expenses in an embassy to the King of Poland.[\(back\)](#)

Footnote 49: L'Estrange, Counc. Constance, vol. ii. p. 282; and Van der Hardt, tom. i. p. 501.[\(back\)](#)

Footnote 50: Not 1418, as it has been supposed, but 1417. The date is fixed by the specifying of Wednesday the 27th January, as also by the mention of the Genoese ships. These ships were hired, and they fought under the French against the English, and were beat in July 1417, after a severe engagement.[\(back\)](#)

Footnote 51: Cott. MSS. Cleopatra, t. vii. p. 148.[\(back\)](#)

Footnote 52: Cardinalis Camaracensis, or Cardinal of Cambray.[\(back\)](#)

Footnote 53: "Collation" meant discourse, or speech, generally of a laudatory character.[\(back\)](#)

Footnote 54: The Spaniards, the French, and others were jealous of the English enjoying the privilege of ranking and voting single-handed as one of the nations, and insisted upon their being regarded only as a part of a larger section of Europe, just as Austria was only part of Germany. But the English resisted, and preserved their privilege.[\(back\)](#)

Footnote 55: This alludes to the intention of putting a stop to the rich and numerous commendams which were then heaped on bishops. Our English prelates were determined to carry on the reformation, though at their own personal sacrifice.[\(back\)](#)

Footnote 56: This negotiation was successful. The French hired a fleet of long ships of the Genoese.[\(back\)](#)

Footnote 57: Orator.—Petitioner, one who prayed for the welfare of another.[\(back\)](#)

Footnote 58: A curious entry occurs (11th July 1390) in the Pell Rolls of 10*l.* ordered by the King (Richard II.) to be paid to the clerks of the parish

churches, and other clerks in the city of London, on account of the play of the Passion of our Lord and the Creation of the World, by them performed at Skynnerswell after the feast of Bartholomew last past.[\(back\)](#)

Footnote 59: For satisfaction on this point, the reader is especially referred to the chapter entitled, "Was Henry of Monmouth a religious persecutor?"[\(back\)](#)

Footnote 60: In this petition of the University, Henry is told, that what Constantinus, Marcianus, and Theodosius had been in the East, that was he in the West; by his eminent Christian piety resisting the accomplices of Satan, and preventing the western church from sinking utterly. By his wise and peaceable government of the church he was (they say) best providing for the peace and security of the state, whilst he cut off and cast away the rank, luxuriant offshoots of offences as they grew. In marking out the most notable defects and abuses, they obeyed (they say) his sacred commands; and they prayed him to exert his authority in correcting them.[\(back\)](#)

Footnote 61: There was also a prayer to prohibit the practice of confiscating the goods of Jews and heathens at their baptism, a practice tending to debar them from offering themselves at the font.[\(back\)](#)

Footnote 62: Cotton. Tiber. B. vi. F. 64.[\(back\)](#)

Footnote 63: The fact is, that Henry, during his wars in France, suffered Pope Martin to exercise his pretended prerogative in the disposal of benefices to an extent, if not unprecedented, certainly most unjustifiable. The Chapter of York gave the first blow to this growing usurpation by refusing to admit, in obedience to the Pope's mandate, Richard Fleming, Bishop of Lincoln, into the archiepiscopal see.[\(back\)](#)

Footnote 64: The people of England gave frequent proofs of their desire to seize every opportunity of reaping glory from conquests in France. When the Duke of Burgundy and the confederated princes, in the struggle to which we have before referred, applied in the first instance for assistance to Henry IV, Laboureur tells us that Henry replied to the latter that he was compelled to accept the offer of the Duke of Burgundy, to avoid the irritation and discontent of his subjects, which would be raised if he

neglected so favourable an opportunity of forwarding the national interests.
([back](#))

Footnote 65: The "Chronicles of England" record, that, "in the second year of King Henry's reign, he held a council of all the lords of his realm at Westminster; and there he put to them this demand, and prayed and besought them of their goodness, and of their good counsel and good-will, as touching the right and title that he had to Normandy, Gascony, and Guienne—the which the King of France withheld wrongfully and unrightfully—the which his ancestors before him had by true title of conquest and right heritage—the which Normandy, Gascony, and Guienne the good King Edward of Windsor, and his ancestors before him, had holden all their life's time. And his lords gave him counsel to send ambassadors unto the King of France and his council, demanding that he should give up to him his right heritage,—that is to say, Normandy, Gascony, and Guienne,—the which his predecessors had holden before him, or else he would win it with dint of sword in short time with the help of Almighty God."([back](#))

Footnote 66: "Abrégé Historique des Actes Publics d'Angleterre," which now accompanies the foreign edition of Rymer's *Fœdera*.([back](#))

Footnote 67: Sir H. Nicolas.([back](#))

Footnote 68: The only measures mentioned in the "Fœdera," before April 1415, indicative of Henry's expectation that the negotiations with France would not terminate pacifically, are, that on September 26, 1414, the exportation of gunpowder was prohibited; whilst, on the 22nd, Nicholas Merbury, the master, and John Louth, the clerk of the King's works, guns, and other ordnance, had been commanded to provide smiths and workmen, with conveyance for them; that, on the 18th of the following March, Richard Clyderowe and Simon Flete were directed to treat with Holland for ships; and, on the 22nd, the Sheriff of London was ordered to summon knights, esquires, and valets, who held fees, wages, or annuities by grant from the King or his ancestors, to repair forthwith to London, and, on pain of forfeiture, to be there by the 24th of April at the latest.—Sir H. Nicolas.

The Pell Rolls record the payment of "2,000*l.* to Richard Clitherow and Reginald Curtys, (27th February 1415; ordered by the King himself to go to Zealand and Holland, for the purpose of treating with the Duke of Holland and others to supply ships for the King's present voyage,) therewith to pay divers masters and mariners, who were to accompany him abroad, whither he was going in his own person."[\(back\)](#)

Footnote 69: The Author has been, in this portion of his work, chiefly assisted by the authors of the "Abrégé Historique," above referred to.[\(back\)](#)

Footnote 70: See vol. i. p. 268.[\(back\)](#)

Footnote 71: The Dauphin, eldest son of Charles VI, was born 22nd January 1396, and died before his father, without issue, on the 18th December 1415, in his twentieth year.[\(back\)](#)

Footnote 72: The following paragraphs are almost literally extracted from Sir Harris Nicolas's "Battle of Agincourt."[\(back\)](#)

Footnote 73: Here, however, the Author begs to state his most unfeigned conviction that, had the Editor of the "Battle of Agincourt" allowed himself more time for reflection and reconsideration of his subject, his love of truth and justice (which evidences itself in various parts of his works) would have induced him to withdraw this triple accusation. The Author sincerely gives that valuable writer full credit for his generous indignation at the idea of any thing savouring of falsehood, as well as for his anxious desire to enlist all our ancient documents, whether published or yet in manuscript, in the cause of historical truth; and he sincerely trusts that not one expression may escape his pen which may give, unnecessarily, the slightest pain to an Editor for the assistance derived from whose labours he will not allow this note to escape him (even at the risk of tautology) without again expressing his obligations.[\(back\)](#)

Footnote 74: Sir Harris Nicolas.[\(back\)](#)

Footnote 75: That a correspondence took place, there can be no doubt; but very much doubt is thrown upon the accuracy of these documents; they do not appear in such a shape that we can rely upon them as evidence. The

Author who gives them says, that he considers them capable of embellishing and adorning his history. The reader is invited to sift this matter thoroughly, if he thinks that the writer of these Memoirs has taken a partial view of the merits of the question; and he is, at the same time, cautioned against regarding the principal work in which these letters are found as the production of M. Laboureur. Into this error he might easily be led by the manner in which the book has been quoted. Laboureur translated the work of an anonymous writer of St. Denis, of whose character nothing is known. The manuscript, in Latin, is said to have been found in the library of M. Le President De Thou. The original author brought the history down to the year 1415, and St. Jean Le Fevre continued it to 1422.[\(back\)](#)

Footnote 76: This seems to have been the language of judges, councillors, parliament, poets, and the people at large. The voice of all England seemed to be echoed by Lydgate.

"In honour great; for, by his puissant might,
He conquered all Normandy again
And valiantly, for all the power of France,
And won from them HIS OWN INHERITANCE."[\(back\)](#)

Footnote 77: The Author does not mean to imply, as the result of his inquiries, that Henry was altogether influenced in his determination to claim the crown of France by the instigations of his people. If, as we believe, he was urged by them to adopt that measure, we believe also that he listened with much readiness to their appeal.[\(back\)](#)

Footnote 78: The words of the writer of that history are too clear and forcible to justify us in merely quoting their substance. The very title of his chapter directs our attention to the point. "Henry, King of England, constrained by his subjects to renew his pretension to the crown of France, makes a great movement." "The present year, on the incidents of which I proceed to remark, seems to me not less full of troubles and evils than any of those which preceded it. It commenced by a rumour, sudden but true, and which spread itself everywhere, that the English, impatient of repose, blaming for carelessness and want of heart the repose and inactivity of their King Henry, had *compelled him* to arouse himself, and to revive by the same means the pretensions of some of his predecessors on the crown of France." "Les Anglais, impatiens de repos à leur ordinance, blâmans de

nonchalance et de manque de coeur le repos et l'oisiveté de leur Roi Henri, l'avaient obligé de se reveiller."—M. Laboureur, *Life of Charles VI*, translated from the Latin of a contemporary ecclesiastic. Whatever be the degree of authority to which this author is entitled, whilst he supplies the letters on which the accusation alone is founded, he as expressly contradicts, by positive assertion, the inference now drawn from those letters.[\(back\)](#)

Footnote 79: Among the records of the council, the minutes of one of their meetings held at Westminster in the second year of Henry's reign deserve especial attention. The manuscript is much damaged, but the general meaning is clearly intelligible. The minutes first rehearse that "the Lords Spiritual and Temporal, and the true and humble lieges and knights of the King's noble realm, were there present, gathered by his royal command." It then proceeds: "Ye, our noble and righteous Lord and King, have in your chivalrous heart and desire determined to stir and labour in your recovery and redintegration of the old rights of your crown, as well as for your righteous heritage ... desiring upon this knightful intent and purpose to have the good and high advice and true meaning of us, your true knights and humble lieges aforesaid. Whereupon, our sovereign Lord, as well our Lords as we have communed by your high commandment in these matters: and known well among us all without [doubt ye are] so Christian a Prince that ye would in so high a matter begin nothing but that were to God's pleasure, and to eschew by all ways the shedding of Christian blood; and that, if algate [at all events] ye should do it, that denying of right and reason were the cause [rather] than wilfulheadedness. Wherefore, our sovereign and gracious high Lord, it thinks, as well our Lords as us in our own hearts, that it were speedful to send such ambassadors to every party as [your] claim requireth, sufficiently instructed for the right and recovery of that is above said. And if ye, our sovereign Lord, at the reverence of God, like of your proper motion, without our counsel given thereto, any mesne [middle] way to offer, that were moderating of your whole title, or of any of your claims beyond the sea; and hereupon your adverse party denying you both right and reason and all reasonable mesne [middle] ways, we trust all in God's grace that all your works in pursuing them should take the better speed and conclusion: and in the mean while that all the works of readiness that may be to your voyage thought or wrought, that it be done by the high

advice of you and your noble council; seeing that the surety of your royal estate, the peace of your land, the safe ward of all your [realm] be well and sufficiently provided for above all things. And, these observed, we shall be ready with our bodies and goods, to do you the service that we may to our powers, as far as we ought of right, and as our ancestors have done to your noble progenitors in like case."

This advice appears to have been followed by Henry throughout.

The Minutes of Council, February 2, 1415, after stating the measures proposed for the safeguard of the sea, and the marches of Scotland and Wales, &c. during the King's absence, record this remarkable advice: that Henry would direct his treasurer to bring a clear statement of his debtor and creditor account, the demands of the treasury, and the income; also the debts incurred since the coronation, and the annuities to which he was pledged; "in order that, before the departure of the King, such provision may be made in every part, according to the amount of the charges, that the mind and soul of the King might be set at ease and comfort, that he might depart like a Christian Prince with a good government, and the better accomplish his voyage, to the pleasure of God, and the singular comfort of all his faithful lieges."—Acts of Privy Council, vol. ii. p. 148.[\(back\)](#)

Footnote 80: A renewed charge of hypocrisy, brought against Henry by the same pen, will call for a renewed inquiry; and whatever further remarks may be made on that topic, are reserved for the page in which we shall shortly enter upon the investigation of the charges.[\(back\)](#)

Footnote 81: Hall says, that "he left for governor behind him his mother-in-law, the Queen." And Goodwin (referring for his authority to Hall and Pat. 3 Hen. V. p. 2. m. 41.) states that he made her regent, and the Duke of Bedford protector. But this seems to have originated in mere mistake.[\(back\)](#)

Footnote 82: The particulars of these commissions may be found in Rymer, or in Sir Harris Nicolas's "Battle of Agincourt," to whom the reader is referred for more minute information on the subject.[\(back\)](#)

Footnote 83: Abrégé Historique des Actes publics d'Angleterre.[\(back\)](#)

Footnote 84: Otterbourne says Henry received the tennis-balls whilst he was keeping his Lent at Kenilworth.[\(back\)](#)

Footnote 85: Cotton MS. Claudius, A. viii.[\(back\)](#)

Footnote 86: His very last will is not known to be in existence. This testament was made seven years before his death, and was probably soon cancelled.[\(back\)](#)

Footnote 87: Among the saints to whose custody he bequeaths his soul, his favourite and patron, John of Bridlington, finds a place. Among the legacies connected with his family history, we meet with a bequest, to the "Bishop of Durham, of the Missal and Portophore which he had received as a present from his dear grandmother Joan, Countess of Hereford." To the same countess a gold cyphus,—a proof that in 1415 his maternal grandmother was still alive. It may be worth observing that, in this will, there is no legacy to the Queen, his father's widow. He had, however, on the 30th June preceding, "granted of especial grace to his dearest mother, Joanna, Queen of England, licence to live, during his absence, in his castles of Windsor, Wallingford, Berkhamstead, and Hertford."[\(back\)](#)

Footnote 88: In a few pages further, the same writer thinks himself justified in adding this note on a letter of Henry to Charles, "A translation of this *hypocritical* letter is given in the Appendix."[\(back\)](#)

Footnote 89: See Cott. MS. Julius, E. iv. f. 115.[\(back\)](#)

Footnote 90: The Emperor, in the league which he made with Henry, records his resolution to assist him in the recovery of his just rights.[\(back\)](#)

Footnote 91: Here we cannot but recal the words with which Henry afterwards, it is said, addressed the Cardinal des Ursins, who was sent by the Pope to mediate between him and Charles just before he laid siege to Rouen. "See you not that God hath brought me here as it were by the hand? There is no longer a King in France. *I have a legal right over that realm.* All is in confusion there; and no one dreams of opposing me. Can I have a more sensible proof that God, who disposes of crowns, has decreed that I should place on my head the crown of France?" And in his mandate to the

Archbishop of Canterbury to array the clergy against the enemies of the church and of the faith, should any appear in his absence, he says, "We are now going to recover our inheritance and the rights of our crown, now a long time, as is *evident to all*, unjustly kept from us."—Sloane, p. 52.[\(back\)](#)

Footnote 92: The Dedication of the Ypodigma Neustriæ claims for itself a place in this work; and to no part can it be more appropriately appended than to this, in which modern charges strongly contrasted with his view are examined. The following is a literal translation of the introduction to this work of Walsingham:—"To the most noble and illustrious King of the French and English, Henry, conqueror of Normandy, most serene Prince of Wales, Lord of Ireland and Aquitaine, by God's grace always and everywhere victor, the humblest of his servants who pray for him, Brother Thomas of Walsingham, monk of the monastery of St. Alban, who was first of the English martyrs, with lowly recommendation wisheth health in Him who giveth health to Kings. Whilst I reflected, among the contemplative studies of the cloister, with how great talents of virtue, and titles of victory, God Almighty hath exalted,—with what gifts of especial grace He hath abundantly filled you,—so that even your enemies proclaim your wisdom, admire and everywhere extol your discretion, and celebrate your justice by the testimony of their praise, I confess that I have been filled with pleasure and inward joy, more gratifying far than the choicest dainties. But, in the midst of this, there arises in my mind a kind of cloud, which throws a shade on the glad thought of my heart, whilst I am compelled to fear the general habits of a nation which very often has trifled with the publicly plighted vows and their oath solemnly pledged. And whilst I meditate on past days,—recalling the frauds, crimes, factions, and enormities committed by your enemies,—my soul is made anxious, and my heart is disquieted within me, and my life has well-nigh failed from grief, knowing that to-morrow base deeds may be done as well as yesterday. And fearing lest by any means your innocence may be circumvented, I revolved in my mind what would best minister to your safety in the midst of so many dangers. At length it occurred to me to write something to your Highness (whom my soul cordially loves) by which you may be made more safe at once and more cautious. Love conquers all things; ah! it has wrought in me not to fear, though in an uncultivated and unpolished style, to offer to so wise and glorious a Prince what I reflected upon in my mind, and to open to your

serene Highness as I best may what I have conceived in my heart for your royal safety. Hence it is that I have endeavoured to draw up a brief table of events from the commencement of the conquest of Neustria [Normandy] by the Normans down to their conquest of England; which I have carried on to the time when your Majesty, with power and victory, compelled the same Normandy, alienated against right and justice from your ancestors for about two hundred and twenty years, to come under your yoke, and royally to be governed according to your desire. Wherefore, my redoubted Lord and King, in this little work I offer to your inspection past deeds, various wars, mutual covenants of peace; leagues, though confirmed by an oath, violated; the promises, pledges, offerings, treacherously made to your predecessors; the deceit and hypocrisy of the enemy; and whatever the antagonist could with exquisite craftiness invent, by which they might entrap your noble spirit. Wherefore, since it becomes no one to possess knowledge more than a Prince, whose learning may be most beneficial to his subjects,—I, a poor and humble votary, offer (if it be your will) this volume to the inspection of your Highness; giving it the name of Ypodigma Neustriæ, because it especially portrays the events and falls of that country from the time of Rollo the first Duke down to the sixth year of your happy reign, which may God Almighty of his great mercy crown with peace, and preserve in all prosperity! Amen."[\(back\)](#)

Footnote 93: But though a person were a volunteer, yet if, after "making his muster," he failed in his duty, the punishment was both summary and severe. In a subsequent expedition of Henry, Hugh Annesley had made his muster in the company of Lord Grey of Codnor, and had received the King's pay from him, but tarried nevertheless in England. He was summoned before the council, and confessed his delinquency; his person was forthwith committed to the Fleet, and his estates seized into the King's hands.[\(back\)](#)

Footnote 94: The song will be found in a note on our account of the battle of Agincourt.[\(back\)](#)

Footnote 95: Should it occur to any one, that if in this case we allow the poet to have weight when he speaks of what reflects honour on Henry's name, we ought to assign the same credit to Shakspeare; when he tells us of madcap frolics and precocious dissipation, it must be remembered, that on

testing the accuracy of Shakspeare by an appeal to history, we established a striking discrepancy between them; and that Shakspeare lived more than a century after the death of Henry; whereas we are led to regard this song of Agincourt as contemporary with the events which it celebrates; and its eulogy harmonizes in perfect accordance with what history might lead us to expect.[\(back\)](#)

Footnote 96: Query, Are these counties especially mentioned as being more peculiarly Henry's own? He was Duke of Lancaster, and Earl of Chester and Derby.[\(back\)](#)

Footnote 97: Mr. James, in his Naval History of Great Britain, does not seem to have carried back his researches beyond the reign of Henry VIII, to whom he ascribes "the honour of having by his own prerogative, and at his sole expense, settled the constitution of the present royal navy." Much undoubtedly does the English navy owe to that monarch; but he would be more justly regarded as its restorer and especial benefactor, than its founder.
[\(back\)](#)

Footnote 98: See Hardy's Introduction to the Close Rolls, and Lord Lyttelton's History of Henry II.[\(back\)](#)

Footnote 99: "Par long temps a lour grantz custages et despenses." [\(back\)](#)

Footnote 100: The Pell Rolls record the payment of a pension which bears testimony to the interest taken by Henry in his infant navy, and to the kindness with which he rewarded those who had faithfully served him. The pension is stated to have been given "to John Hoggekyns, master-carpenter, of special grace, because by long working at the ships his body was much shaken and worsted."[\(back\)](#)

Footnote 101: Ellis, Second Series, Letter XXI.[\(back\)](#)

Footnote 102: When he sailed from Southampton in his first expedition to France, he went on board his own good ship, the Trinity:

"But the grandest ship of all that went,
Was that in which our good King sailed." *Old Ballad.* [\(back\)](#)

Footnote 103: Pell Rolls, 16 July 1418.[\(back\)](#)

Footnote 104: Among the preparations for bringing Henry's corpse with all the solemn pomp which an admiring, grateful, and mourning nation could provide, all ships and vessels on the east coast were impressed, and sent to Calais.—Pell Rolls, Sept. 26, 1422.[\(back\)](#)

Footnote 105: To suppose that this conspiracy could have originated, as it has been lately (Turner's History) suggested, in "the resisting spirit which Henry's religious persecutions occasioned, and which led some to wish for another sovereign," is altogether gratuitous, and contrary to fact. He was not carrying on religious persecution, and no resisting spirit on that ground had manifested itself at all.[\(back\)](#)

Footnote 106: Richard of Coningsburg, second son of Edmund of Langley, Duke of York, fifth son of Edward III, was high in favour with Henry V, who created him Earl of Cambridge in the second year of his reign. He married Ann, daughter of Roger Mortimer, Earl of March, whose son Richard (aged fourteen in the third year of Henry V,) was heir to Edmund Mortimer, Earl of March. Leland says, that the "main design of the Earl of Cambridge's conspiracy was to raise Edmund Mortimer, Earl of March, to the throne, as heir to Lionel, Duke of Clarence; and then, in case that Earl had no child, the right would come to the Earl of Cambridge's wife, (sister to the same Edmund,) and to her issue, as it afterwards did; and this is most likely to be true, whatever hath been otherwise reported."—Lel. Coll. i. 701.[\(back\)](#)

Footnote 107: To one of these, Robert Hull, the payment of one hundred marks was ordered to be made, February 7, 1418, for lately holding his sessions in South Wales; and also for his trouble and expenses in delivering the gaol at Southampton of Richard Earl of Cambridge, Henry Lord Scrope, and Thomas Grey, Knight, there for treason adjudged and put to death.[\(back\)](#)

Footnote 108: The King's writ, dated Southampton, 8th of August, orders "the head of Henry Lescrop de Masham to be stuck up at York, and the head of Thomas Grey de Heton to be stuck up at Newcastle upon Tyne."—Close Roll, 3 Henry V. m. 16.[\(back\)](#)

Footnote 109: Cotton MS. Claudius A. viii. 2.[\(back\)](#)

Footnote 110: His pardon is dated 8th August.[\(back\)](#)

Footnote 111: Some of the best antiquaries of the present day are disposed to pronounce, that a pardon was never granted, unless there had existed some cause of suspicion or offence,—something, in short, which might have involved in trouble the individual for whom the pardon was obtained.
[\(back\)](#)

Footnote 112: (Ellis, Second Series, vol. i. p. 44.) "This conspiracy was the first spark of the flame which in the course of time consumed the two houses of Lancaster and York. Richard Earl of Cambridge was the father of Richard Duke of York, and the grandfather of King Edward IV."[\(back\)](#)

Footnote 113: The extraordinary prevalence of an opinion that Richard was still alive and in Scotland, has already been noticed. The Chronicle of England informs us of some particulars relative to the means by which the reports concerning him were propagated, and the prompt, severe, and decisive measures adopted by the King and his supporters for suppressing them. "And at this time (5 Henry IV.) Serle, yeoman of King Richard, came into England out of Scotland, and told to divers people that King Richard was alive in Scotland, and so much people believed in his words. Wherefore a great part of the people of the realm were in great error and grudging against the King, through information of lies and false leasing that this Serle had made. But at the last he was taken in the North country, and by law was judged to be drawn through every city and good burgh town in England, and was afterwards hanged at Tyburn and quartered." It is also certain that many members of the monastic orders were executed for spreading similar reports. See Nichols' Leicester, vol. i. p. 368.[\(back\)](#)

Footnote 114: It was shortly before he left London on this expedition that Henry made that grant (to which reference was made in the early part of our first volume) of 20*l.* per annum on Joan Waring, his nurse.—Rol. Pat. 3 Henry V. m. 13. It is dated June 5th.[\(back\)](#)

Footnote 115: At the place also where he encamped, he solemnly celebrated the festival of the Assumption [so called] of the Virgin Mary, a

feast observed, in the countries on the Continent in communion with Rome, with great rejoicings and religious ceremonies, in the present day.[\(back\)](#)

Footnote 116: See Chronicler A, and St. Remy, p. 82, quoted in Nicolas' Agincourt.[\(back\)](#)

Footnote 117: Sloane MS. 1776.[\(back\)](#)

Footnote 118: A very curious turn has been given inadvertently to this circumstance by the translation of the ecclesiastic's sentence, and the comment upon it, now found in the Appendix to the "Battle of Agincourt." "Rege præsentē, pedes ejus tergente post extremam unctionem propriis manibus,"—words which can only be translated so as to represent the King, "after extreme unction, wiping the feet" of the Bishop,—the Editor of that work, by the careless blunder of an amanuensis, or some unaccountable accident, is made to render by the strange sentence, "*covering* his feet *with* extreme unction;" and he is then led, as a comment upon that text, to observe, that "the Bishop received from Henry's own hand the last offices of *religion*." Extreme unction, the last of the seven sacraments of the see of Rome, was administered doubtless by an attendant priest.[\(back\)](#)

Footnote 119: Cotton MS. Cleopatra, C. iv. f. 24.[\(back\)](#)

Footnote 120: Monstrelet informs us that the treasure found by Henry at Harfleur was immense. A letter to Henry from two of his officers, "*counters of your receipt*," specifies that they were then in possession for the King of treasure to this amount: of coined gold, 30,000*l.*; in silver coined, 1,000,000*l.*; and in wedges of silver, drawing by estimation to half a ton weight; at the same time desiring to receive instructions as to the mode of conveying it to Rouen. This letter, dated 19th of May, must belong to the year 1419, in the January of which Rouen was taken.—Ellis's Letters, xxvi.[\(back\)](#)

Footnote 121: Abrégé Historique.[\(back\)](#)

Footnote 122: Ibid. p. 114.[\(back\)](#)

Footnote 123: There is a doubt whether it is the xvi. or the xxvi.—the first x in the manuscript having, perhaps, been obliterated by the fire which damaged it.—Fœd. vol. ix. 313.[\(back\)](#)

Footnote 124: On the 4th of October fishermen in different parts were ordered to go with all speed, taking their tackle with them, to Harfleur, to fish for the support of the King and his army.[\(back\)](#)

Footnote 125: This is a very curious fact, not generally known. The battle of Agincourt, humanly speaking, would not have been fought, had it not been for the falsehood of a Frenchman.[\(back\)](#)

Footnote 126: Shakspeare makes use of this anecdote, and fixes the robbery on Bardolph.[\(back\)](#)

Footnote 127: Sir William Bardolf, Lieutenant of Calais, hearing of the King's danger, sent part of his garrison to his assistance; but that little body, consisting of about three hundred men-at-arms, were either destroyed or taken prisoners by the men of Picardy.[\(back\)](#)

Footnote 128: After quitting Bonnières, Henry passed unawares beyond the place intended by his officers for his quarters; but, instead of returning, he replied that, being in his war-coat, he could not return without displeasing God. He therefore ordered his advanced guard to take a more distant position, and himself occupied the spot which had been intended for them. This anecdote is recorded as an instance of the care with which Henry avoided whatever might appear of ill omen. Probably he only followed the usual maxims of an army in march; that maxim originating, it may be, in superstition.[\(back\)](#)

Footnote 129: And yet there were so many priests present (with the baggage) during the battle, that the chaplain calls them the clerical army, whose weapons were prayers and intercessions, "Nos qui ascripti sumus clericali militiæ."[\(back\)](#)

Footnote 130: In the "History of Agincourt," the translator of the Chaplain's Memoir (Sloane 1776) has given a far more faint representation than the original will warrant of the sufferings to which the English troops

were exposed through this night of present fatigue and discomfort, and of anxious preparation for so tremendous a struggle as awaited them on the morrow. The ecclesiastic, who was himself among the sufferers, and who has furnished a very graphic description of the whole affair, says, "The King turned aside to a small village, where we had houses, but very few indeed, and gardens and orchards to rest in." "Ubi habuimus domos sed paucissimas, hortosque et pomaria pro requiescione nostra." This the translator renders, "Where we had houses to rest in, but very scanty gardens and orchards." The scanty supply was not of gardens and orchards, but of houses to rest in. Consequently, except such as those very few houses could accommodate, the English soldiers were all compelled to bivouac, exposed to the drenching rains which fell through the night. Of orchards and gardens there was doubtless an abundant supply, but they afforded little shelter from the weather, and no means to the troops of taking refreshing rest.[\(back\)](#)

Footnote 131: St. Remy.[\(back\)](#)

Footnote 132: The statement that Henry offered to repair all the injury he had done to France, is deservedly considered unworthy of credit.[\(back\)](#)

Footnote 133: The present reading in Monstrelet, who details these circumstances with much life and clearness, reports the word used by the English warrior to have been "Nestroque," which has been, with much probability, considered a corruption of "Now strike!" Whether the word is now read as the Author wrote it, is very questionable; many French words in Monstrelet have been mistaken and corrupted by his copyists.[\(back\)](#)

Footnote 134: It must be remembered that the arrival of fresh reinforcements was by no means an improbable occurrence. Anthony, Duke of Brabant, had only reached the field with his men just before the tide of battle turned finally and fatally against the French; nor could Henry possibly know what forces were yet hastening on to dispute with him for the victory afresh.[\(back\)](#)

Footnote 135: One author alone, Jean Le Fevre, states that some of the English, who had taken the prisoners of greatest note and wealth, hesitated to execute the order, from an unwillingness to lose their ransom; and that

two hundred archers were commissioned to perform the dreadful office in their stead.[\(back\)](#)

Footnote 136: The passage of M. Petitot, in his History, published in the year 1825, vol. vi. p. 322, which contains this accusation, is as follows: "The Duke of Alençon fought hand to hand with the King of England, and fell gloriously. Towards the end of the struggle, some hundreds of peasants of Picardy, commanded by two gentlemen of the country, believing that the English were vanquished, came to plunder their camp. Henry, fancying that he was about to be attacked by a reinforcement, whose march had been concealed from him, ordered the massacre of the prisoners, and only excepted the princes and generals. This barbarous order was put into execution, and tarnished his victory."[\(back\)](#)

Footnote 137: In the printed copies of Monstrelet the reading is "*de la hart*," a mistake, it is presumed, for *mort*. Many such errors occur in his work.[\(back\)](#)

Footnote 138: The Author is compelled to express his regret that some of our own modern writers (among others Goldsmith and Mackintosh) have been led to take a different estimate of the character of this transaction. Whether their judgments were formed after a careful weighing of the several accounts furnished by contemporary authors and eye-witnesses of the conflict, or whether they allowed their feelings of philanthropy, and their abhorrence of cruelty, to dictate their sentence in this case, the Author cannot refer to their works without appealing from them to the facts as they stand in those undisputed records which were accessible alike to them and to ourselves. On this subject Rapin, Carte, Holinshed, Nicolas, with others, may be consulted.[\(back\)](#)

Footnote 139: It is quite impossible to reconcile the different accounts of the loss on the part of the English. Walsingham speaks of thirty only having fallen; De Fenin reports them to have been four or five hundred; whilst Monstrelet raises the number to sixteen hundred.

On the part of the French, Le Fevre says, that from a hundred to six score princes fell, and about seven or eight thousand of noble blood. In the *Annales Ecclesiastici* of Baronius, continued by Raynaldus, the statement of

Theodoric Niemius is quoted, who says (unquestionably without authority) that Henry advanced from Harfleur with sixty thousand men, besides two thousand in attendance on the carriages. He affirms that the French had one hundred thousand men; among whom were one thousand Italians, commanded by Buligard, who had long governed Genoa in favour of the French. He says, moreover, that more than five thousand five hundred French nobles were slain; and fifteen hundred taken prisoners, and carried to England.([back](#))

Footnote 140: Hume, with his usual inaccuracy, asserts that the French army at Agincourt was headed as well by the Dauphin, as by all the other princes of the blood. The Dauphin wished to assist his countrymen, when they resolved to intercept the invaders; but, as we are expressly told by Le Fevre (c. 59), was not suffered to join the rendezvous. This is not the only mistake into which Hume has fallen in his account of this battle. In one paragraph he reports Henry to have been under the necessity of marching by land from Harfleur to Calais, in order to reach a place of safety from which he might transport his soldiers back to England; in another paragraph he represents him (with the same temerity which had been evinced by his predecessors before the battles of Poitiers and of Cressy) to have ventured without any object of moment, and merely for the *sake of plunder*, so far into the enemy's country as to leave himself no retreat. He tells us, moreover, that "Henry was master of fourteen thousand prisoners," whom he afterwards says that the King "carried with him to Paris, thence to England." Hume took this also without inquiry. Walsingham says, "Henry took (as they say—ut ferunt,—as though even that estimate required to be supported by common report,) seven hundred prisoners;" and of his prisoners, how many soever they were, he transported (as Des Ursins tells us) only the most considerable to England, dismissing the rest under promise to bring their ransom to him in the field of Lendi, on the feast of St. John in the summer, and, if he were not there, they should be discharged of the debt.([back](#))

Footnote 141: Of this gallant Welshman, the following account is taken from the Appendix of the "Battle of Agincourt." "Dr. Meyrick (now Sir Samuel) says, Davydd Gam, *i.e.* Squint-eyed David, was a native of Brecknockshire, and, holding his land of the honour of Hereford, was a

strenuous supporter of the Lancastrian interests. He was the son of Llewellyn, descended from Einion Sais, who possessed a handsome property in the parishes of Garthbrenghy and Llanddeu. In consequence of an affray in the high street of Brecknock, in which he unfortunately killed his kinsman, he was compelled to fly into England to avoid a threatened prosecution, and became the implacable enemy of Owain Glyndowr, whom he attempted to assassinate. Gam, it may be supposed, was his nick-name, as he called himself David Llewellyn; and there are good grounds for supposing that Shakspeare has caricatured him in Captain Fluellin. His descendants, however, conceiving that his prowess more than redeemed his natural defect, took the name of Game. Sir Walter Raleigh has an eulogium upon his bravery and exploits on the field of Agincourt, in which he compares him to Hannibal. He was knighted on the field with his two companions in glory and death, Sir Roger Vaughan, of Bedwardine in Herefordshire, and Sir Walter, or rather Watkin Llwyd, of the lordship of Brecknock. Sir Roger had married Gwladis, the daughter of Sir David Gamme, who survived him, and became the wife of another hero of Agincourt, Sir William Thomas of Raglan; and Sir Watkin was by his marriage related to Sir Roger."

The Author gives this passage as he finds it, without having attempted to verify the statement as to David Gamme's descent or history. Certainly the testimony which Sir Samuel Meyrick makes Sir Walter Raleigh bear to his "bravery and exploits on the field of Agincourt," cannot be fairly extracted from Sir Walter's own words: "But if Hannibal himself had been sent forth by Mago to view the Romans, he could not have returned with a more gallant report in his mouth than Captain Gamme made unto King Henry the Fifth, saying, 'That of the Frenchmen there were enow to be killed, enow to be taken prisoners, and enow to run away!'" We have no doubt of Captain Gamme's gallant bearing at Agincourt; but Raleigh refers to nothing beyond his report of the numbers of the enemy.—Raleigh, book v. sect. 8.[\(back\)](#)

Footnote 142: The fact is recorded in the Patent Rolls, P. 2, 3 Hen. V.[\(back\)](#)

Footnote 143: The spot from which the battle of Agincourt took its name has been confounded with a place named Azincourt, near the town of Bouchain in French Flanders. On the position of the real field of battle, and

its present condition, the Author has much satisfaction in making the following extract from a paper read before the Royal Society of Literature, April 4, 1827, by John Gordon Smith, M.D. who had visited and examined the spot under circumstances of peculiar interest:

"Perhaps I may be pardoned for relating that I had the honour to receive a Waterloo medal on the field of Azincour, or rather, that I had the fortune to belong to one of the British regiments that signalized themselves in the campaign of 1815, and which afterwards was invested with the above-mentioned mark of their sovereign's approbation on the very spot which, nearly four hundred years before, was the scene of the scarcely less glorious triumph of Harry the Fifth of England. In 1816 a portion of the British army was cantoned in the immediate neighbourhood of this celebrated field, and the corps in which I then served made use of it during several months as their ordinary drill-ground.... We amused ourselves with reconnoitring excursions, comparing the actual state of the localities with authentic accounts of the transactions of 1415. The changes that have taken place have been singularly few, and an attentive explorer would be able to trace with considerable accuracy the greater part of the route pursued by the English army in their retreat out of Normandy towards Calais. The field of Azincour remains sufficiently in statu quo to render every account of the battle perfectly intelligible; nor are those wanting near the spot, whose traditionary information enables them to heighten the interest with oral description, accompanied by a sort of ocular demonstration.

"Those who travel to Paris by way of St. Omer and Abbeville, pass over the field of the battle, which skirts the high road to the left, about sixteen miles beyond St. Omer; two on the Paris side of a considerable village or bourg named Fruges; about eight north of the fortified town of Hesdin; and thirty from Abbeville. All accounts of the battle mention the hamlet of Ruisseauville, through which very place the high road to Paris now passes.

"Azincour is a commune or parish consisting of a most uninteresting collection of farmers' residences and cottages, once however distinguished by a castle, of which nothing now remains but the foundation. The scene of the contest lies between this commune and the adjoining one of Tramecour, in a wood belonging to which latter the King concealed those archers whose prowess and vigour contributed so eminently to the glorious result. Part of the wood still remains; though, if I remember rightly, at the time of our visit, the corner into which the bowmen were thrown had been materially thinned, if, indeed, the original timber had not been entirely cut down, and its place been scantily supplied by brush or underwood. Some of the trees, however, in the wood of Tramecour were very old in 1816.

"The road above mentioned is the great post-road; the old road, now degenerated into a mere cart-track, from Abbeville to the once celebrated city of Therouanne, passes over the scene of action, and must have been that by which the French army reached the ground before the English, who had been compelled to make a great circuit."—Vol. i. part ii. p. 57.[\(back\)](#)

Footnote 144: Before his departure from Calais, a dispute arose between him and two noblemen, who had been taken prisoners at Harfleur, and set at liberty on condition of surrendering themselves at Calais. The merits of the case cannot now be known. The one, De Gaucourt, brought an action against the representatives of the other, after his death, and after the death of

Henry, to recover what he paid for that other's [D'Estouteville's] ransom. To give a colouring to his case, he charges Henry with refusing to confirm the stipulations made by his representatives at Harfleur, and with other harsh conduct. But an ex parte statement at that time, and under those circumstances, can form no ground of suspicion against a third party.[\(back\)](#)

Footnote 145: See "Battle of Agincourt."[\(back\)](#)

Footnote 146: Various entries occur in the Pell Rolls of money paid for masses for the souls of those who fell in these wars. Among the rest are specified (26th September 1418) Lord Grey of Codnor and Sir John Blount. Two thousand masses were ordered for the souls of Lord Talbot and another. See extracts in English, translated lately, from the Pell Rolls, by Mr. F. Devon. This work, whilst it acquaints the student with the sort of information and evidence which the Pell Rolls may supply, will in other respects assist him in his inquiries; for many valuable and interesting facts are presented to him in the volume: but, to ascertain what those documents really do contain, it is necessary (as in all other cases) to apply at the fountain-head.[\(back\)](#)

Footnote 147: Fœd. viii. 236.[\(back\)](#)

Footnote 148: The second line of this song is variously read. Probably the original words are lost. The reading in the text is conjectural.[\(back\)](#)

Footnote 149: Dr. Burney has here fallen into a most extraordinary mistake. In the very page to which he refers, Elmham, in his turgid manner, assures us that at Henry's coronation the tumultuous clang of so many trumpets made the heavens resound with the roar of thunder. He then describes the sweet strings of the harps soothing the souls of the guests by their soft melody; and the united music of other instruments also, by their dulcet sounds, in which no discord interrupted the harmony, inviting the royal banqueters to full enjoyment of the festival.[\(back\)](#)

Footnote 150: Thomas de Elmham, Vit. et Gest. Hen. V. edit. Hearne, Oxon. 1727, cap. xii. p. 23.[\(back\)](#)

Footnote 151: Burney's History of Music, vol. ii. p. 382.[\(back\)](#)

Footnote 152: For dread neither of least nor of greatest.[\(back\)](#)

Footnote 153: Mr. Turner.[\(back\)](#)

Footnote 154: Another view might be taken of the cause of this delay on the part of Henry. Perhaps he was acting prudently by allowing time for his enemies to weaken each other, and to exhaust their resources by the insatiable demands of civil warfare. Meanwhile, he was not himself idle.
[\(back\)](#)

Footnote 155: Lord Talbot was to be associated with the Captain of Calais to receive the Emperor in that city. At Dover, the Duke of Gloucester, with the Lords Salisbury, Furnival, and Haryngton, were to welcome him to the English shores; at Rochester, the Constable and Marshal of England, the Earl of Oxford, and others; at Dartford, the Duke of Clarence, with the Earls of March and Huntingdon, Lord Grey of Ruthing, Lord Abergavenny, and others, were to meet him. At Blackheath, the Lord Mayor, Aldermen, and good people of London were to await his arrival; whilst Henry himself was to receive Sigismund between Deptford and Southwark, at a place called St. Thomas Watering.—"Privy Council," April 1416, Pour la venue de l'Empereur.[\(back\)](#)

Footnote 156: The Archbishop of Canterbury commanded all his suffragans to take especial care that prayers be offered in all congregations for the good estate of Sigismund.—Rymer's Fœd. 1416.[\(back\)](#)

Footnote 157: Henry was at Smalhithe in Kent (August 22), superintending the building of some ships, when news of this success reached him. He hastened to join the Emperor, who was at Canterbury, and both went to the cathedral together to return thanks for the victory. This happened a week subsequently to their signing of the league of amity mentioned below.[\(back\)](#)

Footnote 158: Rymer, H. V. An. iv.[\(back\)](#)

Footnote 159: The various expedients to which both Henry and his father were driven to raise supplies in any way commensurate with their wants, have repeatedly reminded the Author of the similar means to which their unhappy successor Charles, in his days of far more urgent need and

necessity, had recourse. The reader may perhaps be interested by the following document. It is a copy of the letter in which Charles applies to the Provost and Fellows of Oriel College for a loan of their plate. The King's letter is dated January 6th, 1642; and the society, assembled in the chapel on the 8th, vote unanimously to put their silver and gilt vessels at the disposal of their sovereign, scarcely retaining one single piece of plate. (*Allocata sunt ad usum serenissimi vasa argentea et deaurata pæne ad unum omnia.*) The one retained is said to have been the chalice for the holy communion.

(Extracted from the Register of Oriel College.)

"To our trusty and well-beloved the Provost and Fellowes of Oriel Colledge, in our University of Oxon: Charles R.

"Trusty and well-beloved, wee greete you well. Wee are so well satisfied with your readiness and affection to our service, that wee cannot doubt but you will take all occasions to expresse the same; and as wee are ready to sell or engage any of our land, so have wee melted downe our plate for the paiment of our army, raised for our defence, and the preservation of our kingdome. And having received severall quantities of plate from divers of our loving subjects, we have removed our mint hither to our citty of Oxford, for the coyning thereof.

"And we do hereby desire you that you will lend unto us all such plate, of what kind soever, which belongs to your colledge; promising you to see the same iustly repaid unto you after the rate of 5 s. the ounce for white, and 5 s. 6 d. for guilt plate, as soon as God shall enable us: for assure yourselves wee shall never let persons of whom wee have so great a care suffer for their affection to us, but shall take speciall order for the repaiment of what you have already lent us, according to our promise, and also of this you now lend in plate; well knowing it to bee the goods of youre colledge that you ought not to alien, though no man will doubt but in such a case you may lawfully lend to assist youre King in such visible necessity. And wee have entrusted our trusty and well-beloved Sir William Parkhurst, Knt. and Thomas Bushee, Esq. officers of our mint, or either of them, to receive the said plate from you; who, uppon weighing thereof, shall give you a receipt under their or one of their hands for the same.

"And wee assure our selfe of your willingness to gratify us herein; since, beside the more publiche considerations, you cannot but know how much your selves are concerned in our sufferings. And wee shall ever remember this particular service to your advantage.

"Given at our Court at Oxford, the 6 day of January 1642."[\(back\)](#)

Footnote 160: In the letter from Constance, dated the preceding February, Henry was informed that the French had sent a large sum to Genoa to wage [hire] ships to fight with England.[\(back\)](#)

Footnote 161: The Muster Roll of this expedition is preserved in the Chapter-house, Westminster, and is pronounced to be one of the most

interesting records of military history now extant.—See Preface to the Norman Rolls, by T.D. Hardy, Esq.[\(back\)](#)

Footnote 162: A long list of the clergy, and of the churches then taken by Henry under his protection, is preserved in the Norman Rolls.—Hardy's edition, p. 331.[\(back\)](#)

Footnote 163: These letters did not come within the Author's knowledge before he had written these brief memoirs of the last years of Henry. It is very satisfactory to find them all confirmatory of his previous views. He has taken especial care to make every, the slightest, correction in his narrative, suggested by authorities from which there is no appeal.[\(back\)](#)

Footnote 164: Norman Rolls, preserved in the Tower, edited by T.D. Hardy, Esq.[\(back\)](#)

Footnote 165: Henry's own letter to the Mayor and Aldermen of London (Liber F. fol. 200), written on the 5th of September, the day after the surrender of Caen, represents the loss on the part of the English to have been very trifling. "On St. Cuthbert's day, God, of his high grace, sent unto our hands our town of Caen by assault, and with right little death of our people, whereof we thank our Saviour as lowly as we can; praying that ye do the same, and as devoutly as ye can. Certifying you also that we and our host be in good prosperity and health, thanked be God of his mercy! who have you in his holy keeping."[\(back\)](#)

Footnote 166: This letter of the King's is only a fragment, without date: who were the persons addressed does not appear; probably he wrote it to his council in 1417 or 1418. Sir Henry Ellis opens his second series of Original Letters with this of Henry V. It is found in MS. Cotton. Vesp. F. iii. fol. 5.[\(back\)](#)

Footnote 167: Probably the mammet, or mawmet, [puppet,] (a corruption, they say, of Mahomet,) of Scotland, was the pretended Richard, the deposed King, whom even now many believed to be still alive there.[\(back\)](#)

Footnote 168: The Duke of Exeter was then governor of Harfleur, but was in England recruiting soldiers to reinforce the King's army in Normandy.

[\(back\)](#)

Footnote 169: It is curious to observe, that the Duke of Bedford is reported to have been engaged at his devotions at Bridlington in Yorkshire; and that, on hearing of the invasion, he threw away his beads, and marched with all the forces he could muster to meet the Scots. John of Bridlington seems to have been in an especial manner the patron saint of Henry IV.'s family.
[\(back\)](#)

Footnote 170: On the 12th of February 1418, an order is issued to press horses, carts, and other means of conveyance, to carry the jewels, ornaments, and other furniture of the King's chapel to Southampton.[\(back\)](#)

Footnote 171: Henry's own words, in a letter, 21 July 1418, sent from Pont de Larche to the Mayor of London, are: "Since our last departing from Caen, we came before our town of Louviers, and won it by siege; to which place came to us the Cardinal of Ursin from our holy father the Pope, for to treat for the good of peace betwixt both realms, and is gone again to Paris to diligence there in this same matter; but what end it shall draw to we wot not as yet." In this letter he informs us that the attack on Pont de Larche was on the 4th of July; and that, though the enemy had "assembled in great power to resist us, yet God of his mercy showed so for us and for our right, that it was withouten the death of any man's person of ours." He adds that he had just heard of the decidedly hostile intentions of the Duke of Burgundy towards him; so "we hold him our full enemy. He is now at Paris." The King then tells them that he needs not to refer to the death of the Earl of Armagnac, and the slaughter that hath been at Paris; for he was assured that they had full knowledge thereof. He alludes to the massacre of the Armagnac faction by the partisans of the Duke of Burgundy, June 12, 1418. Two thousand persons were murdered in a very brief space of time. The mob dragged the bodies of the Constable and Chancellor through the streets (as Monstrelet tells us) for two or three days.[\(back\)](#)

Footnote 172: Henry's army had received various reinforcements. One accession is recorded by an item in the Pell Rolls, of rather an interesting character, showing that both the Irish and the ecclesiastics of Ireland gave him good and acceptable proof of the interest they took in his success. It is the payment of 19l. 17s. on the 1st of July 1418, "to masters and mariners

of Bristol for embarking the Prior of Kilmaynham with two hundred horsemen and three hundred foot-soldiers from Waterford in Ireland, to go to the King in France." An entry also occurs in the following October: "To the Prior of Kilmaynham coming from Ireland to Southampton, with a good company of men, to proceed to Normandy to serve the King in the wars, 100l." An order from the King to his Chancellor, the Bishop of Durham, to expedite ships from Bristol for the transport of these men from Waterford to France, is preserved among the miscellaneous records in the Tower. It is dated June 3rd, at Ber-nay; to which a postscript was added on the next day, urging the utmost expedition, as the troops were tarrying only for the means of sailing.—See Bentley's *Excerpta Historica*, p. 388.[\(back\)](#)

Footnote 173: One Glomyng was charged with having said, "What doth the King of England at siege before Rouen? An I were there with three thousand men, I would break his siege and make them of Rouen dock his tail." He said, moreover, that "he were not able to abide there, were it [not] that the Duke of Burgundy kept his enemies from him."—Donat. MS. 4601.[\(back\)](#)

Footnote 174: In a very long minute of the Privy Council, the reasons assigned by Henry for wishing to negotiate an alliance with the Dauphin are given at length; and ambassadors were appointed to treat with that prince on the 26th of October 1418.—*Fœd.* ix. p. 626.[\(back\)](#)

Footnote 175: The Author, assisted by his friends, has made diligent inquiry, both in England and on the Continent, for a portrait of Katharine, with a copy of which he was desirous of enriching this volume; but his inquiries have ended in an assurance that no portrait of her is in existence.[\(back\)](#)

Footnote 176: Large cargoes of provisions of every kind were forwarded from England; among others, "stock fish and salmon" are enumerated in the Pell Rolls, 3rd July 1419.[\(back\)](#)

Footnote 177: Monstrelet says, that when Henry made his entry into Rouen, he was followed by a page mounted on a black horse, bearing a lance, at the end of which near the point was fastened a fox's brush by way of streamer, which afforded great matter of remark. Elmham and Stowe

give the explanation of this. In 1414, he kept his Lent in the castle of Kenilworth, and caused an arbour to be planted there in the marsh for his pleasure, among the thorns and bushes, where a fox before had harboured; which fox he killed, being a thing then thought to prognosticate that he should expel the crafty deceit of the French King.—See Ellis, Original Letters.[\(back\)](#)

Footnote 178: See Sir H. Ellis, Orig. Let. xix.[\(back\)](#)

Footnote 179: Moryson, in his Travels, book iv. c. 3, gives a most extraordinary and disgusting account of the habits of the Irish. The story of a Bohemian Baron, who visited Morane, one of the native princes, represents the Irish from the highest to the lowest to have continued in the most degraded state of barbarism. In their food, their dwellings, their clothing, (those who had any to wear,) and their general habits, if the accounts in Moryson are not exaggerated, the Irish were not removed many degrees from the wildest savages on earth.[\(back\)](#)

Footnote 180: It is remarkable, that among the many names affixed to this memorial, not one savours of Irish extraction. They all betray their Saxon or (some) their Norman origin.[\(back\)](#)

Footnote 181: This John Talbot, called by courtesy Lord Talbot by right of his wife, was appointed Lieutenant in Ireland in the first year of Henry's reign. He had been employed in the wars of Wales, and was the person against whom the Mayor of Shrewsbury shut the gates. He was conspicuous also as a warrior in the reign of Henry IV.[\(back\)](#)

Footnote 182: Lord Furnival had petitioned in the spring of the preceding year, 1416, for the payment of one thousand marks disallowed by the then late treasurer, the Earl of Arundel. Henry, who presided himself in council, gave his decision that the question should be submitted to the Barons of the Exchequer, who, after examining the indenture made between the King and the said lord, should ordain what the justice of the case required.

The Lieutenant had also applied for a reinforcement of men-at-arms and archers, and for a supply of cannon. The King allows him to make such provision with regard to additional soldiers as he thinks best *at his own*

cost, and agrees to let him have some cannon from the royal stores.—Acts of Privy Council, 1416.[\(back\)](#)

Footnote 183: This Prior seems to have been Thomas Botiller, the brother of the Earl of Ormond. He is said to have died during the siege. He and his men are reported to have been sent over by Lord Furnival, the Lord Lieutenant. See *Excerpta Historica* above referred to.[\(back\)](#)

Footnote 184: Mons. vol. i. c. 95.[\(back\)](#)

Footnote 185: Archbishop Chicheley's letter to Henry is preserved among the manuscripts of the British Museum. MS. Cotton, Vesp. F. xiii. fol. 29.[\(back\)](#)

Footnote 186: Gebennis, xv. kal. Sept. Pontif. nost. ann. I. (August 18, 1418.) Rymer.[\(back\)](#)

Footnote 187: A letter from T.F., dated Evreux, (March 27th, 1419,) addressed to his friends in England, tells us that "the Dauphin made great instance sundry times to have personal speech with the King, for the good of peace between both realms;" and, on obtaining the King's consent, "he fixed on the third Sunday in Lent (March 19th), at his own desire and instance, making surety by his oath and his letters sealed to keep that day. The foresaid Rule Regent hath broke the surety aforesaid, and made the King a Beau Nient [made a fool of him]; so that there may be no hope had yet of peace.... And so now men suppose that the King will henceforth war on France; for Normandy is all his, except Gysors, Euere, the Castle Gaylard, and the Roche."

This writer gives us to understand that he and his friends were heartily tired of the Continental warfare, which had so long kept them from the comforts of their home, and they longed to revisit the white cliffs of Britain. "Pray for us, that we may come soon out of this unlusty [unpleasant] soldier's life, unto the life of England."—MS. Donat. 4001. Sir H. Ellis assigns this to the year 1420; but it must have been written March 27th (the Monday before Passion Sunday), 1419, just eight days after the Dauphin had broken his word.

The same writer speaks in no very measured terms of the intrigue and duplicity of foreign courts. "And certes, all the ambassadors that we deal with are incongrue, that is to say, in old manner of speech in England, 'they be double and false;' with which manner of men, I pray God, let never no true men be coupled with."

The reasons which had induced Henry some time previously to wish for an alliance with the Dauphin are found in the Cot. MS.—See "Acts of Privy Council," vol. ii. p. 350.[\(back\)](#)

Footnote 188: Katharine of Valois, the youngest child of Charles VI. of France, (he had twelve children,) was born on the 27th of October 1401; just two months subsequently to her elder sister Isabel's return from England after the death of her husband, the unfortunate King Richard. Consequently, at the date of this interview, May 30th, 1419, she was only in her eighteenth year; Henry himself was in his thirty-second year.[\(back\)](#)

Footnote 189: This treaty is recorded in Rymer, vol. ix. p. 776. The circumstances of outward courtesy, and concealed suspicion, and want of faith, with which the contracting parties met, deliberated, and separated on this occasion, are detailed by Goodwin, p. 237.[\(back\)](#)

Footnote 190: The Author is fully aware that the brief notice he is able to take of many of the transactions of this period, whether diplomatic or military, (especially with reference to the proceedings of the different parties in France,) must leave his readers unfurnished with information on many points, and in some instances may cause the accounts which he thought indispensable in this work to appear obscure and confused. He could not, however, have avoided such a result of his plan in these Memoirs, without changing their character altogether. Goodwin, whose labours seem scarcely to have been ever duly appreciated, has filled up the outline here given, generally in a satisfactory manner, though many original documents which have been brought to light since his time have been employed.[\(back\)](#)

Footnote 191: See Monstrelet, c. 211.[\(back\)](#)

Footnote 192: Goodwin thus comments on his death:—"Thus fell the Duke of Burgundy, who, as he had caused the Duke of Orleans to be assassinated in the streets of Paris, so, *by the requital of divine justice*, his own life was abandoned to vile treachery." How very unwise and unsafe are such comments upon the dispensations of Providence is most clearly evinced here. Never was a more foul murder, or more desperate defiance of all law, human and divine, than the Dauphin was guilty of on the bridge of Montereau: and yet, instead of "his life being abandoned to vile treachery by the requital of divine justice," he lived forty-two years after his deed of blood, succeeded to the throne of his father, rescued his kingdom from the hands of the English, and died through abstinence from food, self-imposed from fear of poison. Far more wise and more pious is it to leave such speculations, and to refer all to that day of final retribution, when the *righteousness of the supreme Ruler of man's destinies shall be made as clear as the light, and his just dealing as the noon day.*[\(back\)](#)

Footnote 193: This was Thomas Langley, who was elected Bishop of Durham in 1406. He succeeded Henry Beaufort, Bishop of Winchester, as Chancellor, on the 23rd of July, 1417, and continued in that office till July 1424, when Henry Beaufort succeeded him. Thomas Langley was in possession of the see of Durham from May 17th, 1406, till his death in November 1437. Dugdale, (Orig. Judic.) by mistake, refers Bishop Langley's appointment as Chancellor to 1418. It was July 23rd, 5 Henry V. in 1417.[\(back\)](#)

Footnote 194: October 28, 1419. The Pell Rolls record payment of 10*l.* to Master Peter Henewer, physician, appointed by the King and his council to go to the King in Normandy. Probably he felt his constitution even then giving way. But as early as 13th October 1415, after the battle of Agincourt, payment is made for "diverse medicine, as well for the health of the King's person as for others of his army," sent to Calais.[\(back\)](#)

Footnote 195: A curious and interesting instance of Henry's personal attention to business in its most minute details, when many of his subjects would have been quite satisfied with the report of another, is preserved among some of the driest and most formal acts of the Privy Council. Certain auditors are instructed to examine, with greater accuracy than

before, the accounts of the late Master of the Wardrobe; and to make an especial report to the council, most particularly (potissimè) of such items as they shall find marked in the King's own hand "ad inquirendum." Reference is also made to those sums against which a black mark has been placed by the King's hand. The date of this minute (4th July 1421), and the place (Calais) in which it states that these accounts were examined by the King, add considerably to the strength of this example. Henry had then just left England suddenly on hearing the sad news of a disastrous defeat of part of his army, and the death of his brother, the Duke of Clarence, in battle; and he was at Calais on his road to put himself again at the head of his forces. ([back](#))

Footnote 196: Cotton. Julius, B. vi. f. 35. ([back](#))

Footnote 197: The Author cannot undertake to pronounce how far beyond general instructions the King himself interfered in each of these transactions. The letters on the subject of Brittany and of Oriel College bear internal evidence that they were dictated by Henry himself. But the correspondence, still preserved, is too voluminous for us to believe that he dictated more of the letters than such as were most important or most interesting to himself. Still it must be borne in mind, that we have indisputable evidence of Henry having minutely examined accounts, at a time when he "*had great occupation otherwise*," directing in his own handwriting inquiries to be made as to various items. ([back](#))

Footnote 198: Cotton. Vespasian, C. xii. f. 127 b. ([back](#))

Footnote 199: Bib. Cotton. Galba, B. i. f. 131. ([back](#))

Footnote 200: The English merchants (Henry says) valued their goods captured at 10,000*l.* the Genoese estimated them at 7,180*l.* and they are willing "for to stand in our good grace and benevolence, to pay without any exception 4,000*l.* at reasonable times; our subjects and our merchants of our land having hereafter free coming and going to Genoa, as they of Genoa desire to have into our realm of England." ([back](#))

Footnote 201: A letter addressed by Henry, whilst he was at Mante, to one Thomas Rees and other merchants of Bristol, (October 11th, 1419,) shows

what accurate information he received of even minute affairs in England. He tells them that they have imported goods from Genoa, and he desires to select from them such as he might wish to have, promising to pay for them honestly.[\(back\)](#)

Footnote 202: It is thought right to subjoin the following transcript of this epistle in its primitive garb, except the abbreviations.

"BY THE KYNG.

"Worshipful fader yn God oure right trusty and welbeloved, we grete yow wel. And forasmuche as we lete sende for Maistre Richard Garsdale oon of the contententes of the prevoste of the Oriell to that ende that for his partie shulde no thyng be poursuyd neither at the courte of Rome ne elleswhere, but that that contraversie shulde be put in respit unto oure comyng hoom with Goddes grace, for oure occupacion is such that we mow nat wel entende to suche also Lentwardyn, come afore you, and that ye take surety matteres here. Wherefore we wol that ye make boothe the said Garsdale whiche cometh now hoom be oure leve, and also Lentwardyn com afore you, and that ye take seurte soufficeant of bothe the partiees, that neither of hem shal make ferther poursuyt of appelle at courte of Rome ner no manere of poursuyt there or elleswhere as touching the said contraversee unto oure comynge as before, at whiche tyme oure entent ys to put the same contraversie to a goode and rightwyse conclusion, and the said partie yn rest. And yf any of hem have ye saide poursuyt of apelle hangyng yn courte that they abate hit and sende to revoke hit yn al haste, and that thay make al suche as been thaire attornes or doeres yn court spirituel or temporel to surcesse. And we wol ferthermore as touching oure said college of the Orielle that ye put hit yn suche governance as semeth to yowre discrecion for to doo unto oure comyng. And God have you yn his keping. Yeven under oure signet in oure town of Mante, ye vii. day of Juyll.

"To ye worshipful fader yn God our right trusty and welbeloved ye Bisshop of Duresme oure Chaunceller of England."[\(back\)](#)

Footnote 203: These articles were signed on the following January during the armistice.[\(back\)](#)

Footnote 204: About this time, John, Duke of Bedford, the King's brother, had an offer of the reversion of the crown of Naples; but the negotiations ended in no successful issue.[\(back\)](#)

Footnote 205: The heartfelt satisfaction and joy with which this peace between the two countries was generally hailed as a new and unexpected blessing, is conveyed to us in a most lively manner by the letter which Sir Hugh Luttrell wrote to the King on the occasion, and which bears at the same time incidental testimony to Henry's condescending and kind attention

to his old comrade in arms. Sir Hugh was the Lieutenant of Harfleur, and Henry had himself sent him an account of the happy issue of his struggle.... He ascribes it to the providence of the Creator that Henry had concluded a perpetual peace between two realms which ever, out of mind of any chroniclers, had been at dissension; and had brought to an end what no man had hitherto wrought; "thanking God," he continues, "with meek heart, that he hath sent me that grace to abide the time for to see it, as for the greatest gladness and consolation that ever came into my heart; not dreading in myself that He who hath sent you that grace in so short a time, shall send you much more in time coming."—Ellis's Original Letters, xxviii.[\(back\)](#)

Footnote 206: On this subject, T.D. Hardy, Esq. in his Introduction to the Charter Rolls, just published by the Record Commission, gives the following clear and satisfactory information:—Until the 9th of April 1420, Henry V. styled himself in his charters and on his great seal, "Henricus Dei gratia Rex Angliæ et Franciæ et Dominus Hiberniæ" And on the Norman Roll of the fifth year of his reign he is sometimes styled Duke of Normandy, in conjunction with his other titles, as "Henry par le grace de Dieu, Roy de Fraunce et d'Engleterre, Seigneur de Irlande, et Duc de Normandie." On the above 9th of April he relinquished the title of King of France during the life-time of his father-in-law, Charles, preliminary to the treaty of Troyes, which was signed the 21st of May, 1420; and during the remainder of his life he styled himself, "Henricus Dei gratia Rex Angliæ, Heres et Regens Franciæ, et Dominus Hiberniæ."

Notwithstanding an article in the agreement of the 9th of April, that during the life of Charles, Henry V. should not assume the title of King of France; yet within ten days he issued a precept from Rouen relative to the Norman coinage, upon one side of which was to be inscribed, "Henricus Francorum Rex." As Henry had not then signed the article of peace at Troyes, it did not perhaps occur to him that he was thus breaking his agreement with France. —Rot. Chart. p. xxi.[\(back\)](#)

Footnote 207: It is said, but whether on good authority does not appear, that Henry placed English attendants about the Queen's person; allowing only five French to wait on her, of whom three were matrons and the other

two young ladies. Her confessor was John Boyery (query Bouverie?), doctor in theology.—Pell Rolls, 18th June 1421.[\(back\)](#)

Footnote 208: See Goodwin.[\(back\)](#)

Footnote 209: Among the forces which he had drawn together, were a body of chosen men and archers from the parts of Wales; but whether they were natives of the Principality, or English soldiers drawn from the garrisons there, does not appear.—Pell Rolls, 3rd June, 8 Henry V. i.e. 1420.[\(back\)](#)

Footnote 210: "The English colour." See Goodwin.[\(back\)](#)

Footnote 211: In the parliament (2nd December 1420), Humfrey, Duke of Gloucester, being Lieutenant of the kingdom, provision was made that, should the King arrive, the parliament should continue to sit without any new summons: the reason also is given; because the King, being heir and Regent of France during the life-time of his father-in-law, and King after his death, would often be in England and often also in France. In this parliament a prayer is preferred against the Oxford scholars, who in vast numbers and armed attacked gentlemen in the counties of Oxford, Bucks, and Berks, and robbed them.[\(back\)](#)

Footnote 212: On 30th January, the Pell Rolls record payment of 20 *l.* for bows, arrows, and bowstrings, a present from Henry to his father-in-law, the King of France.[\(back\)](#)

Footnote 213: Walsingham says, that she was crowned on the first Sunday in Lent, which in that year fell on the 9th February. But the Pell Roll (Mich. 8 Hen. V.) contains a payment to divers messengers sent through England, to summon the spirituality and laity to assist at the solemnizing of the coronation of Katharine Queen of England, at Westminster, on the third Sunday in Lent.[\(back\)](#)

Footnote 214: There is so much inconsistency in the accounts of chroniclers as to the royal proceedings on this occasion, that to attempt to reconcile them all seems a hopeless task. The Author, however, having been furnished with the following facts ascertained from the "Teste" of several

writs and patents preserved in the Tower, is able to recommend, with greater confidence in its accuracy, the adoption of the journal offered in the text.

In the year 1421, King Henry V. was

January,	from	1	to	31,	at	
						Rouen.
February				1,	"	
						Dover.
2		to		28,	"	
						Westminster.
March		1	to	5,	"	
						Westminster.
5		to		14,	"	
						Uncertain.
15,					"	
						Coventry.
27,					"	
						Leicester.
From March 28 to April 2,					"	
						Uncertain.
April		2	to	4,	"	
						York.
15,					"	
						Lincoln.
18,					"	
						York.

From 18 to 30,
" Uncertain.
May 1 to 31,
" Westminster.

[\(back\)](#)

Footnote 215: Rapin says, but, as it should seem, without reason, that Henry's aim was, under colour of shewing the country to the Queen, to procure by his presence the election of members for the parliament who would be favourable to him.[\(back\)](#)

Footnote 216: MS. Cott. Domit. A. 12.[\(back\)](#)

Footnote 217: Elmham says, that, in 1414, Henry kept his Lent in the castle of Kenilworth, and caused an arbour to be planted in the Marsh there, for his pleasure, amongst the thorns and bushes where a fox before had harboured, which he killed.[\(back\)](#)

Footnote 218: Walsingham says, that Henry put off the celebration of the feast of St. George, (which, being the 23rd of April, must have fallen on a day after he had left York,) and directed it to be celebrated at Windsor on the Sunday after Ascension-day.[\(back\)](#)

Footnote 219: His visits to the hallowed resting-places of these saints are not at all inconsistent with the opinion which we have ventured already to give, that he was never heard to address in the language of prayer or thanksgiving any other being than the one true God. A similar feeling of love for the holy men of God, whether he could testify that love to the living, or merely record it for the memory of the dead, might have led him to the installation of the Bishop of Lincoln, and to the tomb of John of Bridlington and John of Beverley. Henry was not a Protestant by profession; but, compared with the hierarchy by whom he was surrounded, he approached almost, if not altogether, this fundamental point of difference between the two churches, the rejection of the adoration of any being, save the one only God.[\(back\)](#)

Footnote 220: Henry's prisoners of war were dispersed among various castles and strong places throughout the kingdom in England and Wales. Payment is recorded, July 10, 1422, to John Salghall, Constable of Harlech, of 30*l.* for the safe custody of thirty prisoners, conveyed by him from London.—Pell Rolls, 9 Henry V.[\(back\)](#)

Footnote 221: Holinshed and others.[\(back\)](#)

Footnote 222: The Author has invariably discarded the assertions of the chroniclers, however positively affirmed, or frequently reiterated, whenever they have appeared to be incompatible with ascertained facts, or inconsistent with what would otherwise be probable. In the present instance, after a review of all the circumstances, and an examination of all the documents with which he is acquainted, though the supposition here adopted may be deemed ideal and fanciful, he is inclined to think that the acquiescence in that view will be attended with fewer difficulties than the adoption of any other.[\(back\)](#)

Footnote 223: But whilst Henry was thus actively employed in visiting his subjects, and spreading the blessing which a good King can never fail to dispense wherever his influence can be felt, his ministers of state sought his directions on all important matters for the management of his affairs on the Continent. Thus a despatch addressed to the Treasurer by William Bardolf, Lieutenant of Calais, is forwarded with all speed to the King in Yorkshire, that his especial pleasure might be taken thereon. Payment of the messenger appears in the Pell Rolls, April 1, 9 Hen. V.[\(back\)](#)

Footnote 224: Casaubon, quoted by Sir Walter Raleigh.[\(back\)](#)

Footnote 225: Monstrelet says, that the flower of the English chivalry, who were with the Duke, fell in that field, and, besides knights and esquires, from two to three thousand men; and that, with the Earl of Somerset and others of noble and gentle blood, about two hundred were taken prisoners. There was also, he says, a dreadful slaughter of the French. The English, under the Earl of Salisbury, recovered the body of the Duke from the enemy, and it was carried with much ceremony to England, and there buried.[\(back\)](#)

Footnote 226: In this Parliament a statute was passed, the enactment, but more especially the preamble of which presents a very formidable view of the drain which Henry's continental campaigns had made upon the English gentry.

"Whereas by the statute made at Westminster, the 14th year of King Edward III, it was ordained and established, that no Sheriff should abide in his bailiwick above one year, and that then another convenient should be set in his place, which should have lands sufficient within his bailiwick, and that no Escheator should tarry in his office above a year; and whereas also, at the time of making the said statute, divers valiant and sufficient persons were in every county of England, to occupy and govern the same offices well towards the King and all his liege people; forasmuch that as well by divers petilences within the realm of England, as by the wars without the realm, there is now not such sufficiency; it is ordained and stablished that the King by authority of this Parliament may make the Sheriffs and Escheators through the realm at his will until the end of four years."—9 Hen. V. stat. 1, c. v.[\(back\)](#)

Footnote 227: This vote does not appear on the Rolls of Parliament. Walsingham asserts that a fifteenth was voted. Holinshed distinctly says, that the "commonaltie gladly granted a fifteenth." But he is no authority in such a case. The Parliament, in the following December, granted a tenth, and a fifteenth.[\(back\)](#)

Footnote 228: Three days after landing his forces, he despatched the Earl of Dorset with twelve hundred men to relieve his uncle, the Duke of Exeter, who was closely blockaded in Paris.[\(back\)](#)

Footnote 229: Rot. Pat. ix. Henry V.[\(back\)](#)

Footnote 230: Preparations had been made as early as January 26th, 1422, for the Queen to leave England, and meet the King at Rouen, but she did not start till April.[\(back\)](#)

Footnote 231: The King, his father-in-law, survived Henry not quite two months: he died October 21st, 1422.[\(back\)](#)

Footnote 232: A description and history of this castle will be found in a work entitled, "Histoire du Donjon et du Chateau de Vincennes, par L. B.," published at Paris in 1807. The Author refers to the sojourn made in this castle by Henry's son (King Henry VI.) at the close of the year 1431, when he visited France for the purpose of being crowned.[\(back\)](#)

Footnote 233: Elmham says, Henry added several codicils to his Will, leaving large sums to discharge the debts not only of himself, but also of his father, and also to reward many of his faithful servants.[\(back\)](#)

Footnote 234: Elmham.[\(back\)](#)

Footnote 235: Sloane, 64.[\(back\)](#)

Footnote 236: It is satisfactory to find, even among the mere details of expenditure, testimony borne to his love of the Holy Scriptures. Among his last domestic expenses is this interesting item: "To John Heth 3*l.* 6*s.* for sixty-six quarters of calfskins, purchased and provided by the said John, to write a Bible thereon for the use of the King."—Pell Rolls, February 23, 1422, just six months before his death.[\(back\)](#)

Footnote 237: Acts of Privy Council. Cleopatra, F. iv. f. I. a.[\(back\)](#)

Footnote 238: Hume's Hist. vol. iii. ch. xix.[\(back\)](#)

Footnote 239: Fabyan, 388.[\(back\)](#)

Footnote 240: Annales Ecclesiastici, vol. xii. Ann. 1517. See much interesting matter relating to the whole of this subject in these Annales Ecclesiastici of Baronius, continued by Raynaldus.[\(back\)](#)

Footnote 241: Florentiæ, iv. idus Julii, anno 3. Annales Eccles. v. viii.[\(back\)](#)

Footnote 242: Raynaldus, Annales Ecclesiastici, vol. viii. p. 556. [\(back\)](#)

Footnote 243: It is not to be forgotten that Henry of Monmouth had from his very childhood been interested by accounts of the state of Palestine. His father, as we have seen, went himself to the Holy Sepulchre; and, even

during Henry's wars in France, his uncle, the Bishop of Winchester, visited Constance as he was proceeding in the guise of a pilgrim to the Holy Land.
([back](#))

Footnote 244: Mr. Granville Penn's interesting paper was read before the Royal Society of Literature at their first meeting in the year 1825, and is recorded in the first volume of their Transactions.([back](#))

Footnote 245: This same interesting subject is far more elaborately discussed by that excellent antiquary the Rev. John Webb; whose Introductory Dissertation and Illustrative Notes, (in the *Archæologia*, vol. xxi. p. 281,) abound with most valuable information. The title prefixed to Lannoi's work is this:

"The Report made by Sir Gilbert de Lannoy, Knight, upon surveys of several cities, ports, and rivers, taken by him in Egypt and Syria, in the year of grace of our Lord 1422, by order of the most high, most puissant, and most excellent prince, King Henry of England, heir and Regent of France, whom God assoil." The whole of Mr. Webb's paper well deserves perusal.([back](#))

Footnote 246: The Bible is always and everywhere the standard of divine truth; but to condemn an individual for wilful ignorance of its heavenly doctrines, to whom no opportunity has been afforded of learning them, would be unreasonable and unjust. A corresponding principle applies to the interpretation of the Bible. Our responsibility in every case increases with our privileges and opportunities.([back](#))

Footnote 247: It will be borne in mind, that the question here is not whether there be not one immutable principle, nor whether there ought not to be one uniform interpretation of that principle; we are inquiring only into the nature of that rule by which we may equitably judge of the moral and religious characters of men.([back](#))

Footnote 248: The attachment of Henry to the See of Rome, and the countenance given by him to the encroachments of the Pope, have been greatly exaggerated. Rapin took a different view of his measures. "The proclamation" (he says) "made by Henry, prohibiting the Pope's provisions,

was a death-blow to the court of Rome." On the death of Henry, the Pope wrote a letter of condolence to the council, in which he says, "We loved our son of famous memory, Henry King of England, for there were many and royal virtues in that Prince for which he ought to be loved;" and then adds a strong appeal to the council to abrogate the obnoxious statutes which had so materially entrenched upon his assumed prerogative. In a letter to Henry himself (Kal. Nov. xiv. An. iv.) nearly two years before his death, the Pope refers to a promise made by Henry that he had no desire to curtail the authority of the Roman See in his new dominions; and also to an undertaking that he would bring the obnoxious statutes under the notice of his parliament; and that, *"if they could not be supported on honest and lawful grounds,"* he would satisfy the Pope in that particular. Surely these are not the expressions of one who was "the slave of the Popedom."—See "Annales Ecclesiastici."[\(back\)](#)

Footnote 249: Milner's Church History, vol. iv. p. 196.[\(back\)](#)

Footnote 250: This view of heresy we find to have been at a very early date propagated and encouraged by the Pope and the See of Rome. Walsingham records, that, three years before Richard II.'s deposition from the throne, "the Pope wrote to him with a prayer (orans) that he would assist the prelates of the church in the cause of God, and of the King himself, and of the kingdom, against the Lollards; whom he declared to be traitors, not only of the church, but of the throne. And he besought him with the greatest urgency (obnixiùs) to condemn those whom the prelates should have declared heretics.—Ypod. Neust. 1396.[\(back\)](#)

Footnote 251: For Christians of the present age, and in our country, to pass through life without partaking in any persecution, such as once disgraced our legislature and the executive government, does not necessarily imply a freedom of the conscience from a persecuting spirit. The Christian can now evince the real tone and temper of his mind only in his behaviour towards his fellow-creatures, and by the sentiments to which he gives utterance. The Author hopes he may be pardoned, if he ventures, in further illustration of his principles on this subject, to make an extract from his sermon lately preached at the consecration of the Bishop of Salisbury. "In his intercourse with those Christians whose sentiments do not coincide with our own, the

Christian minister will never by laxity of expression or conduct encourage in any an indifference to truth and error, nor countenance the insidious workings of latitudinarian principles. He will ever maintain the truth, but never with acrimony; and, whilst his duty compels him to banish and drive away all false doctrine, he will feel and show towards the persons of such as are in error compassionate indulgence and forbearing tenderness. He knows that truth can be only on one side, but he acknowledges that sincerity may be on both; and he will set his mind on winning back again by mild argument and conciliatory conduct those who have gone astray, rather than by severity in exposing their faults, and a cold, forbidding, and hostile bearing, indispose them to examine their mistaken views, and confirm them in their spirit of alienation."[\(back\)](#)

Footnote 252: Owen Feltham.[\(back\)](#)

Footnote 253: Bishop Taylor's "Liberty of Prophesying," 13.[\(back\)](#)

Footnote 254: This work, "published by William Prynne, Esq. a Bencher of Lincoln's Inn, 1657," is ascribed by him to Cotton; but it proves not to have been written by Cotton, but by the two brothers William and Robert Bowyer. See manuscript note, by Francis Hargrave, at the commencement of his copy in the British Museum. What notes and observations came from the author, whether Cotton or one of the Bowyers, and what were added and interwoven by Prynne, it seems impossible to determine. This passage (p. 456) apparently carries with it internal evidence that it was penned by Prynne.[\(back\)](#)

Footnote 255: Much doubt and many mistakes seem to have prevailed as to the real state of the law in England before the statute 2 Hen. IV. cap. 15. It is said by the annotator on Fitzherbert that, "before the time of Henry IV. no person had been put to death for opinions in religion in England;" but the same author himself tells us that, among the crimes to be punished by burning by the common law, heresy is enumerated. "No Bishop, indeed, by the common law, could convict of heresy, as to loss of life, but only as to penance, and for the health of the soul, 'pro salute animæ.' In the case of life, the conviction by the common law ought to have been before the Archbishop in convocation." Much information is found on this subject in Fitzherbert's Book, De Naturâ Brevium.[\(back\)](#)

Footnote 256: Hallam, Middle Ages, vol. iii. p. 134.[\(back\)](#)

Footnote 257: An antiquary well versed in such matters says, that for many years previous to this petition there are several mandates upon the Patent Rolls, ordering the apprehension of heretics, (who appeared to have been all monks,) in consequence of complaints made to the King in council by the various monasteries. He had never met with any entry affecting the parochial clergy.[\(back\)](#)

Footnote 258: The clergy could not have prevented its appearance on the Roll, but the judges (it is said) might have done so.[\(back\)](#)

Footnote 259: See, however, Fitzherbert, De Naturâ Brevium, p. 601.[\(back\)](#)

Footnote 260: Wilkins' Concilia, Ex reg. Arundel, i. fol. 15.[\(back\)](#)

Footnote 261: De Roos, Master of the Rolls, was at the first meeting, and a large number (multitudo copiosa) of the laity and clergy.[\(back\)](#)

Footnote 262: The house (the Friars' Preachers) where they met, was a place in which the Prince at this time often presided at the council. On the 10th of the following June, for example, he met the Chancellor, and the Bishops of Durham, Winchester, and Bath, with others, at this house.[\(back\)](#)

Footnote 263: Dictoque die, immediatè post prandium, ex decreto regio, apud Smythfield, præfatus Joh. Badby, in suâ obstinaciâ perseverans usque ad mortem, catenis ferreis stipiti ligatus, ac quodam vase concavo circumplexus, injectis fasciculis et apposis ignibus, incineratus extitit et consumptus.[\(back\)](#)

Footnote 264: Fox makes a curious mistake here. He says, the examination in London began on *Sunday*, the 1st of March. But the 1st of March was not on a Sunday, but on a Saturday, in that year, 1410. Fox derives his information chiefly from the Latin record (v. Wilkins' Concilia) preserved in Lambeth; and there we find that the date is *Die Sabbati*, i.e. Saturday, not, as Fox mistakenly renders it, Sunday. The computation in these Memoirs is made of the historical, not the ecclesiastical year.

The King's writ is dated March 5th, and informs us that Badby was of Evesham in Worcestershire.[\(back\)](#)

Footnote 265: The chronicler adds, "A versifier made of him in metre these two verses:

"Hereticus credat, ve perustus ab orbe recedat,
Ne fidem lædat: Sathan hunc baratro sibi prædat."[\(back\)](#)

Footnote 266: Monk of St. Alban's.[\(back\)](#)

Footnote 267: Monk of Evesham.[\(back\)](#)

Footnote 268: The Pell Rolls (22d May 1398) contain an item of 20*l.* paid to Thomas Duke of Surrey on account of Lord Cobham, then his prisoner.
[\(back\)](#)

Footnote 269: Records of Privy Council.[\(back\)](#)

Footnote 270: The states of Europe were much convulsed about this time by an apprehension of political revolutions.[\(back\)](#)

Footnote 271: King Richard seems to have employed the Irish prelates on many occasions in his intercourse with Rome. Thomas Crawley, Archbishop of Dublin, was sent to Pope Urban (1398, May 22nd,) "for the safe estate and prosperity of the most holy English church;" and John Cotton, Archbishop of Armagh, was sent to Rome, (31st of August,) in the same year, "on the King's secret affairs."—Pell Rolls.[\(back\)](#)

Footnote 272: Otterbourne.[\(back\)](#)

Footnote 273: The Chronicle of London states that the convocation assembled on the day of St. Edmund the King, and continued until December; and "that the archbishop and bishops, at St. Paul's Cross, accused Sir John Oldcastle on the Sunday, after the dirge was performed royally at Westminster for Richard II., on the removal of his remains."
([back](#)).

Footnote 274: Archbishop Arundel (says Anthony à Wood), who never proceeded beyond the degree of bachelor of arts in this University [Oxford] or any other, decreed by a provincial council, 1404, that none should preach except privileged or licensed.([back](#)).

Footnote 275: Carte suggests that Lord Cobham might have been one of Henry's [supposed] rakish companions. But such a supposition as would stain his memory with debauchery, is altogether at variance with his character. Carte has no doubt of the reality of Cobham's conspiracy in St. Giles' Field.([back](#)).

Footnote 276: Henry V.'s own chaplain declares, "that Oldcastle attempted to infect the King's highness himself with his deadly poison by his crafty wiles of argument." If the King argued the points with Oldcastle, how could that confessor have done otherwise than strenuously endeavour to bring his liege Lord to the same views of doctrine which he entertained himself?
([back](#)).

Footnote 277: Lingard speaks of "a mandate to the Archbishop of Canterbury to proceed against the fugitive according to law. The spiritual powers of that prelate were soon exhausted. Oldcastle disobeyed the summons, and laughed at his excommunication; but was compelled to surrender to a military force sent by the King, and was conducted a prisoner to the Tower." The same author (but on what authority it does not appear) tells us that Oldcastle was at St. Alban's, and prophesied that he should rise on the third day; which is in itself most improbable.([back](#)).

Footnote 278: Milner.([back](#)).

Footnote 279: Mr. Southey builds upon this circumstance a very unfavourable and unmerited reflection on Henry in comparison with other

monarchs of England. "The Edwards' would have rejoiced in so high-minded a subject as Lord Cobham. But Henry V. had given his heart and understanding into the keeping of the prelates, and he refused to receive the paper, ordering it to be delivered to them who should be his judges."([back](#))

Footnote 280: It is painful to read the marginal notes of Fox here. "Lord Cobham would not obey the beast." Thomas Arundell, "Caiaphas sitteth in consistory. The wolf was hungry; he must needs be fed with blood. Bloody murderers." With many others, yet more ungentle. The justice of the judgment cannot but be questioned when the feelings of the historian give themselves vent in such language as this. Still we must make great allowances for the times.

There are many other points in which Fox, who, be it remembered, refers us to the Archbishop's Memoir for evidence of the truth of his narrative, gives a turn and colour to minor circumstances calculated to prejudice the reader, but by no means sanctioned by that Memoir. Thus Fox says, the Archbishop swore all on the *Mass Book*: the Archbishop says, he caused them all to be sworn on the Holy Evangelists.([back](#))

Footnote 281: Minutes of Council, 27th May 1415. Item, touching Commission "to the Archbishops and Bishops to take measures each in his own diocese to resist the malice of the Lollards." "The King has given it in charge to his Chancellor."([back](#))

Footnote 282: It is impossible not to observe upon the great inaccuracy of Fox's translation of the Archbishop's words, for he professes it to be a translation, and the unfair turn and tone given to his sentiments, together with the unjustifiable addition which he has made to his definitive sentence.

FOX'S TRANSLATION.

ARUNDEL'S WORDS..

"We sententially and definitively, "Him, convicted of and upon by this present writing, judge, such a detestable offence, and declare, and condemn him for a unwilling to return penitently to most pernicious and detestable the unity of the church, we heretic, convicted upon the same, sententially and definitively have and refusing utterly to obey the judged, declared, and

church: again committing him condemned for a heretic, and to here from henceforth to the be in error in those things which secular jurisdiction, power, and the holy church of Rome and the judgment, to *do him thereupon to* universal church teaches, hath determined, and preacheth, and especially in the Articles above written; leaving the same as a heretic henceforth to the secular power."

"To do him unto death," may be the horrible implication; but it is not, as Fox unwarrantably represents it to be, part of the sentence.

Another instance occurs in the translation of the passage in which the Archbishop gives his reasons for making this public and authoritative statement of the transaction.

FOX.

"That, *upon the fear of this declaration*, also the people may fall from *their evil* opinions conceived *now of late* by *sedition preachers*."

ARUNDEL.

"That the erroneous opinions of the people, who perhaps have conceived on this subject otherwise than as the truth of the fact stands, may by this public declaration be reversed."

The Archbishop declares his object to be the substitution of the true statement of the affair of Lord Cobham's condemnation, in place of the false opinions which were abroad; not a word about "fear," or "evil opinions from seditious preachers."[\(back\)](#)

Footnote 283: In the Lambeth account Sautre's condemnation is dated, according to the ecclesiastical reckoning, February 1400; but that, according to our reckoning, is 1401.[\(back\)](#)

Footnote 284: The writ is dated March 5, 1410.—Rymer.[\(back\)](#)

Footnote 285: His escape must have been, at the furthest, within fifteen days of his sentence; for, on the 10th October, messengers were sent about, forbidding any one to harbour "John Oldcastle, a proved and convicted heretic."—Pell Rolls.[\(back\)](#)

Footnote 286: If Cobham's escape was winked at by the King, and *he knew* of the King's kindness, it is very improbable that he would immediately after have been so basely ungrateful as to imagine the death of his sovereign and benefactor. It is, however, most probable that, had the King favoured his escape, the royal interference would have been kept a profound secret, as well from the prisoner, as from the people at large.[\(back\)](#)

Footnote 287: Walsingham (as quoted by Milner) says that the Archbishop applied to the King for a respite for fifty days for Lord Cobham. "If this be so," Milner says, "the motives of Arundel can be no great mystery. It was thought expedient to employ a few weeks in lessening his credit among the people by a variety of scandalous aspersions;" Milner then quotes the forged recantation, of which we speak in a subsequent note. It did not occur to that writer, that the space of fifty days might be required to forward his appeal to Rome, and receive the Pope's judgment upon it.[\(back\)](#)

Footnote 288: Soon after the affair of St. Giles' Field much pains seem to have been taken to discover the retreat of Cobham. The Pell Rolls, February 19, 1414, record payments to constables and others for their careful watch and endeavours to take him; and "chiefly for having found and seized certain books of the Lollards in the house of a parchment-maker;" and one hundred shillings as an especial reward "for the great pains and diligence exercised by Thomas Burton, (the King's spy,) for his attentive watchfulness to the operations of the Lollards now *lately rebellious*; also because he fully certified *their intentions* to the King for his advantage." This document (for ignorance of which no former historian may deserve blame, though its existence should caution every one against drawing hasty conclusions from negative evidence,) proves that at the Exchequer the Lollards were considered as having been lately rebellious, and as having had designs against the King. In a deed too, signed and sealed by the tenants of Lord Powis, who themselves took Lord Cobham, both heresy and treason are specified as the crimes of which he had been convicted "that was miscreant

and unbuxom to the law of God, and *traitor convict* to our most gracious sovereign and his." The Patent Rolls record grants of ten pounds per annum to John de Burgh, carpenter, because he had discovered and delivered up certain Lollards. There are other similar grants. Pat. p. 5. 1 Hen. V. ([back](#))

Footnote 289: No day ever was appointed. ([back](#))

Footnote 290: The day was not January 6th, but Wednesday the 10th. —"Die mercurii proximo post Festum Epiphaniæ."—Pat. 2 Hen. V. p. 3. m. 23. ([back](#))

Footnote 291: Milner's statement, "that it is extremely probable that popish emissaries mixed themselves among the Lollards for the express purpose of being brought to confession," is mere surmise. ([back](#))

Footnote 292: The Patent Rolls of this year shew that the King's offer was gladly and gratefully accepted by numbers who applied for his pardon. ([back](#))

Footnote 293: Any reference to the opinions of past writers would be imperfect which should omit Fuller's; he had access, it should seem, to little if any other data than Fox supplied him with, and yet the conclusion to which he came is this: "For mine own part, I must confess myself so lost in the intricacies of these relations, that I know not what to assent to. On the one side, I am loath to load the Lord Cobham's memory with causeless crimes, knowing the perfect hatred the clergy in that age bare unto him, and all that looked towards the reformation in religion. Besides, that twenty thousand men should be brought into the field, and no place assigned whence they should have been raised, [\[293-a\]](#) or where mustered, is clogged with much improbability, the rather because only the three persons as is aforesaid are mentioned by name of so vast a number.

"On the other side (continues Fuller), I am much startled with the evidence which appeareth against him. Indeed I am little moved with what T. Walsingham writes, (whom all later authors follow, as a flock the bell-wether,) knowing him a Benedictine monk of St. Alban's, bowed by interest to partiality; but the records in the Tower, and acts of parliament therein, wherein he was solemnly condemned for a traitor as well as a heretic,

challenge belief. For with what confidence can any private person promise credit from posterity to his own writings if such public documents be not entertained by him for authentic? Let Mr. Fox therefore be Lord Cobham's compurgator; I dare not. And, if my hand were put on the Bible, I should take it back again; yet so that, as I will not acquit, I will not condemn him, but leave all to the last day of the revelation of the righteous judgment of God."—Fuller's Church History, An. 1414.[\(back\)](#)

Footnote 293-a: Fuller either had not read, or had forgotten, that the twenty thousand men were to be raised in the city, and to be mustered in St. Giles' Field; but that the timely closing of the city gates is said to have prevented their junction with the party beyond the walls: and he was not aware of the many persons mentioned by name in indictments, proclamations, and pardons.[\(back\)](#)

Footnote 294: The "Ecclesiastical Annals" attributing the respite of fifty days to the interposition of the Archbishop, add, "And in the course of that period Oldcastle escaped from prison, and excited all the followers of Wickliffe to arms, for the purpose of destroying the King and the clergy."—*Annales Ecclesiastici*, vol. viii. p. 362.[\(back\)](#)

Footnote 295: How far these accounts of Walsingham and Otterbourne are confirmed by the authority of the Pell Rolls, the reader will weigh carefully. In the October and November of this year, payment is made "to the serjeant of the sheriff of Southampton for taking Wyche and W^m. Browne, chaplains, and bringing them to make disclosures about certain sums belonging to Sir John Oldcastle. Also to the escheator of the county of Kent, riding sometimes with twenty, sometimes with thirty horsemen, for fear of the soldiers and other malefactors obstinately favouring Sir John Oldcastle."[\(back\)](#)

Footnote 296: The warrant by the council, dated December 1, 1417, authorized Edward Charleton to bring the body of John Oldcastle, then in Pole Castle. On February 3, 1422, the wife and executor of the said Edward Charleton received part payment of one thousand marks for the capture of Sir John Oldcastle. There is also payment for the capture of certain of his clerks and servants. He was taken near Broniarth in Montgomeryshire, on a

property now belonging to Mr. Ormsby Gore, among whose muniments there is said to be traditionary evidence that the manor of Broniarth was granted to one of its former possessors as a reward for securing Sir John Oldcastle. The place in which he is said to have been taken, is called "Lord Cobham's Field" to this day.

There are, we are told, in the Welsh language original verses referring unquestionably to Lord Cobham's residence in Wales, among persons who entertained the same religious views with himself, and also to his return to England. The religion of Rome is called in these verses "the Faith of the Pharaohs."[\(back\)](#)

Footnote 297: There can be no doubt that George Gurmyn, a baker, was burnt for heresy this year, 1415, and probably in the same fire with John Claydon. Fox mentions the name as Turming; but, not having been able to ascertain the truth of the tradition, he leaves the whole matter in uncertainty. In the Pipe Rolls, 3 Henry V, the sheriffs state they had expended twenty shillings about the burning of John Claydon, skinner, and George Gurmyn, baker, Lollards convicted of heresy. The Author has searched the records in St. Paul's Cathedral, but without success, for any account of the proceedings against Gurmyn. He is said to have been convicted before the Bishop of London.[\(back\)](#)

Footnote 298: Printed in "Wilkins' Concilia."[\(back\)](#)

Footnote 299: "The person who shall be burnt for heresy ought to be first convict thereof by the Bishop who is his diocesan, and abjured thereof; and afterwards, if he relapse into that heresy, or any other, then he shall be sent from the clergy to the secular power, to do with him as it shall please the King. And then it seemeth, the King, if he will, may pardon him the same; and the form of the writ is such.

"The King to the Mayor and Sheriffs of London, greeting. Whereas the venerable father, Thomas, Archbishop of Canterbury, Primate of all England, and Legate of the Apostolic See, with the consent and assent of the Bishop and his brothers, the suffragans, and also of the whole clergy of his province in his provincial council assembled, the orders of law in this behalf requisite being in all things observed, by his definitive sentence

pronounced and declared W. Sautre (some time chaplain, condemned for heresy, by him the said W. heretofore in form of law abjured, and him the said W. relapsed again into the said heresy) a manifest heretic, and decreed him to be degraded; and hath for that cause really degraded him from all clerical prerogative and privilege; and hath decreed him the said W. to be left, and hath really left him, to the secular court, according to the laws and canonical sanctions set forth in this behalf; and holy mother, the church, hath nothing further to do in the premises. We, therefore, being zealous for justice, and a lover of the Catholic faith, willing to maintain and defend holy church, and the rights and liberties thereof; and, as much as in us lies, to extirpate by the roots such heresies and errors out of our kingdom of England, and to punish heretics so convicted with condign punishment; and being mindful that such heretics, convicted in form aforesaid, and condemned according to law, divine and human, by canonical institutes on and in this behalf accustomed, ought to be burnt with a burning flame of fire; we command you most strictly as we can, firmly enjoining, that you commit to the fire the aforesaid W. being in your custody, in some public and open place within the liberties of the city aforesaid, before the people publicly, by reason of the premises, and cause him really to be burnt in the same fire in detestation of this crime, and to the manifest example of other Christians. And this you are by no means to omit under the peril falling thereon. Witness," &c.

But by the statute of Henry IV. c. 15, it is enacted that every Bishop in his diocese may convict a man of heresy, and abjure him, and afterwards convict him anew thereof, and condemn him, and warn the sheriff or other officer to apprehend him and burn him; and that the sheriff or other officer ought to do the same by the precept of the Bishop, and *without any writ from the King to do the same*.

And note by 29 Car. II., c. 9, this writ de heretico comburendo is abolished. "LAUS DEO!"—This last note is by an Editor. Fitzherbert, de Naturâ Brevium, p. 601.[\(back\)](#)

Footnote 300: William Taylor had been cited March 9th, 1409, when he treated the citation with contempt.—Archbishop's Register.[\(back\)](#)

Footnote 301: Quisquis suspenderit ad collum suum aliquod scriptum, ipso facto tollit honorem soli Deo debitum, et præbet Diabolo.[\(back\)](#)

Footnote 302: The Canonists seem to have made some distinction between the first and the second of these sentences.[\(back\)](#)

Footnote 303: Consequently he was then, in 1421, as much, as afterwards in 1423, a relapsed heretic, subject to the punishment of death.[\(back\)](#)

Footnote 304: The Minutes of Council, 27th May, 1415, record that the King should be advised, as to issuing a commission to the Archbishops and Bishops, to take measures, each in his own diocese, to resist the malice of the Lollards. The King replied, that he had committed the subject to the charge of the chancellor.[\(back\)](#)

Footnote 305: It will be remembered, that those who were put to death in 1414, after the affair of St. Giles' Field, were sentenced by the civil courts on a charge of treason.[\(back\)](#)

Footnote 306: Pat. p. 5, 1 Henry V.[\(back\)](#)

Footnote 307: This refers to the resolution which Henry is said to have made, and to have declared to his men immediately before the battle: That, as he was a true King and knight, England should never be charged with the payment of his ransom on that day, for he had rather be slain.—MS. Cott. Cleop. C. iv.[\(back\)](#)

Footnote 308: The two first words of this line are different in the original.[\(back\)](#)

Footnote 309: *Quede*, or *quade*,—evil, bad.—See Glossary to Chaucer.[\(back\)](#)

Footnote 310: *In hey*,—in haste, speedily.[\(back\)](#)

Footnote 311: See Sloane, p. 27. King's, p. 11, b. The same gap between "nominati" and "fratris," &c.[\(back\)](#)

Footnote 312: The volume in the King's Library is made up of a great variety of documents independent of that history and of each other.[\(back\)](#)

Footnote 313: The Sloane MS. is assigned in the Catalogue to Higden. By Sir H. Ellis, it is attributed, though not correctly, to a Chaplain of Henry V; a small portion only having been the work of that eye-witness of the field of Agincourt. By Mr. Sharon Turner, it is attributed, without a shadow of reason, to Walsingham. Mr. Turner, however, has, though in a very inadequate manner, attempted in one part of his new edition to rectify the error, leaving it altogether unacknowledged where the correction is most needed, in the passage where he grounds upon its testimony his severe charge against Henry's character. See Turner, third ed. vol. ii. p. 373 and p. 398.[\(back\)](#)

Footnote 314: In p. 48, b, the writer speaks of "Sir John Oldcastle, Lord Cobham," being sent as a military commander to aid the Duke of Burgundy. In p. 50 the same person is spoken of as *Johannes de Veteri Castro*. In the former parts the word used for the *enemy* is "*æmuli*;" the Chaplain employs "*adversarii*."[\(back\)](#)

Footnote 315: Latitavit et latitat.[\(back\)](#)

Footnote 316: From this point the manuscript proceeds, in the very words of Elmham, to describe Henry's second expedition.[\(back\)](#)

Footnote 317: In the MS. the word is "lacum," probably a mistake for "laqueum."[\(back\)](#)

Footnote 318: The Author on the whole is rather disposed to think that, whilst the Monk records accurately what fell within his own knowledge, both he and the author of the Sloane MS. in this part borrowed from some common document, probably more than one; for in some points they vary from each other in a way best reconciled by that supposition. Thus, whilst the Sloane MS. tells us that Richard II. on his landing came to a place *called Cardech*, from which he started for Conway, the Monk (not differing from him in other points) says that he came to the castle of Hertlowli. They both have fallen into the error of making the Earl of Salisbury accompany Richard, whereas he had undoubtedly been sent on before from Dublin to

Conway. They are both equally wrong about the relative positions of Flint and Conway, and make the parties all cross and recross *the bridge* at the castle of Conway, where a noble suspension bridge is now thrown over the arm of the sea. After the period, however, at which the Monk's narrative closes, the writer of the manuscript seems to be seldom free from error.
([back](#))

Footnote 319: The Monk of Evesham makes no mention of Bolinbroke's proceedings before he landed in England.([back](#))

Footnote 320: This account of Hotspur's mission to Wales is the first circumstance mentioned by the manuscript after the chronicle of the Monk of Evesham ends.([back](#))

Footnote 321: The Sloane MS. says that it was on the 28th day of February; the King's MS. assigns it to the 18th.([back](#))

Footnote 322: There are similar statements in Maydstone, Ang. Sac. vii. 371.([back](#))

Footnote 323: The MS. and Monk here agree.([back](#))

Footnote 324: This is another sign that it was written by a foreigner. No Englishman would have been likely to call Henry the Prince of England. He was either called Prince of Wales, or more frequently the Prince.([back](#))

Footnote 325: The Author confesses his inability to discover the meaning of the words which fill up the gaps left in this translation of the passage "Per suas patenas de patriotis," &c. The passage seems to him altogether corrupt.([back](#))

Footnote 326: The Duke of Clarence was at Bourdeaux, February 5, 1413, and signed an acquittance there, April 14, 1413. (See Rymer; and Additional Charters.)([back](#))

Footnote 327: The words are written in one MS. at length, "decimo tertio."
([back](#))

Footnote 328: Bibl. Reg. 13, C. 1. 10. An. 13 Hen. IV. "Eodem anno in Crastino Animarum incepit parliamentum apud Westmonasterium. Et quia Rex ratione suæ infirmitatis non poterat in personâ propriâ interesse, assignavit et ordinavit in nomine suo fratrem suum Thomam Beuforde, Cancellarium tunc Angliæ, ad inchoandum, continuandum, et prorogandum; in quo parlamento Henricus Princeps desidevavit à patre suo regni et coronæ resignacionem, eo quod pater ratione ægritudinis non poterat circa honorem et utilitatem regni ulteriùs laborare; sed sibi in hoc noluit penitùs assentire; ymmo regnum unà cum coronâ et pertinenciis, dummodo haberet spiritus vitales, voluit gubernare: unde Princeps quodammodo cum suis consiliariis aggravatus recessit; et posteriùs quasi pro majori parte Angliæ omnes proceres suo dominio in humagio et stipendio copulavit. In eodem parlamento moneta tam in auro quam in argento fuerat aliququaliter in pondere minorata ex causâ permutationis extraneorum, qui in suis partibus ratione cambii magnum sibi cumulabant emolumentum, et Regi et suis mercatoribus Angligenis in magnum dispendium et detrimentum, &c."
([back](#))

Footnote 329: It cannot, however, be supposed that this anonymous writer fabricated the story; he must have copied it from some other writer, or put down what he had learned by hearsay.([back](#))

Footnote 330: The Author confesses his own opinion to be that a party was formed at court (headed probably by the Queen), jealous of the Prince's influence, and determined to destroy his power with his father. That, to oppose this party, the Prince summoned his friends, and made a demonstration of his power; (it is possible that he might have expressed his readiness to act again in the government for his father, as he had undoubtedly done before:) and that, after much coldness and alienation, father and son were fully reconciled.([back](#))

Footnote 331: Sloane, p. 42. The statute for assigning certain imposts for the King's household is transcribed at full length, word for word. So, too, in the seventh year, the statute relative to the succession is copied verbatim. Of the same character is the copy of the Tripartite Indenture of Division.([back](#))

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